Contract No.

U.S. DEPARTMENT OF TRANSPORTATION

FEDERAL HIGHWAY ADMINISTRATION

EASTERN FEDERAL LANDS HIGHWAY DIVISION

NJ-NY ERFO FW WARI 2019-1(1)

WALLKILL RIVER NATIONAL WILDLIFE REFUGE

REPAIR WINDING WATERS TRAIL AND LIBERTY LOOP TRAIL (NE); REPAIR LIBERTY LOOP TRAIL (SW); REPAIR DAGMAR DALE NATURE TRAIL

DISASTER ID# NY2019-1-FWS and NJ2019-1-FWS

SOLICITATION

693C73-27-B-000005

This Contract Cites

STANDARD SPECIFICATIONS (FP-14)

CONTRACTOR:

ADDRESS:

STATES New Jersey, New York

COUNTIES Sussex/NJ, Orange/NY

REFUGE Wallkill River National Wildlife Refuge

TYPE OF IMPROVEMENT

Schedule A: Embankment repairs, trail reconstruction, and other miscellaneous work.

Schedule B: Trail reconstruction and other miscellaneous work.

Schedule C: Culvert replacements, trail reconstruction, stream regrading, headwall and wingwall installation, and other miscellaneous work.

			Project Length Totals For Parking Areas, Lane Miles is calculated as SQFT/11ft (nominal) lane					1.87	1.87
	Schedule	Parking Area	**Roadway / Parking Area / Other**	**Stations / SQFT**			**Linear Feet**	**Route Miles**	**Lane Miles**
	A	☐	Winding Waters Trail Site #3	10010	To	10067	57	0.01	0.01
	A	☐	Winding Waters Trail Site #240	20190	To	20460	270	0.05	0.05
	A	☐	Winding Waters Trail Site #324	30004	To	30390	386	0.07	0.07
	A	☐	Liberty Loop Trail (NE)	40040	To	42287	2,247	0.43	0.43
	A	☐	Liberty Loop Trail (NE)	42316	To	43423	1,107	0.21	0.21
	B	☐	Liberty Loop Trail (SW)	34700	To	39352	4,652	0.88	0.88
	C	☐	Dagmar Dale Nature Trail Site #1	1060	To	1190	130	0.02	0.02
	C	☐	Dagmar Dale Nature Trail Site #2	2137.68	To	2291.23	154	0.03	0.03
	C	☐	Dagmar Dale Nature Trail Site #3	3043.34	To	3232.64	189	0.04	0.04
	C	☐	Dagmar Dale Nature Trail Site #4	4015.57	To	4219.32	204	0.04	0.04
	C	☐	Dagmar Dale Nature Trail Site #5	5020	To	5350	330	0.06	0.06
	C	☐	Dagmar Dale Nature Trail Site #6	6013	To	6154	141	0.03	0.03

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***BOLD FACED ITEMS ARE TO BE INCLUDED WITH THE BID SUBMITTAL PACKAGE**

NOTICE TO BIDDERS

CONTRACT FORMAT:
Bidders should note that the format of this contract is in accordance with Federal Acquisition Regulations (FAR), promulgated by the General Services Administration (GSA), effective April 1, 1984, including all applicable revisions. Applicable FAR provisions and clauses are incorporated in this contract by reference or full text as indicated in the INDEX before the D-pages in this booklet. FAR provisions and clauses incorporated by reference can be accessed on the Internet website at https://www.acquisition.gov/. Bidders are encouraged to review the documents thoroughly before submitting a bid.

INVITATION FOR BIDS BOOKLET AND BID SUBMITTAL:
It is the responsibility of the Bidder to verify that this bid is complete as listed in the Table of Contents. The Bidder is responsible for submitting all required forms and documents with the bid. Bidders should use the Checklist for Bid Submission included in this booklet to check that their bids are complete.

CONSTRUCTION CONTRACTS:
Additional guidance is given in FAR Subpart 35.005 where the majority of the project work is complex and specialized such as restoration work, bridge painting, and proprietary construction techniques (i.e. proprietary Cintec arch strengthening.) There are exceptions and they will be reviewed on a case-by-case basis.

HAZARDOUS MATERIALS IDENTIFICATION AND MATERIAL SAFETY DATA:
As required by FAR Clause 52.223-3, Hazardous Materials Identification and Safety Data, the apparent low Bidder must submit prior to award a Material Safety Data Sheet (MSDSs) for all hazardous materials that the Bidder identifies in paragraph (b) of this clause in Section G of this booklet. Failure to submit MSDSs may render the Bidder ineligible for award of contract. The apparent low Bidder should submit their MSDSs within two weeks after bid opening.

INTERNET BASED DATABASES - REQUIRED INPUT:
Per FAR Provision 52.204-7, bidders are required to be registered in the System for Award Management (SAM) at the time a bid is submitted and at the time of award.
Access the following web site to register: https://www.sam.gov/.

Per FAR Clause 52.204-13, contractors shall maintain an active SAM registration during contract performance through final payment under a contract. This includes reviewing at least annually its registration in SAM and validating that the information is current, accurate, and complete.

NOTICE:
System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting Officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to update their entity registration to remove these representations in SAM.

NOTICE TO BIDDERS

According to FAR 22.1302-1(b) federal contractors and sub-contractors MUST complete the required annual Vets-4212 Form in order to be eligible for a contract award. It can be completed online at http://www.dol.gov/vets/vets4212.htm. The annual filing period for Form VETS-4212 is August 1 through September 30. Reports filed before August 1 will be treated as part of the previous year's filing cycle. Federal contractors and subcontractors who are required to file a form VETS-4212 can submit their forms electronically by using either the VETS-4212 Reporting Application or batch filing process, or by using the paper form by email or U.S. mail. It is recommended that you file your form electronically at https://vets4212.dol.gov/vets4212. Please visit http://www.dol.gov/vets/vets4212.htm for more information on the reporting process.

PAYMENT:
Bidders are advised to review the Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects (FP), subsection 109.05, concerning **direct** and **indirect** payment included under a pay item in the bid schedule.

PROGRESS PAYMENTS:
ALL payments will be made via Electronic Funds Transfer (EFT) as such; the payment information in SAM must be accurate in order for contractors' invoices to be considered proper invoices for the purpose of prompt payment under DOT contracts. Contractors must input and maintain (update as necessary) their EFT information in the SAM database. Bidders are advised that under FAR Clause 52.232 5, Payments Under Fixed Price Construction Contracts, upon request, progress payments will include premiums paid by the Contractor to obtain performance and payment bonds as required under this contract. These payments shall not be made in addition to the contract price. As specified in the FP, "Section 151 - MOBILIZATION", payments for performance and payment bond premiums shall be included in mobilization.

WELFARE-TO-WORK INITIATIVE:
The President's Welfare Reform Bill was initiated to assist welfare recipients and hopefully aid welfare recipients to find gainful employment. In support of this bill, Contractors are encouraged to hire welfare recipients whenever possible and to use welfare recipients in performance of duties on Government contracts.

INCREASING SEAT BELT USE IN THE UNITED STATES:
The President's Executive Order 13043 dated April 16, 1997, was issued to increase the use of seat belts in the United States. In support of this Order, contractors and subcontractors are encouraged to adopt and enforce on-the-job seat belt policies for their employees when operating company-owned, rented, or personally owned vehicles.

OBTAINING SOLICITATION DOCUMENTS:
Invitation For Bid (IFB) documents **will not be mailed**. All solicitation documents are available for direct download from the Contract Opportunities website: **https://sam.gov/**. Contractors are encouraged to register on the website (for this specific project) in order to receive automatic notifications when a document is added or updated for this specific project. All questions about this construction project must be emailed to the following address: eflhd.contracts@dot.gov.

NOTICE TO BIDDERS

THE CONTRACTOR IS SOLELY RESPONSIBLE FOR MONITORING THE WEB PAGES NOTED ABOVE FOR ALL CHANGES TO THE SOLICITATION AND ACTING ON THOSE CHANGES.

PLEASE NOTE: For security reasons, individuals requiring access to all government buildings must present a valid photo ID and be escorted to their destination by a Government employee. All visitors attending bid openings are urged to arrive at least 1 hour prior to a scheduled bid opening. All visitors must sign in at the main entrance of the Quantum Park facility and wait to be escorted by a Government employee to Eastern Federal Lands Highway Division (EFLHD) in Suite 200. Visitors must then register with the EFLHD Receptionist. A Government employee will collect all bids. Prior to the bid opening, a Government employee will escort all bidders to the bid opening. Unescorted visitors will be denied entry, and no exceptions will be made.

PLEASE NOTE ELECTRONIC BIDS WILL BE ACCEPTED VIA EMAIL ONLY AT EFLHD.CONTRACTS@DOT.GOV. Bids sent to any other email address besides EFLHD.Contracts@dot.gov will not be accepted. Bids will not be accepted via facsimile. Bids submitted via external, cloud-based, file storage services such as OneDrive, etc. shall not be accepted. The government will not click on links sent via email to access bid documents. Hand-delivered bids are not recommended unless the contractor is also attending the bid opening.

CHECKLIST FOR BID SUBMISSION

The following is a checklist of items included in the bid package that are required to be completed and returned (or filled in on-line) to the address in Block 7 of the Standard Form 1442, Solicitation, Offer, and Award (page 1). This checklist is for informational purposes only and is not required to be filled out by the bidder. **Failure to submit a complete bid may be cause to reject your bid.**

PLEASE NOTE ELECTRONIC BIDS WILL BE ACCEPTED VIA EMAIL ONLY AT EFLHD.CONTRACTS@DOT.GOV. Bids sent to any other email address besides EFLHD.Contracts@dot.gov will not be accepted. Bids will not be accepted via facsimile. Bids submitted via external, cloud-based, file storage services such as OneDrive, etc. shall not be accepted. The government will not click on links sent via email to access bid documents. Hand-delivered bids are not recommended.

1. **Bid Envelope (If the Bidder elects not to send the bid electronically via email to EFLHD.Contracts@dot.gov):**
   a. Addressed as shown in Block 7 of SF-1442 ☐
   b. In the lower left corner, indicate the following: Solicitation No., Project Name & Number, and **mail to Suite E2-3-300, ATTENTION: ACQUISITIONS**. If bids are hand-delivered, bring them to the main entrance of Quantum Park, and ask for the Federal Highway Administration (EFLHD) Receptionist to be contacted and an EFLHD representative will come to collect the bid. **Hand-delivered bids are not recommended.** ☐

2. **Standard Form 1442: Solicitation, Offer and Award**
   a. Block 14: Name and Address of Bidder. ☐
   b. Block 15: Telephone Number of Bidder ☐
   c. Block 16: Remittance Address if different from Block 14. ☐
   d. Block 19: **All** Amendments Acknowledged, with dates of Amendments. ☐
   e. Block 20: Bid is signed and dated. ☐

3. **Bid Schedule - (Pages B-1 through B-6)**
   a. Unit bid price and bid amount provided for each pay item in numbers. ☐
   b. Corrections initialed. ☐

4. **Standard Form 24, Bid Bond (Pages C-1 through C-4) (Required if bid guarantee is bid bond)**
   a. Date executed ☐
   b. Legal name and address of bidder. ☐
   c. Type of organization. ☐
   d. State of incorporation (if applicable). ☐
   e. Name and business address of Treasury approved surety. ☐
   f. Penal sum of bond (not less than 20% of bid total). ☐
   g. Bid identification. ☐
   h. Signature of Bidder ☐
   i. Seal, if corporation ☐
   j. Signature of Surety ☐
   k. Seal, if corporation ☐

BIDS RECEIVED WITHOUT A VALID BID BOND WILL BE REJECTED.

CHECKLIST FOR BID SUBMISSION

5. **Power of Attorney**
   a. Dated on or before execution date of bond ☐
   b. Power has original signature of surety, or is embossed with surety's seal in the certification section ☐

BIDS RECEIVED WITHOUT A VALID POWER OF ATTORNEY WILL BE REJECTED.

6. **Bidder's Qualifications form (provided separately as part of the Bid Documents Package).** Form completed, signed and submitted with bid ☐

7. **System for Award Management (SAM):** The contractor is currently registered in the System for Award Management (SAM) database at https://www.sam.gov/ at the time the bid is submitted. If the contractor elects to not have its active SAM registration viewable by the public, then the contractor must submit a copy with the bid. ☐

8. **Online Representations and Certifications Application:** The contractor's Representations and Certifications have been input online via the electronic database at https://www.sam.gov/. ☐

9. **VETS - 4212 Reporting:** The contractor has completed the annual reporting requirement online at http://www.dol.gov/vets/vets4212.htm. The annual filing period for Form VETS-4212 is August 1 through September 30. Reports filed before August 1 will be treated as part of the previous year's filing cycle. Federal contractors and subcontractors who are required to file a form VETS-4212 can submit their forms electronically by using either the VETS-4212 Reporting Application or batch filing process, or by using the paper form by email or U.S. mail. It is recommended that you file your form electronically at https://vets4212.dol.gov/vets4212. Please visit http://www.dol.gov/vets/vets4212.htm for more information on the reporting process ☐

10. **INVOICING FOR PAYMENTS:** The Contractor affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in Students for Fair Admissions v. Harvard, 600 U.S. 181 (2023). ☐

NOTE: THE CONTRACTOR IS FULLY RESPONSIBLE TO VERIFY THAT ALL DATA IN THE ABOVE DATABASES IS CORRECT EACH TIME A BID PACKAGE IS SUBMITTED. FAILURE TO PROPERLY INPUT AND/OR UPDATE YOUR DATA PRIOR TO BID SUBMISSION MAY CAUSE THE BID TO BE REJECTED.

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO.	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	693C7327B000005	☒ SEALED BID (IFB) ☐ NEGOTIATED (RFP)	11/12/2026	1 of 5

IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO.	6. PROJECT NO.
		See Block 10

7. ISSUED BY	CODE	8. ADDRESS OFFER TO
FEDERAL HIGHWAY ADMINISTRATION EASTERN FEDERAL LANDS HIGHWAY DIVISION QUANTUM PARK, 22001 LOUDOUN COUNTY PKWY SUITE E2-3-300 ATTN: Acquisition and Contracts ASHBURN VA 20147	693C73	See Block 7

9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS)
	EMILY MCCLEARY	EFLHD.Contracts@dot.gov

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date)*

This Invitation for Bids is for the Wallkill River National Wildlife Refuge, Project No. NJ-NY ERFO FW WARI 2019-1(1), located in Sussex County, New Jersey and Orange County New York in strict accordance with the Solicitation/Contract instructions, notices, clauses, provisions, items listed below, and for the quantities of work actually performed at the unit prices as bid in the Bid Schedule, including all applicable Federal, State, and local taxes.

FP - Standard Specification for Construction of Roads & Bridges on Federal Highway Projects.
Bid Schedule, Section B - pages B-1 through B-6.
Special Contract Requirements, Section J - pages J-1 through J-51.
Plans, sheets 1 through 263.
Categorical Exclusion Form (NEPA) - NJ, pages 1 through 21.
Categorical Exclusion Form (NEPA) - NY, pages 1 through 26.
NJ-NY ERFO FW WARI 2019-1(1)_Geo_Memo, pages 1 through 34.
NJ-NY ERFO FW WARI 2019-1(1)_HYD_Memo, pages 1 through 49.
Permits, Pending.

11. The Contractor shall begin performance within 10 calendar days and complete it within 285 calendar days after receiving ☐ award, ☒ notice to proceed. The performance period is ☒ mandatory ☐ negotiable. (See Continuation Sheet, Block 11.)

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	☒ YES ☐ NO	12b. CALENDAR DAYS
		14

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 1400 *(hour)* local time 12/15/2026 *(date)*. If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NO. *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than item 14.)*
CODE FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)*

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20b. SIGNATURE	20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO
	Block 26	☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 3304(a) ( )

26. ADMINISTERED BY CODE EFLHD-CO	27. PAYMENT WILL BE MADE BY
FEDERAL HIGHWAY ADMINISTRATION EASTERN FEDERAL LANDS HIGHWAY DIVISION QUANTUM PARK, 22001 LOUDOUN COUNTY PKWY SUITE E2-2-200 ATTN: CONSTRUCTION ASHBURN VA 20147	FFEDERAL HIGHWAY ADMINISTRATION EASTERN FEDERAL LANDS HIGHWAY DIVISION A/P Branch, AMZ-150 PO Box 25710 OR E-MAIL 9-AMC-AMZ-EFLINVOICES@FAA.GOV Oklahoma City OK 73125

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT	☐ 29. AWARD
(Contractor is required to sign this document and return _____ copies to issuing office.)	*(Contractor is not required to sign this document.)*
Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	*Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.*

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*	31a. NAME OF CONTRACTING OFFICER *(Type or print)*

30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

CONTINUATION OF SF 1442

Block 2:

This project is **RESTRICTED** - Bids will be accepted from all eligible **Small Business** concerns.

This procurement falls under North American Industry Classification System (NAICS) code 237310 - Highway, Street, and Bridge Construction (see FAR 19.103).

Electronic bids will be accepted via email sent to EFLHD.Contracts@dot.gov. Please be sure to indicate the solicitation number, project number, and ATTN: Ms. Emily McCleary on the subject line of your email. Bids submitted via external, cloud-based, file storage services such as OneDrive, etc. shall not be accepted. The government will not click on links sent via email to access bid documents. **Please note you must include a scanned copy of your official bid bond along with your bid documents if you submit your bid electronically.**

Block 9:

PHYSICAL DATA AVAILABLE FOR REVIEW

1. Manual on Uniform Traffic Control Devices for Streets and Highways, most current edition, published by the Federal Highway Administration. https://mutcd.fhwa.dot.gov/.
2. Categorical Exclusion Form (NEPA) – NJ
3. Categorical Exclusion Form (NEPA) – NY
4. NJ-NY ERFO FW WARI 2019-1(1)_Geo_Memo
5. NJ-NY ERFO FW WARI 2019-1(1)_HYD_Memo
6. Permits, Pending

Data and information furnished or referred to above is for the Contractor's information. The Government shall not be responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

A Government representative can be available to show the project to prospective bidders. **All requests** for site visits see Section E of the solicitation and e-mail all questions concerning this construction project to the following e-mail address eflhd.contracts@dot.gov. Interested parties must provide the Solicitation Number and the relevant project name with all requests and questions.

CONTINUATION OF SF 1442

∗Block 11:

Maximum Time Allowed for the Contract if Schedules A, B, and C are Awarded at the Same Time:

If the Government awards the contract as Schedules A + B + C, the performance period to complete all contract work will be **285 calendar days**.

Maximum Time Allowed for the Contract if Schedules A and B are Awarded at the Same Time:

If the Government awards the contract as Schedules A + B, the performance period to complete all contract work will be **285 calendar days**.

Maximum Time Allowed for Each Schedule of Work if Awarded Separately:

If Schedule C (Government Option 1) is exercised after the award of the original contract, the performance period to complete all Schedule C work will be **115 calendar days** and will start on the effective date of Schedule C's Notice to Proceed.

See Completion of Work section of the B-Pages – Bid Schedule Instructions for further information. The completion time for the contract is not to exceed the maximum time above. Work restrictions can be found in SCR Sections 108 and 156.

Notice to Proceed will be issued within 30 days following receipt of acceptable performance and payment bonds. (Actual Notice to Proceed date will be 10 days from issuance or the date specified in the Notice.)

Block 12A:

Furnish performance and payment bonds in accordance with FAR Clause 52.228-15.

Block 13:

A bid guarantee in the amount of not less than 20 percent of the bid price or $3 million, whichever is less, is required with this bid. If the bidder fails to provide the required bid guarantee, such failure may require rejection of the bid. Reference FAR Provision 52.228-1, Bid Guarantee. **Please note you must include a scanned copy of your official bid bond along with your bid documents if you submit your bid electronically.**

CONTINUATION OF SF 1442

Block 17:

Amounts should be completed as follows:
Schedule A - $
Schedule B - $
Schedule C (Option 1) - $

Other:

The estimated price is expected to fall within the price range of **$3,000,000 to $5,000,000**.

Responsibility of bidders shall be evaluated in accordance with the information provided on the Bidder's Qualification Form, which can be downloaded from the Contract Opportunities website located at http://SAM.gov. FP-14 versions can be downloaded at the FHWA web site located at http://flh.fhwa.dot.gov/resources/specs/.

Electronic bids must contain the required signatures (electronic or by hand). Bids submitted via external, cloud-based, file storage services such as OneDrive, etc. shall not be accepted. The government will not click on links sent via email to access bid documents.

If you elect not to submit your bid electronically to EFLHD.Contracts@dot.gov, **then please mail your bid to:**

Federal Highway Administration - Eastern Federal Lands Highway Division
ATTN: ACQUISITIONS
Quantum Park
22001 Loudoun County Parkway
Suite E2-3-300
Ashburn, VA 20147

STATEMENT OF WORK

Sealed bids from certified Small Business Concerns only will be accepted for Wallkill River National Wildlife Refuge, Project NJ-NY ERFO FW WARI 2019-1(1), Solicitation Number 693C73-27-B-000005, located in Sussex County, New Jersey; and Orange County, New York. The project consists of repairs to the Winding Waters Trail, Liberty Loop Trail (NE), Liberty Loop Trail (SW), and Dagmar Dale Nature Trail. The work includes embankment repairs, trail reconstruction, culvert replacement, stream regrading, headwall and wingwall installation, and other miscellaneous work.

The project will be split into multiple work schedules/contract options, with the cost of the entire project expected to fall within the price range of $3,000,000 to $5,000,000.

The performance period to complete all contract work will be 285 calendar days after the issuance of the Notice to Proceed.

BID SCHEDULE INSTRUCTIONS

PROJECT: **NJ-NY ERFO FW WARI 2019-1(1)**
BIDDERS PLEASE NOTE: Before preparing the bid, carefully read the Instructions to Bidders. When preparing the bid, comply with the following:

COMPLETING THE BID SCHEDULE

Complete the Bid Schedule(s) by handwriting in ink or typing. Specify a Unit Bid Price, in figures with cents to only **two decimal places** for each pay item in the Unit Bid Price column for which a quantity is given. Do not enter or tender a Unit Bid Price for any pay item for which no estimated quantity appears in the Bid Schedule. Determine the products of the respective unit prices and quantities, and show them, in figures, in the Amount Bid column. If a Unit Bid Price and Amount Bid have been inserted by the Government for a pay item, do not change the Unit Bid Price and Amount Bid for the pay item. Determine the Bid Total for each specific individual Schedule of Work by adding the amounts of the listed items and show in the block provided for that individual Schedule of Work. In case of multiplication errors, the Amount Bid for the item will be based on the Unit Bid Price.

To be eligible for award, bidders must submit prices for each pay item.

Review Subsection 109.05 of the FP (standard specifications book) regarding scope of payment for direct and indirect payment work.

Fill in the **Bid Total(s)** for each individual Schedule of Work as directed on the **Bid Summary** page. Fill in the **Evaluation Total Price of Project** in the space provided on the **Bid Summary** page.

The amount in Block 17 of the SF 1442 should be completed as follows:

Schedule A - $.
Schedule B - $.
Schedule C - $.

SCHEDULES OF WORK

The Bid Schedule is comprised of the following separate schedules and options:

Schedule A (Base Contract) **- Pages B-1 through B-2**

Schedule B (Base Contract) **- Page B-3**

Schedule C (Government Option 1) **- Pages B-4 through B-5**

The Government will award the project as a Base Contract (Schedules A and B) with the option to award Schedule C (Government Option 1); see FAR Provisions 52.217-4 and 52.217-5.

The purpose of the multiple schedules and options is to give the Government maximum flexibility in completing the project in a timely manner and at a cost-effective price by proper utilization of programmed funds and upon receipt of any additional funds required to award the contract. **If complete funding is in place at the time of award of Schedules A and B (Base Contract), the Government may award Schedule C (Government Option 1) at that time. If additional funding is required for the award of Schedule C (Government Option 1), and is received after the award of Schedules A and B (Base Contract), the Government has the right to exercise Schedule C (Government Option 1) at the unit prices bid according to the following schedule:**

Schedule C (Government Option 1): No later than July 12, 2027.

COMPLETION OF WORK

The Government has estimated the number of calendar days necessary to complete all work from the effective date of the Notice to Proceed to contract completion for the various award scenarios. The maximum number of calendar days allowed (i.e., the contract performance period) is shown in Block 11 of the SF-1442 and described below.

If the Government awards the contract as Schedules A + B + C, the performance period to complete all work will be **285 calendar days.**

If the Government awards the contract as Schedules A + B, the performance period to complete all contract work will be **285 calendar days**.

If Schedule C (Government Option 1) is exercised after the award of the original contract, the performance period to complete all Schedule C work will be **115 calendar days** and will start on the effective date of Schedule C's Notice to Proceed.

In developing a construction schedule to determine the number of calendar days, the Government considered and included the work limitations shown in Sections 108 and 156 of the FP and Special Contract Requirements (SCRs). Specific work limitations may be (but are not limited to): National legal holidays, weekends, rush hours, night work, specified no work periods, work or traffic control phasing, etc. The Government also considered those work items that are weather sensitive and when those work items will be performed. Specific work items are (but not limited to): those that require a minimum ambient air temperature (asphalt paving and surface treatment, pavement striping, stone masonry, etc.); those that require maintaining a minimum surface temperature (concrete pavement, structural concrete, painting, etc.); and those that have specific planting seasons (turf establishment, sod, trees, plants, etc.). The Government also considered time required for preparing material and drawing submittals, and the allowable Government review times for those submittals (Subsection 104.03 of the FP and SCRs).

BASIS FOR AWARD

The contract will be awarded to the responsive, responsible bidder with the lowest **Evaluation Total Price of Project**, which is defined as:

Schedule A (Base Contract) Bid Total +
Schedule B (Base Contract) Bid Total +
Schedule C (Government Option 1) Bid Total .

BID SCHEDULE

Project No : NJ-NY ERFO FW WARI 2019-1(1)
Project Name : Repair Liberty Loop (SW) and Dagmar Dale Nature Trail and Repair Winding Waters Trail and Liberty Loop Trail (NE)
Schedule : A
Schedule Type : Base

AMD#	Line Item Number	Pay Item Number	Description	Supplemental Description	Quantity	Unit	Unit Price	Amount
	A0010	15101-0000	MOBILIZATION		ALL	LPSM		
	A0020	15201-0000	CONSTRUCTION SURVEY AND STAKING		ALL	LPSM		
	A0030	15401-0000	CONTRACTOR TESTING		ALL	LPSM		
	A0040	15705-0100	SOIL EROSION CONTROL, SILT FENCE		1,500.000	LNFT		
	A0050	15705-0100	SOIL EROSION CONTROL, SILT FENCE	(WILDLIFE EXCLUSION)	7,500.000	LNFT		
	A0060	15705-2000	SOIL EROSION CONTROL, FLOATING TURBIDITY CURTAIN		540.000	LNFT		
	A0070	15720-0000	STORM WATER POLLUTION PREVENTION PLAN		ALL	LPSM		
	A0080	20103-0000	CLEARING AND GRUBBING		2,700.000	SQYD		
	A0090	20220-1000	REMOVAL, INDIVIDUAL TREE		17.000	EACH		
	A0100	20401-0000	ROADWAY EXCAVATION		3,900.000	CUYD		
	A0110	20435-2000	BACKFILL, GRANULAR	(3-INCH VOID-FILL BACKFILL)	215.000	CUYD		
	A0120	20701-0300	SEPARATION-STABILIZATION GEOTEXTILE, CLASS 1, TYPE C		1,900.000	SQYD		
	A0130	20701-1000	SEPARATION-STABILIZATION GEOTEXTILE, CLASS 2, TYPE E		5,500.000	SQYD		
	A0140	25102-0300	PLACED RIPRAP, METHOD A, CLASS 3		1,100.000	TON		
	A0150	25102-0500	PLACED RIPRAP, METHOD A, CLASS 5		1,900.000	TON		
	A0160	25510-0000	SELECT GRANULAR BACKFILL	(COARSE AGGREGATE #57 STONE)	200.000	CUYD		
	A0170	30101-4000	AGGREGATE BASE GRADING C OR D		1,700.000	TON		
	A0180	30302-2000	SHOULDER RECONDITIONING		370.000	LNFT		
	A0190	31302-0400	AGGREGATE-TOPSOIL COURSE, 4-INCH DEPTH		5,400.000	SQYD		
	A0200	62303-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES	(ARBORIST)	ALL	LPSM		

	A0210	62303-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES	(BIOLOGICAL MONITOR)	ALL	LPSM		
	A0220	62303-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES	(HORTICULTURIST)	ALL	LPSM		
	A0230	62403-0000	FURNISHING AND PLACING TOPSOIL		95.000	CUYD		
	A0240	62403-0000	FURNISHING AND PLACING TOPSOIL	(15-INCH DEPTH)	350.000	CUYD		
	A0250	62501-0000	TURF ESTABLISHMENT		1.450	ACRE		
	A0260	62601-0600	ACER RUBRUM 'OCTOBER GLORY', OCTOBER GLORY RED MAPLE, 3 1/2-INCH TO 4-INCH CALIPER, BALLED AND BURLAPPED		6.000	EACH		
	A0270	62616-0500	PLATANUS OCCIDENTALIS, SYCAMORE, 60-INCH TO 72-INCH HEIGHT, BALLED AND BURLAPPED		2.000	EACH		
	A0280	62617-0700	QUERCUS PALUSTRUS, PIN OAK, 3 1/2-INCH TO 4-INCH CALIPER, BALLED AND BURLAPPED		3.000	EACH		
	A0290	62619-0300	SALIX NIGRA, BLACK WILLOW, 2 1/2-INCH TO 3 1/2-INCH CALIPER, CONTAINER GROWN		6.000	EACH		
	A0300	62630-0300	PLANTINGS, SEEDLINGS, CONTAINER GROWN		190.000	EACH		
	A0310	62635-3000	CUTTINGS, WILLOW POLE		165.000	EACH		
	A0320	62901-1100	ROLLED EROSION CONTROL PRODUCT, TYPE 4	(WOVEN COIR)	430.000	SQYD		
	A0330	62901-1200	ROLLED EROSION CONTROL PRODUCT, TYPE 5.A	(TURF REINFORCEMENT MAT)	470.000	SQYD		
	A0340	62903-0000	CELLULAR CONFINEMENT SYSTEM		4,700.000	SQYD		
	A0350	63501-0000	TEMPORARY TRAFFIC CONTROL		ALL	LPSM		
	A0360	63701-0000	FIELD OFFICE		1.000	EACH		
	A0370	65001-1000	CONSTRUCT AND MAINTAIN DIVERSION	(TEMPORARY ACCESS ROAD)	ALL	LPSM		

Submitted By:

Schedule Total:

BID SCHEDULE

Project No : NJ-NY ERFO FW WARI 2019-1(1)
Project Name : Repair Liberty Loop (SW) and Dagmar Dale Nature Trail and Repair Winding Waters Trail and Liberty Loop Trail (NE)
Schedule : B
Schedule Type : Option

AMD#	Line Item Number	Pay Item Number	Description	Supplemental Description	Quantity	Unit	Unit Price	Amount
	B0010	15101-0000	MOBILIZATION		ALL	LPSM		
	B0020	15201-0000	CONSTRUCTION SURVEY AND STAKING		ALL	LPSM		
	B0030	15401-0000	CONTRACTOR TESTING		ALL	LPSM		
	B0040	15705-0100	SOIL EROSION CONTROL, SILT FENCE		9,800.000	LNFT		
	B0050	15720-0000	STORM WATER POLLUTION PREVENTION PLAN		ALL	LPSM		
	B0060	20401-0000	ROADWAY EXCAVATION		1,200.000	CUYD		
	B0070	20701-1000	SEPARATION-STABILIZATION GEOTEXTILE, CLASS 2, TYPE E		5,300.000	SQYD		
	B0080	30101-4000	AGGREGATE BASE GRADING C OR D		1,650.000	TON		
	B0090	31302-0400	AGGREGATE-TOPSOIL COURSE, 4-INCH DEPTH		5,200.000	SQYD		
	B0100	62303-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES	(BIOLOGICAL MONITOR)	ALL	LPSM		
	B0110	62403-0000	FURNISHING AND PLACING TOPSOIL		88.000	CUYD		
	B0120	62501-0000	TURF ESTABLISHMENT		1.240	ACRE		
	B0130	62903-0000	CELLULAR CONFINEMENT SYSTEM		5,200.000	SQYD		
	B0140	63501-0000	TEMPORARY TRAFFIC CONTROL		ALL	LPSM		
	B0150	64620-0300	REMOVE AND RESET BENCH		2.000	EACH		

Submitted By:

Schedule Total:

BID SCHEDULE

Project No : NJ-NY ERFO FW WARI 2019-1(1)
Project Name : Repair Liberty Loop (SW) and Dagmar Dale Nature Trail and Repair Winding Waters Trail and Liberty Loop Trail (NE)
Schedule : C
Schedule Type : Option

AMD#	Line Item Number	Pay Item Number	Description	Supplemental Description	Quantity	Unit	Unit Price	Amount
	C0010	15101-0000	MOBILIZATION		ALL	LPSM		
	C0020	15201-0000	CONSTRUCTION SURVEY AND STAKING		ALL	LPSM		
	C0030	15401-0000	CONTRACTOR TESTING		ALL	LPSM		
	C0040	15702-6000	SOIL EROSION CONTROL, TEMPORARY STREAM DIVERSION		ALL	LPSM		
	C0050	15705-0100	SOIL EROSION CONTROL, SILT FENCE		3,000.000	LNFT		
	C0060	15706-0200	SOIL EROSION CONTROL, CHECK DAM		2.000	EACH		
	C0070	20103-0000	CLEARING AND GRUBBING		970.000	SQYD		
	C0080	20220-1000	REMOVAL, INDIVIDUAL TREE		12.000	EACH		
	C0090	20301-0300	REMOVAL OF BOX CULVERT	(AND WINGWALLS)	1.000	EACH		
	C0100	20301-1900	REMOVAL OF PIPE CULVERT		2.000	EACH		
	C0110	20420-0000	EMBANKMENT CONSTRUCTION		495.000	CUYD		
	C0120	20701-1000	SEPARATION-STABILIZATION GEOTEXTILE, CLASS 2, TYPE E		1,400.000	SQYD		
	C0130	20702-0300	GEOTEXTILE FILTER, CLASS 1, TYPE C		18.000	SQYD		
	C0140	25102-0300	PLACED RIPRAP, METHOD A, CLASS 3		12.000	TON		
	C0150	25126-0000	REMOVE AND RESET BOULDER		5.000	EACH		
	C0160	25510-0000	SELECT GRANULAR BACKFILL	(COARSE AGGREGATE #57 STONE)	4.000	CUYD		
	C0170	30101-4000	AGGREGATE BASE GRADING C OR D		400.000	TON		
	C0180	30302-1000	DITCH RECONDITIONING		310.000	LNFT		
	C0190	31302-0400	AGGREGATE-TOPSOIL COURSE, 4-INCH DEPTH		1,300.000	SQYD		
	C0200	60103-0240	CONCRETE, HEADWALL FOR 54-INCH PIPE CULVERT		2.000	EACH		
	C0210	60103-0700	CONCRETE, HEADWALL FOR DOUBLE 48-INCH PIPE CULVERT		2.000	EACH		

	C0220	60103-1920	CONCRETE, HEADWALL FOR 24-INCH EQUIVALENT DIAMETER PIPE CULVERT		4.000	EACH		
	C0230	60201-0800	24-INCH PIPE CULVERT	(HDPE)	37.000	LNFT		
	C0240	60201-1200	48-INCH PIPE CULVERT	(HDPE)	36.000	LNFT		
	C0250	60201-1300	54-INCH PIPE CULVERT	(HDPE)	32.000	LNFT		
	C0260	62303-1000	SPECIAL LABOR, HIRED TECHNICAL SERVICES	(BIOLOGICAL MONITOR)	ALL	LPSM		
	C0270	62403-0000	FURNISHING AND PLACING TOPSOIL		120.000	CUYD		
	C0280	62501-0000	TURF ESTABLISHMENT		0.480	ACRE		
	C0290	62903-0000	CELLULAR CONFINEMENT SYSTEM		650.000	SQYD		
	C0300	63501-0000	TEMPORARY TRAFFIC CONTROL		ALL	LPSM		

Submitted By:

Schedule Total:

BID SUMMARY
Project NJ-NY ERFO FW WARI 2019-1(1)

(1) Schedule A (Base Contract) BID Total (from Page B-2) = **(1) $_____**

(2) Schedule B (Base Contract) BID Total (from Page B-3) = **(2) $_____**

(3) Schedule C (Government Option 1) BID Total (from Page B-5) = **(3) $_____**

==========

Total Price of Project (for evaluation purposes only)

EVALUATION TOTAL PRICE OF PROJECT = **(1) + (2) + (3) $_____**

Maximum Time Allowed for the Contract if Schedules A, B, and C are Awarded at the Same Time:

If the Government awards the contract as Schedules A + B + C, the performance period to complete all contract work will be **285 calendar days**.

-.-.-.

Bid Bond (See Instructions on Page 3)	Date Bond Executed (Must Not Be Later Than Bid Opening Date)	**OMB Control Number: 9000-0001** **Expiration Date: 1/31/2027**

Principal (Legal Name And Business Address)	Type Of Organization ("X" One) ☐ Individual ☐ Partnership ☐ Joint Venture ☐ Corporation ☐ Other (Specify)
	State Of Incorporation

Surety(ies) (Name And Business Address)

Penal Sum Of Bond					Bid Identification	
Percent Of Bid Price	Amount Not To Exceed				Bid Date	Invitation Number
	Million(s)	Thousand(s)	Hundred(s)	Cents		
					For (Construction, Supplies Or Services)	

Obligation:

We, the Principal and Surety(ies) are firmly bound to the United States of America (hereinafter called the Government) in the above penal sum. For payment of the penal sum, we bind ourselves, our heirs, executors, administrators, and successors, jointly and severally. However, where the Sureties are corporations acting as co-sureties, we, the Sureties, bind ourselves in such sum "jointly and severally" as well as "severally" only for the purpose of allowing a joint action or actions against any or all of us. For all other purposes, each Surety binds itself, jointly and severally with the Principal, for the payment of the sum shown opposite the name of the Surety. If no limit of liability is indicated, the limit of liability is the full amount of the penal sum.

Conditions:

The Principal has submitted the bid identified above.

Therefore:

The above obligation is void if the Principal - (a) upon acceptance by the Government of the bid identified above, within the period specified therein for acceptance (sixty (60) days if no period is specified), executes the further contractual documents and gives the bond(s) required by the terms of the bid as accepted within the time specified (ten (10) days if no period is specified) after receipt of the forms by the Principal; or (b) in the event of failure to execute such further contractual documents and give such bonds, pays the Government for any cost of procuring the work which exceeds the amount of the bid.

Each Surety executing this instrument agrees that its obligation is not impaired by any extension(s) of the time for acceptance of the bid that the Principal may grant to the Government. Notice to the Surety(ies) of extension(s) is waived. However, waiver of the notice applies only to extensions aggregating not more than sixty (60) calendar days in addition to the period originally allowed for acceptance of the bid.

Witness:

The Principal and Surety(ies) executed this bid bond and affixed their seals on the above date.

Principal

Signature(s)	1. (Seal)	2. (Seal)	3. (Seal)	Corporate Seal
Name(s) And Title(s) (Typed)	1.	2.	3.	

Individual Surety(ies)

Signature(s)	1. (Seal)	2. (Seal)
Name(s) (Typed)	1.	2.

Corporate Surety(ies)

Surety A	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety B	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety C	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety D	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		

Surety E	Name And Address		State Of Incorporation	Liability Limit ($)	
	Signature(s)	1.	2.		Corporate Seal
	Name(s) And Title(s) (Typed)	1.	2.		
Surety F	Name And Address		State Of Incorporation	Liability Limit ($)	
	Signature(s)	1.	2.		Corporate Seal
	Name(s) And Title(s) (Typed)	1.	2.		
Surety G	Name And Address		State Of Incorporation	Liability Limit ($)	
	Signature(s)	1.	2.		Corporate Seal
	Name(s) And Title(s) (Typed)	1.	2.		

Instructions

1. This form is authorized for use when a bid guaranty is required. Any deviation from this form will require the written approval of the Administrator of General Services.
2. Insert the full legal name and business address of the Principal in the space designated "Principal" on the face of the form. An authorized person shall sign the bond. Any person signing in a representative capacity (e.g., an attorney-in-fact) must furnish evidence of authority if that representative is not a member of the firm, partnership, or joint venture, or an officer of the corporation involved.
3. The bond may express penal sum as a percentage of the bid price. In these cases, the bond may state a maximum dollar limitation (e.g., 20% of the bid price but the amount not to exceed _____ dollars).
4. (a) Corporations executing the bond as sureties must appear on the Department of the Treasury's list of approved sureties and must act within the limitations listed therein. The value put into the Liability Limit block is the penal sum (i.e., the face value) of the bond, unless a co-surety arrangement is proposed.

(b) When multiple corporate sureties are involved, their names and addresses shall appear in the spaces (Surety A, Surety B, etc.) headed "Corporate Surety(ies)." In the space designated "Surety(ies)" on the face of the form, insert only the letter identifier corresponding to each of the sureties. Moreover, when co-surety arrangements exist, the parties may allocate their respective limitations of liability under the bond, provided that the sum total of their liability equals 100% of the bond penal sum.

(c) When individual sureties are involved, a completed Affidavit of Individual Surety (Standard Form 28) for each individual surety, shall accompany the bond. The Government may require the surety to furnish additional substantiating information concerning its financial capability.

5. Corporations executing the bond shall affix their corporate seals. Individuals shall execute the bond opposite the word "Corporate Seal"; and shall affix an adhesive seal if executed in Maine, New Hampshire, or any other jurisdiction requiring adhesive seals.
6. Type the name and title of each person signing this bond in the space provided.
7. In its application to negotiated contracts, the terms "bid" and "bidder" shall include "proposal" and "offeror."

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 USC § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 9000-0001. We estimate that it will take 1 hour to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: General Services Administration, Regulatory Secretariat Division (MVCB), 1800 F Street, NW, Washington, DC 20405.

CONTRACT CLAUSES INDEX

FEDERAL ACQUISITION REGULATION (FAR) TRANSPORTATION ACQUISITION REGULATION (TAR)

(Updated thru FAC 2026-01 on 3/13/2026)

52.252-2 Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. The full text of a clause may be accessed electronically at this address: www.acquisition.gov

(End of Clause)

FAR & TAR CLAUSES INCORPORATED BY REFERENCE

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CONTRACT CLAUSES INDEX

FEDERAL ACQUISITION REGULATION (FAR) TRANSPORTATION ACQUISITION REGULATION (TAR)

(Updated thru FAC 2026-01 on 3/13/2026)

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1252.211-70	INDEX FOR SPECIFICATIONS	Nov-22	
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52.217-3	EVALUATION EXCLUSIVE OF OPTIONS	Apr-84	
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CLAUSE	TITLE	DATE	SECTION	SECTION TYPE	REMARKS
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS	Nov-23	G	GEN'L CONTRACT REQS.	
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS - REPRESENTATION	Jan-17	G	GEN'L CONTRACT REQS.	
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	Jan-17	G	GEN'L CONTRACT REQS.	
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (DEVIATION NOV 2025)	Nov-25	G	GEN'L CONTRACT REQS.	Contractor Mandatory Internet Data Input
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	Oct-18	G	GEN'L CONTRACT REQS.	
52.211-12	LIQUIDATED DAMAGES - CONSTRUCTION	Sep-00	H	CONSTR. CONTRACTS REQS	Government Fill In
52.217-7	OPTION FOR INCREASED QUANTITY - SEPARATELY PRICED LINE ITEM	Mar-89	H	CONSTR. CONTRACTS REQS	
52.222-90	ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS	Apr-26	G	GEN'L CONTRACT REQS.	
52.223-3 ALT I	HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (ALT-I, JUL-95)	Feb-21	G	GEN'L CONTRACT REQS.	Contractor Submittal Reqs
52.223-4	RECOVERED MATERIAL CERTIFICATION	May-08	G	GEN'L CONTRACT REQS.	Contractor Submittal Reqs
52.223-9	ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL CONTENT FOR EPA DESIGN ITEMS	May-08	G	GEN'L CONTRACT REQS.	Contractor Reporting Reqs
52.225-9	BUY AMERICAN - CONSTRUCTION MATERIALS	May-26	F	SOCIOECON PROG REQS	
52.228-15	PERFORMANCE AND PAYMENT BONDS - CONSTRUCTION	Jun-20	G	GEN'L CONTRACT REQS.	Contractor Submittal Reqs
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS	Sep-25	G	GEN'L CONTRACT REQS.	
52.240-93	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS	Sep-25	G	GEN'L CONTRACT REQS.	
52.248-3 Alt 1	VALUE ENGINEERING - CONSTRUCTION (ALT -I APR-84)	Oct-25	H	GEN'L CONTRACT REQS.	Contractor Submittal Reqs
	TAR CLAUSES INCORPORATED BY FULL TEXT				
1252.232-70	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (Deviation 8-25) AMENDMENT 01	Nov-22	G	GEN'L CONTRACT REQS.	
FAR PT 22.9	NONDISCRIMINATION BECAUSE OF AGE POLICY	Feb-64	F	SOCIOECON PROG REQS	Executive Order 11141-Not A Clause

52.252-1 Solicitation Provisions Incorporated By Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by the paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision my be accessed electronically at this address: www.acquisition.gov
(End of Clause)

FAR & TAR PROVISIONS INCORPORATED BY REFERENCE

CLAUSE	TITLE	DATE	REMARKS
52.209-13	VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION	Nov-21	
52.214-3	AMENDMENTS TO INVITATIONS FOR BIDS	Dec-89	
52.214-4	FALSE STATEMENTS IN BIDS	Apr-84	
52.214-5	SUBMISSION OF BIDS (DEVIATION OCT 2026)	Mar-97	
52.214-6	EXPLANATION TO PROSPECTIVE BIDDERS	Apr-84	
52.214-7	LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF BIDS (DEVIATION OCT 2025)	Nov-99	
52.214-18	PREPARATION OF BIDS -- CONSTRUCTION	Apr-84	
52.214-19	CONTRACT AWARD -- SEALED BIDDING -- CONSTRUCTION	Aug-96	
52.219-1	SMALL BUSINESS PROGRAM REPRESENTATION	Feb-24	
52.219-2	EQUAL LOW BIDS	Oct-95	

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FAR PROVISIONS INCORPORATED BY FULL TEXT

PROVISION	TITLE	DATE	SECTION	SECTION TYPE	REMARKS
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	Sep-24	F		
52.204-7	SYSTEM FOR AWARD MANAGEMENT (DEVIATION NOV 2025)	Nov-25	D	REPS & CERTIFICATIONS	Contractor Mandatory Internet Data Input
52.209-5	CERTIFICATION REGARDING RESPONSIBILITY MATTERS	Aug-20	K		
52.209-7	INFORMATION REGARDING RESPONSIBILITY MATTERS	Oct-18	K		
52.211-4	AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS NOT LISTED IN GSA INDEX OF FEDERAL SPECIFICATION, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS	Jun-88	E	INSTRUCTIONS TO BIDDERS	Government Fill In
52.216-1	TYPE OF CONTRACT	Apr-84	E	INSTRUCTIONS TO BIDDERS	Government Fill In
52.222-38	COMPLIANCE WITH VETERANS' EMPLOYMENT REPORTING REQUIREMENTS	Feb-16	K		Contractor Annual Mandatory Reporting Requirement
52.225-10 ALT I	NOTICE OF BUY AMERICAN REQUIREMENT - CONSTRUCTION MATERIAL (ALT 1 MAY-14)	May-26	F	SOCIOECON PROG REQS	
52.228-1	BID GUARANTEE	Sep-96	E	INSTRUCTIONS TO BIDDERS	Contractor Submittal Reqs
52.233-2	SERVICE OF PROTEST	Sep-06	E	INSTRUCTIONS TO BIDDERS	Government Fill In
52.240-90	SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS	9/9/2025	D	REPS & CERTIFICATIONS	
	OTHER PROVISIONS INCORPORATED BY FULL TEXT				
36.101-4	DISTRIBUTION OF ADVANCE NOTICES AND SOLICITATIONS	Aug-25	H	CONSTR. CONTRACTS REQS	

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REPRESENTATIONS AND CERTIFICATIONS

Annual Representations and Certifications:
In accordance with Federal Acquisition Regulation (FAR) 52.204-7 (DEVIATION NOV 2025), prospective contractors shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer in response to this solicitation and at the time of award. In accordance with FAR 52.204-13 (DEVIATION NOV 2025), contractors shall maintain an active Federal Government contracts registration in SAM during contract performance and through final payment under a contract. To maintain an active registration in SAM, contractors shall review at least annually its registration in SAM and validate that the information is current, accurate, and complete. To register in SAM, go to https://www.sam.gov.

Vets4212 Form must also be filled-in online at http://www.dol.gov/vets/vets4212.htm in accordance with FAR Clause 52.222-37.

CONTRACTORS ARE NOT ELIGIBLE FOR AWARD WITHOUT COMPLETING THESE REQUIREMENTS.

52.204-7 System for Award Management—Registration (DEVIATION NOV 2025)
The Offeror shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer or quotation in response to this solicitation and at the time of award. As part of the SAM registration process, the Government collects information, as described in paragraphs (b) through (d) of this provision, that is necessary to identify the Offeror and for the Offeror to be awarded Federal Government contracts. To register in SAM, go to https://www.sam.gov. Allow for processing time when registering in SAM. If the Offeror is not registered in SAM, it should register immediately after receiving this solicitation.

(a) *Definitions*. As used in this provision—
Commercial and Government Entity (CAGE) code has the meaning provided in the clause at the Federal Acquisition Regulation (FAR) 52.204-13, System for Award Management—Maintenance, of this solicitation.
Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.
Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.
Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).
Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.
Taxpayer identification number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.
Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-13, System for Award Management—Maintenance, of this solicitation.

(b) *Identifiers*. The Offeror shall obtain and provide the following identifying information:
(1) *Unique entity identifier (UEI)*.
(i) The Offeror shall obtain a UEI to register in SAM. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI to the Offeror. Go to https://www.sam.gov for instructions on obtaining a UEI.
(ii) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.
(iii) The Contracting Officer will use the UEI to verify that the Offeror has an active Federal Government contracts registration in SAM.
(2) *Taxpayer identification number (TIN)*.
(i) The Offeror shall provide its TIN or related information to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and implementing regulations issued by the IRS. The Offeror shall consent for TIN validation; and
(3) *Commercial and Government Entity (CAGE) code*.
(i) The Offeror shall provide a CAGE code and legal business name (Do not use a "doing business as" name) for—
(A) Itself;
(B) Its immediate owner(s), if any;
(C) Its highest-level owner, if any; and
(D) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.
(ii) If the Offeror is in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA

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CAGE Branch will assign a CAGE code to the Offeror as a part of the SAM registration process. For information on obtaining a CAGE code go to https://cage.dla.mil/.
(iii) The Offeror shall get from any immediate and/or highest-level owner(s) their respective CAGE code(s) to provide the code(s) as part of the registration (FAR 52.204-7(b)(3)(i)).
(iv) If the Offeror is located outside of the United States or its outlying areas, and does not already have a CAGE code assigned, the Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is…	Then…
Located in a country that is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located in a country that is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(c) *Representations and certifications*.
(1) The following FAR solicitation provisions contain entity-level representations and certifications that the Offeror shall submit as part of their Federal Government contracts registration in SAM:

Provision	Title	Date
52.204-5	Women-Owned Business (Other Than Small Business)	Oct 2014
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation	Nov 2015
52.209-5	Certification Regarding Responsibility Matters	Aug 2020
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Feb 2016
52.219-1	Small Business Program Representations	Feb 2024
52.219-1 Alt I	Small Business Program Representations, with its Alternate I	Feb 2024
52.219-1 Alt II	Small Business Program Representations, with its Alternate II	Mar 2023
52.226-2	Historically Black College or University and Minority Institution Representation	Oct 2014

(2) By submitting its offer, the Offeror verifies that, as of the date of its offer, its representations and certifications posted electronically in SAM for the provisions listed in paragraph (c)(1) of this provision are current, accurate, and complete. The Offeror's representations and certifications in SAM are hereby incorporated by reference into its offer.
(d) *Other information*. The Offeror shall provide more information on its business operations and type that is necessary to be considered for award of certain contracts and financial information necessary to receive payment under contracts.

(End of provision)

52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Sep 2025)
(a) *Definitions.* As used in this provision-—
Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.
Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.
Marginalized populations of Sudan means—
(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.
Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in

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Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—
(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
(3) Consist of providing goods or services to marginalized populations of Sudan;
(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
(5) Consist of providing goods or services that are used only to promote health or education; or
(6) Have been voluntarily suspended.
Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
(i) To restrict the free flow of unbiased information in Iran; or
(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).
(b) *Procedures*.
(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for "covered telecommunications equipment or services."
(2) *FASCSA Orders*.
(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.
(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).
(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.
(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—
(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and
(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).
(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, excepts waived by the solicitation, or as disclosed in

paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.
(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry(that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.
(f) *Iran Representation and Certifications*.
(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—
(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;
(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and
(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked

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pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)
(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1)of this provision do not apply if—
(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and
(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.
(iii) The offeror shall email questions concerning sensitive technology to the Department of State atCISADA106@state.gov.
(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:
(i) Contract number and order number, if applicable;
(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;
(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM)number, manufacturer part number, or wholesaler number; and item description, as applicable);
(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor(provide manufacturer codes and distributor codes used for the product));
(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
(vii) Whether alternative products or services are available that would be compliant with the prohibition;
(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
(A) Brand;
(B) Model number, OEM number, manufacturer part number, or wholesaler number; and
(C) Item description, as applicable.
(ix) Any readily available information about mitigation actions undertaken or recommended.
(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.
(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.
(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to

determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

(End of Section D)

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INSTRUCTIONS TO BIDDERS
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52.211-4 AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS NOT LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS (Jun 1988)

The specifications cited in this solicitation are not available for distribution. However, they may be examined at the following location(s):

All documents are available for direct download from the following website: https://sam.gov/.

(End of Provision)

52.216-1 TYPE OF CONTRACT (Apr 1984)

The Government contemplates award of a **firm-fixed-price** contract resulting from this solicitation.

(End of Provision)

52.228-1 -- Bid Guarantee (Sep 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds --

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be **20** percent of the bid price or $**3,000,000.00**, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference. **(End of Provision)**

52.233-2 SERVICE OF PROTEST (Sep 2006)

a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

FEDERAL HIGHWAY ADMINISTRATION
EASTERN FEDERAL LANDS HIGHWAY DIVISION
QUANTUM PARK
22001 LOUDOUN COUNTY PARKWAY
SUITE E2-3-300
ASHBURN, VA 20147

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

PROJECT SITE VISIT POINT OF CONTACT INFORMATION:

The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are highly encouraged to inspect the site where the work will be performed.

Site visits may be arranged during normal duty hours by contacting:

Name: Hartman Rorick
Regional Transportation Analyst

Telephone: 973-702-7266

Email: hartman_rorick@fws.gov

Address: 376 NJ-284
Sussex, NJ 07461

Site visit point of contact is not available for answering any questions.

Please send all questions concerning construction projects to eflhd.contracts@dot.gov. Include the solicitation number, project name, number, requesting firm, address, a point of contact and telephone number.

(End of Section E)

FEDERAL ACQUISITION REGULATION AND TRANSPORTATION ACQUISITION REGULATION CLAUSES SOCIOECONOMIC PROGRAM REQUIREMENTS (Updated through FAC 2026-01)

FAR SUBPART 22.9 - NONDISCRIMINATION BECAUSE OF AGE POLICY (FEB 64)

22.901 Policy. Executive Order 11141, February 12, 1964 (29 CFR 2477), states that the Government policy is as follows:

(a) Contractors and subcontractors shall not, in connection with employment, advancement, or discharge of employees, or the terms, conditions, or privileges of their employment, discriminate against persons because of their age except upon the basis of a bona fide occupational qualification, retirement plan, or statutory requirement.

(b) Contractors and subcontractors, or persons acting on their behalf, shall not specify in solicitations or advertisements for employees to work on Government contracts, a maximum age limit for employment unless the specified maximum age limit is based upon a bona fide occupational qualification, retirement plan, or statutory requirement.

(c) Agencies will bring this policy to the attention of contractors. The use of contract clauses is not required.

(End of Policy Statement)

52.203-11 -- Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (SEP 2024)

As prescribed in 3.808(a), insert the following provision:

(a) *Definitions.* As used in this provision—"Lobbying contact" has the meaning provided at 2 U.S.C. 1602(8). The terms "agency," "influencing or attempting to influence," "officer or employee of an agency," "person," "reasonable compensation," and "regularly employed" are defined in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12).

(b) *Prohibition.* The prohibition and exceptions contained in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12) are hereby incorporated by reference it his provision.

(c) *Certification.* The offeror, by signing its offer, hereby certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on its behalf in connection with the awarding of this contract.

(d) *Disclosure.* If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(e) *Penalties.* Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by 31 U.S.C. 1352. Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure required to be filed or amended by this provision, shall be subject to civil penalties as provided in 31 U.S.C. 1352. An imposition of a civil penalty does not prevent the Government from seeking any other remedy that may be applicable.

(End of Provision)

52.225-9 -- Buy American–Construction Materials (May 2026)

(a)*Definitions*. As used in this clause—

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if–

(A)The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C.chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

_____
_____*[Contracting Officer to list applicable excepted materials or indicate "none"]*

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i)The cost of domestic construction material would be unreasonable.

(A)*For domestic construction material that is not a critical item or does not contain critical components*.

(1)The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2)For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is

manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)*(1)* of this clause.

(3)The procedures in paragraph (b)(3)(i)(A)*(2)* of this clause will no longer apply as of January 1, 2030.

(B)*For domestic construction material that is a critical item or contains critical components*.

(1)The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2)For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)*(1)* of this clause.

(3)The procedures in paragraph (b)(3)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d)*Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

Construction Material Description Unit of Measure Quantity Price (dollars)*

Item1:

Foreign construction material

_____

Domestic construction material

_____

Item2:

_____

Foreign construction material

_____

Domestic construction material

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of Clause)

52.225-10 -- Notice of Buy American Requirement—Construction Materials (May 2026)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American--Construction Materials" (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) *Evaluation of offers.*

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) *Alternate offers.*

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested—

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of Provision)

Alternate I (May 2014). As prescribed in 25.1102(b)(2), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute shall submit the request with its offer, including the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9.

MINIMUM WAGE SCHEDULE

U.S. Department of Labor
Employment Standards Administration
Wage and Hour Division

Executive Order 14026 (Increasing the Minimum Wage for Federal Contractors) was rescinded on March 14, 2025. Consult with the Department of Labor for guidance related to the wage determinations.

General Decision Number: NJ20260002 05/18/2026

State: **New Jersey**

Construction Types: **Highway**

Counties: New Jersey Counties of
Bergen, Essex, Hudson, Hunterdon,
Middlesex, Morris, Passaic, Somerset,
Sussex, Union and Warren

Modification Number	Publication Date
1	01/30/2026
2	05/18/2026

BRNJ0002-005 05/01/2025

	Rates	Fringes
BRICKLAYER (BERGEN, ESSEX AND HUDSON COUNTIES; HUNTERDON COUNTY (NORTH AND WEST OF A LINE DRAWN FROM CLOVER HILL, THROUGH REAVILLE, THROUGH FLEMINGTON, THROUGH HIGH BRIDGE, THROUGH CALIFON, THROUGH FAIRMONT, TO POTTERSVILLE); MIDDLESEX COUNTY (BOROUGH OF DUNELLEN; TOWNSHIP OF EDISON (TOWN OF OAK TREE ONLY); TOWNSHIP OF PISCATAWAY (TOWN OF NEW MARKET ONLY); BOROUGH OF SOUTH PLAINFIELD); MORRIS AND PASSAIC COUNTIES; SOMERSET		

COUNTY (NORTH OF A LINE DRAWN FROM THE POINT WHERE THE LAMINGTON RIVER leaves the boundary line between Hunterdon and Somerset Counties; then, continuing along the Lamington River to where it becomes the North Branch of the Raritan River; then, continuing along the North Branch of the Raritan River to where it becomes Chambers Brook; then, continuing along Chambers Brook until it becomes the boundary line between the Townships of Bernards and Bridgewater; then, continuing along the boundary line between the Townships of Bernards and Bridgewater, until that boundary line intersects with Route 78; then, continuing along Route 78 until Route 78 intersects with Route 525; then, continuing along Route 525 until Route 525 intersects with the boundary line between the Townships of Bridgewater and Warren; then, continuing along the boundary line between the Townships of Bridgewater and Warren until that boundary line intersects with Route 22; then, following Route 22 until Route 22 intersects with Sebrings Mills Rd. (also known as King George Rd.); then, continuing south on Sebrings Mills Rd. until it goes over Green Brook, which is the Middlesex County line); SUSSEX, UNION AND WARREN
Work 100 degrees F. and over: to be paid at the rate of double
Work on high stacks: 22% per hour additional.....$ 49.60
37.96

BRNJ0002-006 11/01/2019

Rates

Fringes
BRICKLAYER (HUNTERDON COUNTY (south and east of a line drawn from Clover Hill, through Reaville, through Flemington, through High Bridge, through Califon, through Fairmont, to Pottersville); MIDDLESEX COUNTY (does not include the Borough of Dunellen; Township of Edison (Town of Oak Tree); Township of Piscataway (Town of New Market); Borough of South Plainfield); SOMERSET COUNTY (south of a line drawn from the point where the Lamington River leaves the boundary line between Hunterdon and Somerset Counties; then, continuing along the Lamington River to where it becomes the

North Branch of the Raritan River; then, continuing along the North Branch of the Raritan River to where it becomes Chambers Brook; then, continuing along Chambers Brook until it becomes the boundary line between the Townships of Bernards and Bridgewater; then, continuing along the boundary line between the Townships of Bernards and Bridgewater, until that boundary line intersects with Route 78; then, continuing along Route 78 until Route 78 intersects with Route 525; then, continuing along Route 525 until Route 525 intersects with the boundary line between the Townships of Bridgewater and Warren; then, continuing along the boundary line between the Townships of Bridgewater and Warren until that boundary line intersects with Route 22; then, continuing along Route 22 until Route 22 intersects with Sebrings Mills Rd. (also known as King George Rd.); then, continuing south along Sebrings Mills Rd. until it goes over Green Brook, which is the Middlesex County
Work 100 degrees F. and over: to be paid at the rate of double
Work on high stacks: 22% per hour additional.....$ 43.56 32.50

BRNJ0002-008 05/01/2025

	Rates	Fringes
CEMENT MASON (BERGEN, ESSEX AND HUDSON COUNTIES; HUNTERDON COUNTY (north and west of a line drawn from Clover Hill, through Reaville, through Flemington, through High Bridge, through Califon, through Fairmont, to Pottersville); MIDDLESEX COUNTY (Borough of Dunellen; Township of Edison (Town of Oak Tree only); Township of Piscataway (Town of New Market only); Borough of South Plainfield); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (north of a line drawn from the point where the Lamington River leaves the boundary line between Hunterdon and Somerset Counties; then, continuing along the Lamington River to where it becomes the North Branch of the Raritan River; then, continuing along the North Branch of the Raritan River to where it becomes Chambers Brook;		

then, continuing along Chambers Brook until it becomes the boundary line between the Townshipsbof Bernards and Bridgewater; then, continuing along the boundary line between the Townships of Bernards and Bridgewater, until that boundary line intersects with Route 78; then, continuing along Route 78 until Route 78 intersects with Route 525; then, continuing along Route 525 until Route 525 intersects with the boundary line between the Townships of Bridgewater and Warren; then, continuing along the boundary line between the Townships of Bridgewater and Warren until that boundary line intersects with Route 2; then, continuing along Route 22 until Route 22 intersects with Sebrings Mills Rd. (also known as King George Rd.); then, continuing south on Sebrings Mills Rd. until it goes over Green Brook, which is the Middlesex County line); SUSSEX, UNION AND WARREN
Cement mason: Epoxy, acid and latex work: $.50 per hour additional.....$ 49.60
37.96

BRNJ0002-009 11/01/2019

	Rates	Fringes
CEMENT MASON (HUNTERDON COUNTY (south and east of a line drawn from Clover Hill, through Reaville, through Flemington, through High Bridge, through Califon, through Fairmont, to Pottersville); MIDDLESEX COUNTY (does not include the Borough of Dunellen; Township of Edison (Town of Oak Tree); Township of Piscataway (Town of New Market); Borough of South Plainfield); SOMERSET COUNTY (south of a line drawn from the point where the Lamington River leaves the boundary line between Hunterdon and Somerset Counties; then, continuing along the Lamington River to where it becomes the North Branch of the Raritan River; then, continuing along the North Branch of the Raritan River to where it becomes Chambers Brook; then, continuing along Chambers Brook until it becomes the boundary line between the Townships of Bernards and Bridgewater; then, continuing along the boundary line between the Townships of Bernards and Bridgewater, until that boundary line intersects		

with Route 78; then, continuing along Route 78 until Route 78 intersects with Route 525; then, continuing along Route 525 until Route 525 intersects with the boundary line between the Townships of Bridgewater and Warren; then, continuing along the boundary line between the Townships of Bridgewater and Warren until that boundary line intersects with Route 22; then, continuing along Route 22 until Route 22 intersects with Sebrings Mills Rd. (also known as King George Rd.); then, continuing south along Sebrings Mills Rd. until it goes over Green Brook, which is the Middlesex County
Cement mason: Epoxy, acid and latex work: $.50 per hour additional.....$ 43.56
32.50

CARP0006-008 05/01/2025

	Rates	Fringes
CARPENTER	$ 57.42	34.02

CARP1556-001 05/01/2024

	Rates	Fringes
DOCK BUILDER & PILEDRIVERMEN WORK ON LAND PILE DRIVING, WHILE HANDLING AND WORKING WITH CREOSOTE AND CREOSOTE-IMPREGNATED PRODUCTS: $.25 PER HOUR ADDITIONAL. Work on hazardous/toxic/contaminated waste removal, on a hazardous/toxic/contaminated waste site, where the worker comes into contact with hazardous/toxic/contaminated waste material, and when A, B or C personal protective equipme is required and used for respiratory, skin or eye protection: 20% per hour additional.....	$ 52.98	52.44

ELEC0102-001 06/03/2024

	Rates	Fringes
LINE CONSTRUCTION: ALL OTHER WORK: GROUNDMAN. HUNTERDON COUNTY (Townships of Alexandria and		

Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 38.21 23.98

LINE CONSTRUCTION: ALL OTHER WORK: LINE TECHNICIAN; EQUIPMENT OPERATOR. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of

the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 65.43 42.20

LINE CONSTRUCTION: ALL OTHER WORK: LINE TECHNICIAN-WELDER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 66.86 41.95

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) CABLE SPLICER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township

of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 61.82 34.46

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) GROUNDMAN. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan

Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 38.21 18.80

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) GROUND PERSON. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 65.43 42.20

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) LINE TECHNICIAN; EQUIPMENT OPERATOR; X-RAY TECHNICIAN; EQUIPMENT REPAIR PERSON; EQUIPMENT SERVICE PERSON; HOLE-DIGGING EQUIPMENT OPERATOR; TRUCK WITH WINCH OR POLE AND STEEL HAND; TRUCK WITHOUT WINCH HUNTERDON COUNTY (Townships of

Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 56.20
31.33
LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) LINE TECHNICIAN-WELDER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the

Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate.....$ 59.01
32.90
LINE CONSTRUCTION: ALL OTHER WORK: CABLE SPLICER HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 71.97
46.42

ELEC0102-001 06/02/2025

Rates
Fringes
LINE CONSTRUCTION: ALL OTHER WORK: GROUNDMAN. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 38.21
23.98
LINE CONSTRUCTION: ALL OTHER WORK: LINE TECHNICIAN; EQUIPMENT OPERATOR. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND

PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 65.43
42.20
LINE CONSTRUCTION: ALL OTHER WORK: LINE TECHNICIAN-WELDER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 66.86
41.95

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) CABLE SPLICER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 61.82 34.46

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) GROUNDMAN. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line

following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 38.21 18.80

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) GROUND PERSON. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 65.43 42.20

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) LINE TECHNICIAN; EQUIPMENT OPERATOR;

X-RAY TECHNICIAN; EQUIPMENT REPAIR PERSON; EQUIPMENT SERVICE PERSON; HOLE-DIGGING EQUIPMENT OPERATOR; TRUCK WITH WINCH OR POLE AND STEEL HAND; TRUCK WITHOUT WINCH HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate..$ 56.20 31.33

LINE CONSTRUCTION: (HIGH-TENSION PIPE-TYPE CABLE INSTALLATION) LINE TECHNICIAN-WELDER. HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and

Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of, asbestos materials: 112% times the journeyman rate.....$ 59.01
32.90
LINE CONSTRUCTION: ALL OTHER WORK: CABLE SPLICER
HUNTERDON COUNTY (Townships of Alexandria and Bethlehem; Boroughs of Bloomsbury and Califon; Town of Clinton; Township of Clinton; Township of Delaware (west of a line following county Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (east of State Hwy. 31); Township of Franklin; Boroughs of Frenchtown, Glen Gardner, Hampton and High Bridge; Townships of Holland and Kingwood; Borough of Lebanon; Township of Lebanon; Borough of Milford; Township of Raritan (east of State Hwy. 31 and north of County Route 523); Townships of Readington, Tewksbury and Union); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (does not include the Township of Franklin east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line; does not include the Township of Montgomery west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line); SUSSEX, UNION AND WARREN COUNTIES) Work with, or the removal of,

asbestos materials: 112% times the journeyman rate..$ 71.97
46.42

ELEC0269-010 01/05/2026

Rates
Fringes
ELECTRICIAN HUNTERDON COUNTY (Township of Delaware (east of a line following County Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (west of State Hwy. 31); Borough of Flemington; City of Lambertville; Township of Raritan (west of State Hwy. 31 and south of County Route 523); Borough of Stockton; Township of West Amwell); SOMERSET COUNTY (Township of Montgomery (west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line):.....$ 63.82
41.99

ELEC0269-013 10/01/2017

Rates
Fringes
LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) GROUND PERSON; TRUCK WITH WINCH OPERATOR. HUNTERDON COUNTY (Township of Delaware (east of a line following County Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (west of State Hwy. 31); Borough of Flemington; City of Lambertville; Township of Raritan (west of State Hwy. 31 and south of County Route 523); Borough of Stockton; Township of West Amwell); SOMERSET COUNTY (Township of Montgomery (west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line).....$ 39.83
24.27
LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) LINE TECHNICIAN; CABLE SPLICER;

HEAVY EQUIPMENT OPERATOR. (HUNTERDON COUNTY (Township of Delaware (east of a line following County Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (west of State Hwy. 31); Borough of Flemington; City of Lambertville; Township of Raritan (west of State Hwy. 31 and south of County Route 523); Borough of Stockton; Township of West Amwell); SOMERSET COUNTY (Township of Montgomery (west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line).....$ 49.79 30.34

LINE CONSTRUCTION: ALL OTHER WORK: GROUNDPERSON; TRUCK WITH WINCH OPERATOR. (HUNTERDON COUNTY (Township of Delaware (east of a line following County Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (west of State Hwy. 31); Borough of Flemington; City of Lambertville; Township of Raritan (west of State Hwy. 31 and south of County Route 523); Borough of Stockton; Township of West Amwell); SOMERSET COUNTY (Township of Montgomery (west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the Hillsborough township line).....$ 39.83 24.27

LINE CONSTRUCTION: ALL OTHER WORK: LINE TECHNICIAN; CABLE SPLICER; HEAVY EQUIPMENT OPERATOR. (HUNTERDON COUNTY (Township of Delaware (east of a line following County Route 523 from the Delaware River north to the Raritan Township line); Township of East Amwell (west of State Hwy. 31); Borough of Flemington; City of Lambertville; Township of Raritan (west of State Hwy. 31 and south of County Route 523); Borough of Stockton; Township of West Amwell); SOMERSET COUNTY (Township of Montgomery (west and south of a line following U.S. Hwy. 206 (formerly State Hwy. 31) north from the Mercer County line to Harlingen Rd.; then, west along Harlingen Rd. and the Dutchtown-Zion road to the

Hillsborough township line).....$ 49.79
30.34

ELEC0456-001 06/02/2025

Rates
Fringes
ELECTRICIAN: CABLE SPLICER (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County
Work on line voltage of 440 volts and over: 10% per hour
Work from trusses, scaffolds and ladders 40 ft. or more from the ground or floor; or under air pressure; or over conveyors or moving equipment or machinery: 10% per hour additional.....$ 65.35
46.56
ELECTRICIAN (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County
Work on line voltage of 440 volts and over: 10% per hour
Work from trusses, scaffolds and ladders 40 ft. or more from the ground or floor; or under air pressure; or over conveyors or moving equipment or machinery: 10% per hour additional.....$ 61.40
39.14

ELEC0456-002 05/28/2018

Rates
Fringes
LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) CABLE SPLICER. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan

River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 59.47 40.29

LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) CRANE OPERATOR. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 59.47 40.29

LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) GROUNDMAN (WHEN INSTALLTING CONDUIT ON PUBLIC ROADWAYS). (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 31.03 21.02

LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) GROUNDMAN; WINCH OPERATOR. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 50.92 34.50

LINE CONSTRUCTION: (CONTINUOUS PIPE-TYPE UNDERGROUND OIL-FILLED TRANSMISSION CONDUIT INSTALLATIONS:) LINE TECHNICIAN; X-RAY TECHNICIAN; EQUIPMENT REPAIR PERSON; EQUIPMENT SERVICEPERSON; ELECTRICAL INSTALLATION WORKER; HOLE-DIGGING

EQUIPMENT OPERATOR; TRUCK OPERATOR WITH WINCH OR POLE; TURCK OPERATOR WITHOUT WINCH. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 51.71 35.03

LINE CONSTRUCTION: (ALL OTHER WORK:) CABLE SPLICER. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 59.46 40.28

LINE CONSTRUCTION: (ALL OTHER WORK:) CRANE OPERATOR. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 58.44 39.59

LINE CONSTRUCTION: (ALL OTHER WORK:) LINE TECHNICIAN. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 51.71 35.03

LINE CONSTRUCTION: (ALL OTHER WORK:) WINCH OPERATOR. (MIDDLESEX COUNTY; SOMERSET COUNTY (Township of Franklin (east of a line following Cedar Grove Lane from the Raritan River, in a southwesterly direction, to the Millstone Branch of the Pennsylvania Railroad; then, west along the

railroad to the Delaware and Raritan Canal; then, south along the canal to the Middlesex County line))..... $ 50.92 34.50

ENGI0825-004 07/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP 1) CRANES (ALL CRANES, LAND OR FLOATING WITH BOOM INCLUDING JIB, 140 FT. AND OVER, ABOVE GROUND); DERRICKS (ALL DERRICKS, LAND, FLOATING OR CHICAGO BOOM TYPE WITH BOOM INCLUDING JIB, 140 FT. AND OVER, ABOVE GROUND) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....	$ 70.24	37.50
POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP 2) CRANES (ALL CRANES, LAND OR FLOATING WITH BOOM INCLUDING JIB, LESS THAN 140 FT. ABOVE GROUND); DERRICKS (ALL DERRICKS, LAND, FLOATING OR CHICAGO BOOM TYPE WITH BOOM INCLUDING JIB, LESS THAN 140 FT. ABOVE GROUND) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING		

FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 68.58 37.50

POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP 3) HELICOPTER PILOT HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 61.29 37.50

POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP 4) ""A"" FRAME; CHERRY PICKER (10 TON AND UNDER); HOIST (ALL TYPES OF HOIST, INCLUDING STEAM, GAS, DIESEL, ELECTRIC, AIR, HYDRAULIC, SINGLE AND DOUBLE DRUM, CONCRETE, BRICK SHAFT CAISSON, OR ANY OTHER SIMILAR TYPE OF HOISTING MACHINE, PORTABLE OR STATIONARY, EXCEPT CHICAGO BOOM TYPE); JACK (SCREW, AIR, HYDRAULIC POWER-OPERATED UNIT OR CONSOLE TYPE (NOT HAND JACK OR PILE LOAD TEST TYPE); SIDE BOOM; STRADDLE CARRIER HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY

BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 58.63
37.50
POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP
5) AERIAL PLATFORM USED AS A HOIST; COMPRESSOR, TWO
OR THREE IN BATTERY; DIRECTIONAL BORING MACHINE;
ELEVATOR OR HOUSE CAR; CONCRETE
CLEANING/DECONTAMINATION MACHINE OPERATOR,
DECONTAMINATION AND REMEDIATION WORK ONLY; CONVEYOR
AND TUGGER HOIST; FIREFIGHTER; FORKLIFT; GENERATOR,
TWO OR THREE IN BATTERY; HEAVY EQUIPMENT ROBOTIC
OPERATOR/TECHNICIAN, DECONTAMINATION AND
REMEDIATION WORK ONLY; MAINTENANCE, UTILITY PERSON;
MASTER ENVIRONMENTAL MAINTENANCE TECHNICIAN,
DECONTAMINATION AND REMEDIATION WORK ONLY; ROD
BENDING MACHINE (POWER); ULTRA HIGH-PRESSURE
WATERJET CUTTING TOOL SYSTEM OPERATOR/MAINTENANCE
TECHNICIAN, DECONTAMINATION AND REMEDIATION WORK
ONLY; VACUUM BLASTING MACHINE OPERATOR/MAINTENANCE
TECHNICIAN, DECONTAMINATION AND REMEDIATION WORK
ONLY; WELDING MACHINE (GAS OR ELECTRIC, TWO OR
THREE IN BATTERY, INCLUDING DIESEL); CAPTAIN, POWER
BOAT; TUG MASTER, POWER BOAT; OILER, WITH EITHER
ONE COMPRESSOR OR ONE WELDING MACHINE HAZARDOUS
WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY
DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER
IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND
WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR
RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR
ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY,
WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY,
INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION
DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS
DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE
PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR,
THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY
AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS
THE WORK DAY BEFORE AND THE WORK DAY AFTER THE
HOLIDAY.....$ 57.10
37.50
POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP
6) COMPRESSOR, SINGLE; OFF-ROAD BACK DUMP; WELDING
MACHINE (SINGLE, GAS, DIESEL AND ELECTRIC
CONVERTERS OF ANY TYPE); WELDING SYSTEM, MULTIPLE
(RECTIFIER, TRANSFORMER TYPE); GENERATOR, SINGLE
HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR
FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE

THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 53.34
37.50

POWER EQUIPMENT OPERATORS: STEEL ERECTION: (GROUP 7) OILER; DECKHAND HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 65.74
37.50

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Rates

Fringes

POWER EQUIPMENT OPERATORS: GROUP 1 AUTOGRADE - COMBINATION SUBGRADER; BASE METAL SPREADER AND BASE TRIMMER (CMI AND SIMILAR TYPES); AUTOGRADE PLACER - TRIMMER SPREADER COMBINATION (CMI AND SIMILAR TYPES); AUTOGRADE SLIPFORM PAVER (CMI AND SIMILAR TYPES); BACKHOE; CENTRAL POWER PLANT (ALL TYPES); CONCRETE PAVING MACHINE; CRANE (ALL TYPES, INCLUDING OVERHEAD AND STRADDLE TRAVELING TYPE); CRANE, GANTRY; DERRICK (LAND, FLOATING OR CHICAGO BOOM TYPE); DRILLMASTER, QUARRYMASTER

(DOWN-THE-HOLE DRILL, ROTARY DRILL, SELF-PROPELLED HYDRAULIC DRILL, SELF-POWERED DRILL); DRAGLINE; ELEVATING GRADER; FRONT END LOADER (5 CU. YD. AND OVER); GRADALL; GRADER, RAYGO; LOCOMOTIVE (LARGE); MUCKING MACHINE; PAVEMENT AND CONCRETE BREAKER (SUPERHAMMER AND HOE RAM); PILE DRIVER (LENGTH OF BOOM, INCLUDING LENGTH OF LEADS, SHALL DETERMINE PREMIUM RATE APPLICABLE); ROADWAY SURFACE GRINDER; SCOOPER (LOADER AND SHOVEL); SHOVEL; TREE CHOPPER WITH BOOM; TRENCH MACHINE (CABLE PLOW) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 61.72
37.50
POWER EQUIPMENT OPERATORS: GROUP 2 ""A"" FRAME/BACKHOE COMBINATION; BOOM ATTACHMENT ON LOADER (RATE BASED ON SIZE OF BUCKET, NOT APPLICABLE TO PIPEHOOK); BORING AND DRILLING MACHINE; BRUSH CHOPPER, SHREDDER AND TREE SHREDDER; CARRYALL; CONCRETE PUMP; CONCRETE PUMPING SYSTEM, PUMPCRETE AND SIMILAR TYPE; CONVEYOR, 125 FT. AND OVER; DRILL DOCTOR, INCLUDING DUST COLLECTING AND MAINTENANCE WORK); FRONT END LOADER (2 CU. YD. BUT LESS THAN 5 CU. YD.); GRADER (FINISH); GROOVE CUTTING MACHINE (RIDE-ON TYPE); HEATER PLANER; HOIST (ALL TYPES OF HOIST, SHALL ALSO INCLUDE STEAM, GAS, DIESEL, ELECTRIC, AIR, HYDRAULIC, SINGLE AND DOUBLE DRUM, CONCRETE, BRICK SHAFT CAISSON, SNORKEL ROOF, AND/OR ANY OTHER SIMILAR TYPE HOISTING MACHINE, PORTABLE OR STATIONARY, EXCEPT CHICAGO BOOM TYPE) (IF HOIST IS ""OUTSIDE MATERIAL TOWER HOIST"", LONG BOOM RATE IS TO BE APPLIED); HYDRAULIC CRANE, 10 TONS AND UNDER; HYDRO-AXE; HYDRO-BLASTER; JACK (SCREW, AIR,

HYDRAULIC POWER-OPERATED UNIT OR CONSOLE TYPE (NOT HAND JACK OR PILE LOAD TEST TYPE); LOG SKIDDER; PAN; PAVERS (ALL) (CONCRETE); PLATE AND FRAME FILTER PRESS; PUMPCRETE MACHINE; SQUEEZECRETE; CONCRETE PUMP (REGARDLESS OF SIZE); SCRAPER; SIDE BOOM; STRADDLE CARRIER, ROSS AND SIMILAR TYPE; WHIP HAMMER; WINCH TRUCK (HOISTING). HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY. .....$ 60.13
37.50

POWER EQUIPMENT OPERATORS: GROUP 3 ASPHALT CURBING MACHINE; ASPHALT PLANT ENGINEER; ASPHALT SPREADER; AUTOGRADE TUBE FINISHING AND TEXTURING MACHINE (CMI AND SIMILAR TYPES); AUTOGRADE CURECRETE MACHINE (CMI AND SIMILAR TYPES); AUTOGRADE CURB TRIMMER AND SIDEWALK, SHOULDER, SLIPFORM (CMI AND SIMILAR TYPES); BAR BENDING MACHINE (POWER); BATCHER; BATCHING PLANT AND CRUSHER ON SITE; BELT CONVEYOR SYSTEM; BOOM-TYPE SKIMMER MACHINE; BRIDGE DECK FINISHER; BULLDOZERS (ALL); CAR DUMPER (RAILROAD); COMPRESSOR AND BLOWER-TYPE UNIT (USED INDEPENDENTLY OR MOUNTED ON DUAL-PURPOSE TRUCK, ON JOBSITE OR IN CONJUNCTION WITH JOBSITE, IN LOADING AND UNLOADING OF CONCRETE, CEMENT, FLY ASH, INSTANTCRETE, OR SIMILAR TYPE MATERIALS); COMPRESSOR (2 OR 3) (IN BATTERY) (WITHIN 100 FT.); CONCRETE CLEANING/DECONTAMINATION MACHINE OPERATOR, WHEN USED FOR DECONTAMINATION AND REMEDIATION; CONCRETE FINISHING MACHINE; CONCRETE SAW AND CUTTER (RIDE-ON TYPE); CONCRETE SPREADER, HETZEL, REXOMATIC AND SIMILAR TYPE; CONCRETE VIBRATOR; CONVEYOR, UNDER 125 FT.; CRUSHING MACHINE; DIRECTIONAL BORING MACHINE; DITCHING MACHINE, SMALL (DITCHWITCH,

VERMEER OR SIMILAR TYPE); DOPE POT (MECHANICAL WITH OR WITHOUT PUMP); DUMPSTER; ELEVATOR; FIREFIGHTER; FORKLIFT (ECONOMOBILE, LULL AND SIMILAR TYPE OF EQUIPMENT); FRONT END LOADER (1 CU. YD. AND OVER BUT LESS THAN 2 CU. YD.); GENERATOR (2 OR 3) (IN BATTERY) (WITHIN 100 FT.); GIRAFFE GRINDER; GRADER AND MOTOR PATROL; GUNITE MACHINE (DOES NOT INCLUDE NOZZLE); HAMMER, VIBRATORY (IN CONJUNCTION WITH GENERATOR); HEAVY EQUIPMENT ROBOTIC OPERATOR/TECHNICIAN, WHEN USED FOR DECONTAMINATION AND REMEDIATION; HOIST (ROOF, TUGGER, AERIAL PLATFORM HOIST AND HOUSE CARS); HOPPER; HOPPER DOOR (POWER-OPERATED); LADDER (MOTORIZED); LADDERVATOR; LOCOMOTIVE, DINKY TYPE; MAINTENANCE, UTILITY PERSON; MASTER ENVIRONMENTAL MAINTENANCE TECHNICIAN, WHEN USED FOR DECONTAMINATION AND REMEDIATION; MECHANIC; MIXER (EXCEPT PAVING MIXER); PAVEMENT BREAKER, SMALL, SELF-PROPELLED RIDE-ON TYPE (ALSO MAINTAINS COMPRESSOR ON HYDRAULIC UNIT); PAVEMENT BREAKER, TRUCK-MOUNTED; PIPE BENDING MACHINE (POWER); PITCH PUMP; PLASTER PUMP, REGARDLESS OF SIZE; POSTHOLE DIGGER (POST POUNDER AND AUGER); ROD BENDING MACHINE (POWER); ROLLER, BLACKTOP; SCALE, POWER; SEAMAN PULVERIZING MIXER; SHOULDER WIDENER; SILO; SKIMMER MACHINE (BOOM TYPE); STEEL CUTTING MACHINE, SERVICING AND MAINTAINING; TRACTOR; CAPTAIN, POWER BOAT; TUG MASTER, POWER BOAT; ULTRA HIGH-PRESSURE WATERJET CUTTING TOOL SYSTEM OPERATOR/MAINTENANCE TECHNICIAN, WHEN USED FOR DECONTAMINATION AND REMEDIATION; VACUUM BLASTING MACHINE OPERATOR/MAINTENANCE TECHNICIAN, WHEN USED FOR DECONTAMINATION AND REMEDIATION; VIBRATING PLANT (USED IN CONJUNCTION WITH UNLOADING); WELDER AND REPAIR MECHANIC HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY

BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 58.22 37.50

POWER EQUIPMENT OPERATORS: GROUP 4 BROOM AND SWEEPER; CHIPPER; COMPRESSOR (SINGLE); CONCRETE SPREADER (SMALL TYPE); CONVEYOR LOADER (DOES NOT INCLUDE ELEVATING GRADER); ENGINE, LARGE DIESEL (1620 H.P.) AND STAGING PUMP; FARM TRACTOR; FERTILIZING EQUIPMENT (OPERATION AND MAINTENANCE OF); FINE GRADE MACHINE (SMALL TYPE); FORM LINE GRADER (SMALL TYPE); FRONT END LOADER (UNDER 1 CU. YD.); GENERATOR (SINGLE); GREASE, GAS, FUEL AND OIL SUPPLY TRUCK; HEATER (NELSON OR OTHER TYPE INCLUDING PROPANE, NATURAL GAS OR FLOW-TYPE UNIT); LIGHTS (PORTABLE GENERATING LIGHT PLANT); MIXER, CONCRETE, SMALL; MULCHING EQUIPMENT (OPERATION AND MAINTENANCE OF); OFF-ROAD BACK DUMP; PUMP (4-IN. SUCTION AND OVER, INCLUDING SUBMERSIBLE PUMP); PUMP (DIESEL ENGINE AND HYDRAULIC) (IMMATERIAL OF POWER); ROAD FINISHING MACHINE (SMALL TYPE); ROLLER, GRADE, FILL OR STONE BASE; SEEDING EQUIPMENT (OPERATION AND MAINTENANCE OF); SPRINKLER AND WATER PUMP TRUCK; STEAM JENNY AND BOILER; STONE SPREADER; TAMPING MACHINE, VIBRATING RIDE-ON; TEMPORARY HEATING PLANT (NELSON OR OTHER TYPE, INCLUDING PROPANE, NATURAL GAS OR FLOW-TYPE UNIT); WELDING MACHINE (GAS, DIESEL, AND/OR ELECTRIC CONVERTER OF ANY TYPE) (SINGLE, OR TWO OR THREE IN A BATTERY) (WITHIN 100 FT.); WELDING SYSTEM, MULTIPLE (RECTIFIER, TRANSFORMER TYPE); WELLPOINT SYSTEM HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED 1) THAT THE WORKER WORKS THREE OF THE PRECEDING FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY

BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 56.59
37.50
POWER EQUIPMENT OPERATORS: GROUP 5 OILER; TIRE
REPAIR AND MAINTENANCE HAZARDOUS WASTE REMOVAL
WORK: WORK ON A STATE OR FEDERALLY DESIGNATED
HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT
CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL
PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY,
SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL.
PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S
BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY,
LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S
DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED
1) THAT THE WORKER WORKS THREE OF THE PRECEDING
FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY
BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE
HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY
BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 52.88
37.50
POWER EQUIPMENT OPERATORS: GROUP 6 HELICOPTER
PILOT; HELICOPTER ENGINEER HAZARDOUS WASTE REMOVAL
WORK: WORK ON A STATE OR FEDERALLY DESIGNATED
HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT
CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL
PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY,
SKIN AND EYE PROTECTION: 20% PER HOUR ADDITIONAL.
PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S
BIRTHDAY OBSERVED, MEMORIAL DAY, INDEPENDENCE DAY,
LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S
DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED
1) THAT THE WORKER WORKS THREE OF THE PRECEDING
FIVE WORK DAYS BEFORE THE HOLIDAY; OR, THE WORK DAY
BEFORE THE HOLIDAY AND THE WORK DAY AFTER THE
HOLIDAY; AND, 2) THAT THE WORKER WORKS THE WORK DAY
BEFORE AND THE WORK DAY AFTER THE HOLIDAY.....$ 63.54
37.50

IRON0011-002 07/01/2025

Rates
Fringes
IRONWORKERS: REINFORCING (BERGEN, ESSEX, HUDSON AND
HUNTERDON COUNTIES; MIDDLESEX COUNTY (north half);
MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (north
half); SUSSEX AND UNION COUNTIES).....$ 49.94
50.32

IRONWORKERS: STRUCTURAL (BERGEN, ESSEX, HUDSON AND HUNTERDON COUNTIES; MIDDLESEX COUNTY (north half); MORRIS AND PASSAIC COUNTIES; SOMERSET COUNTY (north half); SUSSEX AND UNION COUNTIES).....$ 52.24 50.32

IRON0011-004 07/01/2012

	Rates	Fringes
IRONWORKERS (WARREN COUNTY).....	$ 34.05	24.00

IRON0399-014 07/01/2024

	Rates	Fringes
IRONWORKER (MIDDLESEX COUNTY (south half); SOMERSET COUNTY (south Hazardous waste removal work, on a state or federally designated hazardous waste site, where the worker is required to wear Level A, B or C personal protection: $3.00 per hour additional.....	$ 54.24	38.40

LABO0172-005 03/01/2025

	Rates	Fringes
LABORERS: GROUP 1 BASIC LABORER; LANDSCAPE LABORER; RAILROAD TRACK LABORER; UTILITY METER INSTALLER; TRAFFIC DIRECTOR/FLAG PERSON; SALAMANDER TENDER; PIT PERSON; DUMP PERSON; ASPHALT LABORER (ONLY IN BERGEN, ESSEX, HUDSON AND HUNTERDON COUNTIES; MIDDLESEX COUNTY (NORTH OF THE RARITAN RIVER); MORRIS, PASSAIC, SOMERSET, SUSSEX, UNION AND WARREN COUNTIES); SLURRY SEAL LABORER (ONLY IN BERGEN, ESSEX, HUDSON AND HUNTERDON COUNTIES; MIDDLESEX COUNTY (NORTH OF THE RARITAN RIVER); MORRIS, PASSAIC, SOMERSET, SUSSEX, UNION AND WARREN COUNTIES); RAKER AND TAMPER ON COLD PATCH WORK; WRAPPER AND COATER OF PIPE; WATERPROOFING LABORER; TIMBER PERSON; POWDER CARRIER; MAGAZINE TENDER; SIGNAL PERSON; POWER BUGGY OPERATOR; TREE CUTTER; AND THE OPERATION OF SUCH OTHER BASIC POWER TOOLS USED TO PERFORM WORK USUALLY DONE MANUALLY BY		

LABORERS HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS REQUIRED TO WEAR LEVEL A, B OR C PERSONAL PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS NOT REQUIRED TO WEAR LEVEL A, B, OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING DAYS CONSISTING OF FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS OBSERVED.....$ 50.95
38.53

LABORERS: GROUP 2 PIPELAYER; LASER PERSON; CONDUIT AND DUCT LINE LAYER; JACKHAMMER; CHIPPING HAMMER; PAVEMENT BREAKER; CONCRETE CUTTER; ASPHALT CUTTER; SHEET HAMMER OPERATOR; SANDBLASTING, ACETYLENE CUTTING AND BURNING; WAGON DRILL OPERATOR; DIRECTIONAL DRILL OPERATOR; HYDRAULIC DRILL OPERATOR; DRILL MASTER; CORE DRILLER; TRAFFIC CONTROL COORDINATOR; ASPHALT RAKER/LUTE PERSON (ONLY IN BERGEN, ESSEX, HUDSON AND HUNTERDON COUNTIES; MIDDLESEX COUNTY (NORTH OF THE RARITAN RIVER); MORRIS, PASSAIC, SOMERSET, SUSSEX, UNION AND WARREN COUNTIES); WALK-BEHIND SAW CUTTER HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS REQUIRED TO WEAR LEVEL A, B OR C PERSONAL PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS NOT REQUIRED TO WEAR LEVEL A, B, OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING DAYS CONSISTING OF FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS OBSERVED.....$ 51.65
38.53

LABORERS: GROUP 3 FINISHER; RAMMER; SETTER OF BRICK OR STONE PAVERS; HARDSCAPING; GUNITE NOZZLE PERSON; STONECUTTER; FORM SETTER; MANHOLE; CATCH BASIN AND INLET BUILDER; ASPHALT SCREEDPERSON (ONLY IN BERGEN, ESSEX, HUDSON AND HUNTERDON COUNTIES; MIDDLESEX COUNTY (NORTH OF THE RARITAN RIVER); MORRIS, PASSAIC, SOMERSET, SUSSEX, UNION AND WARREN COUNTIES) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS REQUIRED TO WEAR LEVEL A, B OR C PERSONAL PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS NOT REQUIRED TO WEAR LEVEL A, B, OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING DAYS CONSISTING OF FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS OBSERVED.....$ 51.90
38.53
LABORERS: GROUP 4 BLASTER HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS REQUIRED TO WEAR LEVEL A, B OR C PERSONAL PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS NOT REQUIRED TO WEAR LEVEL A, B, OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING DAYS CONSISTING OF FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS OBSERVED.....$ 55.45
38.53

LABO0172-006 03/01/2025

Rates
Fringes
LABORER: ASPHALT WORK: (GROUP 1) MIDDLESEX COUNTY
(south of the Raritan
PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY,
MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY,
PRESIDENTIAL ELECTION DAY, VETERAN'S DAY,
THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT
THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER
WITHIN A PERIOD OF TEN WORKING DAYS, CONSISTING OF
FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS
AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS
OBSERVED.....$ 50.95
38.53
LABORER: ASPHALT WORK: (GROUP 2) PIPELAYER; LASER
PERSON; CONDUIT AND DUCT LINE LAYER; JACKHAMMER;
CHIPPING HAMMER; PAVEMENT BREAKER; CONCRETE CUTTER;
ASPHALT CUTTER; SHEET HAMMER OPERATOR;
SANDBLASTING, ACETYLENE CUTTING AND BURNING; WAGON
DRILL OPERATOR; DIRECTIONAL DRILL OPERATOR;
HYDRAULIC DRILL OPERATOR; DRILL MASTER; CORE
DRILLER; TRAFFIC CONTROL COORDINATOR; ASPHALT
RAKER/LUTE PERSON (ONLY IN MONMOUTH COUNTY);
WALK-BEHIND SAW CUTTER (MIDDLESEX COUNTY (SOUTH OF
THE RARITAN RIVER) PAID HOLIDAYS: NEW YEAR'S
DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE
DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY,
VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY;
PROVIDED THAT THE WORKER WORKS THREE DAYS FOR THE
SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING DAYS,
CONSISTING OF FIVE WORKING DAYS BEFORE AND FIVE
WORKING DAYS AFTER THE DAY UPON WHICH THE HOLIDAY
FALLS OR IS OBSERVED.....$ 51.65
38.53
LABORER: ASPHALT WORK: (GROUP 3) FINISHER; RAMMER;
SETTER OF BRICK OR STONE PAVERS; HARDSCAPING;
GUNITE NOZZLE PERSON; STONECUTTER; FORM SETTER;
MANHOLE; CATCH BASIN AND INLET BUILDER; ASPHALT
SCREEDPERSON (ONLY IN MONMOUTH COUNTY) (MIDDLESEX
COUNTY (SOUTH OF THE RARITAN RIVER) PAID HOLIDAYS:
NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY,
INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION
DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS
DAY; PROVIDED THAT THE WORKER WORKS THREE DAYS FOR
THE SAME EMPLOYER WITHIN A PERIOD OF TEN WORKING
DAYS, CONSISTING OF FIVE WORKING DAYS BEFORE AND

FIVE WORKING DAYS AFTER THE DAY UPON WHICH THE
HOLIDAY FALLS OR IS OBSERVED.....$ 51.90
38.53
LABORER: ASPHALT WORK: (GROUP 4) BLASTER
(MIDDLESEX COUNTY (SOUTH OF THE RARITAN RIVER)
PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY,
MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY,
PRESIDENTIAL ELECTION DAY, VETERAN'S DAY,
THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT
THE WORKER WORKS THREE DAYS FOR THE SAME EMPLOYER
WITHIN A PERIOD OF TEN WORKING DAYS, CONSISTING OF
FIVE WORKING DAYS BEFORE AND FIVE WORKING DAYS
AFTER THE DAY UPON WHICH THE HOLIDAY FALLS OR IS
OBSERVED.....$ 55.45
38.53

PAIN0711-009 02/01/2024

Rates
Fringes
PAINTERS: WORK ON BRIDGES (ALL BRIDGES THAT SPAN
MAJOR WATERWAYS, RAILROAD BRIDGES, BRIDGES OVER
CANYONS, OVERPASSES).....$ 59.29
33.56

PAIN0711-014 05/01/2025

Rates
Fringes
PAINTERS: (ALL OTHER WORK) BRUSH AND ROLLER.....$ 45.55
29.86
PAINTERS: (ALL OTHER WORK) SPRAY.....$ 45.55
29.86

PLAS0029-001 05/01/2025

Rates
Fringes
CEMENT MASON (BERGEN, ESSEX, HUDSON, MORRIS,
PASSAIC, SUSSEX, UNION AND WARREN
Cement masons: Work on suspended staging, not
supported from the ground: $.50 per hour
additional.....$ 54.64
30.95

PLAS0592-030 05/01/2025

	Rates	Fringes
CEMENT MASON (HUNTERDON, MIDDLESEX, SOMERSET AND UNION COUNTIES)	$ 53.21	33.42

TEAM0408-001 05/01/2025

	Rates	Fringes
TRUCK DRIVERS: GROUP 1 WINCH TRAILER DRIVER (ESSEX, MORRIS, SUSSEX AND UNION COUNTIES)	$ 46.61	31.82

TRUCK DRIVERS: GROUP 2 DRIVERS OF ALL EUCLID-TYPE VEHICLES: EUCLID, INTERNATIONAL HARVESTER, WABCO, CATERPILLAR, KOEHRING, TRACTOR AND WAGON; DUMPSTER; BOTTOM, REAR AND SIDE DUMP; CARRY-ALL AND SCRAPER (NOT SELF-LOADING, LOADING OVER THE TOP); WATER SPRINKLER TRAILER; WATER PULL AND SIMILAR TYPES OF VEHICLE; DRIVER OF TRACTOR AND TRAILER-TYPE VEHICLES: FLAT, FLOAT, I-BEAM, LOW BED, WATER SPRINKLER, BITUMINOUS, TRANSIT MIX, ROAD OIL, FUEL, BOTTOM DUMP HOPPER, REAR DUMP, OFFICE, SHANTY, EPOXY, ASPHALT, AGITATOR MIXER, MULCHING, STRINGING, SEEDING, FERTILIZING, POLE, SPREAD BITUMINOUS DISTRIBUTOR, WATER PULL (ENTIRE UNIT), TRACTOR TRAILER, REEL TRAILER AND SIMILAR TYPES OF VEHICLE (ESSEX, MORRIS, SUSSEX AND UNION COUNTIES)
A. EMPLOYER CONTRIBUTES $1472.15 PER MONTH PER WORKER FOR HEALTH AND WELFARE. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL.
HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT

THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 46.51 31.82

TRUCK DRIVERS: GROUP 3 DRIVER ON STRAIGHT THREE-AXLE MATERIALS: TRUCK AND FLOAT (ESSEX, MORRIS, SUSSEX AND UNION COUNTIES) A. EMPLOYER CONTRIBUTES $1472.15 PER MONTH PER WORKER FOR HEALTH AND WELFARE. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 46.41 31.82

TRUCK DRIVERS: GROUP 4 TRUCK DRIVER; DRIVER OF THE FOLLOWING TYPES OF VEHICLES: DUMP, FLAT, FLOAT, PICK-UP, CONTAINER HAULER, FUEL, WATER SPRINKLER, ROAD OIL, STRINGER BEAD, HOT PASS, BUS, DUMPCRETE, TRANSIT MIXER, AGITATOR MIXER, HALF TRACK, WINCH TRUCK, SIDE-O-MATIC, DYNAMITE, POWDER, X-RAY, WELDING, SKID, JEEP, STATION WAGON, A-FRAME, DUAL PURPOSE TRUCK, TRUCK WITH MECHANICAL TAILGATE, ASPHALT DISTRIBUTOR, BATCH TRUCK, SEEDING, MULCHING, FERTILIZING, AIR COMPRESSOR TRUCK (IN TRANSIT); PARTS CHASER; ESCORT; SCISSOR; HI-LIFT; TELESCOPE; CONCRETE BREAKER; GIN POLE; STONE, SAND, ASPHALT DISTRIBUTOR AND SPREADER; NIPPER; FUEL TRUCK (DRIVER OF FUEL TRUCK INCLUDING HANDLING OF HOSE AND NOZZLE - ENTIRE UNIT); TEAM DRIVER; VACUUM OR VAC-ALL TRUCK (ENTIRE UNIT); SKID TRUCK (DEBRIS CONTAINER - ENTIRE UNIT); CONCRETE MOBILE TRUCK (ENTIRE UNIT); BELTCRETE TRUCK; PUMPCRETE TRUCK; LINE TRUCK; REEL TRUCK; WRECKER OR TOW TRUCK;

UTILITY TRUCK; TACK TRUCK; LIFT TRUUK; CARDEX PERSON; DRIVERS ON THE FOLLOWING TYPES OF VEHICLE: BROYHILL COAL TAR EPOXY TRUCK, LITTLEFORD BITUMINOUS DISTRIBUTOR, SLURRY SEAL TRUCK OR VEHICLE, THIOKOL TRACK MASTER PICK-UP (SWAMP CAT PICK-UP), BUCKET LOADER, DUMP TRUCK AND ANY RUBBER-TIRED TRACTOR USED IN PULLING AND TOWING FARM WAGONS AND TRAILERS OF ANY DESCRIPTION; ON-SITE REPAIR SHOP (ESSEX, MORRIS, SUSSEX AND UNION COUNTIES) A. EMPLOYER CONTRIBUTES $1472.15 PER MONTH PER WORKER FOR HEALTH AND WELFARE. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 45.77
31.82

TEAM0469-001 05/01/2025

Rates
Fringes

TRUCK DRIVERS: GROUP 1 WINCH TRAILER DRIVER (HUNTERDON, MIDDLESEX AND SOMERSET COUNTIES; UNION COUNTY (SOUTH OF WOOD AVE.); WARREN COUNTY) HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR

ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY FALLS.....$ 48.88
42.66
TRUCK DRIVERS: GROUP 2 DRIVERS OF ALL EUCLID-TYPE VEHICLES: EUCLID, INTERNATIONAL HARVESTER, WABCO, CATERPILLAR, KOEHRING, TRACTOR AND WAGON; DUMPSTER; BOTTOM, REAR AND SIDE DUMP; CARRY-ALL AND SCRAPER (NOT SELF-LOADING, LOADING OVER THE TOP); WATER SPRINKLER TRAILER; WATER PULL AND SIMILAR TYPES OF VEHICLE; DRIVER OF TRACTOR AND TRAILER-TYPE VEHICLES: FLAT, FLOAT, I-BEAM, LOW BED, WATER SPRINKLER, BITUMINOUS, TRANSIT MIX, ROAD OIL, FUEL, BOTTOM DUMP HOPPER, REAR DUMP, OFFICE, SHANTY, EPOXY, ASPHALT, AGITATOR MIXER, MULCHING, STRINGING, SEEDING, FERTILIZING, POLE, SPREAD BITUMINOUS DISTRIBUTOR, WATER PULL (ENTIRE UNIT), TRACTOR TRAILER, REEL TRAILER AND SIMILAR TYPES OF VEHICLE (HUNTERDON, MIDDLESEX AND SOMERSET COUNTIES; UNION COUNTY (SOUTH OF WOOD AVE.); WARREN COUNTY) HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY FALLS.....$ 48.78
42.66

TRUCK DRIVERS: GROUP 3 DRIVER ON STRAIGHT THREE-AXLE MATERIALS: TRUCK AND FLOAT (HUNTERDON, MIDDLESEX AND SOMERSET COUNTIES; UNION COUNTY (SOUTH OF WOOD AVE.); WARREN COUNTY) HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY FALLS.....$ 48.68
42.66

TRUCK DRIVERS: GROUP 4 TRUCK DRIVER; DRIVER OF THE FOLLOWING TYPES OF VEHICLES: DUMP, FLAT, FLOAT, PICK-UP, CONTAINER HAULER, FUEL, WATER SPRINKLER, ROAD OIL, STRINGER BEAD, HOT PASS, BUS, DUMPCRETE, TRANSIT MIXER, AGITATOR MIXER, HALF TRACK, WINCH TRUCK, SIDE-O-MATIC, DYNAMITE, POWDER, X-RAY, WELDING, SKID, JEEP, STATION WAGON, A-FRAME, DUAL PURPOSE TRUCK, TRUCK WITH MECHANICAL TAILGATE, ASPHALT DISTRIBUTOR, BATCH TRUCK, SEEDING, MULCHING, FERTILIZING, AIR COMPRESSOR TRUCK (IN TRANSIT); PARTS CHASER; ESCORT; SCISSOR; HI-LIFT; TELESCOPE; CONCRETE BREAKER; GIN POLE; STONE, SAND, ASPHALT DISTRIBUTOR AND SPREADER; NIPPER; FUEL TRUCK (DRIVER OF FUEL TRUCK INCLUDING HANDLING OF HOSE AND NOZZLE - ENTIRE UNIT); TEAM DRIVER; VACUUM OR VAC-ALL TRUCK (ENTIRE UNIT); SKID TRUCK (DEBRIS CONTAINER - ENTIRE UNIT); CONCRETE MOBILE TRUCK (ENTIRE UNIT); BELTCRETE TRUCK; PUMPCRETE TRUCK; LINE TRUCK; REEL TRUCK; WRECKER OR TOW TRUCK; UTILITY TRUCK; TACK TRUCK; LIFT TRUUK; CARDEX PERSON; DRIVERS ON THE FOLLOWING TYPES OF VEHICLE: BROYHILL COAL TAR EPOXY TRUCK, LITTLEFORD BITUMINOUS DISTRIBUTOR, SLURRY SEAL TRUCK OR

VEHICLE, THIOKOL TRACK MASTER PICK-UP (SWAMP CAT PICK-UP), BUCKET LOADER, DUMP TRUCK AND ANY RUBBER-TIRED TRACTOR USED IN PULLING AND TOWING FARM WAGONS AND TRAILERS OF ANY DESCRIPTION; ON-SITE REPAIR SHOP (HUNTERDON, MIDDLESEX AND SOMERSET COUNTIES; UNION COUNTY (SOUTH OF WOOD AVE.); WARREN COUNTY) HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS WORKING IN A HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY OF THE WORKERS: $3.00 PER HOUR ADDITIONAL. HAZARDOUS WASTE REMOVAL WORK, WHERE THE WORKER IS NOT WORKING IN A ZONE REQUIRING LEVEL A, B OR C PERSONAL PROTECTION: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE WORKER HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY FALLS.....$ 48.63
42.66

TEAM0560-001 05/01/2025

Rates
Fringes

TRUCK DRIVERS: GROUP 1 DRIVER OF THE FOLLOWING TYPES OF VEHICLE: DUMP; FLAT; FLOAT; PICK-UP; CONTAINER HAULER; FUEL; WATER SPRINKLER; ROAD OIL; STRINGER BEAD; HOT PASS; BUS; DUMPCRETE; TRANSIT MIXER; AGITATOR MIXER; HALF TRACK; WINCH TRUCK; SIDE-O-MATIC; DYNAMITE; POWDER; X-RAY; WELDING; SKID; JEEP; STATION WAGON; STRINGER; A-FRAME; DUAL-PURPOSE TRUCK; TRUCK WITH MECHANICAL TAILGATE; ASPHALT DISTRIBUTOR; BATCH TRUCK; SEEDING; MULCHING; FERTILIZING; AIR COMPRESSOR TRUCK (IN TRANSIT); PARTS CHASER; ESCORT; SCISSOR; HI-LIFT; TELESCOPE; CONCRETE BREAKER; GIN POLE; STONE, SAND, ASPHALT DISTRIBUTOR AND SPREADER; NIPPER; FUEL TRUCK (DRIVER OF FUEL TRUCK INCLUDING HANDLING OF HOSE AND NOZZLE - ENTIRE UNIT); TEAM DRIVER; VACUUM OR VAC-ALL TRUCKS (ENTIRE UNIT); SKID TRUCK (DEBRIS

CONTAINER - ENTIRE UNIT); CONCRETE MOBILE TRUCK (ENTIRE UNIT); BELTCRETE TRUCK; PUMPCRETE TRUCK; LINE TRUCK; REEL TRUCK; WRECKER; TOW TRUCK; UTILITY TRUCK; TACK TRUCK; CARDEX PERSON; DRIVER ON THE FOLLOWING TYPES OF VEHICLE: BROYHILL COAL TAR EPOXY TRUCK, LITTLEFORD BITUMINOUS DISTRIBUTOR, SLURRY SEAL TRUCK OR VEHICLE, THIOKOL TRACK MASTER PICK-UP (SWAMP CAT PICK-UP); BUCKET LOADER DUMP TRUCK AND ANY RUBBER-TIRED TRACTOR USED IN PULLING AND TOWING FARM WAGONS AND TRAILERS OF ANY DESCRIPTION; ON-SITE REPAIR SHOP (BERGEN, HUDSON AND PASSAIC COUNTIES) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL B, C OR D PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE EMPLOYEE HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 47.36
44.17

TRUCK DRIVERS: GROUP 2 DRIVER OF 3-AXLE MATERIALS TRUCK AND FLOAT (BERGEN, HUDSON AND PASSAIC COUNTIES) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL B, C OR D PERSONAL PROTECTION FOR

ANY WORKERS OTHER THAN THE TRUCK DRIVER: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE EMPLOYEE HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 47.41 44.17

TRUCK DRIVERS: GROUP 3 DRIVER OF ALL EUCLID-TYPE VEHICLES: EUCLID; INTERNATIONAL HARVESTER; WABCO; CATERPILLAR; KOEHRING, TRACTOR AND WAGON; DUMPSTER; DUMP; BOTTOM, REAR AND SIDE DUMP; CARRY-ALL AND SCRAPER (NOT SELF-LOADING, LOADING OVER THE TOP); WATER SPRINKLER TRAILER; WATER PULL AND SIMILAR TYPES OF VEHICLE; DRIVER OF TRACTOR AND TRAILER-TYPE VEHICLE: FLAT, FLOAT, I-BEAM, LOW BED, WATER SPRINKLER, BITUMINOUS, TRANSIT MIX, ROAD OIL, FUEL, BOTTOM DUMP HOPPER, REAR DUMP, OFFICE, SHANTY, EPOXY, ASPHALT, AGITATOR MIXER, MULCHING, STRINGING, SEEDING, FERTILIZING, POLE, SPREAD BITUMINOUS DISTRIBUTOR, WATER PULL (ENTIRE UNIT), TRACTOR TRAILER, REEL TRAILER, AND SIMILAR TYPES OF VEHICLE (BERGEN, HUDSON AND PASSAIC COUNTIES) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL B, C OR D PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE EMPLOYEE HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 47.51 44.17

TRUCK DRIVERS: GROUP 4 WINCH TRAILER DRIVER

(BERGEN, HUDSON AND PASSAIC COUNTIES) HAZARDOUS WASTE REMOVAL WORK: WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, WHERE THE WORKER IS IN DIRECT CONTACT WITH HAZARDOUS MATERIAL, AND WHEN PERSONAL PROTECTIVE EQUIPMENT IS REQUIRED FOR RESPIRATORY, SKIN AND EYE PROTECTION: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL A PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $3.00 PER HOUR ADDITIONAL. WORK ON A STATE OR FEDERALLY DESIGNATED HAZARDOUS WASTE SITE, IN A ZONE REQUIRING LEVEL B, C OR D PERSONAL PROTECTION FOR ANY WORKERS OTHER THAN THE TRUCK DRIVER: $1.00 PER HOUR ADDITIONAL. PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY AND CHRISTMAS DAY; PROVIDED THAT THE EMPLOYEE HAS BEEN ASSIGNED TO WORK, OR, ""SHAPES"", ONE DAY OF THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.....$ 47.61 44.17

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at

https://www.dol.gov/agencies/whd/government-contracts.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts
regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this
wage determination, if it is higher) for all hours spent performing on
the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually.
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than □SU□, □UAVG□, □SA□, or □SC□ denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next

number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The □SU□ identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

□SU□ wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the

discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The □SA□ identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the □SA□ identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION

General Decision Number: NY20260007 10/08/2026

State: **New York**

Construction Types: Building, Heavy and **Highway**

Counties: New York Counties of
Dutchess, **Orange**, Sullivan and Ulster

Excludes building construction in Sullivan County

Modification Number	Publication Date
1	01/30/2026
2	05/18/2026
3	10/08/2026

ASBE0040-003 05/01/2025

	Rates	Fringes
HAZARDOUS MATERIAL HANDLER: DUTIES LIMITED TO PREPARATION WETTING; STRIPPING; REMOVAL; SCRAPPING; VACUUMING; BAGGING; AND DISPOSING OF ALL INSULATION MATERIALS WHETHER THEY CONTAIN ASBESTOS OR NOT FROM MECHANICAL SYSTEMS (SULLIVAN AND ULSTER COUNTIES)	$ 41.74	27.58
INSULATOR/ASBESTOS WORKER: (INCLUDES APPLICATION OF ALL INSULATING MATERIALS, PROTECTIVE COVERINGS, COATINGS AND FINISHES TO ALL TYPES OF MECHANICAL SYSTEMS) (SULLIVAN AND ULSTER COUNTIES)	$ 41.74	27.58

ASBE0091-002 06/02/2025

	Rates	Fringes
HAZARDOUS MATERIAL HANDLER: DUTIES LIMITED TO PREPARATION, WETTING, STRIPPING, REMOVAL SCRAPPING, VACUUMING, BAGGING AND DISPOSING OF ALL INSULATION		

MATERIALS; WHETHER THEY CONTAIN ASBESTOS OR NOT
FROM MECHANCIAL SYSTEMS (DUTCHESS AND ORANGE
COUNTIES).....$ 46.62
49.30
INSULATOR/ASBESTOS WORKER: (INCLUDES APPLICATION OF
ALL INSULATING MATERIALS, PROTECTIVE COVERINGS,
COATINGS, AND FINISHES TO ALL TYPES OF MECHANICAL
SYSTEMS) (DUTCHESS AND ORANGE COUNTIES).....$ 46.62
49.30

BOIL0005-001 01/01/2025

Rates
Fringes
BOILERMAKER (FOOTNOTE: ADDITIONAL FRINGE BENEFITS
INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S
DAY, THANKSGIVING DAY, MEMORIAL DAY, INDEPENDENCE
DAY, LABOR DAY AND GOOD FRIDAY, FRIDAY AFTER
THANKSGIVING, CHRISTMAS EVE DAY AND NEW YEAR'S EVE).$ 68.88
49.83

BRNY0005-001 06/01/2024

Rates
Fringes
BRICKLAYER (BUILDING CONSTRUCTION): BRICKLAYERS,
CEMENT MASONS, PLASTERERS, STONE MASONS (DUTCHESS,
ORANGE (EXCLUDING THE TOWN OF TUXEDO) AND ULSTER
COUNTIES).....$ 46.45
37.50
BRICKLAYER (BUILDING CONSTRUCTION): BRICKLAYERS,
CEMENT MASONS, PLASTERERS, STONE MASONS (ORANGE
COUNTY (TOWN OF TUXEDO)).....$ 47.44
38.00
BRICKLAYER (HEAVY CONSTRUCTION): BRICKLAYERS,
CEMENT MASONS, PLASTERERS, STONE MASONS (DUTCHESS,
ORANGE (EXCLUDING THE TOWN OF TUXEDO) AND ULSTER
COUNTIES).....$ 46.45
37.50
BRICKLAYER (HEAVY CONSTRUCTION): BRICKLAYERS,
CEMENT MASONS, PLASTERERS, STONE MASONS (ORANGE
COUNTY (TOWN OF TUXEDO)).....$ 47.44
38.00
BRICKLAYER (HIGHWAY CONSTRUCTION): BRICKLAYERS,
CEMENT MASONS, PLASTERERS, STONE MASONS (DUTCHESS,
ORANGE (EXCLUDING THE TOWN OF TUXEDO), SULLIVAN AND

ULSTER COUNTIES).....$ 46.45
37.50

CARP0279-005 07/01/2025

Rates
Fringes
CARPENTERS (BUILDING CONSTRUCTION): CARPENTERS,
MILLWRIGHTS, PILE DRIVERS.....$ 44.72
31.23
CARPENTERS (HEAVY AND HIGHWAY CONSTRUCTION):
CARPENTERS, MILLWRIGHTS, PILE DRIVERS.....$ 44.72
31.23

CARP0740-002 07/01/2025

Rates
Fringes
MILLWRIGHT (DUTCHESS AND ORANGE COUNTIES).....$ 47.83
43.03

CARP1556-005 07/01/2024

Rates
Fringes
DIVER (DUTCHESS AND ORANGE COUNTIES).....$ 75.46
55.84
DIVER TENDER (DUTCHESS AND ORANGE COUNTIES).....$ 55.00
55.84
DOCK BUILDER & PILEDRIVERMEN (DUTCHESS AND ORANGE
COUNTIES).....$ 60.59
55.84

ELEC0363-001 04/01/2025

Rates
Fringes
ELECTRICIAN (DUTCHESS (REMAINING TOWNSHIPS), ULSTER
AND SULLIVAN COUNTIES) (FOOTNOTE: ADDITIONAL FRINGE
BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW
YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, FOURTH
OF JULY, LABOR DAY, PRESIDENTIAL ELECTION DAY,
VETERAN'S DAY, THANKSGIVING DAY, DAY AFTER
THANKSGIVING, CHRISTMAS DAY).....$ 51.50
42.22
ELECTRICIAN (ORANGE AND DUTCHESS (TOWNSHIPS OF

FISHKILL, EAST FISHKILL AND BEACON) COUNTIES).
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY,
PRESIDENT'S DAY, MEMORIAL DAY, FOURTH OF JULY,
LABOR DAY, PRESIDENTIAL ELECTION DAY, VETERAN'S
DAY, THANKSGIVING DAY, DAY AFTER THANKSGIVING,
CHRISTMAS DAY).....$ 51.50
42.22

ELEC1249-002 05/05/2025

Rates
Fringes
ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND
TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC
CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND
TRAFFIC MONITORING SYSTEMS, ROAD WEATHER
INFORMATION SYSTEMS): FLAGMAN (ADDITIONAL FRINGE
BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS:
MEMORIAL DAY, NEW YEAR'S DAY, PRESIDENT'S DAY, GOOD
FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR
DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION
DAY FOR THE PRESIDENT OF THE UNITED STATES AND
ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE,
PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO
DAYS AFTER THE HOLIDAY.).....$ 32.51
29.93
ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND
TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC
CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND
TRAFFIC MONITORING SYSTEMS, ROAD WEATHER
INFORMATION SYSTEMS): GROUNDMAN (DIGGING MACHINE
OPERATOR). (ADDITIONAL FRINGE BENEFITS INCLUDE
THE FOLLOWING PAID HOLIDAYS: MEMORIAL DAY, NEW
YEAR'S DAY, PRESIDENT'S DAY, GOOD FRIDAY,
DECORATION DAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY
FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION
DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED
THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS
AFTER THE HOLIDAY.).....$ 48.77
31.31
ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND
TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC
CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND
TRAFFIC MONITORING SYSTEMS, ROAD WEATHER

INFORMATION SYSTEMS): GROUNDMAN (TRUCK DRIVER). (ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: MEMORIAL DAY, NEW YEAR'S DAY, PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 43.35
30.73

ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND TRAFFIC MONITORING SYSTEMS, ROAD WEATHER INFORMATION SYSTEMS): GROUNDMAN TRUCK DRIVER (TRACTOR TRAILER UNIT). (ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: MEMORIAL DAY, NEW YEAR'S DAY, PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 43.35
30.73

ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND TRAFFIC MONITORING SYSTEMS, ROAD WEATHER INFORMATION SYSTEMS): LINEMAN AND TECHNICIAN. (ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: MEMORIAL DAY, NEW YEAR'S DAY, PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 54.19
35.69

ELECTRICIAN (LINE CONSTRUCTION - LIGHTING AND TRAFFIC SIGNAL INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY FOR THE TRAFFIC SIGNAL SYSTEMS, AND TRAFFIC MONITORING SYSTEMS, ROAD WEATHER INFORMATION SYSTEMS): MECHANIC. (ADDITIONAL

FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: MEMORIAL DAY, NEW YEAR'S DAY, PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 43.35
30.73

ELEC1249-004 05/05/2025

	Rates	Fringes
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE, FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES): LINEMAN AND TECHNICIAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.)	$ 61.56	36.21
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE, FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES): FLAGMAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS		

AFTER THE HOLIDAY.).....$ 35.34
30.12
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND
UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND
ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK
INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE,
FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT
BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE
OF GROUND FAULT PROTECTION AND FIBER OPTIC
CAPABILITIES): GROUNDMAN DIGGING MACHINE OPERATOR .
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY,
PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY,
INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT
OF THE UNITED STATES AND ELECTION DAY FOR THE
GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE
WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE
HOLIDAY.).....$ 55.40
31.78
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND
UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND
ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK
INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE,
FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT
BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE
OF GROUND FAULT PROTECTION AND FIBER OPTIC
CAPABILITIES): GROUNDMAN TRUCK DRIVER. (FOOTNOTE:
ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING
PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY,
MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR
DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION
DAY FOR THE PRESIDENT OF THE UNITED STATES AND
ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE,
PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO
DAYS AFTER THE HOLIDAY.) .....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND
UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND
ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK
INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE,
FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT
BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE
OF GROUND FAULT PROTECTION AND FIBER OPTIC
CAPABILITIES): GROUNDMAN TRUCK DRIVER (TRACTOR
TRAILER UNIT). (FOOTNOTE: ADDITIONAL FRINGE

BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - OVERHEAD AND UNDERGROUND DISTRIBUTION AND MAINTENANCE WORK AND ALL OVERHEAD AND UNDERGROUND TRANSMISSION LINE WORK INCLUDING ANY AND ALL FIBER OPTIC GROUND WIRE, FIBER OPTIC SHIELD WIRE OR ANY OTHER LIKE PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES): MECHANIC. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.).....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION): CABLE SPLICER. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 63.14
33.82
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION): FLAGMAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE

HOLIDAY.) .....$ 35.34
30.12
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION):
GROUND MAN TRUCK DRIVER. (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL
DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY
FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION
DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED
THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS
AFTER THE HOLIDAY.).....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION):
GROUNDMAN DIGGING MACHINE OPERATOR. (FOOTNOTE:
ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING
PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY,
MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR
DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION
DAY FOR THE PRESIDENT OF THE UNITED STATES AND
ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE,
PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO
DAYS AFTER THE HOLIDAY.).....$ 55.40
31.78
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION):
GROUNDMAN TRUCK DRIVER (TRACTOR TRAILER UNIT).
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY,
PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY,
INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT
OF THE UNITED STATES AND ELECTION DAY FOR THE
GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE
WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE
HOLIDAY.) .....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION):
LINEMAN & TECHNICIAN. (FOOTNOTE: ADDITIONAL FRINGE
BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW
YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD
FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING
DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE
PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR
THE GOVERNOR OF NEW YORK STATE, PROVIDED THE
EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER

THE HOLIDAY.) .....$ 61.56
36.21
ELECTRICIAN (LINE CONSTRUCTION - SUBSTATION):
MECHANIC. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS
INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S
DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY,
INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT
OF THE UNITED STATES AND ELECTION DAY FOR THE
GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE
WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE
HOLIDAY.) .....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - SWITCHING
STRUCTURES; RAILROAD CATENARY INSTALLATION AND
MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR
GAS FILLED TRANSMISSION CONDUIT AND CABLE
INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC
GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR
THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND
FIBER OPTIC CAPABILITIES), PIPETYPE CABLE
INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND
MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE
INSTALLATION): GROUNDMAN TRUCK DRIVER
(TRACTOR-TRAILER UNIT). (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL
DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY
FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION
DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED
THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS
AFTER THE HOLIDAY.) .....$ 49.25
31.15
ELECTRICIAN (LINE CONSTRUCTION - SWITCHING
STRUCTURES; RAILROAD CATENARY INSTALLATION AND
MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR
GAS FILLED TRANSMISSION CONDUIT AND CABLE
INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC
GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR
THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND
FIBER OPTIC CAPABILITIES), PIPETYPE CABLE
INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND
MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE
INSTALLATION): CABLE SPLICER. (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID

HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 64.59
42.92
ELECTRICIAN (LINE CONSTRUCTION - SWITCHING STRUCTURES; RAILROAD CATENARY INSTALLATION AND MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR GAS FILLED TRANSMISSION CONDUIT AND CABLE INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES), PIPETYPE CABLE INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE INSTALLATION): FLAGMAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 35.34
30.12
ELECTRICIAN (LINE CONSTRUCTION - SWITCHING STRUCTURES; RAILROAD CATENARY INSTALLATION AND MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR GAS FILLED TRANSMISSION CONDUIT AND CABLE INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES), PIPETYPE CABLE INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE INSTALLATION): GROUNDMAN DIGGING MACHINE OPERATOR. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE

WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 55.40 31.78

ELECTRICIAN (LINE CONSTRUCTION - SWITCHING STRUCTURES; RAILROAD CATENARY INSTALLATION AND MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR GAS FILLED TRANSMISSION CONDUIT AND CABLE INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES), PIPETYPE CABLE INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE INSTALLATION): GROUNDMAN TRUCK DRIVER. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 49.25 31.15

ELECTRICIAN (LINE CONSTRUCTION - SWITCHING STRUCTURES; RAILROAD CATENARY INSTALLATION AND MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR GAS FILLED TRANSMISSION CONDUIT AND CABLE INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND FIBER OPTIC CAPABILITIES), PIPETYPE CABLE INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE INSTALLATION): LINEMAN & TECHNICIAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS AFTER THE HOLIDAY.) .....$ 61.56 36.21

ELECTRICIAN (LINE CONSTRUCTION - SWITCHING STRUCTURES; RAILROAD CATENARY INSTALLATION AND MAINTENANCE, THIRD RAIL TYPE UNDERGROUND FLUID OR

GAS FILLED TRANSMISSION CONDUIT AND CABLE
INSTALLATIONS (INCLUDING ANY AND ALL FIBER OPTIC
GROUND PRODUCT BY ANY OTHER NAME MANUFACTURED FOR
THE DUAL PURPOSE OF GROUND FAULT PROTECTION AND
FIBER OPTIC CAPABILITIES), PIPETYPE CABLE
INSTALLATION AND MAINTENANCE JOBS OR PROJECTS, AND
MAINTENANCE BONDING OF RAILS; PIPETYPE CABLE
INSTALLATION): MECHANIC. (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR'S DAY, PRESIDENTS' DAY, MEMORIAL
DAY, GOOD FRIDAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, AND ELECTION DAY
FOR THE PRESIDENT OF THE UNITED STATES AND ELECTION
DAY FOR THE GOVERNOR OF NEW YORK STATE, PROVIDED
THE EMPLOYEE WORKS TWO DAYS BEFORE OR TWO DAYS
AFTER THE HOLIDAY.) .....$ 49.25
31.15

ELEC1249-005 05/05/2025

Rates
Fringes
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
FLAGMAN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS
INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S
DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, PLUS PRESIDENT'S
DAY, GOOD FRIDAY, DECORATION DAY, ELECTION DAY FOR
THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY
FOR THE GOVERNOR OF THE STATE OF NEW YORK, PROVIDED
THE EMPLOYEE WORKS THE DAY BEFORE OR THE DAY AFTER
THE HOLIDAY) (SULLIVAN COUNTY).....$ 35.34
30.12
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
GROUNDMAN (DIGGING MACHINE OPERATOR) (FOOTNOTE:
ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING
PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY,
INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, PLUS PRESIDENT'S DAY, GOOD FRIDAY,
DECORATION DAY, ELECTION DAY FOR THE PRESIDENT OF

THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR
OF THE STATE OF NEW YORK, PROVIDED THE EMPLOYEE
WORKS THE DAY BEFORE OR THE DAY AFTER THE HOLIDAY)
(SULLIVAN COUNTY).....$ 55.40
31.78
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
GROUNDMAN (TRUCK DRIVER) (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY,
INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, PLUS PRESIDENT'S DAY, GOOD FRIDAY,
DECORATION DAY, ELECTION DAY FOR THE PRESIDENT OF
THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR
OF THE STATE OF NEW YORK, PROVIDED THE EMPLOYEE
WORKS THE DAY BEFORE OR THE DAY AFTER THE HOLIDAY)
(SULLIVAN COUNTY).....$ 49.25
31.15
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
GROUNDMAN TRUCK DRIVER (TRACTOR TRAILER UNIT)
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL
DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
CHRISTMAS DAY, PLUS PRESIDENT'S DAY, GOOD FRIDAY,
DECORATION DAY, ELECTION DAY FOR THE PRESIDENT OF
THE UNITED STATES AND ELECTION DAY FOR THE GOVERNOR
OF THE STATE OF NEW YORK, PROVIDED THE EMPLOYEE
WORKS THE DAY BEFORE OR THE DAY AFTER THE HOLIDAY)
(SULLIVAN COUNTY).....$ 49.25
31.15
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
LINEMAN & TECHNICIAN (FOOTNOTE: ADDITIONAL FRINGE
BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW
YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR
DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS
PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY,
ELECTION DAY FOR THE PRESIDENT OF THE UNITED STATES
AND ELECTION DAY FOR THE GOVERNOR OF THE STATE OF

NEW YORK, PROVIDED THE EMPLOYEE WORKS THE DAY
BEFORE OR THE DAY AFTER THE HOLIDAY) (SULLIVAN
COUNTY).....$ 61.56
36.21
ELECTRICIAN (LIGHTING AND TRAFFIC SIGNAL LINEMAN
INCLUDING ANY AND ALL FIBER OPTIC CABLE NECESSARY
FOR THE TRAFFIC SIGNAL SYSTEM, TRAFFIC MONITORING
SYSTEMS AND ROAD WEATHER INFORMATION SYSTEMS):
MECHANIC (FOOTNOTE: ADDITIONAL FRINGE BENEFITS
INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S
DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY,
THANKSGIVING DAY, CHRISTMAS DAY, PLUS PRESIDENT'S
DAY, GOOD FRIDAY, DECORATION DAY, ELECTION DAY FOR
THE PRESIDENT OF THE UNITED STATES AND ELECTION DAY
FOR THE GOVERNOR OF THE STATE OF NEW YORK, PROVIDED
THE EMPLOYEE WORKS THE DAY BEFORE OR THE DAY AFTER
THE HOLIDAY) (SULLIVAN COUNTY).....$ 49.25
31.15

ELEC1249-008 01/01/2025

Rates
Fringes
ELECTRICIAN (LINE CONSTRUCTION - TELEPHONE, CATV
FIBEROPTICS CABLE AND EQUIPMENT): CABLE SPLICER
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY,
PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY,
INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY,
THANKSGIVING DAY, DAY AFTER THANKSGIVING, CHRISTMAS
DAY.).....$ 40.81
6.99
ELECTRICIAN (LINE CONSTRUCTION - TELEPHONE, CATV
FIBEROPTICS CABLE AND EQUIPMENT): GROUNDMAN
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY,
PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY,
INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY,
THANKSGIVING DAY, DAY AFTER THANKSGIVING, CHRISTMAS
DAY.).....$ 20.53
6.39
ELECTRICIAN (LINE CONSTRUCTION - TELEPHONE, CATV
FIBEROPTICS CABLE AND EQUIPMENT): INSTALLER
REPAIRMAN-TELEDATA LINEMAN/TECHNICIAN-EQUIPMENT
OPERATOR (FOOTNOTE: ADDITIONAL FRINGE BENEFITS
INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S

DAY, PRESIDENT'S DAY, GOOD FRIDAY, DECORATION DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, THANKSGIVING DAY, DAY AFTER THANKSGIVING, CHRISTMAS DAY.).....$ 38.73
6.93

ELEV0138-001 01/01/2026

Rates
Fringes
ELEVATOR MECHANIC (ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING: A.VACATION: 6%/UNDER 5 YEARS BASED ON REGULAR HOURLY RATE FOR ALL HOURS WORKED. 8%/OVER 5 YEARS BASED ON REGULAR HOURLY RATE FOR ALL HOURS WORKED. AND B. PAID HOLIDAYS: NEW YEAR'S DAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS' DAY; THANKSGIVING DAY; THE FRIDAY AFTER THANKSGIVING DAY; AND CHRISTMAS DAY.).....$ 76.12
38.98

ENGI0137-001 03/04/2024

Rates
Fringes
POWER EQUIPMENT OPERATOR GROUP 1A (BUILDING CONSTRUCTION): CARRIER- TRAILER HORSE; CONCRETE-PORTABLE HOIST; CRANE & HOIST ENGINEER-STEEL (CONCRETE, MATERIAL, SUPERSTRUCTURE SUB- STRUCTURE); DERRICK (STONE-STEEL); ELEVATOR & CAGE; HOIST- SINGLE/DOUBLE OR TRIPLE DRUM; HOIST-PORTABLE MOBILE UNIT; HOIST ENGINEER-CONCERT (CRANE-DERRICK-MINE HOIST); HOIST ENGINEER-MATERIAL; OVERHEAD CRANE; POWER HOUSE PLANT; TELEPHIES (CABLEWAY); WHIRLY; MAINTENANCE ENGINEER; LULL HILIFT OR SIMILAR; HYDRAULIC CRANE 25 TON AND OVER; CHERRY PICKER 25 TONS AND OVER; BACKHOE OLIVER 88; FORDSON; DYNAHOE; DUAL PURPOSE AND SIMILAR MACHINES; BARBER GREEN LOADER-EUCLID LOADER OR SIMILAR TYPE; CONWAY OR SIMILAR MUCKING MACKING MACHINES; DRAGLINE; GRADALL; SHOVEL; BACKHOE ETC. (CRAWLER OR TRUCK); FRONT END LOADERS; HYDRAULIC BOOM; JERSEY SPREADER; LIFT SLAB CONSOLE; LETOURNEQU OR TOUNAPULL (SCRAPERS OVER 20 YDS STRUCK); MUCKING MACHINES; PAVEMENT BREAKER (AIR RAM); PAVER (CONCRETE); ROAD BORING MACHINE; ROAD MIX MACHINES; ROSS CARRIER AND SIMILAR MACHINES;

POST HOLE DIGGER; SHOVEL (TUNNELS); SIDE BOOM; SPREADER (ASPHALT); SCOOPMOBILE-TRACTOR-SHOVEL OVER 1 1/2 YDS. TRENCHING MACHINES VERMEER CONCRETE SAW TRENCHER AND SIMILAR; TRACTOR TYPE DEMOLITION EQUIPMENT; WINCH TRUCK (A FRAME); HYDRAULIC CRANE OVER 10 TON UP TO 25 TON); CHERRY PICKER OVER 10 TON UP TO 25 TON) (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 59.04 31.32

POWER EQUIPMENT OPERATOR GROUP 1B (BUILDING CONSTRUCTION): COMPRESSOR (STEEL ERECTION); PULSE METER AND PUSH BUTTON BUZZ BOX; ELEVATOR; MECHANIC (OUTSIDE) ALL TYPES; WELDER; SCRAPERS 20 YDS STRUCK AND UNDER; MACHINE PULLING SHEEP'S FOOT ROLLER; VIBRATORY ROLLERS; ROLLER 4 TONS AND OVER. (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 54.41 31.32

POWER EQUIPMENT OPERATOR GROUP 2A (BUILDING CONSTRUCTION): COMPACTOR SELF-PROPELLED; GRADER; BULLDOZE D7 AND SIMILAR TRACTORS WITH A DRAW BAR HORSEPOWER OF 100 OR OVER; BULLDOZER D6 AND UNDER; WELDER; SCRAPER 20 YDS STRUCK AND UNDER; MACHINE PULLING SHEEP'S FOOT ROLLER; VIBRATORY ROLLERS. (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149

FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 56.97 31.32

POWER EQUIPMENT OPERATOR GROUP 3A (BUILDING CONSTRUCTION): ASPHALT PLANT; BOILER (HIGH PRESSURE); CONCRETE MIXING PLANTS; CONCRETE PUMP; FIREMEN; FORKLIFT; FORKLIFT (ELECTRIC); JOY DRILL OR SIMILAR TRACTOR DRILLING MACHINE; LOADER - 1 1/2 YARDS AND UNDER; LOCOMOTIVE (ALL SIZES); MIXER CONCRETE - 21E AND OVER; PORTABLE ASPHALT PLANT; PORTABLE BATCH PLANT; PORTABLE CRUSHER; QUARRY MASTER; STONE CRUSHER; WELL DRILLING MACHINE AND WELL POINT SYSTEM; CHERRY PICKER UNDER 10 TONS; HYDRAULIC CRANE UNDER 10 TONS; CONCERT BUFFY; ONE YARD AN UP RIDE ON DUMPER (BENFORD OR SIMILAR). (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 54.88 31.32

POWER EQUIPMENT OPERATOR GROUP 3B (BUILDING CONSTRUCTION): COMPRESSOR OVER 125 CU. FEET; CONVEYOR BELT MACHINE REGARDLESS OF SIZE; LIGHTING UNIT (PORTABLE & GENERATOR); WELDING MACHINE (STEEL ERECTION AND EXCAVATION); AND COMPRESSOR PLANT; STUD MACHINE; LADDER HOIST. (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU.

YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 52.25
31.32
POWER EQUIPMENT OPERATOR GROUP 4A (BUILDING CONSTRUCTION): AIR TRACTOR DRILL; BATCH PLANT; BENDING MACHINE; CONCRETE BREAKER; CONCRETE SPREADER; CURB CUTTER MACHINE; FARM TRACTOR (ALL TYPES); FINISHING MACHINE-CONCRETE; HEPAVAC CLEAN AIR MACHINE (ALL SIMILAR TYPES: REMOVAL OF ASBESTOS ETC.); MATERIAL HOPPER-SAND-STONE-CEMENT; MIXER-CONCRETE-UNDER 21E; MULCHING GRASS SPREADER; PUMP-GYPSUM, ETC., PUMP-PLASTER-GROUT -FIREPROOFING; SHOP MECHANIC (NOT EMPLOYED ON JOB SITE); ROLLER UNDER 4 TON; SPREADING AND FINE GRADING MACHINE; STEEL CUTTING MACHINE; SYPHON PUMP-AIR-STEAM; TAR JOINT MACHINE; TURBO JET BURNER OR SIMILAR EQUIPMENT; VIBRATOR (1 TO 5); FINE GRADING MACHINE; ROOF HOIST (TUGGER HOIST); TELEVISION CAMERAS-WATER- SEWER-GAS-ETC. (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 54.33
31.32
POWER EQUIPMENT OPERATOR GROUP 4B (BUILDING CONSTRUCTION): COMPRESSOR TO 125 FEET; DUST; DUST COLLECTOR; HEATER ALL TYPES; PUMP; PUMP STATION (WATER AND SEWER); STEAM JENNY; SWEEPER; CHIPPER; MULCHER. (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50.

SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00)
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 45.94
31.32
POWER EQUIPMENT OPERATOR GROUP 5 (BUILDING CONSTRUCTION): MOTORIZED ROLLER (WALK BEHIND)
(NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 49.53
31.32
POWER EQUIPMENT OPERATOR GROUP 5A (BUILDING CONSTRUCTION): MASTER MECHANIC (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 61.95
31.32
POWER EQUIPMENT OPERATOR GROUP 5B (BUILDING CONSTRUCTION): UTILITY MAN (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS

INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 47.00
31.32
POWER EQUIPMENT OPERATOR GROUP 6 (BUILDING CONSTRUCTION): WAREHOUSE MAN (NOTES: HAZMAT, 20% ABOVE REGULAR RATE. PUMPING OPERATION PREMIUM, $0.50. CRANE OPERATORS (100-149 FT), $2.00. CRANE OPERATORS (149 FT+), $3.00. LOADER OPERATORS (OVER 5 CU. YD.), $0.50. SHOVEL OPERATORS (OVER 4 CU. YD.), $1.00) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY, PLUS LINCOLN'S BIRTRHDAY, WASHINGTON'S BIRTHDAY, GOOD FRIDAY, COLUMBUS DAY, NOVEMBER ELECTION DAY, VETERAN'S DAY.) (DUTCHESS COUNTY (POUGHKEEPSIE AND SOUTH THEREOF))..... $ 49.26
31.32

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Rates
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POWER EQUIPMENT OPERATOR GROUP 1 (HEAVY & HIGHWAY): BOOM TRUCK; CHERRY PICKER; CLAMSHELL; CRANE, (CRAWLER, TRUCK); DRAGLINE; ROUGH TERRAIN CRANE (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT-149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF)..... $ 68.63
35.25
POWER EQUIPMENT OPERATOR GROUP 1-A (HEAVY & HIGHWAY): AUGER; AUTO GRADER; DYNAHOE AND DUAL PURPOSE AND SIMILAR MACHINES; BOAT CAPTAIN; BORING

MACHINE (ALL TYPES); BULL DOZER-ALL SIZES; CENTRAL MIX PLANT OPERATOR; CHIPPER-ALL TYPES; CLOSE CIRCUIT T.V.; COMPACTOR WITH BLADE; CONCRETE PORTABLE HOIST; C.M.I. OR SIMILAR; CONWAY OR SIMILAR MUCKING MACHINES; GRADALL, SHOVEL BACKHOE, ETC. GRADER; DERRICK, (STONE- STEEL; ELEVATOR & CAGE, MATERIALS OR PASSENGERS; FRONT END LOADERS OVER 1 1/2 YDS.; HOIST SINGLE, DOUBLE, TRIPLE DRUM, HOIST PORTABLE MOBILE UNIT; HOIST ENGINEER-CONCRETE (CRANE-DERRICK-MINE HOIST); HOIST ENGINEER-MATERIAL, HYDRAULIC BOOM; LETOURNEAU OR TOURNAPULL (SCRAPERS OVER 20 YDS. STRUCK); LOG SKIDDER; MOVABLE CONCRETE BARRIER TRANSFER & TRANSPORT VEHICLE; MUCKING MACHINES; OVERHEAD CRANE; PAVER (CONCCRETE); PULSEMETER; PUSH BUTTON (BUZZ BOX) ELEVATOR; ROAD MIX MACHINES; ROBOT HAMMER (BROCK OR SIMILAR), ROSS CARRIER AND SIMILAR MACHINES; SHOVELS (TUNNELS); SIDE BOOM; SLIP FORM MACHINE; SPREADER (ASPHALT); SCOOPMOBILE-TRACTOR-SHOVEL OVER 1 1/2 YARDS; TRENCHING MACHINES; TELEPHIES- VERMEER CONCRETE SAW TRENCHER AND/OR SIMILAR; TRACTOR-TYPE DEMOLITION EQUIPMENT, WHIRLY (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 60.42
35.25

POWER EQUIPMENT OPERATOR GROUP 1-B (HEAVY & HIGHWAY): ROAD PAVER, ASPHALT (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY;

NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 63.70 35.25

POWER EQUIPMENT OPERATOR GROUP 2-A (HEAVY & HIGHWAY): BALLAST REGULATORS; COMPACTOR SELF-PROPELLED; COW TRACKS; FUSION MACHINE; RAIL ANCHOR MACHINES; ROLLER 4 TON AND OVER; SCRAPERS - 20 YARDS STRUCK; SWITCH TAMPERS; VIBRATORY ROLLER, ETC. (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 57.84 35.25

POWER EQUIPMENT OPERATOR GROUP 2-B (HEAVY & HIGHWAY): MECHANIC (OUTSIDE) ALL TYPES (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 59.67 35.25

POWER EQUIPMENT OPERATOR GROUP 3 (HEAVY & HIGHWAY): A: AIR TRACTOR DRILL; ASPHALT PLANT; BATCH PLANT; BOILER (HIGH PRESSURE; CONCRETE BREAKER; CONCRETE PUMP CONCRETE SPREADER; CURB CUTTER MACHINE; FARM TRACTOR (ALL TYPES); FINISHING MACHINE (CONCRETE); FINE GRADING MACHINE; FIREMAN; FORKLIFT; FORKLIFT (ELECTRIC); JOY DRILL OR SIMILAR TRACTOR DRILLING MACHINE; LOADER - 1 1/2 YARDS AND UNDER; LOCOMOTIVE (ALL SIZES), MAINTENANCE ENGINEER; MACHINE PULLING SHEEPS FOOT ROLLER; MATERIAL HOPPER; MIXER CONCRETE - 21-E AND OVER; MULCHING GRASS SPREADER; PORTABLE ASPHALT PLANT, PORTABLE BATCH PLANT, PORTABLE

CRUSHER; POWERHOUSE PLANT; QUARRY MASTER; ROLLER UNDER 4 TON; SPREADING AND FINE GRADING MACHINE; STEEL CUTTING MACHINE; STONE CRUSHER; SWEEPER; TURBOJET BURNER OR SIMILAR; WELL DRILLING MACHINE ; WINCH TRUCK ""A"" FRAME. JOHN HENRY DRILL OR SIMILAR. (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 56.81 35.25

POWER EQUIPMENT OPERATOR GROUP 4-A (HEAVY & HIGHWAY): SERVICE MEN (FUEL OR GREASE TRUCK). (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 51.57 35.25

POWER EQUIPMENT OPERATOR GROUP 4-B (HEAVY & HIGHWAY): OILER; COMPRESSOR - COMPRESSOR PLANT; PAINT COMPRESSOR-STEEL ERECTION; CONVEYOR BELT MACHINE; LIGHTING UNIT (PORTABLE & GENERATOR); OILER; PUMPS - PUMP STATION-WATER-SEWER- GYPSUM- PLASTER, ETC.; ROLLER-MOTORIZED (WALK-BEHIND); WELDING MACHINE (STEEL ERECTION EXCAVATION); WELL POINT SYSTEM; BENDING MACHINE; DUST COLLECTOR; MIXER - CONCRETE UNDER 21-E; HEATER ALL TYPES; STEAM JENNY; SYPHON PUMP-AIR-STEAM; TAR JOINT MACHINE; VIBRATOR (1 TO 5); COMPRESSOR TRUCK MOUNTED (2-6) (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN

GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 44.19
35.25
POWER EQUIPMENT OPERATOR GROUP 5 (HEAVY & HIGHWAY):OILER (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 64.02
35.25
POWER EQUIPMENT OPERATOR GROUP 5-A-1 (HEAVY & HIGHWAY): MASTER MECHANIC (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 64.02
35.25
POWER EQUIPMENT OPERATOR GROUP 5-A-2 (HEAVY & HIGHWAY): ENGINEER - ALL TOWER CRANES, ALL CLIMBING CRANES AND ALL CRANES OF 100 TON CAPACITY OR GREATER (3900 MANITOWAC OR SIMILAR) IRRESPECTIVE OF MANUFACTURER AND REGARDLESS OF HOW THE SAME IS RIGGED (EXCEPT FOR PILE RIGS). (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT:

RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 77.82 35.25

POWER EQUIPMENT OPERATOR GROUP 5-A-3 (HEAVY & HIGHWAY): ENGINEER-- PILE DRIVER (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 75.13 35.25

POWER EQUIPMENT OPERATOR GROUP 5-A-4 (HEAVY & HIGHWAY): HOIST ENGINEER- STEEL -SUB STRUCTURE (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 70.41 35.25

POWER EQUIPMENT OPERATOR GROUP 5-A-5 (HEAVY & HIGHWAY): JERSEY-SPREADER, PAVEMENT BREAKER (AIR RAM); POST HOLE DIGGER (NOTES: LOADER OPERATOR (OVER 5 CU YDS), $0.50. SHOVAL OPERATORS (OVER 4 CU YD), $1.00. HAZMAT PREMIUM OVER REGULAR RATE, 20%. CRANES: 100 FT- 149 FT: RECEIVE $2.00 MORE THAN GROUP 1 RATE. 149 FT AND OVER RECEIVE $3.00 MORE THAN GROUP 1 RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID

HOLIDAYS: NEW YEAR'S DAY; LINCOLN'S BIRTHDAY; GOOD FRIDAY; MEMORIAL DAY; INDEPENDENCE DAY; LABOR DAY; VETERANS DAY; COLUMBUS DAY; NOVEMBER ELECTION DAY; THANKSGIVING DAY; AND CHRISTMAS DAY) (POUGHKEEPSIE AND SOUTH THEREOF).....$ 59.19
35.25

ENGI0158-006 07/01/2025

Rates

Fringes

POWER EQUIPMENT OPERATORS GROUP A (BUILDING CONSTRUCTION): SHOVEL, ALL EXCAVATOR (EXCEPT TRACTOR MOUNTED RUBBER TIRED JOHN DEERE 510 OR SMALLER), GRADALLS, POWER ROAD GRADER, ALL CMI EQUIPMENT, FRONT-END RUBBER TIRE LOADER, TRACTOR-MOUNTED DRILL (QUARRY MASTER), MUCKING MACHINE, CONCRETE CENTRAL MIX PLANT, CONCRETE PUMP, BELCRETE SYSTEM, AUTOMATED ASPHALT CONCRETE PLANT AND TRACTOR ROAD PAVER, BOOM TRUCK (5 TONS AND UNDER). (NOTE: HAZARDOUS WORK - ANYTIME OPERATING ENGINEERS ARE INVOLVED WITH LEVEL C OR ABOVE, $2.50 PER HOUR OVER REGULAR RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY) (NORTHERN PART OF DUTCHESS (TO THE NORTHEN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE) .$ 54.93
33.20

POWER EQUIPMENT OPERATORS GROUP A(1) (BUILDLING CONSTRUCTION): CRANE, HYDRAULIC CRANES, TOWER CRANE, LOCOMOTIVE CRANE, PILEDRIVER, CABLEWAY, DERRICKS, WHIRLIES, DRAGLINE, BOOM TRUCK (OVER 5 TONS) (GROUP A(1) CRANE PREMIUMS: OVER 150', ADD $1.00. OVER 200', ADD $2.00.) (NOTE: HAZARDOUS WORK - ANYTIME OPERATING ENGINEERS ARE INVOLVED WITH LEVEL C OR ABOVE, $2.50 PER HOUR OVER REGULAR RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY) (NORTHERN PART OF DUTCHESS (TO THE NORTHEN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE) .....$ 55.42
33.20

POWER EQUIPMENT OPERATORS GROUP B (BUILDING CONSTRUCTION) BACKHOE, (TRACTOR MOUNTED RUBBER

TIRED EQUIVALENT TO JOHN DEERE 510 OR LESS), BULLDOZER, PUSHCAT, TRACTOR, TRAXCAVATOR, SCRAPER, LETOURNEAU GRADER, FORM FINE GRADER, ROAD ROLLER, BLACKTOP ROLLER, BLACKTOP SPREADER, POWER BROOMS, SWEEPERS, TRENCHING MACHINE, BARBER GREEN LOADER, SIDE BOOMS, HYDROHAMMER, CONCRETE SPREADER, CONCRETE FINISHING MACHINE, ONE DRUM HOIST, POWER HOSTING (SINGLE DRUM), HOIST - TWO DRUM OR MORE, THREE DRUM ENGINE, POWER HOISTING (TWO DRUM AND OVER), TWO DRUM AND SWINGING ENGINE, THREE DRUM SWINGING ENGINE, HOD HOIST, A-L FRAME WINCHES, CORD AND WELL DRILLERS (ONE DRUM), POST HOLE DIGGER, MODEL CHB VIBRO-TAMP OR SIMILAR MACHINE, BATCH BIN AND PLANT OPERATOR, DINKEY LOCOMOTIVE, SKID STEER LOADER, TRACK EXCAVATOR 5/8 CU. YD. OR SMALLER. (NOTE: HAZARDOUS WORK - ANYTIME OPERATING ENGINEERS ARE INVOLVED WITH LEVEL C OR ABOVE, $2.50 PER HOUR OVER REGULAR RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY) (NORTHERN PART OF DUTCHESS (TO THE NORTHEN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE) .....$ 53.91
33.20
POWER EQUIPMENT OPERATORS GROUP C (BUILDLING CONSTRUCTION): FORK LIFT, HIGH LIFT, LULL, OILER, FIREMAN AND HEAVY- DUTY GREASER, BOILERS, AND STEAM GENERATORS, PUMP, VIBRATOR, MOTOR MIXER, AIR COMPRESSOR, DUST COLLECTOR, WELDING MACHINE, WELL POINT, MECHANICAL HEATER, GENERATORS, TEMPORARY LIGHT PLANTS, CONCRETE PUMPS, ELECTRIC SUBMERSIBLE PUMP 4"" AND OVER, MURPHY TYPE DIESEL GENERATOR, CONVEYOR, ELEVATORS, CONCRETE MIXER AND BELCRETE POWER PACK (BELCRETE SYSTEM), SEEDING, AND MULCHING MACHINES, PUMPS. (NOTE: HAZARDOUS WORK - ANYTIME OPERATING ENGINEERS ARE INVOLVED WITH LEVEL C OR ABOVE, $2.50 PER HOUR OVER REGULAR RATE.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, CHRISTMAS DAY) (NORTHERN PART OF DUTCHESS (TO THE NORTHEN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE) .$ 51.01
33.20

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Rates
Fringes
POWER EQUIPMENT OPERATOR GROUP 1 (HEAVY & HIGHWAY):
ASPHALT CURB MACHINE, SELF PROPELLED, SLIPFORM,
AUTOMATED CONCRETE SPREADER (CMI TYPE), AUTOMATIC
FINE GRADER, BACKHOE (EXCEPT TRACTOR MOUNTED,
RUBBER TIRED), BACKHOE EXCAVATOR FULL SWING (CAT
212 OR SIMILAR TYPE), BACK FILLING MACHINE, BELT
PLACER (CMI TYPE), BLACKTOP PLANT (AUTOMATED), BOOM
TRUCK , CABLEWAY, CAISSON AUGER, CENTRAL MIX
CONCRETE PLANT (AUTOMATED), CONCRETE CURB MACHINE,
SELF PROPELLED, SLIPFORM, CONCRETE PUMP, CRANE,
CHERRY PICKER, DERRICKS (STEEL ERECTION), DRAGLINE,
OVERHEAD CRANE (GANTRY OR STRADDLE TYPE), PILE
DRIVER, TRUCK CRANE, DIRECTIONAL DRILLING MACHINE,
DREDGE, DUAL DRUM PAVER, EXCAVATOR (ALL PURPOSE
HYDRAULICALLY OPERATED) (GRADALL OR SIMILAR), FRONT
END LOADER (4 CU. YD. AND OVER), HEAD TOWER
(SAUERMAN OR EQUAL), HOIST (TWO OR THREE DRUM),
HOLLAND LOADER, MAINTENANCE ENGINEER, MINE HOIST,
MUCKING MACHINE OR MOLE PAVEMENT BREAKER(SP)
WERTGEN; PB-4 AND SIMILAR TYPE, POWER GRADER,
PROFILER (OVER 105 H.P.) QUAD 9, QUARRY MASTER (OR
EQUIVALENT), SCRAPER, FIREMAN, FORM TAMPER, GROUT
PUMP, GUNITE MACHINE, HAMMERS (HYDRAULIC
SELF-PROPELLED), HYDRA-SPIKER, RIDE-ON, HYDRAULIC
PUMP (JACKING SYSTEM), HYDRO-BLASTER (WATER),
MULCHING MACHINE, OILER, PARAPET CONCRETE OR
PAVEMENT, SHOVEL, SIDE BOOM, SLIP FORM PAVER,
TRACTOR DRAWN, BELTTYPE LOADER, TRUCK OR TRAILER
MOUNTED LOG , CHIPPER (SELF FEEDER), TUG OPERATOR
(MANNED RENTED EQUIPMENT EXCLUDED), TUNNEL SHOVEL.
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL
DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY,
AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO
THE NORTHERN BOUNDARY LINE OF THE CITY OF
POUGHKEEPSIE.).....$ 57.30
33.55
POWER EQUIPMENT OPERATOR GROUP 2 (HEAVY & HIGHWAY):
ASPHALT PAVER, BACKHOE (TRACTOR MOUNTED, RUBBER
TIRED), BITUMINOUS RECYCLER MACHINE, BITUMINOUS
SPREADER AND MIXER, BLACKTOP PLANT (NONAUTOMATED),
BLAST OR ROTARY DRILL (TRUCK OR TRACTOR MOUNTED),
BORING MACHINE, CAGE HOIST, CENTRAL MIX PLANT
(NONAUTOMATED) AND ALL CONCRETE BATCHING PLANTS,

CHERRY PICKER (5 TONS CAPACITY AND UNDER), CONCRETE PAVER (OVER 16S), CRAWLER DRILL, SELF-CONTAINED, CRUSHER, DIESEL POWER UNIT, DRILL RIGS, TRACTOR MOUNTED, FRONT END LOADER (UNDER 4 CU. YD.), GREASEMAN/LUBRICATION ENGINEER, HIPRESSURE BOILER (15 LBS. AND OVER), HOIST (ONE DRUM), HYDRO-AXE, KOLMAN PLANT LOADER AND SIMILAR TYPE LOADERS, L.C.M. WORK BOAT OPERATOR, LOCOMOTIVE MIXER (FOR STABILIZED BASE SELFPROPELLED), MONORAIL MACHINE, PLANT ENGINEER, PROFILER (105 H.P. AND UNDER), GRINDER, POST HOLE DIGGER AND POST DRIVER, POWER BROOM (TOWED), POWER HEATERMAN, POWER SWEEPER, REVINIUS WIDENER, ROLLER (GRADE AND FILL), SCARIFIER, RIDE-ON, SHELL WINDER, SKID STEER LOADER (BOBCAT OR SIMILAR), SPAN-SAW, RIDE-ON, STEAM CLEANER, PUG MILL, PUMP CRETE READY MIX CONCRETE PLANT REFRIGERATION EQUIPMENT (FOR SOIL STABILIZATION)ROAD WIDENER, ROLLER (ALL ABOVE SUBGRADE), SEA MULE, SELF-CONTAINED RIDE-ON ROCK DRILL, EXCLUDING AIR-TRACK TYPE DRILL, SKIDDER, TRACTOR WITH DOZER AND/OR PUSHER, TRENCHER. TUGGER HOIST, VERMEER SAW (RIDE ON, ANY SIZE OR TYPE), WINCH, WINCH CAT. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.)
(NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 56.39
33.55
POWER EQUIPMENT OPERATOR GROUP 3 (HEAVY & HIGHWAY):
A FRAME WINCH HOIST ON TRUCK , ARTICULATED HEAVY HAULER, AGGREGATE PLANT, ASPHALT OR CONCRETE GROOVING, MACHINE (RIDE ON), BALLAST REGULATOR, RIDE-ON BOILER (USED IN CONJUNCTION WITH PRODUCTION), BITUMINOUS HEATER, SELF-PROPELLED, BOAT (POWERED), CEMENT AND BIN OPERATOR, COMPRESSORS, DUST COLLECTORS, FORK LIFT, GENERATORS, PUMPS, WELDING MACHINES, LIGHT PLANTS, HEATERS (HANDS-OFF EQUIPMENT), CONCRETE PAVEMENT SPREADER AND FINISHER, CONCRETE PAVER OR MIXER (16S AND UNDER), CONCRETE SAW (SELF-PROPELLED), CONVEYOR, DECK HAND, DIRECTIONAL DRILL MACHINE LOCATOR, DRILL, (CORE), DRILL, (WELL,) FARM TRACTOR WITH ACCESSORIES, FINE GRADE MACHINE, TAMPER, RIDE-ON, TIE EXTRACTOR, RIDE-ON, TIE HANDLER, RIDE-ON, TIE INSERTER, RIDE-ON, TIE SPACER,

RIDE-ON, TIRE REPAIR, TRACK LINER, RIDE-ON, TRACTOR, TRACTOR (WITH TOWED ACCESSORIES), VIBRATORY COMPACTOR, VIBRO TAMP, WELL POINT. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 53.82
33.55
POWER EQUIPMENT OPERATOR GROUP 4 (HEAVY & HIGHWAY): TOWER CRANES. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 63.30
33.55
POWER EQUIPMENT OPERATOR GROUP 5 (HEAVY & HIGHWAY): CRANES 50 TONS AND OVER. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 61.80
33.55
POWER EQUIPMENT OPERATOR GROUP 6 (HEAVY & HIGHWAY): CRANES 49 TONS AND BELOW. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 60.30
33.55
POWER EQUIPMENT OPERATOR GROUP 7 (HEAVY & HIGHWAY): MASTER MECHANIC. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, THANKSGIVING DAY, AND CHRISTMAS DAY.) (NORTHERN PART OF DUTCHESS (TO THE NORTHERN BOUNDARY LINE OF THE CITY OF POUGHKEEPSIE.).....$ 58.91
33.55

ENGI0825-007 07/01/2025

Rates

Fringes

POWER EQUIPMENT OPERATOR GROUP 1 (BUILDING, HEAVY & HIGHWAY): AUTOGRADE-PAVEMENT-PROFILER (CMI AND SIMILAR TYPE); UTOGRADE-PAVEMENT-PROFILER (CMI AND SIMILAR TYPES);AUTOGRADE SLIPFORM PAVER (CMI AND SIMILAR TYPES); BACKHOE; CENTRAL POWER PLANTS (ALL TYPES); CONCRETE PAVING MACHINE (S-240 AND SIMILAR TYPES); CRANES (ALL TYPES,INCLUDING OVERHEAD AND STRADDLE TRAVELING TYPE); CRANES, GANTRY; DERRICKS (LAND, FLOATING OR CHICAGO BOOM TYPE); DRILLMASTER/QUARTMASTER (DOWN THE HOLE DRILL) ROTARY DRILL; SELF-PROPELLED, HYDRAULIC DRILL, SELF-POWERED DRILL DRAGLINES, ELEVATOR GRADERS, FRONT END LOADERS (5 YDS. AND OVER), GRADALLS, GRADER: RAGO, HELICOPTERS (COPILOT), HELICOPTERS, (COMMUNICATION ENGINEER), LOCOMOTIVE (LARGE), MUCKING MACHINES, PAVEMENT AND CONCRETE BREAKER (SUPERHAMMER, HOE RAM, BROKK 250 AND SIMILAR TYPES), PILE DRIVER (LENGTH OF BOOM INCLUDING LENGTH OF LEADS SHALL DETERMINE PREMIUM RATE APPLICABLE), ROADWAY SURFACE GRINDER SCOOPER (LOADER AND SHOVEL), SHOVELS, TREE CHOOPER WITH BOOM, TRENCH MACHINES, TUNNEL BORING MACHINES. (NOTES: HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM, $0.50). (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 61.72
37.50

POWER EQUIPMENT OPERATOR GROUP 2 (BUILDING, HEAVY & HIGHWAY): ""A"" FRAME; BACKHOE (COMBINATION); BOOM ATTACHMENT ON LOADERS (RATE BASED ON SIZE OF BUCKET) NOT APPLICABLE TO PIPEHOOK) BORING AND DRILLING MACHINES, BRUSH CHOPPER, SHREDDER AND TREE SHREDDER TREE SHEARER, CABLEWAYS, CARRY-ALLS, CONCRETE PUMP, CONCRETE PUMPING SYSTEM, PUMPCRETE AND SIMILAR TYPES, CONVEYORS, 125 FT AND OVER; DRILL DOCTOR (DUTIES INCLUDE DUST COLLECTOR, MAINTENANCE), FRONT END LOADER (22 YDS. BUT LESS THAN 2 YDS.), GRADERS (FINISH); GROOVE CUTTING

MACHINE (RIDE ON TYPE), HEATER PLANER; HOISTS: (ALL TYPE HOISTS, SHALL ALSO INCLUDE STEAM, GAS, DIESEL, ELECTRIC, AIR HYDRAULIC, SINGLE AND DOUBLE DRUM, CONCRETE, BRICK SHAFT, CAISSON, SNORKEL ROOF, AND OR ANY OTHER SIMILAR TYPE HOISTING MACHINES, PORTABLE OR STATIONARY, EXCEPT CHICAGO BOOM TYPE). LONG BOOM RATE TO BE APPLIED IF HOIST IS ""OUTSIDE MATERIAL LOWER HOIST""; HYDRAULIC CRANES-10TONS AND UNDER; HYDRO-AXE; HYDRO-BLASTER; JACKET (SCREW AIR HYDRAULIC POWER OPERATED UNIT OR CONSOLE TYPE: NOT HAND JACK OR PILE LOAD TEST TYPE), LOG SKIDDER; PANS, PAVERS (ALL) CONCRETE; PLATE AND FRAME FILTER PRESS; PUMPCRETE MACHINES; SQUEEZE CRETE AND CONCRETE PUMPING (REGARDLESS OF SIZE); SCRAPERS; SIDEBOOMS; STRADDLE CARRIER, ROSS AND SIMILAR TYPES; VACUUM TRUCK; WHIP HAMMER; WINCH TRUCKS (HOISTING). (NOTES: HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM, $0.50). (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.)
(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 60.13
37.50
POWER EQUIPMENT OPERATOR GROUP 3 (BUILDING, HEAVY & HIGHWAY): ASPHALT CURBING MACHINE, ASPHALT PLANT ENGINEER, ASPHALT SPREADER; AUTOGRADE TUBE FINISHER & TEXTURING MACHINE (CMI AND SIMILAR TYPES) AUTOGRADE CURECRETE MACHINE (CMI AND SIMILAR TYPES); BAR BENDING MACHINES (POWER), BATCHERS, BATCHING PLANT AND CRUSHER ON-SITE; BELT CONVEYOR SYSTEMS; BOOM TYPE SKIMMER MACHINES; BRIDGE DECK FINISHER; BULLDOZERS (ALL); CAR DUMPERS (A:ROAD); CHIEF OF PARTY; COMPRESSOR AND BLOWER TYPE UNITS (USED) INDEPENDENTY OR MOUNTED ON DUAL PURPOSE TRUCKS, ON JOB SITE OR IN CONDUCTION WITH JOB SITE, IN LOADING AND UNLOADING OF CONCRETE, CEMENT, FLY ASH, INSTANTCRETE, OR SIMILAR TYPE MATERIALS); COMPRESSOR 92 OR 3 IN BATTERY); CONCRETE FINISHING MACHINES; CONCRETE SAWS AND CUTTERS (RIDE ON TYPE); CONCRETE SPREADERS, HETZEL, REXOMATIC AND SIMILAR TYPES; CONCRETE VIBRATORS; CONVEYORS, UNDER 125 FT), CRUSHING MACHINES, DITCHING MACHINE, SMALL (DITCHWITCH, VERMEER OR SIMILAR TYPE); DOPE DOTS

(MECHANICAL WITH OR WITHOUT PUMP), DUMPSTERS; ELEVATOR; FIREMAN; FORKLIFTS (ECONOMOBILE, LULL, AND SIMILAR TYPES OF EQUIPMENT); FRONT END LOADERS (1 YD. AND OVER BUT LESS THAN 2 YDS.); GENERATORS (2 OR 3 IN BATTERY/ WITHIN 100 FT); GIRAFFE GRINDERS, GRADERS AND MOTOR PATROLS; GROUT PUMP; GUNNITE MACHINES (EXCLUDING NOZZLE); HAMMER VIBRATORY (IN CONDUCTION WITH GENERATORS); HOISTS (ROOF, TUGGERAERIAL PLATFROM HOIST AND HOUSE CARS), HOPPERS, HOPPERS DOORS (POWER OPERATED); HYDRO-BLASTER (WHERE REQUIRED); LADDERS (MOTORIZED); LADDERVATOR; LOCOMOTIVE, DINKY TYPE; MAINTENANCE, UTILITY MAN; MECHANICS; MIXERS (EXCEPTING PAVING MIXERS); MOTOR PATROLS AND GRADERS; PAVEMENT BREAKERS, SMALL, SELF-PROPELLED RIDE ON TYPE (ALSO MAINTAINS COMPRESSOR OR HYDRAULIC UNIT); PAVEMENT BREAKER, TRUCK MOUNTED; PIPE BENDING MACHINE (POWER); PITCH PUMP; PLASTER PUMP (REGARDLESS OF SIZE); POST HOLE DIGGER (POST POUNDER AND AUGER); ROD BENDING MACHINES (POWER); ROLLER, BLACK TOP; SCALES, (POWER); SEAMAN PULVERIZING MIXER; SHOULDER WIDENER; SILOS; SKIMMER MACHINES (BOOM TYPE); STEEL CUTTING MACHINE, SERVICES AND MAINTAINS; TAMROCK DRILL; TRACTORS; TUG CAPTAIN; VIBRATING PLANTS (USED IN CONDUCTION WITH UNLOADING); WELDER AND REPAIR MACHINES. CONCRETE CLEANING/DECONTAMINATION MACHINE OPERATOR; DIRECTIONAL BORING MACHINE; HEAVY EQUIPMENT ROBOTICS OPERATOR; MASTER ENVIRONMENTAL MAINTENANCE OPERATOR; ULTRA HIGH PRESSURE WATERJET CUTTING TOOL SYSTEM OPERATOR; MAINTENANCE OPERATOR; VACUUM BLASTING MACHINE OPERATOR (NOTES: HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM, $0.50). (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER, AND SULLIVAN COUNTIES)....$ 58.22
37.50
POWER EQUIPMENT OPERATOR GROUP 4 (BUILDING, HEAVY & HIGHWAY): BROOMS AND SWEEPERS; CHIPPERS; COMPRESSORS (SINGLE); CONCRETE SPREADERS (SMALL TYPE); CONVEYOR LOADERS (NOT INCLUDING ELEVATOR GRADERS); ENGINES, LARGE DIESEL (1620 H.P.) AND

STAGING PUMP; FARM TRACTORS; FERTILIZING EQUIPMENT (OPERATOR AND MAINTENANCE OF); FINE GRADE MACHINE (SMALL TYPE); FORM LINE GRADERS (SMALL TYPE); FRONT END LOADER (UNDER 1 YD); GENERATOR (SINGLE); GREASE, GAS, FUEL AND OIL SUPPLY TRUCKS; HEATERS (NELSON OR OTHER TYPE INCLUDING PROPANE, NATURAL GAS OR FLOWTYPE UNITS); LIGHTS, PORTABLE GENERATING LIGHT PLANTS; MIXERS, CONCRETE SMALL; MULCHING EQUIPMENT (OPERATION AND MAINTENANCE OF); PUMPS (2 OF LESS THAN 4 INCH SUCTION); PUMPS 94 INCH SUCTION AND OVER INCLUDING SUBMERSIBLE PUMPS); PUMPS (DIESEL ENGINE AND HYDRAULIC); IMMATERIAL OF POWER; ROAD FINISHING MACHINES (SMALL TYPE); ROLLERS, GRADE, FULL OR STONE BASE; SEEDING EQUIPMENT (OPERATION AND MAINTENCE OF); SPRINKLER AND WATER PUMP TRUCKS (USED ON JOB SITE OR IN CONDUCTION WITH JOB SITE); STEAM JENNIES AND BOILERS, IRRESPECTIVE OF USE; STONE SPREADER; TAMPING MACHINES, VIBRATING RIDE ON; TEMPORARY HEATING PLANT (NELSON OR OTHER TYPE, INCLUDING PROPANE, NATURAL GAS OR FLOW TYPE UNITS); WATER AND SPRINKLER TRUCKS (USED ON JOB SITE IN CONDUCTION WITH JOB SITE); WELDING MACHINES-WITHIN 100 FT (GAS, AND /OR ELECTRIC CONVERTERS OF ANY TYPE, SINGLE, TOW OR THREE IN A BATTERY). WELDING SYSTEM, MULTIPLE (RECTIFIER TRANSFORMER TYPE) WELL POINT SYSTEMS (INCLUDING INSTALLATION BY BULL GANG AND MAINTENANCE OF); OFF ROAD BACK DUMPS. (NOTES: HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM, $0.50). (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.)
(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 56.59
37.50
POWER EQUIPMENT OPERATOR GROUP 5 (BUILDING, HEAVY & HIGHWAY): OILER (NOTES: HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM, $0.50). (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.)

(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 61.72
37.50
POWER EQUIPMENT OPERATOR GROUP 6 (BUILDING, HEAVY &
HIGHWAY): HELICOPTER PILOT (ORANGE, ULSTER AND
SULLIVAN COUNTIES) NOTES: HAZMAT PREMIUM
20% HYDROGRAPHIC PREMIUM .50 A.
PAID HOLIDAYS: NEW YEARS DAY, WASHINGTON'S BIRTHDAY
MEMORIAL DAY, JULY 4TH, LABOR DAY, VETERAN'S DAY,
ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY,
PROVIDED THE EMPLOYEE WORKS ONE DAY DURING THE
CALENDAR WEEK IN WHICH THE HOLIDAY OCCURS.....$ 63.54
37.50

ENGI0825-008 07/01/2025

Rates
Fringes
POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES
AND TRANSPORTATION PIPE LINES GROUP 1: BACKHOE;
CRANES (ALL TYPES); DRAGLINES, FRONT END LOADERS
(5YDS. AND OVER), GRADALLS, HELICOPTERS (CO-PILOT),
HELICOPTERS (COMMUNICATION ENGINEER); SCOOPER
(LOADER AND SHOVEL) KOEHRING; TRENCH MACHINES.
(NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT
PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE:
ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING
PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S
BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR
DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY
AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE
DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS
OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 62.35
37.50
POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES
AND TRANSPORTATION PIPE LINES GROUP 2: ""A"" FRAME;
BACKHOE (COMBINATION HOE LOADER); BORING AND
DRILLING MACHINES; DITCHING MACHINES, SMALL,
DITCHWITCH, VERMEER OR SIMILAR TYPE; FORKLIFTS;
FRONT END LOADERS 92 YDS. AND OVER BUT LESS THAN 5
YDS.); GRADERS, FINISH (FINE); HYDRAULIC CRANES 10
TONS AND UNDER (OVER 10 TONS) CRANES RATE APPLIES);
SIDE BOOMS: WINCH TRUCKS (HOISTING). (NOTES:
HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%.
TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL
FRINGE BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY,

MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 60.70 37.50

POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES AND TRANSPORTATION PIPE LINES GROUP 3: BACKFILLER; BROOMS AND SWEEPERS; BULLDOZERS; COMPRESSOR (2 OR 3 IN BATTERY); CHIEF OF PARTY; FRONT END LOADERS (UNDER 2 YDS); GENERATORS; GIRAFFE GRINDERS; GRADERS AND MOTOR PATROLS; MACHNIC; PIPE BENDING MACHINE (POWER);TRACTORS; WATER AND SPRINKLER TRUCKS USED ON JOB SITE OR IN CONDUCTION WITH JOB SITE); WELDER AND REPAIR MECHANIC; CAPTAIN (POWER BOATS); TUG MASTER (POWER BOATS). (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 58.56 37.50

POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES AND TRANSPORTATION PIPE LINES GROUP 4: COMPRESSOR (SINGLE); DOPE POTS (MECHANICAL WITH OR WITHOUT PUMP); DUST COLLECTORS; PUMPS (4 INCH SUCTION AND OVER); PUMPS (2 OF LESS THAN 4 INCHE SUCTION); PUMPS, DIESEL ENGINE AND HYDRAULIC (IMMATERIAL OF POWER); WELDING MACHINES, GAS OR ELECTRIC CONVERTERS OF ANY TYPE- 2 OR 3 IN BATTERY MULTPLE WELDERS; WELL POINT SYSTEMS (INCLUDING INSTALLATION AND MAINTENANCE); FRAM TRACTORS. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 57.06 37.50

POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES AND TRANSPORTATION PIPE LINES GROUP 5: OILER, GREASE, GAS, FUEL AND OIL SUPPLY TRUCKS; TIRE REPAIR AND MAINTENANCE. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 53.34
37.50
POWER EQUIPMENT OPERATORS - OILOSTATIC MAINLINES AND TRANSPORTATION PIPE LINES GROUP 6: HELICOPTER PILOT. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 64.28
37.50
POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 1: CRANES (ALL CRANES, LAND OR FLOATING WITH BOOMS INCLUDING JIB 140 FT AND OVER, ABOVE GROUND); DERRICKS, LAND, FLOATING OR CHICAGO BOOM TYPE WITH BOOMS INCLUDING JIB 140 FT AND OVER ABOVE GROUND). (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 70.24
37.50
POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 2: CRANES (ALL CRANES, LAND OR FLOATING WITH BOOMS INCLUDING JIB

LESS THAN 140 FT ABOVE GROUND); DERRICKS, LAND, FLOATING OR CHICAGO BOOM TYPE WITH BOOMS INCLUDING JIB LESS THAN 140 FT ABOVE GROUND). (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 68.58 37.50

POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 3: ""A"" FRAME, CHERRY PICKERS 10 TONS AND UNDER, HOISTS SHALL ALSO INCLUDE STEAM, GAS, DESEL, ELECTRIC, AIR HYDRAULIC, SINGLE AND DOUBLE DRUM CONCRETE, BRICK SHAFT CAISSON, OR ANY OTHER SIMILAR TYPE HOISTING MACHINES, PORTABLE OR STATIONARY, EXCEPT CHICAGO BOOM TYPE; JACKS: SCREW AIR HYDRAULIC POWER OPERATED UNIT OR CONSOLE TYPE (NOT HAND JACK OR PILE LOAD TEST TYPE); SIDE BOOMS. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 61.29 37.50

POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 4: AERIAL PLATFORM USED AS HOIST; COMPRESSOR: 2 OR 3 IN BATTERY; ELEVATORS OR HOUSE CARS; CONVEYORS AND TUGGER HOSITS; CHIEF OF PARTY; FIREMANP; FORKLIFT; GENERATORS (2 OR 3); MAINTENANCE (UTILITY MAN); ROD BENDING MACHINE (POWER); WELDING MACHINES (GAS OR ELECTRIC, 2 OR 3 IN BATTERY, INCLUDING DIESELS); CAPTAIN: POWER BOATS: TUG MASTER: POWER BOATS. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S

BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 58.63
37.50
POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 5: COMPRESSOR, SINGLE; WELDING MACHINE, SINGLE, GAS, DIESEL, AND ELECTRIC CONVERTERS OF ANY TYPE: WELDING SYSTEM MULTPLE (RECTIFIER TRANSFORMER TYPE); GENERATOR, SINGLE. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 57.10
37.50
POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 6: OILER. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 53.34
37.50
POWER EQUIPMENT OPERATORS - STEEL ERECTION (BUILDING CONSTRUCTION) GROUP 7: HELICOPTER PILOT. (NOTES: HYDROGRAPHIC PREMIUM, $0.50. HAZMAT PREMIUM, 20%. TUNNEL PREMIUM, $0.75.) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY, PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 65.74
37.50

POWER EQUIPMENT OPERATORS - TANK ERECTION (BUILDING CONSTRUCTION) GROUP 1: OPERATING ENGINEERS ON ALL CRANES, DERRICKS, ETS WITH BOOMS INCLUDING JIB 140 FT OR MORE ABOVE GROUND. (NOTES: TUNNEL PREMIUM, $0.75. HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM $0.50) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 69.96
37.50
POWER EQUIPMENT OPERATORS - TANK ERECTION (BUILDING CONSTRUCTION) GROUP 2: OPERATING ENGINEER ON ALL EQUIPMENT, INCLUDING CRANES, DERRICKS, ETS WITH BOOMS INCLUDING JIB, LESS THAN 140 FT ABOVE THE GROUND. (NOTES: TUNNEL PREMIUM, $0.75. HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM $0.50) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 68.37
37.50
POWER EQUIPMENT OPERATORS - TANK ERECTION (BUILDING CONSTRUCTION) GROUP 3: HELICOPTER PILOT ENGINEER. (NOTES: TUNNEL PREMIUM, $0.75. HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM $0.50) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES)....$ 64.85
37.50
POWER EQUIPMENT OPERATORS - TANK ERECTION (BUILDING CONSTRUCTION) GROUP 4: AIR COMPRESSORS, WELDING MACHINES AND GENERATORS ARE COVERED AND ARE DEFINED AS COVER: GAS, DIESEL, OR ELECTRIC DRIVEN EQUIPMENT AND SOURCES OF POWER FROM A PERMANENT PLANT: IE:

STAEM, COMGRESSED AIR, HYDRAULIC OR OTHER POWER, FOR THE OPERATING OF ANY MACHINE OR AUTOMATIC TOOLS, USED IN THE ERECTION, ALTERATION, REPAIR AND DISMANTLING OF TANKS AND ANY AND ALL ""DUAL PURPOSE"" TRUCKS USED ON THE CONSTRUCTION JOB SITE, OR IN THE LOADING AND UNLOADING OF MATERIALS, AT THE CONSTRUCTION JOB SITED OR IN CONJUCTION WITH THE JOB SITE. (NOTES: TUNNEL PREMIUM, $0.75. HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM $0.50) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 61.28
37.50
POWER EQUIPMENT OPERATORS - TANK ERECTION (BUILDING CONSTRUCTION) GROUP 5: OILER (NOTES: TUNNEL PREMIUM, $0.75. HAZMAT PREMIUM, 20%. HYDROGRAPHIC PREMIUM $0.50) (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR□S DAY, WASHINGTON'S BIRTHDAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, VETERAN'S DAY, ELECTION DAY, THANKSGIVING DAY, AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS ONE DAY IN THE CALENDAR WEEK DURING WHICH THE HOLIDAY OCCURS.) (ORANGE, ULSTER AND SULLIVAN COUNTIES).....$ 54.07
37.50

IRON0417-001 07/01/2025

Rates
Fringes
IRONWORKER (ADDITIONAL FRINGE BENEFITS INLCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, MEMORIAL DAY, FOURTH OF JULY, LABOR DAY, THANKSGIVING DAY, DAY AFTER THANKSGIVING (UNPAID), CHRISTMAS DAY.).....$ 42.63
53.70

LABO0017-002 06/01/2025

Rates
Fringes

LABORER - ASBESTOS, LEAD, TOXIC AND HAZARDOUS WASTE ABATEMENT AND ANY OTHER ENVIRONMENTAL RELATED WORK (HEAVY & HIGHWAY) GROUP 1: ASBESTOS, TOXIC, BIO-REMEDIATION, PHYTO-REMEDIATION, LEAD OR HAZARDOUS MATERIAL ABATEMENT; WHEN PROTECTIVE EQUIPMENT AND CLOTHING ARE NOT REQUIRED. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEARS DAY, PRESIDENTS'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY, VETERANS DAY, THANKSGIVING DAY, CHRISTMAS DAY) (DUTCHESS COUNTY).....$ 44.80
32.45
LABORER - ASBESTOS, LEAD, TOXIC AND HAZARDOUS WASTE ABATEMENT AND ANY OTHER ENVIRONMENTAL RELATED WORK (HEAVY & HIGHWAY) GROUP 2: ASBESTOS TOXIC, BIO-REMEDIATION, PHYTO-REMEDIATION, LEAD OR HAZARDOUS MATERIAL ABATEMENT WHEN PROTECTIVE CLOTHING AND EQUIPMENT IS REQUIRED. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEARS DAY, PRESIDENTS'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY, VETERANS DAY, THANKSGIVING DAY, CHRISTMAS DAY) (DUTCHESS COUNTY).....$ 49.40
32.45
LABORER - ASBESTOS, LEAD, TOXIC, AND HAZARDOUS WASTE ABATEMENT AND ANY OTHER ENVIRONMENTAL RELATED WORK (BUILDING CONSTRUCTION) GROUP 1: ASBESTOS ABATEMENT WORK, LEAD ABATEMENT WORK, TOXIC AND HAZARDOUS WASTE RELATED WORK; WHEN PROTECTIVE EQUIPMENT AND CLOTHING ARE NOT REQUIRED. (DUTCHESS COUNTY).....$ 45.40
29.75
LABORER - ASBESTOS, LEAD, TOXIC, AND HAZARDOUS WASTE ABATEMENT AND ANY OTHER ENVIRONMENTAL RELATED WORK (BUILDING CONSTRUCTION) GROUP 2: ASBESTOS ABATEMENT WORK, TOXIC AND HAZARDOUS ABATEMENT, LEAD ABATEMENT WORK, ENVIRONMENTAL WORK. (DUTCHESS COUNTY).....$ 46.20
29.75
LABORER - TUNNEL, SHAFT, & CAISSON WORK - GROUP 1: LABORER, PIT AND DUMPMAN, CHUCK TENDER, BRAKEMAN AND POWDER; MINER AND ALL MAVHINE MEN, SAFETY MINER, ALL SHAFT WORK, CASSON WORK, DRILLING, BLOW PIPE, ALL AIR TOOLS, TUGGER SCALING, NIPPER GUNNITING SROM POT TO NOZZLE, BIT GRINDER, SINGAL MAN (TOP AND BOTTOM), SHIFT STEWARD, CONCRETE MAN,

SHIELD DRIVEN TUNNEL, MIXED FACE AND SOFT GROUND LINER PLATE TUNNEL IN FREE AIR. (FOOTNOTE: ADDITIONAL PAID BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY, CHRISTMAS DAY).....$ 48.05 29.50

LABORER (BUILDING CONSTRUCTION) GROUP 1: CUSTODIAL WORK, FLAG PERSON, PORTABLE GENERATOR TENDER, PORTABLE PUMP TENDER, PITMAN AND DUMPMAN, FIREWATCH, TEMPORARY HEAT TENDER, TEMPORARY LIGHT TENDER, TRAFFIC CONTROL, TOOL ROOM TENDER; ARTIFICIAL TURF, AIR CHIPPING HAMMER ACOUSTIC PUMP AND MIXER, CARPENTER TENDER, CONCRETE, CONCRETE CURB AND SIDEWALK FORM SETTER, CONCRETE FORM STRIPPING, CONCRETE SEALING, CONCRETE CURING, CONCRETE FINISHER, CONCRETE VIBRATOR, COMPRESSOR, CLEAN UP AFTER TRADES, DISMANTLING DEMOLITION, EXCAVATION, FIREPROOFING, FOUNDATION AND BUILDING PIPING, PUMP AND MIXER, GUNITE, GENERAL CLEAN UP, GRADE CHECKER, GRADING AND BACKFILLING, HOISTS, HOD CARRIER, LANDSCAPING, MASON TENDER, MULTI BUILDING TRADES TENDER, JACKHAMMER, PAVEMENT BREAKER, POURED GYPSUM ROOF WORK, POWER TAMPERS, POWER WALK BEHIND ROLLER, PRESSURE BLASTING, POWER MIXER, SCAFFOLDING, SNOW REMOVAL, SIGNAL PERSON, SANDBLASTING, STYROFOAM AND SIMILAR INSTALLATION, RADIO CONTROL EQUIPMENT INCLUDING BUT NOT LIMITED TO RADIO CONTROL TAMPERS AND ROLLERS, RADIO CONTROL EXCAVATOR, ALL ERECTING AND DISMANTLING OF SCAFFOLD FOR MASONRY REGARDLESS OF HEIGHT, WALKING AND RIDING POWER BUGGIES, TEMPORARY WEATHER PROTECTION, WRECKING, WATERPROOFING, STONE AND TILE TENDERS, RADIO CONTROLLED HAMMERS AND BREAKERS, UNLOADING OF TRUCKS, AIR TRACK, ASSEMBLING AND PLACING GABION BASKETS, ASPHALT, BLASTER, BOB CAT TYPE MACHINE FOR DEMO AND CLEAN UP, CHAIN LINK FENCE, CHAIN SAW, CHIPPING HAMMER, CONCRETE CONVEYOR BELT, SAW, CORE DRILL, CORRUGATED PIPE, CONSTRUCTION SPECIALIST, CLEANING MACHINE, CONCRETE FORM SETTER, CONDUIT LAYER, CUTTING TORCH, DISCHARGE PIPE, DRILL CHUCK TENDER, DUCT BANK LAYER, EXPLOSIVE HANDLER, HYDRAULIC SPLITTER, GRANITE OR STONE CURBING, HANDLER, JOY AND JIB DRILL, INGERSOLL RAND HEAVY DUTY CRAWLER MASTER TYPE HCMZ DRILL MACHINES OR EQUIVALENT, LASER LEVEL, NONMETALLIC PIPE LAYER,

METALLIC PIPE LAYER, LEROI HYDRAULIC DRILL OR SIMILAR, MEGA MIXER, POWER FORK LIFT, PRESTRESSED AND PRECAST CONCRETE, POWER BRUSH CUTTER, PUMP CRETE MACHINE, RETAINING WALLS, RIP RAP, RETENTION AND TOXIC AND HAZARDOUS WASTE LINERS, SETTING OF BLOCK, SETTING OF BLOCK, SETTING OF BRICK, SETTING OF STONE, SOUND BARRIERS, TRANSIT UNDER LABORERS JURISDICTION, TOW BEHIND CONCRETE OR GROUT PUMP, TRAFFIC AND PEDESTRIAN STRIPPING, SURFACE PLANNER, MANUFACTURED CURB, WALK BEHIND DURFACE PLANNER, WAGON DRILL, WELDING; * ASBESTOS ABATEMENT WORK, LEAD ABATEMENT WORK, TOXIC AND HAZARDOUS WASTE RELATED WORK; WHEN PROTECTIVE EQUIPMENT AND CLOTHING ARE NOT REQUIRED. (ORANGE AND ULSTER COUNTIES).....$ 35.95
27.15

LABORER (BUILDING CONSTRUCTION) GROUP 2: FORKLIFT FOR MASONRY PURPOSES (ORANGE AND ULSTER COUNTIES)...$ 37.75
27.15

LABORER (BUILDING CONSTRUCTION) GROUP 3: ASBESTOS ABATEMENT WORK, TOXIC AND HAZARDOUS ABATEMENT, LEAD ABATEMENT WORK, ENVIRONMENTAL WORK. (ORANGE AND ULSTER COUNTIES).....$ 40.50
27.15

LABORER (HEAVY & HIGHWAY CONSTRUCTION) GROUP 1: FLAGPERSON, GATEPERSON (FOOTNOTE: ADDITIONAL PAID BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY, VETERAN'S DAY, THANKSGIVING DAY, CHRISTMAS DAY)(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 40.80
32.45

LABORER (HEAVY & HIGHWAY CONSTRUCTION) GROUP 2: GENERAL LABORERS, CHUCK TENDER, HANDLING AND DISTRIBUTING DRINKING WATER, DISTRIBUTING ALL TOOLS AND SUPPLIES OF LABORERS, NIPPER, POWDER CARRIER, MAGAZINE TENDER, WAREHOUSE LABORERS, CONCRETE MAN, VIBRATOR MAN, MASON TENDER, MORTAR MAN, SPRAYING, BRUSHING AND COVERING OF CONCRETE FOR CURING AND PRESERVATIVE PURPOSES, TRAFFIC STRIPER, SCAFFOLD BUILDER, CONCRETE CRUB AND SIDEWALK FROM SETTER; PERMANENT TRAFFIC STRIPING AND REFLECTIVE DEVICES, PLACING AND MAINTENANCE OF ALL FLARES, CONES, LIGHTS, SIGNS, BARRICADES, TRAFFIC PATTERNS, AND ALL TEMPORARY REFLECTIVE TYPE MATERIALS FOR TRAFFIC CONTROL, CUSTODIAL WORK, TRAFFIC DIRECTORS,

TEMPORARY HEAT OR LIGHT TENDERS, TOOL ROOM, DEWATERING PUMP MEN, PITMAN, DUMPMEN, SNOW REMOVAL AND FIREWATCH, ASPHALT MAN, JOINT SETTER, SIGNAL PERSON, PIPELAYER, PIPELINING AND RELINING, WELLPOINTS, CONDUIT AND DUCT LAYER, WIRE PULLER RIP RAP AND DRY STONE LAYER, STEEL ROD CARRIER, CORE DRILL, ROCK SPLITTER, HILTI GUN AIR OR ELECTRIC, JACKHAMMER, BUSH HAMMER, PAVEMENT BREAKER, CHIPPING HAMMER, WAGON DRILL, AIR TRACK, JIB RIG, JOY DRILL, GUNITE AND SAND BLASTING, COAL PASSER AND OTHER MACHINE OPERATORS, POWER TOOL OPERATOR, SPRAYER AND NOZZLE MAN ON MULCHING AND SEEDING MACHINE, ALL GUARD RAIL AND FENCE, ALL SEEDING AND SOD LAYING, ALL LANDSCAPE WORK, GRADE CHECKER, ALL BRIDGE WORK, WALK BEHIND SELF-PROPELLED POWER SAW, GRINDER, GROOVER OR SIMILAR TYPE MACHINE, WALK BEHIND TAMPER AND ROLLER OF ALL TYPES, SALVAGE, STRIPPING, WRECKING AND DISMANTLING LABORER (INCLUDING BARMAN, CUTTING TORCH AND BURNER MAN), SHEETING AND SHORING COMING UNDER LABORERS JURISDICITION, BIT GRINDER, OPERATOR OF FORM PIN PULLER AND DRIVERS, SANDBLASTING, JOINT AND JET SEALER, FILLING AND WIRING BASKETS FOR GABION WALLS, PERMANENT SIGN MAN, MEDIAN BARRIER, STA-WALL OR SIMILAR TYPE PRODUCT, CHAIN SAW OPERATOR, RAILROAD TRACK LABORER, WATERPROOFER, PRE-STRESSED AND PRE-CAST CONCRETE BRICK, BLOCK AND STONE PAVERS, POWER TOOLS USED TO PERFORM WORK USUALLY DONE BY LABORERS, POWER BUGGY AND PUMPCRETE OPERATOR, FIREPROOF, PLASTER AND ACOUSTIC PUMP, ASBESTOS, TOXIC, BIO-REMEDIATION, PHYTO-REMEDIATION, LEAD OR HAZARDOUS MATERIALS ABATEMENT WHEN PROTECTIVE CLOTHING AND EQUIPMENT IS NOT REQUIRED, POWER BRUSH CUTTER, RETENTION LINERS, ARTIFICIAL TURF, RETAINING WALLS, WALK BEHIND SURFACE PLANER, WELDING RELATED TO LABORERS WORK, REMOTE CONTROLLED EQUIPMENT NORMALLY OPERATED BY LABORERS, ALL TECHNICIAN WORK INCLUDING BUT NOT LIMITED TO STITCHING, SEAMING, HEAT WELDING, FIREPROOF SPRAYER, MORTAR MIXER, CONCRETE FINISHER, FORM SETTER FOR CONCRETE CURBS AND FLATWORK. GUNITE NOZZLE MAN, STONE CUTTERS, GRANITE STONE LAYER, MANHOLE, CATCH BASIN OR INLET INSTALLING, LASE MEN. GROUND MAN ON MILLING MACHINE. (FOOTNOTE: ADDITIONAL PAID BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL

DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY,
VETERAN'S DAY, THANKSGIVING DAY, CHRISTMAS DAY)
(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 44.80
32.45
LABORER (HEAVY & HIGHWAY CONSTRUCTION) GROUP 3:
INGERSOLL RAND EAVY DUTY CRAWLER MASTER TYPE HCMZ
ANY DRILL USING 4"" OR LARGER BIT, ASBESTOS, TOXIC,
BIO-REMEDIATION, PHYTO-REMEDIATION, LEAD OR
HAZARDOUS MATERIAL ABATEMENT WHEN PROTECTIVE
CLOTHING AND EQUIPMENT IS REQUIRED, ALL WORKING
FOREMEN INCLUDING GRADE, PIPE, CONCRETE, CLEARING,
BLACKTOP, DRILL, PAVING AND BLASTER ETC., HYDRAULIC
DRILL OR SIMILAR, FORKLIFT FOR MASONRY ONLY,
BLASTER AND ASPHALT SCREEDMAN. (FOOTNOTE:
ADDITIONAL PAID BENEFITS INCLUDE THE FOLLOWING PAID
HOLIDAYS: NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL
DAY, INDEPENDENCE DAY, LABOR DAY, ELECTION DAY,
VETERAN'S DAY, THANKSGIVING DAY, CHRISTMAS DAY)
(ORANGE, ULSTER, AND SULLIVAN COUNTIES).....$ 49.40
32.45
LABORER (HEAVY & HIGHWAY CONSTRUCTION) GROUP 4:
ASBESTOS, TOXIC, LEAD OR HAZARDOUS
MATERIALABATEMENT FOREMAN. (FOOTNOTE: ADDITIONAL
PAID BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS:
NEW YEAR'S DAY, PRESIDENT'S DAY, MEMORIAL DAY,
INDEPENDENCE DAY, LABOR DAY, ELECTION DAY,
VETERAN'S DAY, THANKSGIVING DAY, CHRISTMAS DAY)
(ORANGE, ULSTER, AND SULLIVAN COUNTIES) .....$ 54.70
32.45

LABO0235-003 06/01/2025

Rates
Fringes
LABORERS (BUILDING CONSTRUCTION) GROUP 1: MASON
TENDERS, CARPENTER TENDERS, LABORER STRIPPING AND
CLEANING FORMS, LABORER GRADING AND DIGGING
DITCHES, SWEEPERS, CLEANERS. (DUTCHESS COUNTY).....$ 41.10
32.90
LABORERS (BUILDING CONSTRUCTION) GROUP 2: HOD
CARRIERS, PLASTERERS' TENDERS, SCAFFOLD BUILDERS
(PADLOCK AND SELF-SUPPORTING SCAFFOLD 14 FT. OR
UNDER ALL RUNWAYS, MORTAR MIXERS) MACHINE AND HAND,
CONCRETE MIXERS BY MACHINE UNDER 21E, VIBRATORS,
FORM SETTERS, ASPHALT RAKERS, HANDLING
REINFORCEMENT RODS, DRILLERS, JACKHAMMER, OPERATOR,

SIGNALMAN, GUNNITING, MOTORBUGS, WATER PUMP 2""" OR
UNDER BARCO MACHINE, WRECKERS, PAVING BREAKERS,
POWER SAW OPERATORS, OTHER MACHINE OPERATORS.
(DUTCHESS COUNTY).....$ 42.22
32.90
LABORERS (BUILDING CONSTRUCTION) GROUP 3: BLASTERS,
LASER BEAM OPERATOR. (DUTCHESS COUNTY).....$ 43.45
32.90

LABO0235-005 05/01/2023

Rates
Fringes
LABORERS (HEAVY & HIGHWAY) GROUP 1: FLAGPERSON,
PLACING AND MAINTENANCE OF ALL FLARES, CONES,
LIGHT, SIGNS, BARRICADES, TRAFFIC CONTROL,
CUSTODIAL WORK, TRAFFIC DIRECTORS, TEMPORARY HEAT
OR LIGHT TENDERS, TOOL ROOMS. (FOOTNOTE:
ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING
PAID HOLIDAYS: NEW YEAR'S DAY, LINCOLN'S BIRTHDAY,
GOOD FRIDAY, WASHINGTON'S BIRTHDAY, NOVEMBER
ELECTION DAY, MEMORIAL DAY, INDEPENDENCE DAY, LABOR
DAY, COLUMBUS DAY, THANKSGIVING DAY AND CHRISTMAS
DAY AND VETERAN'S DAY.) (DUTCHESS COUNTY).....$ 36.45
27.80
LABORERS (HEAVY & HIGHWAY) GROUP 2: GENERAL
LABORERS, DUMPMAN, PITMAN, CONCRETE MAN, SIGNAL
MAN, PIPELAYER, RIP RAP, DRY STONE LAYER,
JACKHAMMER, POWDERMAN, HIGHSCALERS, POWER BUGGY
OPERATOR, STEEL ROD CARRIER, VIBRATORY OPERATOR,
OTHER MACHINE OPERATOR, WRECKING, VIBRATOR
OPERATOR-COMPACTOR, GUNITE AND SAND BLASTING, WATER
PUMP 2"" OR UNDER, NIPPER, CHUCKER, ASPHALT WORKERS.
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LINCOLN'S
BIRTHDAY, GOOD FRIDAY, WASHINGTON'S BIRTHDAY,
NOVEMBER ELECTION DAY, MEMORIAL DAY, INDEPENDENCE
DAY, LABOR DAY, COLUMBUS DAY, THANKSGIVING DAY AND
CHRISTMAS DAY AND VETERAN'S DAY.) (DUTCHESS COUNTY).$ 42.80
27.80
LABORERS (HEAVY & HIGHWAY) GROUP 3: ASPHALT RAKER,
ASPHLAT SCREEMAN, DRILLERS (ALL), LASER BEAM
OPERATOR, FORM SETTER/ALIGNERS, BLASTERS.
(FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE
FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LINCOLN'S
BIRTHDAY, GOOD FRIDAY, WASHINGTON'S BIRTHDAY,

NOVEMBER ELECTION DAY, MEMORIAL DAY, INDEPENDENCE
DAY, LABOR DAY, COLUMBUS DAY, THANKSGIVING DAY AND
CHRISTMAS DAY AND VETERAN'S DAY.) (DUTCHESS COUNTY).$ 43.90
27.80

PAIN0009-004 05/01/2025

	Rates	Fringes
GLAZIER (DUTCHESS, ORANGE, SULLIVAN AND ULSTER COUNTIES)	$ 49.20	57.20

PAIN0155-003 05/01/2021

	Rates	Fringes
PAINTERS: DRYWALL FINISHERS	$ 35.94	24.66
PAINTERS: LEAD ABATEMENT WORK	$ 35.94	24.66
PAINTERS: PAINTER/PAPERHANGER	$ 35.94	24.66
PAINTERS: SPRAY RATE	$ 36.94	24.66

PAIN0806-008 10/01/2024

	Rates	Fringes
PAINTER: STRUCTURAL STEEL AND BRIDGE (DUTCHESS, ORANGE, SULLIVAN AND ULSTER COUNTIES)	$ 56.25	55.14

PLUM0021-005 05/01/2025

	Rates	Fringes
PLUMBER/PIPEFITTER (ZONE 2 DUTCHESS COUNTY AND THE REMAINDER OF ULSTER COUNTY)	$ 60.66	45.35

PLUM0373-002 05/01/2025

	Rates	Fringes

PLUMBER; STEAMFITTER (ORANGE COUNTY TOWNS OF LAKEVILLE, FOUR CORNERS, STERLING FOREST, TUXEDO PARK, SOUTHFIELDS, ARDEN, NEWBURGH JUNCTION, GREENWOOD LAKE, MONROE, HARRIMAN, WOODBURY FALLS, WOODBURY, WOODBURY STATION, CENTRAL VALLEY, AND THE PALISADES INTERSTATE PARK AND BEAR MOUNTAIN PARK)...$ 53.20 46.57
REFRIGERATION MECHANIC (ORANGE COUNTY TOWNS OF LAKEVILLE, FOUR CORNERS, STERLING FOREST, TUXEDO PARK, SOUTHFIELDS, ARDEN, NEWBURGH JUNCTION, GREENWOOD LAKE, MONROE, HARRIMAN, WOODBURY FALLS, WOODBURY, WOODBURY STATION, CENTRAL VALLEY, AND THE PALISADES INTERSTATE PARK AND BEAR MOUNTAIN PARK)...$ 41.99 37.38

PLUM0373-003 05/01/2025

	Rates	Fringes
PLUMBER; STEAMFITTER (SULLIVAN COUNTY (TOWNSHIPS OF LUMBERLAND, FORESTBURGH, HIGHLAND, TUSTEN, MAMAKATING, FALLSBURGH, THOMPSON, BETHEL, COCHECTON, DELAWARE, FREEMONT, CALLICOON, LIBERTY, MONTICELLO, NEVERSINK AND ROCKLAND); ORANGE COUNTY (REMAINING TOWNSHIPS) AND ULSTER COUNTY (TOWNS OF SHAWANGURK, WAWARSING, PLATTEKILL, MARLBORO AND ELLENVILLE UP TO NAPANOCH PRISON))	$ 53.20	46.57

ROOF0008-002 05/01/2025

	Rates	Fringes
ROOFER	$ 50.25	32.62

SFNY0669-002 01/01/2026

	Rates	Fringes
SPRINKLER FITTER	$ 57.20	32.66

SHEE0038-001 07/01/2025

	Rates	Fringes
SHEET METAL WORKER	$ 55.29	47.43

TEAM0445-001 05/01/2025

	Rates	Fringes
TRUCK DRIVERS: GROUP 1- DRIVERS ON LETOURNEAU TRACTORS, DOUBLE BARREL EUCLIDS, ATHEY WAGONS AND SIMILAR EQUIPMENT (EXCEPT WHEN HOOKED TO SCRAPERS), I-BEAM AND POLE TRAILERS, DRIVERS OF ROAD OIL DISTRIBUTORS, TIRE TRUCKS AND TRACTORS AND TRAILERS WITH 5 AXLES AND OVER, ARTICULATED BACK DUMPS AND ARTICULATED WATER TRUCKS. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.)	$ 37.91	46.37
TRUCK DRIVERS: GROUP 1A- DRIVERS ON DETACHABLE GOOSENECK LOW BED TRAILERS RATED OVER 35 TONS. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.)	$ 39.03	46.37
TRUCK DRIVERS: GROUP 2- DRIVERS ON ALL EQUIPMENT 25 YARDS AND OVER, UP TO AND INCLUDING 30 YARD BODIES AND CABLE DUMP TRAILERS AND POWDER AND DYNAMITE TRUCKS. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.)	$ 37.35	46.37
TRUCK DRIVERS: GROUP 3- DRIVERS ON ALL EQUIPMENT UP		

TO AND INCLUDING 24 YARD BODIES, MIXER TRUCKS, DUMP CRETE TRUCKS AND SIMILAR TYPES OF EQUIPMENT, FUEL TRUCKS, BATCH TRUCKS AND ALL OTHER TRACTOR TRAILERS. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.)....$ 37.13
46.37
TRUCK DRIVERS: GROUP 4- DRIVERS ON TRI AXLES, TEN-WHEELERS, GREASE TRUCKS AND TILLERMEN. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.).....$ 37.02
46.37
TRUCK DRIVERS: GROUP 5- DRIVERS ON PICK-UP TRUCKS USED FOR MATERIALS & PARTS, DRIVERS ON ESCORT MAN OVER-THE-ROAD AND DRIVERS ON STRAIGHT TRUCKS. (FOOTNOTE: ADDITIONAL FRINGE BENEFITS INCLUDE THE FOLLOWING PAID HOLIDAYS: NEW YEAR'S DAY, LABOR DAY, PRESIDENT'S DAY, PRESIDENTIAL ELECTION DAY, VETERANS DAY, DECORATION DAY, INDEPENDENCE DAY, THANKSGIVING DAY AND CHRISTMAS DAY PROVIDED THE EMPLOYEE WORKS TWO DAYS IN ANY CALENDAR WEEK DURING WHICH THE HOLIDAYS OCCURS.).....$ 36.90
46.37

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.
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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year.

Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts
regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this
wage determination, if it is higher) for all hours spent performing on
the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually.
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than □SU□, □UAVG□, □SA□, or □SC□ denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The □SU□ identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union

prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

□SU□ wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The □SA□ identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the □SA□ identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION

FEDERAL ACQUISITION REGULATION AND TRANSPORTATION ACQUISITION REGULATION CLAUSES
GENERAL CONTRACT REQUIREMENTS
(Updated through FAC 2026-01)

52.203-17 - Contractor Employee Whistleblower Rights (Nov 2023)

(a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 41 U.S.C. 4712 and Federal Acquisition Regulation (FAR) 3.900 through 3.905.
(b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under 41 U.S.C. 4712, as described in FAR 3.900 through 3.905.
(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

(End of clause)

52.203-18 - Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

(a) *Definition*.
"Internal confidentiality agreement or statement," "subcontract", and "subcontractor", as used in this provision, are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.
(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.
(d) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(End of provision)

52.203-19 - Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

(a) *Definitions*. As used in this clause–
"Internal confidentiality agreement or statement" means a confidentiality agreement or any other written statement that the contractor requires any of its employees or subcontractors to sign regarding nondisclosure of contractor information, except that it does not include confidentiality agreements arising out of civil litigation or confidentiality agreements that contractor employees or subcontractors sign at the behest of a Federal agency.
"Subcontract" means any contract as defined in subpart 2.1 entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract. It includes but is not limited to purchase orders, and changes and modifications to purchase orders.
"Subcontractor" means any supplier, distributor, vendor, or firm (including a consultant) that furnishes supplies or services to or for a prime contractor or another subcontractor.
(b) The Contractor shall not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).
(c) The Contractor shall notify current employees and subcontractors that prohibitions and restrictions of any preexisting internal confidentiality agreements or statements covered by this clause, to the extent that such prohibitions and restrictions are inconsistent with the prohibitions of this clause, are no longer in effect.
(d) The prohibition in paragraph (b) of this clause does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.
(e) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015, (Pub. L. 113-235), and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions) use of funds appropriated (or otherwise made available) is prohibited, if the Government determines that the Contractor is not in compliance with the provisions of this clause.
(f) The Contractor shall include the substance of this clause, including this paragraph (f), in subcontracts under such contracts.

(End of clause)

52.204-13 System for Award Management—Maintenance (DEVIATION NOV 2025)

(a) *Definitions*. As used in this clause—

Commercial and Government Entity code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location (referred to as "CAGE code"); or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency to entities located outside the United States and its outlying areas that the DLA CAGE Branch records and maintains in the CAGE master file (referred to as "NCAGE code").

Unique Entity Identifier (UEI) means an identifier used to identify a specific commercial, nonprofit, or Government entity.

(b) *Active registration*.

(1) The Contractor shall maintain an active Federal Government contracts registration in the System for Award Management (SAM) at https://www.sam.gov during contract performance and through final payment under this contract. To maintain an active registration in SAM, the Contractor shall review at least annually its registration in SAM and validate that the information is current, accurate, and complete.

(2) The Contractor is responsible for the currency, accuracy, and completeness of the information provided within SAM, and for any liability resulting from the Government's reliance on inaccurate or incomplete information. Updating SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document.

(c) *Novation and change-of-name agreements*.

(1) If the Contractor has legally changed its business name or "doing business as" name (whichever is shown on the contract), or has transferred the assets used to perform the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in part 42 of the Federal Acquisition Regulation (FAR), the Contractor shall provide the responsible Contracting Officer a minimum of one business day's written notification of its intention to —

(i) Change the legal business name in SAM;

(ii) Comply with the requirements of FAR part 42; and

(iii) Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor shall provide with its written notification sufficient documentation to support the legally changed name.

(2) If the Contractor fails to comply with the requirements of paragraph (c)(1) of this clause, or fails to perform the agreement at paragraph (c)(1)(iii) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the "Suspension of Payment" paragraph of the electronic funds transfer (EFT) clause of this contract.

(d) *Assignees*.

(1) The Contractor shall not change the legal business name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims (see FAR part 32). Assignees shall be separately registered in SAM.

(2) Information provided to the Contractor's SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be incorrect information within the meaning of the "Suspension of Payment" paragraph of the EFT clause of this contract.

(e) Unique entity identifier (UEI). The Contractor shall ensure that its UEI is maintained throughout the life of the contract.

(f) Commercial and Government Entity (CAGE) code. The Contractor shall ensure that the CAGE code is maintained throughout the life of the contract. To update a CAGE code, the Contractor shall initiate the change by updating its SAM registration.

(g) Communicating changes. The Contractor shall communicate any change to its UEI or CAGE code to the Contracting Officer within 30 days after the change, so a modification can be issued to update the UEI or CAGE code on this contract. A change in the UEI does not necessarily require a novation.

(End of clause)

52.209-9 – Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018)

(a) The Contractor shall update the information in the Federal Awardee Performance and Integrity Information System (FAPIIS) on a semi-annual basis, throughout the life of the contract, by posting the required information in the System for Award Management via https://www.sam.gov/.

(b) As required by section 3010 of the Supplemental Appropriations Act, 2010 (Pub. L. 111-212), all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available. FAPIIS consist of two segments—

(1) The non-public segment, into which Government officials and the Contractor post information, which can only be viewed by—

(i) Government personnel and authorized users performing business on behalf of the Government; or

(ii) The Contractor, when viewing data on itself; and

(2) The publicly-available segment, to which all data in the non-public segment of FAPIIS is automatically transferred after a waiting period of 14 calendar days, except for--

(i) Past performance reviews required by subpart 42.15;

(ii) Information that was entered prior to April 15, 2011; or

(iii) Information that is withdrawn during the 14-calendar-day waiting period by the Government official who posted it in accordance with paragraph (c)(1) of this clause.

(c) The Contractor will receive notification when the Government posts new information to the Contractor's record.

(1) If the Contractor asserts in writing within 7 calendar days, to the Government official who posted the information, that some of the information posted to the non-public segment of FAPIIS is covered by a disclosure exemption under the Freedom of Information Act, the

Government official who posted the information must within 7 calendar days remove the posting from FAPIIS and resolve the issue in accordance with agency Freedom of Information procedures, prior to reposting the releasable information. The contractor must cite 52.209-9 and request removal within 7 calendar days of the posting to FAPIIS.
(2) The Contractor will also have an opportunity to post comments regarding information that has been posted by the Government. The comments will be retained as long as the associated information is retained, i.e., for a total period of 6 years. Contractor comments will remain a part of the record unless the Contractor revises them.
(3) As required by section 3010 of Pub. L. 111-212, all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available.
(d) Public requests for system information posted prior to April 15, 2011, will be handled under Freedom of Information Act procedures, including, where appropriate, procedures promulgated under E.O. 12600.

(End of clause)

52.222-90 – Addressing DEI Discrimination by Federal Contractors (APR 2026) (DEVIATION APR 2026)
As prescribed in FAR 22.2203:
(a) *Definitions*. As used in this clause—
Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.
Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.
(b) In connection with the performance of work under this contract, the Contractor agrees as follows:
(1) The Contractor will not engage in any racially discriminatory DEI activities.
(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause.
(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts.
(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer.
(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, for which the place of delivery or performance is in the United States.

(End of clause)

52.223-3 - Hazardous Material Identification and Material Safety Data (Feb 2021) Alt I (Jul 1995)
(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).
(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (**If none, insert "None"**)	Identification No.
None	

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.
(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered non-responsible and ineligible for award.
(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.
(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.
(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-
(i) Apprise personnel of the hazards to which they

may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(i) Except as provided in paragraph (i)(2), the Contractor shall prepare and submit a sufficient number of Material Safety Data Sheets (MSDS's), meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous materials identified in paragraph (b) of this clause.

(1) For items shipped to consignees, the Contractor shall include a copy of the MSDS's with the packing list or other suitable shipping document, which accompanies each shipment. Alternatively, the Contractor is permitted to transmit MSDS's to consignees in advance of receipt of shipments by consignees, if authorized in writing by the Contracting Officer.

(2) For items shipped to consignees identified by mailing address as agency depots, distribution centers or customer supply centers, the Contractor shall provide one copy of the MSDS's in or on each shipping container. If affixed to the outside of each container, the MSDS's must be placed in a weather resistant envelope.

(End of Clause)

52.223-4 - Recovered Material Certification (May 2008)

As required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(c)(3)(A)(i)), the offeror certifies, by signing this offer, that the percentage of recovered materials content for EPA-designated items to be delivered or used in the performance of the contract will be at least the amount required by the applicable contract specifications or other contractual requirements.

(End of Clause)

52.223-9 - Estimate of Percentage of Recovered Material Content for EPA-Designated Products (May 2008)

(a) Definitions. As used in this clause—

"Post consumer material" means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Post consumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall—

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post consumer material content; and

(2) Submit this estimate to:

Federal Highway Administration
Eastern Federal Lands Highway Division
ATTN: Contracting Officer
Quantum Park
22001 Loudoun County Parkway
Suite E2-3-300
Ashburn, VA 20147

(End of Clause)

52.228-15 - Performance and Payment Bonds – Construction (Jun 2020)

(a) *Definitions.* As used in this clause --

"Original contract price" means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) *Amount of required bonds*. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) *Performance Bonds (Standard Form 25)*. The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) *Payment Bonds (Standard Form 25-A*). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) *Additional bond protection.*

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) *Furnishing executed bonds.* The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) *Surety or other security for bonds.* The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the *Federal Register* or may be obtained from the:

U.S. Department of Treasury
Financial Management Service

Surety Bond Branch
3700 East West Highway, Room 6F01
Hyattsville, MD 20782

Or via the internet at http://www.fms.treas.gov/c570/ .

(e) *Notice of subcontractor waiver of protection (40 U.S.C. 3133(c))*. Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of Clause)

52.240-91 Security Prohibitions and Exclusions (Sep 2025)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network).Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation(or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD)and national security systems other than sensitive compartmented information systems. This type offices order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2)of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—
(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—
(i) Of that equipment; or
(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.
Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—
(1) The Office of the Director of National Intelligence;
(2) The Central Intelligence Agency;
(3) The National Security Agency;
(4) The Defense Intelligence Agency;
(5) The National Geospatial-Intelligence Agency;
(6) The National Reconnaissance Office;
(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
(9) The Bureau of Intelligence and Research of the Department of State;
(10) The Office of Intelligence and Analysis of the Department of the Treasury;
(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.
Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g. Connecting a customer of telephone provider A to a customer of telephone company B) or sharing data another information resources.
Kaspersky Lab-covered article means any hardware, software, or service that—
(1) Is developed or provided by a Kaspersky Lab-covered entity;
(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.
Kaspersky Lab-covered entity means—
(1) Kaspersky Lab;
(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
(4) Any entity of which Kaspersky Lab has a majority ownership.
National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—
(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.
Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.
Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.
Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.
Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.
Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.
Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.
Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).
Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft)

that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).
(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:
(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));
(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));
(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—
(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.
(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.
(1) Prohibition. The Contractor is prohibited from—
(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft(i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A,Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);
(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and
(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).
(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.
(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.
(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.
(1) *Certain telecommunications and video surveillance equipment, systems, or services*.
(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system(paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).
(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—
(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or
(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.
(2) *Office of Foreign Assets Control Restrictions*.
(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.
(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.
(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists.
(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information.
(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at https://www.trade.gov/consolidated-screening-list, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.
(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.
(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A)of Iran Sanctions Act (50 U.S.C. 1701 note).
(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).
(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).
(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $10,000) with Iran's RevolutionaryGuard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).
(e) *Governmentwide exclusion and removal orders*.
(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:
(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
(ii) For all other solicitations and contracts, DHS FASCSA orders apply.
(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management(SAM) at https://www.sam.gov to locate applicable FASCSA orders.
(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.
(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).
(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.
(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.
(h) *General report*.
(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within72 hours:
(i) Contract number and order number, if applicable;
(ii) The specific prohibition the product or service is not complying with;
(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM)number, manufacturer part number, or wholesaler number; and item description, as applicable);
(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor(provide manufacturer codes and distributor codes used for the product));
(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);
(vii) Whether alternative products or services are available that would comply with the prohibition;
(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
(A) Brand;
(B) Model number, OEM number, manufacturer part number, or wholesaler number; and
(C) Item description, as applicable.
(ix) Any readily available information about mitigation actions implemented or recommended.
(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:
(i) If a Department of Defense contracting office, the Contractor shall report to the website athttps://dibnet.dod.mil.
(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.
(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.
(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.
(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask fora waiver

of the requirements of a new FASCSA order being applied through modification.
(i) *New FASCSA orders report*.
(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.
(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government roused during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.
(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:
(i) Contract number and order number, if applicable;
(ii) Name of the covered article or source subject to a FASCSA order;
(iii) The specific FASCSA order the product or service does not comply with;
(iv) The elements of (h)(1)(iii) through (ix) of this clause.
(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.240-93 - Basic Safeguarding of Covered Contractor Information Systems (Sep 2025)

(a) Definitions. As used in this clause—
Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.
Federal contract information—
(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but
(2) Does not include information provided by the Government to the public (such as on public websites)or simple transactional information (such as information necessary to process payments).
Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual(Committee on National Security Systems Instruction (CNSSI) 4009).
Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).
Safeguarding means measures or controls that are prescribed to protect information systems.
(b) *Safeguarding requirements*.
(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:
(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).
(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
(iii) Verify and control/limit connections to and use of external information systems.
(iv) Control information posted or processed on publicly accessible information systems.
(v) Identify information system users, processes acting on behalf of users, or devices.
(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
(xii) Identify, report, and correct information and information system flaws in a timely manner.
(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
(xiv) Update malicious code protection mechanisms when new releases are available.
(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.
(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled

unclassified information(CUI) as established by Executive Order 13556.
(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

Local Clause:

U.S. Department of Transportation
Federal Highway Administration
(TAR Class Deviation 2025-02) Amendment 01

1252.232-70 Electronic Submission of Payment Requests.

Electronic Submission of Payment Requests (NOV 2022)

(a) Definitions. As used in this clause—
(1) Contract financing payment has the meaning given in FAR 32.001.
(2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), "Content of Invoices," this clause, and the applicable Payment clause included in this contract.
(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.
(4) Invoice payment has the meaning given in FAR 32.001.
(b) Electronic payment requests. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.
(c) Processing system. The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called iSupplier. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. Vendors submitting invoices are required to submit invoices via iSupplier (DELPHI) and authenticated via www.login.gov.
(d) Invoice requirements. To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in iSupplier (DELPHI) shall contain the following:
(1) Invoice number and invoice date.
(2) Period of performance covered by invoice.
(3) Contract number and title.
(4) Task/Delivery Order number and title (if applicable).
(5) Amount billed (by CLIN), current and cumulative.
(6) Total ($) of billing.
(7) Cumulative total billed for all contract work to date.
(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.
(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.
(10) The following statement "The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government's payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in Students for Fair Admissions v. Harvard, 600 U.S. 181 (2023)."

(e) Payment system registration. All persons accessing the iSupplier (DELPHI) will be required to have their own unique user ID and password and be credentialed through login.gov.
(1) Electronic authentication. See www.login.gov for instructions.
(2) To create a www.login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then www.login.gov will reply with an email confirming the email address.
(3) iSupplier (DELPHI) registration instructions: New users should navigate to: http://einvoice.esc.gov to establish an account. Users are required to log in to iSupplier (DELPHI) every 45 days to keep it active.
(4) Training on DELPHI. To facilitate use of DELPHI, comprehensive user information is available at http://einvoice.esc.gov.
(5) Account Management. Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.
(f) Waivers. For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for

procedures.
(g) Exceptions and alternate payment procedures. If, based on one of the circumstances set forth in 1232.7002 (a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

(End of Section G)

FEDERAL ACQUISITION REGULATION AND TRANSPORTATION ACQUISITION REGULATION CLAUSES
CONSTRUCTION CONTRACT REQUIREMENTS
(Updated through FAC 2026-01)

52.211-12 LIQUIDATED DAMAGES—CONSTRUCTION (SEPT 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **(SEE SUBSECTION 108.04 OF THE FP AND/OR SPECIAL CONTRACT REQUIREMENTS FOR AMOUNT)** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of Clause)

52.217-7 OPTION FOR INCREASED QUANTITY-SEPARATELY PRICED LINE ITEM (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within ***1 day.*** Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of Clause)

Local Clause:

U.S. Department of Transportation
Federal Highway Administration
Office of Acquisition Management
Acquisition Procedural Memorandum (APM)

Title:	**Past Performance Evaluation of Contractors**
Number:	**002-E**
Effective Date:	**June 24, 2024**
Cross References:	**Federal Acquisition Regulation (FAR): 42.1502, 42.1503, and 15.304** **Transportation Acquisition Manual 1242.1500** **DOT DASH 2023-01**

Purpose: This Acquisition Procedural Memorandum is revised to clarify that a Contractor Performance Assessment Report (CPAR) shall be completed for each order meeting reporting thresholds placed against Basic Ordering Agreements and Blanket Purchase Agreements and to incorporate the updated requirements of Transportation Acquisition Manual (TAM) Note No. 2024-01.

Background: The Federal Acquisition Regulation (FAR) requires that contractor performance information be collected (FAR Part 42) and used in source selection evaluations (FAR Part 15). FAR Subpart 42.1502 requires all agencies prepare an evaluation of contractor performance for each contract in excess of the Simplified Acquisition Threshold (SAT), with the exception of construction and architect-engineering contracts which have thresholds detailed below. Interim evaluations shall also be prepared to provide current information for source selection purposes, for contracts or orders with a period of performance over one year, including options.

Effective October 1, 2010, all Department of Transportation Operating Administrations (OAs) were required to use CPARS to complete interim and final past performance evaluations on contractors. General information on the use of this Internet-based system can be found at the CPARS site located at *http://www.cpars.gov/*.

Applicability:

A. General Requirements/Procedures

This APM applies to all contracts (supplies and/or services >$350,000, construction contracts >$900,000, architect-engineering contracts >$45,000). This includes orders placed against a Federal Supply Schedule contract and orders against contracts awarded by another agency. For Basic Ordering Agreements, a Contractor Performance Assessment Report (CPAR) should only be completed for each order meeting the reporting threshold. When an indefinite-delivery contract or a Blanket Purchase Agreement (BPA) will be used by one Program Office, one CPAR can be completed; however, more than one CPAR can be written if the Contracting Officer determines it is necessary. When multiple Program Offices will use the indefinite-delivery contract or BPA, separate CPARs are required for each program office. Under no circumstances shall one CPAR be written for multiple vendors.

Combining orders into one CPAR is not feasible when the individual orders are significantly different. When orders are combined, the narrative describing the contractor's performance on each order, both positive and negative, must be included so that the breadth and quality of information is available for source selection official use.

Both acquisition and program office personnel are required to participate in these electronic assessments.

B. Exceptions

1. This procedure does not apply to the following:

    1. Contracts awarded under FAR Part 8.6, Acquisition from Federal Prison Industries;

    2. Assistance Agreements (grants and cooperative agreements);

    3. Test Program for Certain Commercial Items or commercial item awards if simplified

acquisition procedures are used. In cases where simplified acquisition procedures are not used, this APM would be applicable to the award of all commercial items/services in excess of the SAT;

4. Inter/intra-agency Agreements;

5. Expired contracts subject to the exception at Section I of this memorandum; and

6. Contracts awarded under Subpart 8.7 (Acquisition from Nonprofit Agencies Employing People Who Are Blind or Severely Disabled).

C. General Guidelines

The Office of Acquisition Policy and Oversight (HCFA-10) or Federal Lands Highway Division Focal Points in their respective locations will register contracts in CPARS within 30 calendar days from date of award. All evaluations are due within 120 calendar days after the end of the assessment period.

CPARS collects contractor performance information and passes it to the Past Performance Information Retrieval System (PPIRS). PPIRS is the Government wide performance information repository with performance information from all Federal Government agencies. CPARS hosts a suite of web-enabled applications that are used to collect the contractor performance information required by Federal Regulations. CPARS Automated Information System (AIS) collection tool and other CPARS information can be accessed at the CPARS site.

All CPARS information is treated as "For Official Use Only/Source Selection Information" in accordance with FAR 2.101 and FAR 3.104. A CPAR contains sensitive data concerning a contractor and their performance. Disclosure of such information could cause harm to the commercial interest of the Government and to the competitive position of the contractor being evaluated. Distribution of CPARs among agencies will be made solely through the use of PPIRS.

D. Access

Only Government employees can be CPARS Focal Points. The Focal Point registers contracts and sets up user access that restricts access on a contract-by-contract basis, based on an individual's assigned responsibility in the process. Access to CPARS and other performance information will be restricted to those individuals with an official need to know.

Focal Points can request a User ID by completing the Focal Point Access Request Form. All other roles (Assessing Official, Assessing Official Rep, etc.) will receive a User ID once the person is assigned a role by the Focal Point for a contract in CPARS.

E. Roles

1. **Focal Point:** The Focal Point coordinates CPARS access, assigning access authorization for Government and Contractor personnel, and registers contracts that will require a contractor performance assessment. The Focal Point assists the Assessing Official in implementing the automated CPARS process by providing training and helping with administrative matters to ensure that assessments are completed in a timely manner and are of high quality.

2. **Assessing Official Representative (AOR):** The Assessing Official Representative has the authority to initiate and update assessments, but does not have the authority to send the assessment to the Contractor Representative or to finalize an assessment.

3. **Assessing Official (AO):** The Assessing Official is responsible for evaluating contractor performance and for validating the proposed ratings and remarks entered by the Assessing Official Representative(s). Assessing Officials have "signature" authority and are allowed to forward assessments to the Contractor Representative for review and comment. After receiving and reviewing contractor comments, the Assessing Official has the authority to close, modify, and/or forward the assessment to the Reviewing Official.

4. **Contractor Representative:** The Contractor Representative is responsible for reviewing and commenting on proposed ratings and remarks for all assessments forwarded by the Government Assessing Official.

5. **Reviewing Official:** The Reviewing Official is responsible for ensuring that the assessment is a fair and accurate assessment of the Contractor's performance for the specific contract/order and performance period. The Reviewing Official must acknowledge consideration of any significant discrepancies between the Assessing Official's assessment and the Contractor's remarks.

F. Responsibilities

1. **Contract Specialists**. In HCFA Contract Specialists are responsible for completing the CPARS Registration Request Form and forwarding to HCFA-10 for processing within ten calendar days of contract award. Contract Specialists will be assigned as either Assessing Official Representatives to assist the Contracting Officer and COR with the evaluation, or as the Assessing Official based on the Contracting Officer's determination for each contract.

   In FLH – The contract specialist will register the contract in CPARS or will provide information to a

focal point who will then register the contract in CPARS.

2. **The Office of Acquisition Policy and Grants Oversight (HCFA-10)**: HCFA-10 is responsible for the implementation of this procedure, CPARS training, evaluating compliance metrics, and registering contracts and assigning roles in CPARS. HCFA-10 will provide monthly CPARS Status Reports to Division Chiefs and Team Leaders. Federal Lands Highway Division will continue to have Focal Points in their respective locations. The **Focal Points** will register all contracts and assign roles in CPARS within 30 calendar days following contract/order award.

3. **COR**. In HCFA, upon receiving notice from the Contract Specialist and/or a system-generated email, the COR shall complete the required evaluation form (outside of CPARS) allowing for the requisite Contract Specialist to enter the required performance details in CPARS. The COR will be given no more than 30 calendar days to complete the form and return the form to the Contract Specialist.

   In WFLHD, upon receiving notice from the CO or Acquisition Assistant, the COR shall complete the required evaluation (outside of CPARS) allowing the CO or Acquisition Assistant to enter the required performance details in CPARS based on information received from the COR on a paper copy of the evaluation.

   In EFLHD, for construction contracts, the CORs are the Accessing Official Representative and will receive an automated email message alerting them they must complete an evaluation. The COR must complete their evaluation in CPARS within 30 calendar days of receipt of email notification.

   In CFLHD, the CORs/Project Managers are the Accessing Official Representative and will receive an automated email message alerting them they must complete an evaluation. The COR must complete their evaluation in CPARS within 30 calendar days of receipt of email notification.

4. **Contracting Officers**. In HCFA and WFLHD, Contracting Officers (or designated Contract Specialists) are responsible for reviewing evaluation information as provided by the CORs to be submitted into CPARS, forwarding evaluations to the contractor, and reviewing the evaluation for accuracy before it is finalized in CPARS. The requirement to complete past performance evaluations shall be identified in the COR delegation letter.

   The Contracting Officer or his designee is designated as the **Assessing Official** in CPARS. The Assessing Official (Contracting Officer) and Assessing Official Representative (Contract Specialist) will receive a system generated email to initiate evaluations for contracts 90 days prior to the exercise of options (12-month period) or, for contracts without options, 90 days prior to the end of the period of performance. Coordination will be required outside of CPARS for reminders to initiate an evaluation in CPARS for option periods that are less than 12 months. Once the Assessing Official Representative (Contract Specialist) has completed the evaluation, the Assessing Official will review the evaluation and forward the evaluation to the contractor representative. Only the Assessing Official has the authority to forward assessments to the contractor representative for review and comment. Once the contractor evaluation phase is completed, and any comments resolved, the evaluation should be saved and finalized by the Assessing Official. A hardcopy shall be placed in the contract file.

   In EFLHD, for A/E contracts, the Assessing Official is the A/E Coordinator. The CO serves as the Reviewing Official.

   In CFLHD, the Assessing Official for construction and construction inspection contracts is the Construction Branch Chief. The Assessing Official for A/E contract/task orders is the Project Management Branch Chief.

5. **Contractor Representative**. The Contractor Representative is responsible for reviewing and commenting on proposed ratings and remarks for all assessments forwarded by the Assessing Official. Contractors are not required to complete the evaluation in CPARS. Their participation is completely voluntary. If the contractor does not respond within 60 calendar days, the Assessing Official will presume that the contractor has no comment and forward the evaluation to the Reviewing Official to sign and finalize the evaluation in CPARS.

6. **Reviewing Official**. The Reviewing Official is the final authority on disagreements between the contractor and Government for past performance evaluations. The Reviewing Official must review and sign the assessment when the contractor indicates non-concurrence with the CPAR or when the contractor is non-responsive.

   In HCFA and WFLHD, the Reviewing Official is one level above the CO.

   In EFLHD, the Reviewing Official is the CO.

   In CFLHD, the Reviewing Official is the Acquisitions Team Leader.

7. **Directors**: Office Directors are responsible for the implementation of this procedure by ensuring that Contracting Officers and Contract Specialists receive CPARS training, ensuring that contracts are provided for registration, and ensuring that all CPARs are finalized. CPARS training is available online and periodically in classroom settings.

G. Handling of Past Performance Information and File Documentation

A copy of the interim and final past performance evaluations shall be kept in the contract file. The evaluation will become available in PPIRS 15 days following the AO's evaluation signature date. The evaluation will be available in PPIRS with or without contractor comments and whether or not it has been closed by the AO. If no contractor comments have been provided at day 15, the evaluation will be marked as "Pending" in PPIRS. Contractor comments may be provided up to 60 days following the AO evaluation signature date, and will be updated to PPIRS on a daily basis. Once the evaluation has been closed by the AO, the "Pending" marking will be removed in PPIRS.

H. Terminations

A CPAR shall be completed on any contract terminated by the Government, regardless of the contract value, document the reason for the termination, prior to recording the termination in FAPIIS.

I. Closeouts

A CPAR shall be completed on each contract (supplies and/or services >$350,000, or construction contracts >$900,000, or architect-engineering contracts >$45,000) prior to closeout unless the individual assessing the contractor's performance:

1) is not available,
2) does not have sufficient knowledge of the contractor's performance for the period in question,
3) does not have documentation to support narratives and ratings for the period in question, or
4) has not periodically communicated with the contractor regarding performance for the period in question.

When a CPAR is not completed due to one of the listed reasons, the contract file shall be documented to that effect.

J. Contract Clause

The FHWA-specific contract clause included in (Attachment A) to this APM shall be included in all solicitations and contracts for supplies and/or services >$350,000, or construction contracts >$900,000, or architect-engineering contracts >$45,000.

POST-AWARD EVALUATION OF CONTRACTOR PERFORMANCE

Supplies and/or services >$350,000, or construction contracts >$900,000, or architect-engineering contracts >$45,000.

Contractor Performance Evaluations

a. Interim and final evaluations of contractor performance will be prepared on this contract in accordance with FAR 42.1502 and TAM 1242.1502. The final performance evaluations will be prepared at the time of completion of work.
b. The Contractor can elect to review the evaluation and submit additional information or provide a rebuttal statement. The contractor will be permitted 60 calendar days to respond from the date of receipt of the evaluation. Contractor response is voluntary. If the contractor does not respond within 60 days, the Government will presume that the Contractor has no comment. Any disagreement between the parties regarding an evaluation will be referred to an individual at a level above the Contracting Officer, whose decision is final.
c. Copies of the evaluations, Contractor responses, and review comments, if any, will be retained as part of the contract file, and may be used to support future award decisions.

The Federal Highway Administration utilizes the Contractor Performance Assessment Reporting System (CPARS) to record and maintain past performance information. CPARS hosts a suite of web-enabled applications that are used to document contractor performance information that is required by Federal Regulations. The CPARS module assesses performance on contracts for Systems, Services, Information Technology, and Operations Support; Architect-Engineer contracts; and Construction contracts. Reference material can be accessed in CPARS.

The registration process requires the Contractor to identify an individual that will serve as a primary contact. This individual will be authorized access to the evaluation for review and comment. In addition, the Contractor is encouraged to identify a secondary contact in the event the primary contact is unavailable to process the evaluation within the required 60-day time period. After the FHWA Focal Point registers the contract in CPARS, the contractor representative will receive a system generated email notifying him/her that the contract is registered. A system generated email will also provide the Contractor with a User ID if the person does not already have a CPARS User ID.

After a performance evaluation has been prepared and is ready for comment, the Contractor representative will receive a system generated email notification that the performance evaluation is electronically available for review and comment. The Contractor representative will receive an automated email whenever an assessment is completed and can subsequently retrieve the completed assessment from CPARS.

Contractors may access evaluations in CPARS for review and comment.

(End of Clause)

52.248-3 - Value Engineering – Construction (Oct 2025)

(a) General. The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) below.

(b) Definitions. "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

"Collateral savings," as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

"Contractor's development and implementation costs," as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

"Government costs," as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

"Instant contract savings," as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) below).

"Value engineering change proposal (VECP)" means a proposal that --

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; provided, that it does not involve a change --

(i) In deliverable end item quantities only; or

(ii) To the contract type only.

(c) VECP preparation. As a minimum, the Contractor shall include in each VECP the information described in subparagraphs (c)(1) through (7) below. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) A separate, detailed cost estimate for

(i) the affected portions of the existing contract requirement and

(ii) the VECP.

The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) below.

(4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(5) A prediction of any effects the proposed change would have on collateral costs to the agency.

(6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) Submission. The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of

the Contracting Officer.
(f) Sharing --
(1) Rates. The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by --
(i) 45 percent for fixed-price contracts; or
(ii) 75 percent for cost-reimbursement contracts.
(2) Payment. Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to --
(i) Accept the VECP;
(ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and
(iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.
(g) Collateral savings. If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or $100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.
(h) Subcontracts. The Contractor shall include an appropriate value engineering clause in any subcontract of $90,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) above, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; provided, that these payments shall not reduce the Government's share of the savings resulting from the VECP.
(i) Data. The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:
These data, furnished under the Value Engineering -- Construction clause of contract 693C73-27-C-XXXXXX, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.
If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in Part 27 of the Federal Acquisition Regulation.)

(End of Clause)

Alternate I (Apr 1984). When the head of the contracting activity determines that the cost of calculating and tracking collateral savings will exceed the benefits to be derived in a construction contract, delete paragraph (g) from the basic clause and redesignate the remaining paragraphs accordingly.

EFLHD CONSTRUCTION CONTRACT ADMINISTRATION

FAR 36.101-4 requires a description of the Federal Highway Administration's (FHWA) procedures that apply to definitization of equitable adjustments for change orders under construction contracts. It also requires that FWHA furnish data on the agency's past performance, for the prior 3 fiscal years, regarding the time required to definitize equitable adjustments for change orders under construction contracts.

Change orders as defined in FAR 2.101 are changes to the contract work pursuant to FAR 52.243-4, Changes.

There are no agency-specific additional policies and procedures that exist at this time.

The table below contains data regarding the definitization of equitable adjustments for change orders under construction contracts by fiscal year (FY).

Time to definitize after receipt of an adequate change order definitization proposal under construction contracts	**Number of change order proposals definitized under construction contracts**		
	FY 2020	**FY 2021**	**FY 2022**
30 days or less	0	0	
31 to 60 days	0	0	0
61 to 90 days	0	0	0
91 to 180 days	0	1	0
181 to 365 days	1	1	0
366 or more days	2	0	0
After completion of contract performance via a contract modification addressing all undefinitized equitable adjustments received during contract performance	0	0	0

(End of Section H)

FEDERAL HIGHWAY ADMINISTRATION
EASTERN FEDERAL LANDS HIGHWAY DIVISION
SPECIAL CONTRACT REQUIREMENTS

Project NJ-NY ERFO FW WARI 2019-1(1)
WALLKILL RIVER NATIONAL WILDLIFE REFUGE
U.S. FISH AND WILDLIFE SERVICE

The following Special Contract Requirements amend and supplement the *Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects (FP-14)*, U. S. Department of Transportation, Federal Highway Administration.

Section 101. — TERMS, FORMAT, AND DEFINITIONS

101.03(a). Add the following:

CDR — Contractor Daily Record

101.04. Delete the definition of (c) “Supplemental agreement” under “Contract Modification”.

101.04. Delete the definitions for "Contract Time", "Drawings", "Notice to Proceed", "Substantial Completion", and "Work", and substitute the following:

Contract Time — The specified time allowed for the completion of the contract work. It may be a set date or a number of days from the Notice to Proceed.

Drawings — Documentation prepared by or for the Contractor consisting of drawings, diagrams, illustrations, schedules, and other data which show the scope, extent, and character of the work.

Notice to Proceed — Written notice to the Contractor that establishes the starting date for performance of the contract.

Substantial Completion — The point at which the project is complete such that it can be safely and effectively used by the public without further delays, disruption, or other impediments. For conventional bridge and highway work, the point at which bridge deck, parapet, pavement structure, shoulder, drainage, sidewalk, major demolition, roadway obliteration, permanent signing and markings, traffic barrier, safety appurtenance, utility, and lighting work is complete. The point at which liquidated damages, if any, stop being charged.

Work — The entire completed construction or various separately identifiable parts required to be performed or furnished under the contract. Work includes and is the result of performing or furnishing design professional services and construction required by the contract.

101.04. Add the following:

Completion Date – The date set at the Notice to Proceed by which all contract work is to be complete.

Final Acceptance – The point at which the Government formally accepts the work and relieves the Contractor of further responsibility for the maintenance of the project. This does not include warranties, which remain in effect until they expire. See FAR Clause 52.246-21 Warranty of Construction.

Final Completion – The point at which all work and tests are complete and all test results have been received. For typical projects, the point at which all punch-list items are acceptably completed and all turf is established. A request for final acceptance of the work cannot be made by the Contractor until this point is reached.

Masterworks — A web-based system used by the Government, Contractors, and Subcontractors on this Government contract to prepare CDRs, measurement notes (item postings and supporting field measurement documentation), and transmit submittals, and documents and drawings.

Partial Acceptance – The point on a project where a segment of the work is completed and, at the Government's option, it takes possession for its use. The CO may relieve the Contractor of further responsibility for maintaining partially accepted work.

Period of Performance - The time from award of the contract to final acceptance of all contract work by the Government.

Section 104. — CONTROL OF WORK

Add the following after Subsection 104.02:

104.02A Electronic Documentation. Furnish documents and drawings electronically using Masterworks.

Prior to preconstruction conference meeting, request the Masterworks user accounts by completing and signing Form Masterworks-001, *Masterworks Access for A/E Staff and Construction Contractor* and submission instructions. An electronic version of the form is available at: https://highways.dot.gov/federal-lands/estimates/forms.

Complete and electronically submit Form Masterworks-001 for each individual requiring Masterworks access. Allow at least 7 days for review and approval for each submittal.

Contact the CO to schedule a training session on the use of Masterworks. The virtual training session will be either a video presentation or live training as determined by the CO. The Contractor is responsible for training newly added employees and subcontractors after the original training.

Maintain active Masterworks accounts for Contractor staff who use Masterworks. Notify the CO within 24 hours when an account holder status changes (such as reassignments). If an account holder is no longer employed by the Contractor, submit Form Masterworks-001 to request that the account be marked inactive.

Furnish documents and drawings in their native file format (the format produced by the software that the document and drawing was created in) upon request.

Documents and drawings include but are not limited to correspondence, submittals, measurement notes, reports, plans, diagrams, qualifications, certifications, payrolls, schedules, invoices, mix designs, job-mix formulas, test results, notifications, requests, permits, and agreements.

Furnish a resolution quality with color, text, and lines clearly discernible. Submit each document

and drawing in an individual file. Name files with a unique document name.

Documents and drawings delivered after 5:00 p.m. local time will be considered received on the next business day.

The CO will reject documents that are unreadable, corrupted, illegible, or include malicious content.

104.03(c). Delete the first sentence of the first paragraph and substitute the following:

> Furnish one full-size (24-inch by 36-inch) paper copy of the plans from the Government-provided electronic plans, and use this set of plans exclusively for as-built drawings.

104.05. Add the following:

Operate loaded vehicles hauling material at speeds not exceeding 40 miles per hour or the posted speed limit, whichever is lower, and spaced at 500-foot minimum intervals. When hauling on bridges, do not exceed 25 miles per hour or the posted speed limit, whichever is lower, or operate more than 1 loaded hauling vehicle at a time.

Hauling will only be permitted from the nearest point of public access to the work site. Minimize hauling over completed pavement.

Section 105. — CONTROL OF MATERIAL

105.04. Add the following:

The Contractor may use the Liberty Loop Trail Parking Area as a staging area for Liberty Loop Trail work, the Refuge Maintenance Office Parking Area as a staging area for the Dagmar Dale Nature Trail work, and the Oil City Road Fishing/Canoe Access Parking area as a staging area for the Winding Waters Trail work. Obtain approval before using these locations for staging.

Document the preconstruction condition of proposed staging areas using a combination of photographs and survey measurements as directed. Take a sufficient number of high-resolution color digital photographs to adequately record the preconstruction condition. Clearly label the photographs with notes, GPS, or other referencing necessary to adequately establish each photograph's location. Provide electronic copies of the photographs to the CO. These photographs will be used to establish the extent of restoration required when the staging area is no longer needed. Do not begin staging area work until the documentation of the preconstruction conditions has been approved.

Restore staging areas to their preconstruction condition as directed and at no additional cost to the Government.

Do not use additional staging areas without approval of the CO. Do not stockpile material, park

personal vehicles, or store equipment outside the approved staging areas without approval of the CO.

Section 106. — ACCEPTANCE OF WORK

106.01. Delete the ninth and tenth paragraphs and substitute the following:

The Government may inspect, sample, or test any work, including verification sampling and testing, at any time before final acceptance. If the Government tests work, copies of test reports will be furnished to the Contractor upon request. Government tests may or may not be performed at the work site.

If Contractor testing and inspection is verified by the Government, including statistical verification, the Government may elect to use the Contractor's results to evaluate work for acceptance.

106.03(a)(3). Delete the first sentence and substitute the following:

> Substantiating evidence that the material conforms to the contract quality requirements, including the following:

106.05. Add the following:

At the preconstruction conference, the Government will provide a copy of the computer program "QL-PAY", along with instructions. QL-PAY is a Windows based program that computes the quality levels and pay factors as described in this Subsection.

Section 107. — LEGAL RELATIONS AND RESPONSIBILITY TO THE PUBLIC

107.01. Add the following:

Review and discuss the permits with the CO at the preconstruction conference.

Notify the CO immediately of any changes, including modifications to Government-obtained permits, or any additional permits or agreements that are required by the Contractor's method of operation. Allow adequate time in the construction schedule for any additional permits or changes to Government-obtained permits. Furnish copies of all required permits and agreements not in the contract.

For Schedule A work, assist the Government in obtaining a Flood Plain Permit from the Town of Warwick. Provide a copy of the New York State Workers Compensation Insurance Certificate or other required documentation as shown in the Town of Warwick Flood Plain Permit Application form. Once all documentation is provided to the Government, the Government will assemble the complete permit application package for submittal to the Town of Warwick. The

Contractor will be responsible for paying the permit fee by check or money order. Provide a $500 check or money order payable to "Town of Warwick" at the preconstruction conference to the CO.

For Schedule B and C work, assist the Government in obtaining a modification to the approved Soil Erosion and Sediment Control plan from the Upper Delaware Soil Conservation District. The Government will submit the plan modification package to the Upper Delaware Soil Conservation District after the preconstruction conference. The Contractor will be responsible for paying the review fee by check or money order. Provide a $200 check or money order payable to "Upper Delaware SCD" at the preconstruction conference to the CO.

107.02. Add the following:

Dispose food waste and trash in bear-proof containers or within enclosed vehicles.

Document the existing condition of the trails, roads, staging areas, and temporary access roads by taking digital photos before starting work. Provide copies of the photos to the CO.

107.03. Delete Subsections **(a)** and **(f)**.

107.08. Add the following:

At the preconstruction conference, submit to the CO for review and approval, two copies of the current Occupational Safety and Health Administration (OSHA) safety and occupational health program that addresses all potential safety threats associated with this project. If the general safety plan does not address the threats to this project, develop a site-specific safety plan to address them. Provide a safety plan that addresses the following:

(a) Subcontractors. The Contractor is ultimately responsible for all work on the project. If subcontractors are part of the work, ensure each subcontractor provides a site-specific safety plan that meets the Contractor's approval. Submit all subcontractors' plans with the Contractor's plan.

(b) Environmental concerns. Address the potential for release of hazardous materials. Identify the measures to be implemented to minimize the risk of hazardous liquids being released into the watershed. Describe the procedures to be used to contain and clean up any releases. Identify certification requirements for employees responsible for the cleanup and describe the procedures for notifying the appropriate environmental agencies. Identify proper storage methods for hazardous materials, describe procedures for proper disposing of hazardous waste, and designate the individual responsible for disposal. Comply with the requirements of 29 CFR 1926 Subpart H.

(c) Accident/near miss reporting. State the requirements for documenting accidents. Notify the CO of all accidents and describe the notification procedures. Comply with the accident reporting requirements of 29 CFR 1960.68.

(d) Safety training/meetings. Identify all safety training requirements for each employee or job title that is specific to this project. Training requirements may include hearing conservation, respiratory protection, hazard communication, personal protective equipment, hypothermia, heat illnesses, and first responder awareness. Comply with the employee training requirements of 29 CFR 1960.59.

Make the lesson plan and attendance roster for each training requirement available to the CO upon request.

(e) Qualified employees. Ensure only qualified employees operate equipment. Comply with the requirements of 29 CFR 1926.20(b)(4).

(f) Hazard communications. Identify the implementation procedures for the hazard communications program. Include procedures for labeling hazardous materials, maintaining material safety data sheets, training employees, and maintaining a chemical control inventory. Comply with the requirements of 29 CFR 1910.1200.

(g) First aid. Ensure a minimum of one person certified in CPR and first aid is on site at all times according to OSHA regulations. Comply with the requirements of 29 CFR 1926.50(c).

(h) Personal protective equipment. Identify any personal protective equipment for use by employees, and when the equipment should be used. Personal protective equipment may include hard hats, hearing protection, safety footwear, gloves, and safety glasses. Comply with the requirements of 29 CFR 1926.28. Address the following:

(1) Require employees to wear safety goggles and face shields when pouring hazardous liquids. Require employees to wear safety glasses when operating grinders or similar equipment.

(2) Identify specific areas and tasks that require hearing protection. Specify the appropriate type of hearing protection for each task. Identify noise levels and provide employees with hearing protection with the proper noise reduction rating.

(3) Include a section on respirators to identify specific areas or jobs that require the use of respirators. Identify the type of respirator required for each area or job. Types of respirators may include negative pressure half mask or full-face piece respirators, powered-air purifying respirators, airline respirators, or self-contained breathing apparatus. Identify employee training requirements for respiratory protection and fit testing for negative-pressure respirator use in this section.

Comply with the full list of requirements in 29 CFR 1926 Subpart E.

(i) Motor vehicle operations. Develop a safety plan to address motor vehicle use on the project, including the use of rollover protection. Comply with the requirements of 29 CFR 1926 Subpart O for motor vehicle safety and 29 CFR 1926 Subpart W for rollover protection.

(j) Safety inspections. Conduct formal safety inspections and document any hazards identified and their abatement during the project. Comply with the requirements of 29 CFR 1926.20(b)(2).

(k) Fire. Develop a contingency plan for equipment fires. Comply with the requirements of 29 CFR 1926 Subpart F.

(l) Fall protection. Include a section in the safety program that describes the measures used to protect employees from injury or death due to falls while working at the project site, on steep hillsides or cliffs, or in any location where exposure to unsafe heights creates a fall hazard. Comply with the requirements of 29 CFR 1926.500.

(m) Electrical safety. Include a section in the safety program that describes the measures used to protect employees from injury or death while operating energized electrical equipment. Comply with the requirements of 29 CFR 1926 Subpart K.

(n) Cranes and rigging. Develop a section in the safety program that defines the requirements and operational limitations for all cranes and derricks. Include procedures for determining and posting rated load capacities; inspecting machinery, equipment, slings, and ropes; maintaining required clearances around cranes; and ensuring certified operators conduct crane operations. Comply with the requirements of 29 CFR 1926.550.

(o) Persons authorized to repair equipment. Identify individuals authorized to repair electrical and mechanical equipment that may break down or require servicing during the length of the contract. Describe the process for notifying employees of the authorized repair personnel.

(p) Driver safety. Develop a section that addresses employee safety when driving to and from the project site. Apply these requirements to all roadways located on Government property.

(q) Spill containment kit. Develop a section that addresses spill remediation for all areas on Government property. Provide and maintain at least two 55-gallon hazardous materials containment kits on the project at all times. Immediately report all hazardous material spills to the CO.

107.10(b). Delete the first and second paragraphs and substitute the following:

Submit a hazardous spill plan at least 2 days before starting work, as required by Federal, State, or local regulations. Where the project meets the applicability requirements of 40 CFR 112, submit a "*Spill Prevention, Control, and Countermeasure (SPCC) Plan*".

Describe preventative measures including the location of refueling and storage facilities and the handling of hazardous material. Describe actions to be taken in case of a spill. Identify personnel, equipment, and resources available to address spill prevention and response.

107.10. Add the following:

Complete equipment fueling and maintenance in locations away from streams and wetlands.

Add the following after Subsection 107.11:

107.12 Protection of Threatened, Endangered, and Sensitive Wildlife Species. The project provides habitat for threatened, endangered, and sensitive (TES) wildlife species. Do not disclose the names and locations of TES wildlife encountered during the work to the public. Protect wildlife and wildlife habitat as follows:

(a) Atlantic Coast leopard frog (ACLF). For Schedule A work, ensure all site contractors and workers are trained on ACLF identification by a qualified biological monitor conforming to Subsection 623.02A(b). Perform the following procedures in the event an ACLF is encountered at the work site:

(1) Stop all ground-disturbing work, large machinery and vehicles; and notify the CO and the qualified biological monitor immediately.

(2) Do not resume work until the ACLF has moved safely from the area on its own or has been relocated by the qualified biological monitor. The ACLF cannot be touched by anyone except the qualified biological monitor.

(3) Report all ACLF sightings to the Region 3 NYSDEC Wildlife office at 845-256-3098 or Wildlife.R3@dec.ny.gov within 24 hours.

(4) If an ACLF is found within the wildlife exclusion silt fence, do not resume work until the qualified biological monitor has relocated the ACLF to safety, inspected the fence for any deficiencies that allowed the ACLF to enter, supervised any necessary repair of the fence, and inspected the area inside the fence for any additional ACLF.

(b) Bog turtles and Wood turtles. For Schedule B and C work, ensure that Refuge staff or a qualified biological monitor conforming to Subsection 623.02A(b) survey the project site for bog turtles and wood turtles before ground disturbance activities begin. Do not begin work at the site until all turtles have been relocated by the qualified biological monitor. Once the site has been cleared by Refuge staff or the qualified biological monitor, install silt fence before beginning construction activities to prevent entry of small wildlife species, including bog turtles and wood turtles, into the construction area.

When any wood turtles, bog turtles, or State-listed species are seen either inside or outside the immediate work zone, report the sighting to the CO and the qualified biological monitor. Take necessary actions, including stopping work, to prevent injury to each animal. Provide all data collected on bog turtle, wood turtle, and State-listed species occurrences for the project to the CO. All information collected on species within the project is the property of the Government and will be kept in strict confidence.

(c) Migratory birds. No vegetation clearing or grubbing will be permitted from May 25 to August 5 unless the following measures have been taken:

(1) Provide a qualified biological monitor conforming to Subsection 623.02A(b) to conduct migratory bird nesting surveys prior to the removal of vegetation. Conduct surveys within 5 days after the site disturbance begins.

(2) If active nests are found, maintain a species appropriate buffer around the nest until the young have fledged.

For Schedule A work, minimize noise to the extent practicable. If noise levels are expected to exceed 5 dB above ambient levels at any time, perform the following prior to noise generating activities:

(1) Between April 15 and August 31, conduct pied-billed grebe breeding surveys. If active nests are found within 200 feet of the project area, maintain a species appropriate buffer from the nest site until all young have fledged.

(2) Between November 1 and March 31, conduct daily surveys for overwintering northern harrier and short-eared owl. If either species is found, maintain a species appropriate buffer until the individual(s) have left the project area.

Section 108. — PROSECUTION AND PROGRESS

108.01. Delete the first sentence of the first paragraph.

108.01. Add the following:

Construction operations are limited as follows:

(a) Schedule A: Winding Waters Trail and Liberty Loop Trail (NE).

(1) No work will be permitted on Saturdays, Sundays, or National legal holidays.

(2) No tree trimming or removal will be permitted from April 1 through November 15.

(3) Perform in-water work during the low-flow season, typically occurring from June through August.

(b) Schedule B and C: Liberty Loop Trail (SW) and Dagmar Dale Nature Trail.

(1) No work will be permitted on Saturdays, Sundays, or National legal holidays.

(2) No site preparation, disturbance, grading, clearing or construction activity will be

permitted from April 1 through May 30 and September 1 through November 15 within the regulated areas associated with the Wallkill River and its tributaries unless the following measures have been taken:

(a) Before commencement of site preparation, disturbance, grading, clearing or construction activity, erect silt fence around the footprint of all proposed activities (temporary and permanent) sufficient to exclude small wildlife species, and specifically bog turtles and wood turtles, from entering the proposed construction area.

(b) Immediately thereafter, provide a qualified biological monitor conforming to Subsection 623.02A(b) to thoroughly inspect the fenced-in work area for bog turtles and wood turtles. Report any bog turtles or wood turtles sightings to the Refuge and the New Jersey Department of Environmental Protection, Division of Fish and Wildlife, Endangered and Nongame Species Program; and carefully relocate any found species to a safe area outside of work zone. Start authorized activities within the fenced work area once this inspection is complete.

(c) No in-stream work is permitted from November 1 through March 30.

(d) Monitor the silt fence weekly and maintain throughout the project duration.

(3) No tree trimming or removal will be permitted from April 1 through September 30.

If the Contractor finds it necessary to work on one of these restricted days, request approval from the CO at least 7 days before the planned work.

Coincident with this contract, other contracts for construction projects may be underway or may commence during the construction of this project. Coordinate with the CO and other contractors to minimize disruption to this project and to other construction projects in the area.

108.02. Delete the first sentence and substitute the following:

Follow the requirements of FAR Clause 52.219-14 Limitations on Subcontracting and FAR Clause 52.222-11 Subcontracts (Labor Standards).

108.02. Delete the last sentence of the fifth paragraph.

108.03. Delete the first sentence.

108.03(c). Add the following:

Under FAR Clause 52.249-10, Default (Fixed-Price Construction), the Contractor can request a time extension for a delay due to unusually severe weather as defined under Section 155. If a time extension is requested for unusually severe weather, submit a time impact analysis according to Subsection 108.03(b) and include supporting historical weather data

according to Subsections 155.04A and 155.04B. The following criteria will be used for determining a time extension for unusually severe weather:

(1) Time adjustment for rain delays. If the net number of actual workdays lost to rain is less than the total lost days for the month in question, then no time adjustment will be made. If the net number of actual workdays lost to rain is more than the total lost days for the month in question, then a time extension may be granted.

(2) Time adjustment for other weather delays. If a time extension is requested for other unusually severe weather conditions such as snow, extreme cold or heat, high winds, etc., follow the same calculation, submittal, and criteria procedures as outlined for rain delays.

If a quantity variation described in Subsection 109.06(a)(4) results in an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the CO within 10 days from the beginning of the delay, or within such further period as may be granted by the CO before the date of final settlement of the contract. Upon receipt of a written request for an extension, the CO will ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the CO, is justified.

Section 109. — MEASUREMENT AND PAYMENT

109.01. Add the following after the fifth paragraph:

Prepare, sign, and submit electronic measurement notes (Item postings and supporting field documentation) using Masterworks. Unacceptable measurement notes will be electronically rejected and returned. Correct rejected measurement notes and resubmit in Masterworks.

109.06(a)(3). Delete the last sentence of the third paragraph and substitute the following:

See FAR Subpart 15.4— Contract Pricing and FAR Table 15-1— *Instructions for Submitting Cost/Price Proposals When Certified Cost or Pricing Data Are Required for guidance*.

109.06(a). Add the following:

(4) Variation in estimated quantity. If the quantity of a unit-priced item is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price will be made upon demand of either party. The equitable adjustment will be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity.

109.06(b)(3). Delete the last sentence and substitute the following:

Due to the limited risk in post-work pricing, a lower profit percentage may be determined by a profit analysis according to FAR Subpart 15.404-9 Profit.

Add the following after Subsection 109.06:

109.06A Fuel Price Adjustment Provision. This provision provides for a price adjustment in the form of payment to the Contractor or a rebate to the Government for fluctuations in the cost of diesel fuel consumed in the performance of applicable construction work. The price adjustment provisions are applicable only to contract items listed as eligible pay items in Table 109-2. The price adjustment provisions are also applicable to these eligible pay items when the Government adds extra work to the contract.

The provision will remain in effect throughout the duration of the contract. Enactment of the Fuel Price Adjustment Provision will only be considered when the increase or decrease in the price of diesel fuel as defined herein exceeds 10 percent.

The Fuel Price Adjustment Provision is intended to reduce but not eliminate the cost effects of price uncertainty to the Contractor and the Government for diesel fuel used in the construction of this contract. It provides for sharing by the Government in a portion of the Contractor's risk, which could result from unusual price fluctuations. The provision is not intended to compensate the Contractor for normal day-to-day fluctuations and seasonal changes or to serve as a guarantee of full compensation for diesel fuel price fluctuations.

(a) Price indexes. The Government will post a monthly performance price index at: https://highways.dot.gov/federal-lands/business/escalation-factors

Gross Ultra Low Sulfur, No. 2 Diesel Fuel using price data obtained from the Oil Price Information Service (OPIS), which publishes a weekly newsletter on the distillate wholesale rack prices for major cities throughout the United States. The OPIS 5-day newsletter average rack price reported for Newark, NJ will be averaged and used to establish a base price index (BPI) for this project and a monthly performance price index (MPPI) for the duration of the contract. These indexes are defined as follows:

- **Base price index.** The base price index (BPI) is the price index posted by the Government as determined by arithmetic average, as specified above, shown in the four weekly publications immediately preceding the contract award. It is as follows:

BASE PRICE INDEX (BPI) FOR GROSS ULTRA LOW SULFUR, NO. 2 DIESEL FUEL
PER GALLON = $ See Note (1) below

Note (1): BPI is calculated by the Government and inserted here immediately before contract award.

- **Monthly performance price index.** The monthly performance price index (MPPI) is the monthly price index at the time of performance of applicable work as determined by arithmetic average, as specified above, shown in the four weekly publications issued prior

to the last Wednesday of the month (i.e. the monthly performance price index during which diesel fuel is consumed in the performance of applicable construction work).

(b) Price adjustments. Price adjustments are calculated by the Government are not intended to reflect the Contractor's actual purchase price. The ratio of the monthly performance price index and the base price index (MPPI/BPI) is calculated and used to determine price adjustments for eligible pay items as follows:

- **No price adjustment** – When the ratio MPPI/BPI falls within the range of 0.90 to 1.10, no price adjustment will be made for any diesel fuel consumed in construction work performed during the relevant month.

- **Government rebate** – When the ratio MPPI/BPI is calculated to be less than 0.90, the Government is due a rebate determined in accordance with the following formula:

$$\text{Government Rebate} = [0.90 - (\text{MPPI}/\text{BPI})] (\text{BPI}) (\text{Q}) (\text{FUF})$$

- **Contractor payment** – When the ratio MPPI/BPI is calculated to be greater than 1.10, the Contractor is due additional payment determined in accordance with the following formula:

$$\text{Contractor Payment} = [(\text{MPPI}/\text{BPI}) - 1.10] (\text{BPI}) (\text{Q}) (\text{FUF})$$

The following definitions are applicable to both the Government Rebate and the Contractor Payment formulas:

MPPI = Monthly Performance Price Index for the month during which motor diesel fuel is consumed in the performance of applicable construction work.

BPI = Base Price Index that is established immediately preceding the bid opening.

Q = Quantity of work on the project during the progress payment period for eligible pay items shown in Table 109-2. The Government, to agree with the units associated with the applicable Fuel Usage Factor, will convert work quantities, as necessary.

FUF = Fuel Usage Factor shown in Table 109-2 applicable to No. 2 diesel fuel.

Table 109-2
Eligible Pay Items for Price Adjustments and Associated Fuel Usage Factors

Eligible Pay Items	Fuel Usage Factor U.S. Customary Units	Fuel Usage Factor Metric Units
Earthwork		
Section 204 – Excavation and Embankment 20401 Roadway excavation 20420 Embankment construction	0.30 gallons per cubic yard	0.39 gallons per cubic meter
Aggregate and Base Courses		
Section 301 – Untreated Aggregate Courses 30101 Aggregate base	0.70 gallons per ton	0.77 gallons per metric ton
* The Government, to agree with the units associated with the applicable Fuel Usage Factor, will convert work quantities as necessary.		

(c) Price adjustment compensation. Monthly adjustments will be accrued. The final price adjustment will be paid, or rebated, after completion of all work for eligible pay items. The Contractor may request in writing a partial price adjustment payment once every 12 months, or when the unpaid accrued increase exceeds $10,000. The Government will take a rebate when the deductive accrual exceeds $10,000.

No price adjustments will be made for work performed beyond the contract completion date.

The maximum allowable monthly and final price adjustment to the Contractor or rebate to the Government is limited to a (MPPI/BPI) ratio of 1.6 and 0.4, respectively.

109.08(a). Add the following:

Full or partial progress payment will be withheld until the SWPPP is brought into compliance and approved by the CO.

109.08(b). Add the following:

Submit invoices by the 7th day after the closing date. Invoices received after 3:00 p.m. Eastern Time will be marked as received the next business day. Invoices received after the 16th day following the closing date will not be accepted for payment processing that month. Include late, unprocessed invoice submittals in the following month's invoice.

109.08(c). Add the following:

Submit invoices electronically to EFLConstructionInvoices@dot.gov with email copy to the CO and the project engineer.

109.08. Delete Subsection **(d)** and substitute the following:

(d) Government's receiving report. The Government's receiving report will be developed using the measurements and quantities from item postings received by the CO in Masterworks and determined acceptable.

Section 152. — CONSTRUCTION SURVEY AND STAKING

152.04(b). Add the following:

When GPS and RTS are used, submit a quality control plan which includes how control will be established and maintained.

152.04. Delete the last sentence of the eighth paragraph and substitute the following:

Reestablish any missing initial reference lines, control points, and stakes set by the Government.

152.04. Add the following:

Reestablish Liberty Loop Trail to its current alignment and elevation. Survey and record the profile grades before beginning any work. Use the recorded survey for final grading.

Section 153. — CONTRACTOR QUALITY CONTROL

153.01. Add the following:

This work also includes using Masterworks to prepare electronic CDRs and measurement notes (item postings and supporting field measurement documentation), including entering labor, equipment, subcontractors, and inspection records into the system.

153.07. Delete the first sentence and substitute the following:

Maintain complete testing and inspection records by pay item and make them accessible to the CO.

153.07(a). Delete the Subsection and substitute the following:

(a) QC and construction operations reports. For each day of the contract, prepare a CDR using Masterworks. Enter initial data for Labor/Equipment and Subcontractors before beginning any work. Maintain and update the Labor/Equipment and Subcontractors data to reflect ongoing changes as they occur. Report operations or items of work separately, including the manpower and equipment assigned to each. Document inspection results, including observed deficiencies and corrective actions taken. Complete a CDR for each contractor and subcontractor working that day.

When submitting test results on material being incorporated into the work, report test results within the reporting times indicated in the sampling and testing requirements at the end of each Section.

Enter the following data into Masterworks:

(1) Subcontractor data.

(2) Labor/Equipment.

(a) All manpower and equipment, including contractor and subcontractors. Complete all data fields.

(b) Labor: Type/classification, move-in date, move-out date, hourly rate, the contractor or subcontractor, and name.

(c) Equipment: Type/classification, move-in date, move-out date, make, model, and year of equipment manufacture.

Certify all CDRs by checking the box with the following statement:

"I certify that the information contained in this record is accurate and that work documented herein complies with the contract. Exceptions to this certification are documented as a part of this record."

Submit the record and certification within 24 hours of performing the work. If the CDR is incomplete, contains errors, or is otherwise misleading, it will be rejected and returned in Masterworks with corrections noted. Correct and resubmit rejected CDRs within 24 hours. If chronic errors or omissions occur, correct the procedures used to produce the records.

Section 154. — CONTRACTOR SAMPLING AND TESTING

154.02. Add the following:

Submit proposals for using alternate AASHTO or state department of transportation approved test methods in writing for approval. Alternate methods may be allowed based on documented equivalence to the method specified and if approved by the CO.

154.03. Add the following:

Provide the Government's portion of the sample or split sample in an acceptable container suitable for shipment to the CO. The CO will sign and seal the sample with specialty chain-of-custody security tape. Ship the security-sealed sample to the EFLHD Central Laboratory at the following address within 24 hours of receiving the sample from the CO:

Federal Highway Administration
Eastern Federal Lands Highway Division
1827 Jack Delozier Drive
Sevierville, Tennessee 37876
ATTN: MATERIALS LABORATORY

For the split sample of asphalt concrete pavement material, provide boxes that are lined with silicone-coated paper throughout the interior.

154.05. Add the following:

For items accepted under Subsection 106.05, use the QL-PAY software program to determine pay factors and report pay factors determined by QL-PAY. Submit a copy of all current test results and pay factor calculations based on those tests on a weekly basis. When large quantities are produced, calculate pay factors as soon as possible. Use this information to make any necessary adjustments to operations to achieve acceptable pay factors. See Subsection 106.01 for conditions upon which the Government may use the Contractor's test results.

Section 155. — SCHEDULES FOR CONSTRUCTION CONTRACTS

155.02. Add the following:

(g) Reasonably predictable weather. The number of workdays that can expect to be lost in any month due to rainfall based on 10-year historical weather data.

(h) Rain day. A potentially lost workday on which rainfall is equal to or greater than 0.10 inches.

(i) Drying day. A workday immediately following a rainfall equal to or greater than 1.00 inch which is potentially lost because of wet ground conditions.

(j) Workday. A day not excluded from work by Section 108.

(k) Unusually severe weather. When the number of actual workdays lost is greater than the reasonably predictable weather for a specific month.

155.03. Add the following:

The Contractor may work on multiple sites simultaneously as approved by the CO.

155.04(f). Add the following:

If a subcontract has not yet been awarded for a certain portion of the work, include the schedule for that work.

155.04. Add the following:

(j) A completed Table 155-1 prepared according to Subsection 155.04A.

Add the following after Subsection 155.04:

155.04A Reasonably Predictable Weather. Determine reasonably predictable weather for this contract by completing Table 155-1. Calculate data for Table 155-1 by computing the average number of workdays lost (rain days plus drying days) for each month and the standard deviation from the average, using the last 10 years of historical weather data from the nearest National Oceanic and Atmospheric Administration (NOAA) weather data collection station. Add the average number of workdays lost to the standard deviation. The total number of lost days (average workdays lost plus 1 standard deviation, rounded to whole days) will be considered normal for each month.

At the option of the Contractor, provide the necessary instrumentation to support weather-related impacts to the project if using the nearest weather station is impractical. If onsite weather instrumentation is not provided, use the nearest weather station.

Provide a weekly summary of the weather data gathered to the CO.

155.04B Unusually Severe Weather. If requesting a time extension due to unusually severe weather, calculate the number of actual workdays lost by totaling the actual rain days plus the actual drying days occurring in the month in question. From this total, deduct any workdays meeting any one of the following conditions:

(a) The rain day or drying day occurred on a non-work weekday such as a holiday.

(b) The rainfall occurred at a time when no weather dependent work was in progress or occurred during planned or unplanned shutdowns due to other circumstances such as equipment failure, strikes, material supplies, delays, etc.

(c) The Contractor was still working or able to work on weather dependent activities to the extent that less than 50 percent of the workday was lost due to weather.

If the net number of actual workdays lost is greater than the total lost days, then unusually severe weather occurred during the month in question.

Table 155-1
Reasonably Predictable Weather

Project Number:			
Project Location:			
NOAA Station Location:			
Data Years (10-year history):			
Month	**Average Workdays Lost**	**Standard Deviation**	**Total Lost Days**
January			
February			
March			

Table 155-1
Reasonably Predictable Weather

Project Number:			
Project Location:			
NOAA Station Location:			
Data Years (10-year history):			
Month	**Average Workdays Lost**	**Standard Deviation**	**Total Lost Days**
April			
May			
June			
July			
August			
September			
October			
November			
December			

155.05(b)(2)*(a)*. Add the following:

Include unreflected items, or components of work within a pay item, as separate activities as directed by the CO.

155.05(b)(2)*(b)*. Add the following:

If the project is of sufficient complexity that the activity description cannot be legibly placed on the diagram, include a tabulation of all activities by their activity IDs.

155.05(b)(5)*(a)*. Add the following:

As a minimum, include the following:

(1) Contractor quality control plan;

(2) Asphalt mix designs;

(3) Concrete mix designs;

(4) Bridge falsework and formwork designs;

(5) Manufactured items;

(6) Test panels; and

(7) Contract specialty items.

155.06. Delete the first sentence of the second paragraph and substitute the following:

Unless previously approved by the CO, changes to the construction schedule for work that is still to be completed can only be changed with a time impact analysis according to Subsection 108.03, and a Baseline Construction Schedule revision according to Subsection 155.07.

155.07. Delete the third sentence and substitute the following:

Continue to submit monthly schedule updates according to Subsection 155.06 until a baseline construction schedule revision is approved.

Section 156. — PUBLIC TRAFFIC

156.04. Delete the first paragraph and substitute the following:

Accommodate traffic according to the MUTCD, contract traffic control plan, Section 635, and this Section. An alternate traffic control plan may be submitted for approval in accordance with Subsection 104.03 and the following:

(a) Ensure safe and efficient pedestrian, bicycle, and vehicular traffic (including emergency vehicles) at all times during construction;

(b) Schedule and perform work to minimize disruption to public traffic; and

(c) Accommodate the construction operations as approved under Section 155.

Submit alternate traffic control plans at least 30 days before its intended use. After the initial traffic control plan is approved, revise it as necessary to accommodate approved changes in the construction schedule. Submit the revised traffic control plan at least 14 days before implementation, unless otherwise approved by the CO.

156.04. Add the following:

Install construction signing and type 3 barricades according to Section 635 and as shown in the plans or as directed by the CO, at least 14 days before beginning work.

Close Liberty Loop Trail, Dagmar Dale Nature Trail, and Winding Waters Trail to traffic during construction as approved by the CO. Open each location within 24 hours after completion of work or as directed by the CO.

Submit a request to the CO for approval at least 30 days before any planned closure. Notify the CO 14 days before placing the trail closure.

Maintain access for Fish and Wildlife Service personnel and vehicles to all work sites and the Appalachian Trail.

156.08. Add the following:

Nighttime operations are permitted upon approval by the CO. Submit request to the CO for approval at least 3 days before any planned nighttime operations.

156.09. Delete the second sentence and substitute the following:

The superintendent may serve as the traffic control supervisor provided the requirements of Subsection 156.03 are met.

Section 157. — SOIL EROSION AND SEDIMENT CONTROL

157.01. Add the following:

This work includes updating and maintaining a SWPPP.

157.04. Add the following:

This project is covered under the Construction Activities Stormwater General Permit (5G3) in New Jersey and the SPDES General Permit for Stormwater Discharges from Construction Activity (Permit No. GP-0-25-001) in New York.

Update the Government-provided draft SWPPPs in accordance with the EPA and State requirements using the information provided in the plans, specifications, and permits obtained for the project. Submit an electronic copy of the SWPPPs to the CO at least 7 days before the preconstruction conference in accordance with Subsection 104.03 for approval.

Once the SWPPP for Schedule A is approved, complete the MS4 SWPPP Acceptance Form found on the New York State Department of Environmental Conservation (NYSDEC) website (https://dec.ny.gov/environmental-protection/water/water-quality/stormwater/construction-activity-permit#permit) and submit to the Town of Warwick for approval. Once the SWPPP is approved by the Town of Warwick, submit an electronic Notice of Intent (eNOI) to NYSDEC. Provide a copy of the eNOI and evidence of its submission to the CO. The Contractor is responsible for paying all permit fees associated with permit coverage under the SPDES General Permit.

Once the SWPPP for Schedule B and C is approved, the Government will submit a Notice of Intent (NOI) to the New Jersey Department of Environmental Protection (NJDEP). Do not begin ground disturbing activities until approved by the CO.

Update the SWPPPs constantly throughout the project as work is performed and when changes are made to the project. Maintain a copy of the current SWPPPs on-site at all times.

Ensure staff responsible for updating and maintaining the SWPPP for Schedule A meet NYSDEC definition of *Trained Contractor or Qualified Inspector* as defined in Appendix A of the permit.

Post a notice of the projects and SWPPPs near the main entrance of the construction site.

Upon completion of construction of Schedule A, submit an electronic Notice of Termination (eNOT) to NYSDEC along with all required documentation identified in Part V.A.1. of the permit. Provide a copy of the eNOT and evidence of its submission to the CO.

Upon completion of construction of Schedule B and C, obtain a Certification of Compliance/Report of Compliance from the Upper Delaware Soil Conservation District, if required. Provide a copy to the CO along with required documentation showing proof of final stabilization. Upon receipt, the Government will file the Notice of Termination (NOT) to the NJDEP.

157.11(f). Add the following:

Submit a plan for approval to the CO for the approximate location of the turbidity curtains according to Subsection 104.03(a).

Submit the manufacturer's drawings and technical specifications to the CO for approval before installation of the turbidity curtain and its accessories.

Assemble and install the turbidity curtain according to the manufacturer's instruction. Install and maintain the turbidity curtain so that all construction activities generating sediment or turbidity are contained within the turbidity curtain.

Install turbidity curtains at least 24 hours in advance of any in-water construction activity. Ensure that the turbidity curtains are completely functional prior to beginning the in-water work. Leave turbidity curtains in place until work is complete, and turbidity returns to ambient levels or as directed by the CO.

157.16. Add the following:

The SWPPPs will be evaluated under Subsection 106.02. The SWPPPs will be jointly reviewed for accuracy and completeness by the CO and the Contractor before the submission of each monthly invoice. If the review finds that the SWPPPs are not in compliance, payment of the Contractor's invoice will be withheld until the SWPPPs are brought up to date as outlined in Subsection 109.08(a).

157.17. Add the following:

Measure turbidity curtains by the linear foot along the top edge.

157.18. Add the following:

Progress payments for updating and maintaining SWPPPs will be paid as follows:

- 25 percent of the pay item amount will be paid upon acceptance of the SWPPPs and upon submittal of the Schedule A NOI and Schedule B and C eNOI copies and evidence of their submission to the CO.

- An additional 50 percent of the pay item amount will be prorated based on total work complete.

- The remaining portion of the pay item amount will be paid at final acceptance.

Section 203. — REMOVAL OF STRUCTURES AND OBSTRUCTIONS

203.04(c). Add the following after the second sentence of the first paragraph:

On structures, use power-driven hand tools and other hand tools in accordance with Subsection 203.04(e).

203.04. Add the following:

(e)Concrete removal by mechanical impact methods. Furnish equipment that complies with the following:

(1) Use power-driven hand tools for removal of existing concrete with the following restrictions:

*(a)*Do not use jackhammers heavier than 30 pounds;

*(b)*Do not operate jackhammers and mechanical chipping tools at an angle in excess of 45 degrees measured from the surface of the concrete; and

*(c)*Do not use chipping hammers heavier than a nominal 15-pound class to remove concrete from beneath any reinforcing bar.

(2) Use hand tools (hammers and chisels) for removal of final particles of concrete or to achieve the required depth.

203.05(b). Delete the Subsection and substitute the following:

(b)Burn. Burning is prohibited.

203.05(c). Delete the Subsection and substitute the following:

(c)Bury. Burying debris is prohibited.

Section 204. — EXCAVATION AND EMBANKMENT

204.03. Add the following:

Aggregate (void-fill)	704.01
Native soil (void-fill)	704.01A

204.17. Add the following:

A price adjustment will be made for fluctuations in the cost of diesel fuel consumed in the performance of applicable construction work according to Subsection 109.06A.

Section 251. — RIPRAP

251.01. Add the following after the first paragraph:

This work also includes placing vegetated riprap which consists of combining riprap with nature-based solutions to stabilize streambanks and provide ecological enhancement.

251.02. Add the following:

Plant material	713.06
Rolled erosion control products	*713.17 and 713.18*
Seed	713.04
Topsoil	*713.01*
Water for vegetation	725.01(b)

251.03. Add the following:

Below-water construction. Perform all work below the Ordinary High Water (OHW) elevation in dry conditions. If work cannot be performed in dry conditions, submit a Below-Water Construction Plan and obtain CO approval before beginning any below-water work. The Below-Water Construction Plan includes, but is not limited to, the following:

(a) Surface preparation. Develop procedures to ensure surface preparation before placing filters (granular backfill or geotextile) and riprap. This includes removal of debris, vegetation, and fill of depressions or holes with suitable material to provide a smooth surface to the specified elevation and slope specified in the plans.

(b) Underwater filter placement. Develop procedures to ensure continuous and uniform placement of filters (granular backfill or geotextile filters). Install all filters to meet the elevation, thickness, and slope specified in the plans, with a thickness tolerance of ±1 inch, unless otherwise approved by the CO. Do not place filters during high-flow events or under weather adverse conditions that could prevent accurate or stable placement. Do not place riprap over the filters until the installation has been inspected and accepted by the CO. Conform to the following:

(1) Granular backfill placement underwater. Use only approved, controlled methods to place granular backfill material in a continuous, uniform installation that maintains intimate contact with the prepared surface. Avoid voids. Acceptable equipment includes clamshell buckets, long-reach hydraulic excavators, and tremie systems. When using a tremie system, the Contractor may use a rigid pipe from the surface or a flexible hose system to pump filter material in a water slurry to divers at the discharge point. Operate all placement equipment from the streambank or a barge. Do not dump granular material freely through the water column under any circumstances.

Place granular material only during relatively calm flow conditions. In flowing water, do not place loose granular material when the local velocities exceed 3 feet per second (fps) or when the 0.5 times the critical velocity (0.5*Vcrit) for the threshold of motion for the D50 (median) size particle is exceeded. Use the lower of these two velocity limits as the maximum allowable velocity for placement. If stream velocities exceed this maximum allowable velocity, immediately suspend placement operations, as it can compromise filter stability.

(2) Geotextile filters placement underwater. Ensure the geotextile is installed with continuous, full contact with the prepared surface, properly aligned, and free of wrinkles, bridging, gaps, voids, tears, or other defects. Apply uniform tension during placement to maintain contact and avoid misalignment or damage. Use only approved, controlled installation methods to achieve these requirements. Use methods for anchoring and maintaining position to maintain the specified overlap and hold the fabric in place until the overlying material is installed. Acceptable methods include, but are not limited to, the use of “U”-shaped staples or temporary ballast such as sandbags. Overlap all seams by a minimum of 36 inches in both the longitudinal and transverse directions. Place geotextile continuously, properly overlapped, and securely anchored at all terminations. Immediately repair or replace any damaged, misaligned, or improperly installed sections at no additional cost to the Government.

(c) Riprap quality control. Provide methods to maintain riprap quality control. Process for placing and continuously monitoring to verify the quantity and layer, avoid segregation, and ensure continuous placement of well-graded, uniform riprap to the required thickness, width, and depth specified in the plans.

(d) Void-filling methods. Provide alternative methods to washing (slurry) or vibrating material into riprap voids to achieve a densely interlocked riprap structure, ensuring voids are completely filled with backfill while minimizing air pockets and overfilling. Additionally, address equipment limitations for this work in underwater environments.

(e) Migration and washout prevention. Provide measures to prevent migration or washout of filter and void-fill backfill materials under steady base flows and potential high flow events conditions.

(f) Below-water monitoring and inspection techniques. Develop effective methods for below-water monitoring and inspection of surface preparation, filter systems (both granular backfill and geotextile), riprap, and void-fill backfill to ensure proper installation and performance. Select inspection techniques appropriate to site conditions, such as diver inspection (permitted only when stream velocities are 2.5 feet per second or less); pole-mounted underwater cameras or remotely operated vehicles (ROVs), suitable where water clarity allows; or sonar and acoustic imaging, appropriate for low-visibility or high-flow environments. Submit post-installation documentation, including but not limited to diver logs, underwater photographs, or sonar/acoustic scan records, to the CO for review and approval.

251.04. Add the following:

Do not end dump riprap.

Add the following after Subsection 251.04:

251.04A Vegetated Riprap. Perform the work as follows:

(a) Placement of toe riprap. Place toe riprap below the Ordinary High Water (OHW) elevation to its full thickness in one operation according to Subsections 251.03 and 251.04. Complete toe riprap placement before pole planting according to Section 626 and the bank riprap placement according to Subsection 251.04A(b).

(b) Excavation and placement of bank riprap. Excavate and place bank riprap to its full specified thickness in a single operation according to Subsection 251.04, and place void-fill backfill according to Section 204. Conform to the following:

(1) Do not mix void-fill backfill with riprap before placement.

(2) Place riprap and void-fill backfill simultaneously, filling the voids as the riprap is placed. Conform to the following:

(a) Riprap. Place riprap carefully. Use placement methods that prevent segregation, minimize voids, and maintains the integrity of the prepared filter (gravel and geotextile). If segregation occurs, rework the riprap to ensure a well-blended, uniform gradation and interlocking structure. Place or rearrange individual stone as

necessary to minimize voids and achieve a target porosity of 40 percent. Maintain porosity within a range of 25 to 40 percent, where porosity (η) is defined as the volume of voids divided by the bulk volume of the placement.

(b*) Void-fill backfill.* Wash (slurry) or vibrate void-fill backfill into the riprap matrix to ensure dense interlock and eliminate void pockets or overfilling. Ensure the backfill completely fills the voids while preserving the interlocking structure required for erosion resistance. Use only approved void-fill backfills listed below:

(1) Aggregate (void-fill).

(2) Native soil (void-fill) from on-site excavation.

(3) Place a 3-inch layer of void-fill backfill over the riprap to create a flush surface. Construct the final surface within ±0.10 foot of the specified elevation.

(4) Encapsulate the entire riprap structure, including the 3-inch top layer, with geotextile fabric according to Section 207. Key and stake geotextile into the top of bank.

(c) Topsoil placement. Place a minimum of 15 inches of topsoil according to Section 624 over the geotextile encapsulating the bank riprap. If needed, increase the topsoil depth slightly to account for expected settlement as approved by the CO. If any section becomes excessively compacted, perform post-placement decompaction to the anticipated rooting depth, as approved by the CO.

(d) Seeding and rolled erosion control product. Apply approved native riparian seed mix according to Section 625 before installing the rolled erosion control product. Provide irrigation if needed. Key and stake the rolled erosion control product at least 12 inches into the top of the bank. Use biodegradable stakes and install the rolled erosion control product according to Section 629 and manufacturer's recommendations.

(e) Vegetative planting. When shown in the plans, install container plants according to Section 626. Ensure soil is moist before planting. Follow species spacing, timing, and installation methods *according to the revegetation plan under Subsections* 623.02B *and 623.02D*. Place two to four live stakes per square yard.

251.07. Add the following after the seventh paragraph:

Granular backfill for vegetated riprap will be evaluated under Section 204.

Void-fill backfill for vegetated riprap will be evaluated under Section 255.

Arborist and horticulturist services for vegetated riprap will be evaluated under Section 623.

Topsoil for vegetated riprap will be evaluated under Section 624.

Seeding for vegetated riprap will be evaluated under Section 625.

Vegetative planting and pole planting for vegetated riprap will be evaluated under Section 626.

Rolled erosion control products for vegetated riprap will be evaluated under Section 629.

Section 255. — MECHANICALLY-STABILIZED EARTH WALLS

255.02. Add the following:

Granular backfill (bedding)	704.01

Section 301. — UNTREATED AGGREGATE COURSES

301.03. Add the following to the second paragraph:

Submit the representative 300-pound sample to the EFLHD Central Laboratory in Sevierville, Tennessee at the address shown in Subsection 154.03.

301.03. Add the following:

An alternate state department of transportation aggregate gradation that is produced according to Subsection 703.05 may be submitted for approval. Provide target values within the allowable target value range of the state department of transportation aggregate gradation. When target values are not provided, the preproduction target values will be the midpoint of the allowable target value range of the state department of transportation aggregate gradation. The allowable deviation (±) from the target values will be according to Table 703-2A. The maximum allowable pay factor under Subsection 301.10 for a state department of transportation aggregate gradation will be 1.00.

301.10. Add the following:

A price adjustment will be made for fluctuations in the cost of diesel fuel consumed in the performance of applicable construction work according to Subsection 109.06A.

Section 623. — GENERAL LABOR

623.01. Add the following:

This work also includes performing arborist services, biological monitoring services, and horticulturist services.

Add the following after Subsection 623.02:

623.02A Qualifications. Submit the following for approval by the CO at least 14 days before any ground disturbance activities begin:

(a) Arborist services. Name of the arborist who is certified by the International Society of Arboriculture (ISA), or other acceptable certification programs as approved by the CO; and a résumé describing at least 2 years of documented experience in:

(1) Restoration of riparian and aquatic environments, including the development and implementation of wetland, riparian, and upland tree plans;

(2) Selection of locally appropriate native tree species;

(3) Evaluation of site-specific conditions, including climate, hydrology, and soils; and

(4) Selection of genetically appropriate seed and tree materials.

(b) Biological monitor services. For Schedule A work, provide the name of the biologist who is licensed by the New York State Department of Environmental Conservation (NYSDEC) to monitor the presence of Atlantic Coast leopard frogs (ACLF) and other State-listed species; and a résumé describing at least 2 years of documented experience on projects of similar complexity.

For Schedule B and C work, provide the name of the biologist who is approved by the New Jersey Fish and Wildlife Endangered and Nongame Species Program to monitor the presence of bog turtles, wood turtles, and other State-listed species; and a résumé describing at least 2 years of documented experience on projects of similar complexity.

(c) Horticulturist services. Name of the horticulturist who is certified by PlantNYS, American Society for Horticultural Science, or other acceptable certification programs as approved by the CO; and a résumé describing at least 2 years of documented experience in:

(1) Restoration of riparian and aquatic environments, including the development and implementation of wetland, riparian, and upland planting plans;

(2) Selection of locally appropriate native plant species;

(3) Evaluation of site-specific conditions, including climate, hydrology, and soils;

(4) Selection of genetically appropriate seed and plant materials.

As a minimum, include contact information, educational background, relevant certifications, and experience.

623.02B Arborist services. Perform arborist services to develop and submit a revegetation plan, in coordination with the qualified horticulturist conforming to 623.02A(c), for approval by the CO at least 14 days before any ground disturbance activities begin. Include the following:

(a) *Installation techniques and equipment.* Specify the equipment and techniques to install live cuttings (poles) at the locations, depths, and angles specified in the plans. Select equipment that prevents damage to the cuttings and accounts for site-specific factors (e.g., flow velocity, water depth, and limited access).

(b) *Consultation services.* Provide recommendations regarding the species selection, spacing, planting configuration, quality, care, and other relevant considerations for vegetative plantings and live cutting (poles).

(c) *Storage and handling.* Provide storage and handling requirements for live cutting (poles) if planting is delayed beyond the optimal soaking period.

Perform as a field representative on-site during planting and at the inspection of the plant material about 15 days before the end of the plant establishment period according to Section 626.

623.02C Biological monitor services. Perform biological monitor services as follows:

(a) Biological monitor services for New York Threatened and Endangered Species. For Schedule A work occurring between March 1 and October 31, perform the following:

(1) Before work begins, brief all workers on required conservation measures and ensure that all sensitive areas are identified and avoided.

(2) Oversee and monitor the installation of all erosion and sediment controls, best management practices, and wildlife exclusion silt fence. Before work begins, search all areas of expected disturbance for the presence of ACLF and other State-listed species.

(3) Oversee and monitor all activities that involve ground disturbance or movement of large vehicles or machinery not completely enclosed by a wildlife exclusion silt fence.

(4) At the beginning of each day, search all work and staging areas for the presence of ACLF and other State-listed species before work begins.

(5) Inspect the wildlife exclusion silt fence at the beginning of each day and, if any deficiencies are found, repair the fence immediately to a fully functional condition before work begins. Record and maintain a log on-site of each inspection.

(b) Biological monitor services for New Jersey Threatened and Endangered Species. For Schedule B and C work, perform the following:

(1) Obtain a scientific collecting permit from the New Jersey Department of Environmental Protection, Division of Fish and Wildlife, Endangered and Nongame Species Program (ENS) (http://www.state.nj.us/dep/fgw/exotic_apps.htm).

(2) Before work begins, brief all workers on required conservation measures and ensure that all sensitive areas are identified and avoided.

(3) Oversee and monitor the installation of all erosion and sediment controls and best management practices. Before work begins, search all areas of expected disturbance for the presence of bog turtles, wood turtles, and other State-listed species.

(4) Oversee and monitor all in-stream work, and search these areas for bog turtles, wood turtles, and State-listed species before work begins.

(5) At the beginning of each day, search all work and staging areas for the presence of bog turtles, wood turtles, and other State-listed species before starting work.

(6) Report all wood turtle and bog turtle sightings to the Refuge and the New Jersey Department of Environment, Division of Fish and Wildlife, Endangered and Nongame Species Program at: https://dep.nj.gov/njfw/conservation/reporting-rare-wildlife-sightings/. Carefully relocate any found species to a safe area outside of the work zone.

623.02D Horticulturist services. Perform horticulturist services to develop and submit a revegetation plan, in coordination with the qualified arborist conforming to 623.02A(a), for approval by the CO at least 14 days before any ground disturbance activities begin. Include the following:

(a) *Installation techniques and equipment.* Specify the equipment and techniques to install live cuttings (poles) at the locations, depths, and angles specified in the plans. Select equipment that prevents damage to the cuttings and accounts for site-specific factors (e.g., flow velocity, water depth, and limited access).

(b) *Consultation services.* Provide recommendations regarding the species selection, spacing, planting configuration, quality, care, and other relevant considerations for vegetative plantings and live cutting (poles).

(c) *Storage and handling.* Provide storage and handling requirements for live cutting (poles) if planting is delayed beyond the optimal soaking period.

Perform as a field representative on-site during planting and at the inspection of the plant material about 15 days before the end of the plant establishment period according to Section 626.

623.03. Add the following:

Arborist services will be evaluated under Subsections 106.02 and 106.04.

Biological monitor services will be evaluated under Subsections 106.02 and 106.04.

Horticulturist services will be evaluated under Subsections 106.02 and 106.04.

623.05. Add the following:

Progress payments for the biological monitor services, arborist services, and horticulturist services by the lump sum will be paid as follows:

- 10 percent of the pay item amount will be paid upon approval of qualifications.
- An additional 75 percent of the pay item amount will be prorated based on work completed on the schedule.
- The remaining portion of the pay item amount will be paid after final acceptance.

Section 624. — TOPSOIL

624.04. Add the following:

Obtain approval of the topsoil source from the CO, after inspection by the Refuge. Provide the CO with 7 days advance notification for inspecting the source. If the source is found unsuitable, locate another source and provide the CO the same number of days to inspect the new source. Stockpiled material in the Contractor's yard or supplier's yard area will not be considered suitable. Do not excavate material prior to approval of the source. Once excavated, do not allow stockpile to remain uncovered for longer than 7 days.

624.04. Add the following after the second paragraph:

Where topsoil will be placed on slopes in which the character of the subsoil will not blend with the topsoil, work the topsoil into the subsoil to eliminate any slip-plane between the two materials and leave a sufficient cover of topsoil to ensure germination of the seed.

Section 625. — TURF ESTABLISHMENT

625.03. Add the following:

Apply seed, fertilizer, and mulch, using the hydraulic method. In areas not accessible to hydraulic-type equipment, use hand-held equipment as approved by the CO.

625.04. Add the following:

Apply agricultural limestone (85 percent CaCO3) at a rate of 4,000 pounds per acre.

625.06(b). Add the following:

Apply fertilizer at a rate of 600 pounds per acre.

625.07(b). Add the following:

Apply seed at the rates shown in Table 625-1 and Table 625-2.

Table 625-1
Application Rates for Seeding

Name of Seed	Pounds per Acre
From March through June	
Italian or perennial ryegrass *(Lolium perenne L. ssp. perenne)*	15
Hulled common bermudagrass *(Cynodon dactylon (L.) Pers.)*	10
Kentucky 31 tall fescue *(Schedonorus arundinaceus (Schreb.) Dumort., nom. cons.)*	25
From July through August	
Italian or perennial ryegrass *(Lolium perenne L. ssp. perenne)*	25
Hulled common bermudagrass *(Cynodon dactylon (L.) Pers.)*	15
Total Seed	40
From September through October	
Italian or perennial ryegrass *(Lolium perenne L. ssp. perenne)*	10
Kentucky 31 tall fescue *(Schedonorus arundinaceus (Schreb.) Dumort., nom. cons.)*	25
Crimson clover inoculated *(Trifolium incarnatum L.)*	15
Total Seed	50
From November through February	
Italian or perennial ryegrass *(Lolium perenne L. ssp. perenne)*	20
Hulled common bermudagrass *(Cynodon dactylon (L.) Pers.)*	20
Kentucky 31 tall fescue *(Schedonorus arundinaceus (Schreb.) Dumort., nom. cons.)*	25
Crimson clover inoculated *(Trifolium incarnatum L.)*	15
Total Seed	80

Apply seed at the rates shown in Table 625-2 for all seasons in non-mowed areas:

Table 625-2
Application Rates for Seeding in Non-Mowed Areas

Common Name	Botanical Name	Pounds per Acre
Little Bluestem	*Schizachyrium scoparium*	10.38
Virginia Wild Rye	*Elymus virginicus*	3.36
Purple Coneflower	*Echinacea purpurea*	1.80
Bottlebrush Grass	*Elymus hystrix*	1.30
Partridge Pea	*Chamaecrista fasciculata*	0.70
Blackeyed Susan	*Rudbeckia hirta*	0.60
Oxeye Sunflower	*Heliopsis helianthoides*	0.40
Narrowleaf Mountainmint	*Pycnanthemum tenuifolium*	0.24
Tall White Beardtongue	*Penstemon digitalis*	0.20
Marsh Blazing Star	*Liatris spicata*	0.12
Blue False Indigo	*Baptisia australis*	0.10
White Avens	*Geum canadense*	0.10
Butterfly Milkweed	*Asclepias tuberosa*	0.08
Calico Aster	*Aster lateriflorus*	0.08
Bigleaf Aster	*Aster macrophyllus*	0.08
Wild Bergamot	*Monarda fistulosa*	0.08
Common Milkweed	*Asclepias syriaca*	0.06
Sundrops	*Oenothera fruticose var. fruticosa*	0.06
Eastern Columbine	*Aquilegia canadensis*	0.04
Zigzag Aster	*Aster prenanthoides*	0.04
Appalachian Beardtongue	*Penstemon laevigatus*	0.04
White Goldenrod	*Solidago bicolor*	0.04
Heath Aster	*Aster pilosus*	0.02
Hairy Beardtongue	*Penstemon hirsutus*	0.02
Early Goldenrod	*Solidago juncea*	0.02
Gray Goldenrod	*Solidago nemoralis*	0.02
Licorice Scented Goldenrod	*Solidago odora*	0.02
Total Seed		20

After applying seed in non-mowed areas, apply a cover crop at a rate of 30 pounds per acre as follows:

Apply grain oats between January 1 and July 31 and apply grain rye between August 1 and December 31.

Apply tall fescue mix seed in mowed areas at a rate of 260 pounds per acre.

Provide seed analysis results to the CO which include weed testing for all State noxious weeds. Follow protocols of the Association of Official Seed Certifying Agencies for necessary sample sizes. The weed seed percentage in the seed lot may not exceed 0.02 percent, unless approved by the CO.

Perform all seeding between March 15 and April 15 as the first preference. Seeding between September 15 and November 30 may also be allowed as approved by the CO. Any changes to the seeding window are subject to advanced approval by the CO.

Apply seed utilizing the two-stage hydroseeding method described below:

(1) First application (seed). To ensure the seed is being applied at the correct rate, mark off or flag areas to be seeded at a minimum of half acre increments prior to seeding. Apply seed by hand or with hand seeders. Mix seed with sand at a 1:1 ratio to aid in seed dispersal if seed is light or working in extremely windy conditions. Distribute seed in such a way as to ensure all species in the seed mix are evenly distributed across the area, regardless of seed size. Lightly rake the seed into the soil to a depth of 1/4 of an inch. Do not smooth with the backside of the rake, light furrows in the soil are desired.

(2) Second application (mulch).

(a) Apply long strand virgin wood fiber at a rate of 2,000 pounds per acre.

(b) Apply non-toxic, and natural and biodegradable plant-based psyllium/alpha plantago tackifier at a rate of 80 pounds per acre on slopes 3H:1V or less and at a rate of 100 pounds per acre on slopes greater than 3H:1V.

(c) Apply non-toxic, 100% environmentally safe tracer dye material at a rate of around 200-300 pounds per acre to provide visible evidence of uniform application.

Perform hydromulch mixing in a clean tank. Rinse the tank and all hoses a minimum of three times to remove any seed prior to arriving at the project site. Allow the CO or authorized FWS representative to inspect the hydroseed equipment prior to operations. Perform a demonstration of clean water running through the tank/hoses when required by the CO. Provide a hydroseeder equipped with a built-in continuous agitation and recirculation system of sufficient operating capacity to produce homogeneous slurry and a discharge system that will apply slurry to the designated areas at a continuous and uniform rate. Do not add fertilizers, mycorrhizae or any other amendments to the hydroseed slurry.

Spray the designated areas with the slurry in a sweeping motion and in an arched stream until a uniform coat is achieved, with no slumping or shadowing, as the material is spread at the required rate. Ensure the hydroseed slurry floats down from the arched stream as opposed to being shot directly at the ground. Protect the existing native vegetation from damage during hydroseeding including but not limited to coating with mulch, damage by direct spray, and dragging hose. Notify the CO three weeks before hydroseeding.

625.09. Add the following:

At the end of one-year post-seeding, if less than 70 percent of the seeded area does not have 70 percent cover of native plant species, re-seed any areas greater than 10 by 10 feet that do not meet the 70 percent.

Survey all areas disturbed by the project construction activities for non-native, invasive plants and treat according to the following specifications for one year following seeding. Treatment may consist of hand pulling, mowing, or herbicide methods as approved by the CO. Ensure the method used results in the effective destruction of the invasive plant and proper removal of any of its propagative parts. Apply at least 4 rounds of treatment spread across the growing season to adequately control invasive plants. If invasive plants are not controlled before they reach a flowering or seeding stage, keep the reproductive parts bagged in 3 mil or greater plastic sealed to prevent seed dispersal. Dispose the reproductive parts legally off site. Ensure that seeds and vegetative propagule of invasive plants are removed from clothing and equipment before leaving treatment sites.

If the FWS determines herbicide control methods are the most effective means of removing invasive plants, ensure the following:

(a) Provide personnel possessing a current Qualified Applicator's license.

(b) Seek CO approval in advance on herbicide selection.

(c) Adhere to herbicide label instructions.

(d) Spray only when weather conditions are conducive to effective uptake of the herbicide by the targeted species (e.g., sunny, dry, and when plants are actively growing) and when wind conditions are such that herbicide drift is minimal.

(e) Avoid non-targeted species during herbicide application.

(f) Select existing hardened surfaces or disturbed sites as staging and mixing areas. Place impervious materials such as a bucket or plastic beneath mixing areas to avoid and contain any potential spills.

(g) Keep an Emergency Spill Response Plan and a spill kit on-site when herbicide treatment methods occur. This Plan will include project safety planning, methods of clean-up of accidental spills, and information including a spill kit contents and location.

(h) Document herbicide uses in a table format and provide to the CO within one month of treatment. Include in the table date of treatment, amount and type of chemical applied, including adjuvants, target species and estimated number of individuals treated, size of treated area, weather conditions, name and herbicide license, number of applicators, method of application and other vital information.

Map treated invasive plant populations for both manual and herbicide treatments using GPS. In addition to the location, the species treated, date, method of treatment, phenological stage, document approximate number of individuals on GPS. Provide FWS with the GIS and other attribute data as well as a map showing the different species and treatment locations.

Knowledge of local plant species and identification of native and non-native species is required for Contractor crew members.

Ensure there is less than 5 percent cover of non-native species in all areas disturbed by project activities by the end of the first growing season post seeding. If performing an ocular estimation of percent cover is insufficient, as determined by the CO, calculate percent cover utilizing the point line intercept method along a 100 foot transect line, with readings every foot.

625.12. Add the following:

Do not measure GIS and herbicide services for payment.

Section 626. — PLANTS, TREES, SHRUBS, VINES, AND GROUNDCOVERS

Add the following after Subsection 626.03:

626.03A. General cuttings, willow pole. Collect and plant woody or semi-woody native riparian species appropriate to the project site. Consult with a qualified arborist and horticulturist conforming to Subsection 623.02A to guide species selection, planting configuration, spacing, cutting quality, care, and other relevant considerations. Submit a detailed pole planting plan and obtain CO approval at least 14 days before beginning any live cutting (pole planting) activities. Outline all proposed procedures, methods, equipment, and materials to be used for installation within the plan, including site preparation, cutting storage and handling, planting techniques, inspection and monitoring protocols and quality control measures. Conform to the following:

(a) Pole collection. Perform pole collection as follows:

(1) Harvest during fall/winter dormant season.

(2) Collect live cuttings (poles) from nurseries or from areas that are similar to the area to be revegetated. If possible, harvest two or more species from different locations to increase planting success rates and provide genetic diversity.

(3) Make clean cuts without damaging or splitting the ends.

(4) Use healthy and straight 2- to 4-year-old cuttings that are 1 to 3 inches in diameter.

(5) Determine the depths of the vadose zone, capillary fringe, and seasonal saturated zone (water table) to establish the minimum length required for live cutting (pole) installation. Ensure the cutting length is sufficient to reach the seasonal saturated zone to promote rooting and survival. Comply with the live cutting (pole) requirements outlined in Subsections 626.06(a)(3) and 626.07.

(6) Prevent drying immediately after harvest. Immerse cuttings in water immediately.

626.05. Add the following:

For willow pole cuttings, soak the dormant live cutting (poles) for a minimum of 24 hours in cool, aerated water. Optimal soaking period is 8 to 10 days. Protect live cuttings (poles) from drying out and freezing damage. Before storage, remove all leaves and debris to minimize the risk of mold development. Do not damage cuttings during transportation by poor handling, hot temperatures, or drying conditions.

626.06(a). Add the following:

(3) For willow pole cuttings, excavate planting holes for live cuttings (poles) installation to a width no less than twice the diameter of each cutting.

626.07. Add the following:

For willow pole cuttings, plant live cutting (poles) during dormant season and conform to the following:

(a) Plant such that 2 to 5 live buds are exposed above surface. Ensure that leaf buds show less than 1/4 inch of growth and that the cambium layer stays moist, green, and healthy.

(b) Place the bottom end of live cutting (pole) deeply into vadose zone, capillary fringe, or at least 6 inches into the seasonal saturated zone (water table). Embed each live cutting (poles) with approximately 80% of its total length below finished grade, extending a minimum of 6 inches beneath the seasonal high-water table, and no more than 20% of the cutting left exposed above ground.

(c) Backfill and water in around live cuttings (poles), tamping the soil firmly to eliminate air pockets. Alternatively, in deeper holes or where tamping is impractical, use the “mudding” technique by filling the hole with water and gradually adding soil to form a slurry to ensure full contact between soil and live cutting (pole).

(d) Do not install pole planting within 10 ft of pipe outfalls.

(e) Install each live cutting (pole) at the specified depth, spacing, angle, and using the method(s) shown in the plans and approved by the CO. Acceptable live cutting (pole) planting techniques include, but are not limited to, the following:

(1) Pre-Bank Riprap. Complete toe riprap placement as specified in Subsection 251.04A(a) before starting to place the live cuttings (poles). If a trench is excavated behind the toe riprap to lay out the live cuttings (poles), cover the base of the live cutting (pole) with topsoil and approved backfill material before proceeding with riprap placement along the banks according to Subsection 251.04A(b). Place bank riprap only after all poles are securely installed and backfilled. Continuously inspect poles during installation and riprap placement. Replace any damaged live cutting (pole) during installation immediately at no cost to the Government.

(2) Post-Bank Riprap. Supplement the Pole Planting Plan described in Section 623.03A with a detailed Post-Bank Riprap Construction Plan. Identify all potential site constraints, risks, and installation challenges, including but not limited to soil settlement, formation of air pockets (voids), clogging of holes with debris or sediment, and potential damage to live cuttings caused by construction activities or potential adverse weather events. Include clear mitigation strategies for each identified risk and challenge. Use appropriate equipment, such as expandable stingers, rock augers, or other tools suitable for rocky and steep slopes, to properly excavate holes while minimizing damage to live cuttings during installation.

Drill a pilot hole through the riprap before driving the live cutting (pole) to prevent damage.

If topsoil, container plants, native riparian seed mix, or rolled erosion control products are damaged during live cutting (pole) installation, repair or replace the damaged materials at no cost to the Government.

626.09. Add the following:

For the Winding Waters sites, watering may be necessary to ensure the success of the dormant live cuttings (poles), seeding, and vegetative planting. Keep soil around the live cuttings (poles) moist for at least 6 weeks following planting. More watering may be needed if installation occurred in the spring or if the sites are experiencing dry conditions.

626.13. Add the following:

For the Winding Waters sites, examine the sites at least twice during the first year and once annually for up to three years, preferably after the flood season (December through May). Inspect live cuttings (poles), seeding, and vegetative plantings to assess their survival and growth. Before replacing any dead plants, identify the cause of failure and apply corrective measures with the new plantings. Protect live cuttings as needed by installing collars designed to prevent rodent damage to the tree bark.

Section 629. — ROLLED EROSION CONTROL PRODUCTS AND CELLULAR CONFINEMENT SYSTEMS

629.02. Add the following:

Aggregate base	301

629.05. Add the following after the first paragraph:

Use RECP that is biodegradable, weed free, and made of natural fibers. Do not use RECP containing plastics, synthetics, or polymers.

629.06. Delete the Subsection and substitute the following:

629.06 Cellular Confinement Systems. Install an expandable perforated cellular confinement system having a nominal depth of 6 inches. Install the cellular confinement system according to the manufacturer's recommendations. Place the cellular confinement system at the elevations and to the extent shown in the plans.

Keep the cellular confinement system free of debris. Remove and replace damaged sections.

Backfill the cells with aggregate base as shown in the plans. Compact the material within each cell.

629.07. Add the following:

Aggregate base will be evaluated under Section 301.

629.08. Add the following:

Measure aggregate base under Section 301.

Section 635. — TEMPORARY TRAFFIC CONTROL

635.04(d). Add the following:

Remove or completely cover unnecessary signs in accordance with Subsection 635.07.

635.04(g). Add the following:

If "marginal" or "unacceptable" devices are not corrected in a timely manner, the CO will provide written notification of those traffic control items not in compliance with the contract. If the Contractor fails to bring the specified items into compliance within a 24-hour period, the CO may assess a daily reduction in payment to the Contractor of $1,750 per day. The CO may continue to assess the daily reduction in payment for each additional 24-hour period

until the items are corrected. This reduction in payment will be subtracted from the Contractor's progress payments and will be unrecoverable. Use of this reduction in payment does not waive the CO's right to suspend the work in whole or in part according to Subsection 108.05.

635.04(i). Add the following:

Submit a certification indicating that the devices are crashworthy as defined in Subsection 101.04.

635.04. Add the following:

(j) As a minimum, furnish and install the following temporary traffic control devices:

(1) Construction signing;

(2) Type 3 barricades; and

(3) Other miscellaneous temporary traffic control devices that may be required by the CO.

635.07. Delete the third paragraph and substitute the following:

Remove or completely cover unnecessary signs, or signs that conflict with the construction signing or the approved traffic control plan. Cover signs that are not removed so that no part of the covered sign is visible to traffic. Use sign covers meeting the following requirements:

(a) Large enough to completely cover the sign;

(b) Easy to attach to and remove from the sign without damaging the sign face. Do not use adhesives, glues, tapes, or mechanical fasteners that mar face of the sign;

(c) Black, non-reflective, and opaque;

(d) Made of plywood (minimum of 3/8-inches thick), aluminum (minimum of 0.040 inches thick), or other acceptable materials that will not be lifted, bent, or damaged by wind as approved by the CO; and

(e) Durable enough to resist deterioration due to weathering and atmospheric conditions for the duration of the project.

Section 637. — FACILITIES AND SERVICES

637.02. Delete the first sentence of the first paragraph and substitute the following:

Provide the facilities and services beginning 14 days before project work begins and ending 21

days after final acceptance of all contract and Government option work.

637.02. Add the following:

Locate the Government field office within 15 miles of the project site and where high-speed Internet service, as described in Subsection 637.04(b)(3), is available. In remote locations where high-speed Internet service is not available, the field office distance range may be extended or waived by the CO. Obtain approval from the CO before delivery of a mobile field office or any rental agreements are signed.

Clean the Government field office weekly to the approval of the CO.

637.03(a). Add the following:

Provide a storage area to accommodate the necessary samples of materials for testing. Provide enough space for each sample. Samples may be stacked three units high using the sample containers required in Subsection 154.03. Provide one of the following:

- A fifth divided and separate area within the Government field office.

- A separate storage structure with minimum dimensions of 7-foot wide by 8-foot long by 6-foot high stationed within 50 feet of the Government field office. If an exterior structure is used, protect items being stored from contamination and weather elements, and maintain a temperature ranging from 40 ºF to 80 ºF.

637.03. Delete Tables 637-1 and 637-2 and substitute the following:

Table 637-1
Minimum Requirements for Field Office and Associated Services

Property	Size or Quantity
Floor space, square feet	400
Locking outside door, deadbolt with keys	1
Steps with slip-proof tread and handrails	(1)
Windows with locks	2
Total window area, square feet	30
Ceiling height, 7 feet	✓
Rooms including toilet room	4
Room size, except toilet room, square feet	100
Closet, 45-cubic foot	✓
Shelves, 12-inch depth, square feet	12

Table 637-1
Minimum Requirements for Field Office and Associated Services

Property	Size or Quantity
Electrical lighting	✓
Heat and air conditioning(2), maintain temperature of 72±7 °F	✓
Adequate electrical outlets	✓
Surge protectors	✓
Adequate electricity (120 and 240 V, 60 cycle as applicable)	✓
Adequate potable water supply	✓
Drinking water cooler with water supply	✓
Functioning sink with faucets for both hot and cold water with paper towels supply	✓
Functioning indoor toilet with toilet paper supply	✓
Parking for three vehicles on gravel surface	✓
6-foot high chain link fence with gate around building and parking area	✓

(1) As required by local code.
(2) If window air conditioning is provided, provide a separate unit for each room.

Table 637-2
Minimum Field Office Furnishings

Property	Size or Quantity
Table, 30-inch wide × 8-foot long × 30-inch high	3
File cabinet, 2-drawer, fire resistant, metal, with lock and keys	1
File cabinet, 4-drawer, metal	1
Desk, 12-square foot(1)	2
Desk lamp(1)	2
Office chair(1)	5
Storage cabinet, 6-foot high × 36-inch wide × 18-inch deep	1
Fire extinguisher	1
Compact refrigerator, 2.4 cubic feet minimum	1
Microwave oven, 1 cubic feet and 700 watts of cooking power minimum	1

(1) Meet accepted industry standards for ergonomics.

637.03(b). Delete the Subsection and substitute the following:

(b) Equipment. Furnish the following office equipment in the Government field office:

(1) Laser copy machine. One self-feeding plain paper photocopying machine with the following minimum capabilities:

(a) Reproducing black and white, and color copies for each size paper;

(b) Equipped with 3 separate paper trays so that copying can be performed with 8½- by 11-inch (letter size), 8½- by 14-inch (legal size), and 11- by 17-inch paper without switching paper or paper trays;

(c) Automatic document feeder capable of making at least 20 copies per minute for each size paper;

(d) Reducing or enlarging originals, including duplex (double-sided) copying, for each size paper;

(e) Copying to Universal Serial Bus (USB) flash drive in Adobe Acrobat (*.pdf) file format; and

(f) Built-in wireless technology (Wi-Fi capable).

Furnish all necessary supplies for the laser copy machine, including paper.

(2) Laser printer. One plain paper printing machine with the following minimum capabilities:

(a) Producing black and white, and color prints for each size paper;

(b) Equipped with 3 separate paper trays so that printing can be performed with 8½- by 11-inch (letter size), 8½- by 14-inch (legal size), and 11- by 17-inch paper without switching paper or paper trays;

(c) Automatic paper feeder capable of making at least 20 prints per minute for each size paper;

(d) Producing duplex (double-sided) prints for each size paper;

(e) Printing from direct personal computer (PC) and local area network (LAN) connections;

(f) Scanning to Adobe Acrobat (*.pdf) file format; and

(g) Built-in wireless technology (Wi-Fi capable).

The laser printer may be one machine in combination with the laser copy machine. Furnish all necessary supplies for the laser printer, including paper.

(3) Laser facsimile (FAX) machine. One FAX machine with the following minimum capabilities:

(a) Automatic document feeder with a minimum capacity of 20 pages;

(b) Sending standard size documents up to and including 11- by 17-inch paper;

(c) Printing on plain paper; and

(d) Automatic dial/redial.

The laser FAX machine may be one machine in combination with the laser copy machine. Furnish all necessary supplies for the laser FAX machine, including paper.

(4) High definition computer monitor. One high definition LCD or LED computer monitor with the following minimum capabilities:

(a) 27-inch flat viewing screen;

(b) Video Graphics Array (VGA) and High Definition Multimedia Interface (HDMI) ports; and

(c) Supports an optimal resolution of 1920 x 1080 at 60Hz.

(5) Computer keyboard. One computer keyboard with the following minimum capabilities:

(a) Standard 104-key Windows U.S. English QWERTY with keys for alphabet, functions, arrows, and numeric keypad; and

(b) Connects to a windows-based computer by either a USB cord or wirelessly.

(6) Computer mouse. One ergonomic computer mouse with the following minimum capabilities:

(a) Standard 2-button with a wheel for scrolling; and

(b) Connects to a windows-based computer by either a USB cord or wirelessly.

637.03. Add the following:

(c) Lighting. Provide ample exterior lighting to illuminate the area surrounding the Government field office at night. Equip the lights with photocell sensor devices and motion detectors to activate the lights.

637.04(b). Delete the last sentence.

637.04(b). Add the following:

Furnish the following communication equipment and services in the Government field office:

(1) Telephone. One cordless telephone with the following minimum capabilities:

(a) Touch tone, hold button, intercom, and conference calling features;

(b) Two separate lines;

(c) Local and long distance telephone services; and

(d) One digital, telephone answering machine or voicemail service capable of answering, recording, storing, and playing back telephone messages with a storage capacity of at least 30 minutes in length.

(2) High-speed Internet access. One high-speed Internet service system with the following minimum capabilities:

(a) Download speed of 25,000 kilobits per second;

(b) Upload speed of 10,000 kilobits per second;

(c) Digital Subscriber Line (DSL), Fiber Optic Service (FIOS), a dedicated Transmission System 1 (T1), cable Internet service, or mobile hotspot (mifi);

(d) Equipped with a modem and a router with a firewall or a router and a firewall appliance;

(e) Router with Internet Protocol Version 6 (IPv6) capable, Wi-Fi Protected Access II (WPA2) or higher encryption, Simple Network Management Protocol (SNMP) Monitoring, Dynamic Host Configuration Protocol (DHCP), and at least Category 6 Registered Jack 45 (RJ45) LAN office drop cables; and

(f) Supports simultaneous Internet access of at least 3 workstations connected by Category 6 Registered Jack 45 (RJ45) LAN office drop cables.

Alternate Internet access service options may be submitted to the CO for approval.

Submit firewall configuration to the CO for approval. Do not change the firewall configuration after it is approved, unless a change request is submitted and approved in

advance. Do not connect any equipment to the system other than U.S. DOT equipment.

(3) Wireless air card. One high speed, wireless air card for use with a Government laptop computer capable of providing access to the FHWA's virtual private network (VPN).

Add the following after Section 637:

Section 650. — CONSTRUCT AND MAINTAIN DIVERSION

Description

650.01 This work consists of constructing, maintaining, and removing a temporary access road diversion around project areas.

Material

650.02 Conform to the following Subsections:

Crushed aggregate	703.06
Geotextile	714.01
Water	725.01(c)

Construction Requirements

650.03 General. Construct the temporary access road diversion to follow the existing Winding Waters Trail from the construction access point to the area of work. Stake the centerline for the temporary access road diversion according to Section 152 and obtain approval from the CO before beginning construction.

Use the digital photos required by Subsection 107.02 to reestablish grading and vegetation to preconstruction conditions upon completion of the work in all areas outside the limits of disturbance as shown in the plans.

Perform selective clearing and grubbing according to Section 202. Minimize grading for the construction of the temporary access road diversion. Place geotextile over the existing ground according to Section 207 and extend to a minimum of 18 inches beyond the placement limits of the crushed aggregate. Maintain a maximum 3 percent cross slope on the temporary access road diversion to the maximum extent possible. Do not place geotextile or crushed aggregate outside of the existing embankment area of the trail, this may result in variable width.

650.04 Temporary Access Road Diversion. Place and compact the crushed aggregate material according to Section 302 and maintain a minimum 6-inch lift. Grade and maintain the aggregate to allow access for Fish and Wildlife Service personnel and construction equipment. Maintain temporary access road diversion during construction and address any deficiencies to the roadway

immediately and as directed by the CO. Do not cause damage or disruption to the existing trail or adjacent features, including the removal of trees not indicated for removal in the plans.

650.05 Cleanup and Removal. Upon completion of the work, remove the temporary access road diversion, including the geotextile and any loose aggregate that went beyond the temporary access road diversion limits. Regrade the area to preconstruction contours as approved by the CO. Reestablish vegetation in the areas of the temporary access road diversion by placing topsoil according to Section 624 and establishing turf according to Section 625, and as directed by the CO.

650.06 Acceptance. Material for temporary access road diversion will be evaluated under Subsections 106.02, 106.03, and 106.04.

Construction of temporary access road diversion will be evaluated under Subsections 106.02 and 106.04.

Selective clearing and grubbing will be evaluated under Section 202.

Geotextile will be evaluated under Section 207.

Crushed aggregate will be evaluated under Section 302.

Measurement

650.07 Measure the Section 650 pay items listed in the bid schedule according to Subsection 109.02.

Payment

650.08 The accepted quantities will be paid at the contract price per unit of measurement for the Section 650 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for constructing and maintaining the temporary access road diversion by the lump sum will be paid as follows:

(a) 50 percent of the pay item amount will be paid after construction of the temporary access road diversion.

(b) An additional 25 percent of the pay item amount will be paid after completion of 50 percent of the project work.

(c) Payment of the remaining portion of the pay item amount will be paid after the temporary access road diversion is removed from the project.

Section 703. — AGGREGATE

703.02. Add the following:

Do not use gravel.

703.05(a). Delete the text of Subsections **(3)** and **(4)**; they are not required.

703.05(a). Add the following:

(7) California bearing ratio as determined by AASHTO T 193 at 95 percent of maximum dry density in accordance with AASHTO T 180 (Method D).	70 percent min.

703.05(b)(1). Add the following:

The gradation only of the aggregate base may conform to the requirements of the current edition of the New York State Department of Transportation Standard Specifications (US Customary), Table 733-04A (Type 2), found at https://www.dot.ny.gov/main/business-center/engineering/specifications/busi-e-standards-usc for Schedule A and the New Jersey Department of Transportation Standard Specifications for Road and Bridge Construction, Table 901.10.01-1, found at https://dot.nj.gov/transportation/eng/specs/2019/Division.shtml for Schedule B and C subject to the approval of the CO. Conform to the requirements of Subsections 703.05(a) and 703.05(b) for all other properties. Submit the request according to Subsection 301.03.

703.05(b). Add the following:

(3) Plasticity index, AASHTO T 90	3 max.

703.05. Add the following:

Table 703-2A
State Department of Transportation Gradation
Allowable Deviation Based on Target Value

Percent by Mass Passing		Allowable Deviation
Minimum	**Maximum**	
90.1	100.0	6
80.1	90.0	8
30.1	80.0	8
20.1	30.0	8
10.1	20.0	6
0	10.0	4

Section 704. — SOIL

704.01. Delete the Subsection and substitute the following:

704.01 Foundation Fill and Void-fill Backfill. Furnish a suitable material conforming to the following:

(a) Maximum particle size	2 in (50 mm)
(b) Soil classification, AASHTO M 145	A-1-a
(c) Material passing No. 200 (75-µm) sieve, AASHTO T 27 and AASHTO T 11	6.0 percent max.

704.01A Native Soil (void-fill). Do not use cohesive or fine-grained soils. Select on-site material with less than 5% fines (passing the No. 200 sieve). Perform a sieve analysis on native soil to determine the percentage of fine-grained or cohesive soils (passing the No. 200 sieve) and to evaluate whether amendments are necessary for the soil to function as a suitable growth medium in the riparian zone. If the excavated material contains more than 5% fines (passing the No. 200 sieve), process or amend it as needed to reduce fine content to acceptable levels before use.

Section 718. — TRAFFIC SIGNING AND MARKING MATERIAL

718.01. Add the following:

For a list of acceptable manufacturers and products, refer to the FHWA, *Traffic Sign Retroreflective Sheeting Identification Guide* found at https://highways.dot.gov/safety/other/visibility/2014-traffic-sign-retroreflective-sheeting-identification-guide.

FEDERAL ACQUISITION REGULATION AND TRANSPORTATION ACQUISITION REGULATION CLAUSES

REPRESENTATIONS AND CERTIFICATIONS

(Updated through FAC 2026-01)

52.209-5 -- Certification Regarding Responsibility Matters (Aug 2020)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that --

(i) The Offeror and/or any of its Principals --

(A) Are [_] are not [_] presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have [_] have not [_], within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation); and

(C) Are [_] are not [_] presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have [_], have not [_], within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has [[_] has not [_], within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer; director; owner; partner; or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be

considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.
(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

52.209-7 – Information Regarding Responsibility Matters (Oct 2018)

(a) *Definitions*. As used in this provision—
"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.
"Federal contracts and grants with total value greater than $10,000,000" means—
(1) The total value of all current, active contracts and grants, including all priced options; and
(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).
"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).
(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.
(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:
(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
(i) In a criminal proceeding, a conviction.
(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.
(iii) In an administrative proceeding, a finding of fault and liability that results in—
(A) The payment of a monetary fine or penalty of $5,000 or more; or
(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.
(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.222-38 -- Compliance with Veterans' Employment Reporting Requirements (Feb 2016)

By submission of its offer, the offeror represents that, if it is subject to the reporting requirements of 38 U.S.C. 4212(d) (i.e., if it has any contract containing Federal Acquisition Regulation clause

52.222-37, Employment Reports on Veterans), it has filed the most recent VETS-4212 Report required by that clause.

(End of Provision)

(End of Section K)

PERMITS OBTAINED FOR THIS PROJECT

Date: Nov 9, 2026

Eastern Federal Lands Highway Division (EFLHD) - PERMIT TRACKING

Project: NJ ERFO FW WARI 2019-1(1)

Project Manager: Katerina Roman

EFLHD Main Permit Contact(s): Kim Campo-Allen

The following permits have been obtained for this project. Any modification to the work beyond what is shown in the contract plans and specifications may require modification to the permits. While notes regarding permit conditions are provided below to emphasize certain restrictions and requirements, all of the conditions for all of the permits must be fully adhered to as stated in the permit or approval document.

Permit/Approval	Agency	Received Date	Expiration Date	Remarks/Notes
SESC Plan Approval #25109VR	Upper Delaware Soil Conservation District	Jan 8, 2025	Jul 31, 2028	Requires a pre-construction meeting with the Upper Delaware SCD. Formal written notification is also required at least 48 hours prior to ANY SOIL DISTURBANCE. Note: This approval is no longer valid. Per 2026 changes to the project plans, the SCD will need to review the changes made since NOV/DEC 2024. EFL will submit for approval once the contract is awarded. The contractor will need to make the check payment ($200) for the review to occur.
FHA - Individual Permit, Permit #1900-24-0002.2 LUP240001	NJ Department of Environmental Protection (NJDEP)	Dec 23, 2024	Dec 22, 2029	Refer to conditions listed in the permit.
FWW - GP10b, Permit #1900-24-0002.2 LUP240001	NJDEP	Dec 23, 2024	Dec 22, 2029	Refer to conditions listed in the permit.
Water Quality Certificate, Permit #1900-24-0002.2 LUP240001	NJDEP	Dec 23, 2024	Dec 22, 2029	Refer to conditions listed in the permit.
NJDEP Stormwater Construction General Permit (5G3)	NJDEP	TBD	TBD	Permit application not yet submitted. Requires updated SCD approval. Will be submitted after award and after an updated SCD approval is received.

Date: Nov 9, 2026 **Eastern Federal Lands Highway Division (EFLHD) - PERMIT TRACKING**

Project: NY ERFO FW WARI 2019-1(1)

Project Manager: Katerina Roman **EFLHD Main Permit Contact(s):** Kim Campo-Allen

The following permits have been obtained for this project. Any modification to the work beyond what is shown in the contract plans and specifications may require modification to the permits. While notes regarding permit conditions are provided below to emphasize certain restrictions and requirements, all of the conditions for all of the permits must be fully adhered to as stated in the permit or approval document.

Permit/Approval	Agency	Received Date	Expiration Date	Remarks/Notes
Section 404 NWP 14	U.S. Army Corps of Engineers	Mar 18, 2026	3/15/2031	All NWP14 Regional and General Conditions apply. The only work authorized under this permit is shown in the plan sheets attached to permit authorization letter NAN-2025-00648-MOR. No additional work in the Wallkill River or wetlands can occur.
Section 401 Blanket WQC	NY State Deparment of Environmental Conservation (NYSDEC)	Dec 18, 2025	Mar 15, 2031	Refer to Attachment 3 of Section 401 Water Quality Certification Decision dated December 18, 2025, and NWP 14.
NYSDEC Freshwater Wetlands	NYSDEC			Awaiting permit from NYSDEC
Floodplain Permit	Town of Warwick	TBD	TBD	Will be obtained by the Government with assistance from the contractor after award.
SPDES CGP Authorization	NYSDEC	TBD	1/28/2030	Coverage will be obtained by the contractor after award due to requirement to submit the MS4 approval from Town of Warwick with the NOI. Contractor will submit the final SWPPP to the Town of Warwick with the MS4 Acceptance Form and pay any fees associated with the review. Government to provide a draft SWPPP for contractor use.

STATE OF NEW JERSEY
DEPARTMENT OF ENVIRONMENTAL PROTECTION
WATERSHED & LAND MANAGEMENT
Mail Code 501-02A, P.O. Box 420, Trenton, New Jersey 08625-0420
Telephone: (609) 777-0454 or Fax: (609) 777-3656
www.nj.gov/dep/landuse

PERMIT

In accordance with the laws and regulations of the State of New Jersey, the Department of Environmental Protection hereby grants this permit to perform the activities described below. This permit is revocable with due cause and is subject to the terms, conditions, and limitations listed below and on the attached pages. For the purpose of this document, "permit" means "approval, certification, registration, authorization, waiver, etc." Violation of any term, condition, or limitation of this permit is a violation of the implementing rules and may subject the permittee to enforcement action.

Approval Date
12/23/2024

Expiration Date
12/22/2029

Permit Number:	**Type of Approvals:**	**Governing Rules:**
1900-24-0002.2 LUP240001	FHA Individual Permit FWW GP10B Minor Road Crossings Water Quality Certificate	N.J.A.C. 7:13-1.1(b) N.J.A.C. 7:7A-1.1(a)

Permittee:

Kim Campo-Allen
Eastern Federal Lands, Highway Division, Federal Highway Adm
22001 Loudoun County Parkway
Building E-2, Suite 200
Ashburn, VA 20147

Site Location:

Blocks & Lots: [1, 4] [321, 4] [570, 11] [570, 9]
Municipality: Vernon Twp
County: Sussex

Description of Authorized Activities:

This document authorizes the replacement of two culvert structures (Site 01 and Site 06) crossing tributaries to the Wallkill River associated with the rehabilitation of an existing trail on the parcels referenced above.

This authorization to conduct activities in wetlands and/or waters includes the issuance of a Water Quality Certificate.

The Department has determined that the herein approved activities meet the requirements of the (FHACA/CZM) rules. This approval does not obviate the local Floodplain Administrator's responsibility to ensure all development occurring within their community's Special Flood Hazard Area is compliant with the local Flood Damage Prevention Ordinance, and minimum NFIP standards, regardless of any state-issued permits. FEMA requires communities to review and permit all proposed construction or other development within their SFHA in order to participate in the NFIP.

Prepared by:

Danielle L Jones

Received and/or Recorded by County Clerk:

If the permittee undertakes any regulated activity, project, or development authorized under this permit, such action shall constitute the permittee's acceptance of the permit in its entirety as well as the permittee's agreement to abide by the requirements of the permit and all conditions therein.

This permit is not valid unless authorizing signature appears on the last page.

STATEMENT OF AUTHORIZED IMPACTS:

The authorized activities allow for the permittee to undertake impacts to regulated areas as described below. Additional impacts to regulated areas without prior Department approval shall constitute a violation of the rules under which this document is issued and may subject the permittee and/or property owner to enforcement action, pursuant to N.J.A.C. 7:13-2.18; N.J.A.C. 7:7A-22.

FWW GP10B Minor Road Crossings	Permanent Disturbance (Acres)	Temporary Disturbance (Acres)
Freshwater wetlands	0 (13 SF)	0.003 (138 SF)
Transition areas	0.006 (266 SF)	0.062 (2,716 SF)
State open waters	0.005 (236 SF)	0.087 (3,780 SF)

Riparian Zone Vegetation	Area of riparian zone (Acres)
Permanent Disturbed	0.082 (453 SF)
Temporary Disturbed	0.131 (5,697 SF)

PRE-CONSTRUCTION CONDITIONS:

1. **Timing:** If this permit contains a condition that must be satisfied prior to the commencement of construction, the permittee shall comply with such condition(s) within the time required by the permit or, if no time specific requirement is imposed, then the permittee shall comply with such condition(s) within six months of the effective date of the permit, or provide evidence satisfactory to the Division that such condition(s) cannot be satisfied.

2. Prior to the commencement of site clearing, grading, or construction onsite, the permittee shall install a sediment barrier at the limits of disturbance authorized herein which is sufficient to prevent the sedimentation of the regulated waters and regulated areas onsite and shall serve as a physical barrier protecting all regulated areas from encroachment by construction vehicles or other soil-disturbing activities. All sediment barriers and soil erosion control measures shall be kept in place and maintained throughout the duration of construction, until such time that the site is stabilized.

SPECIAL CONDITIONS:

1. Any new, reconstructed, enlarged, or elevated structure within a flood hazard area shall be secured to resist flotation, collapse, and displacement due to hydrostatic and hydrodynamic forces from floodwaters.

2. Construction equipment shall not be stored, staged or driven within any channel, freshwater wetland or transition area, unless expressly approved by this permit and/or described on the approved plans.

3. All sediment barriers and other soil erosion control measures shall be installed prior to commencing any clearing, grading or construction onsite, and shall be maintained in proper working condition throughout the entire duration of the project.

4. After all in-channel activities are completed, native stream bed material must be replaced within the channel. This material must be contoured to mimic the original physical characteristics of the channel (such as its shape, width, slope, thalweg, meander, and ratio of shallow areas to deep areas,) in order to provide low-flow aquatic passage throughout the entire disturbed area.

5. The riprap proposed within the channel must be carefully imbedded into the channel substrate and contoured to mimic the original physical characteristics of the channel (such as its shape, slope, thalweg and meander) in order to provide low-flow aquatic passage throughout the entire disturbed area. Furthermore, any void spaces within the riprap must be filled with native substrate from the channel.

6. De-watering of cofferdams must include properly sized temporary sediment basins or other filtering methods to reduce turbidity. The stream area to receive return water discharged from cofferdams must be encompassed by a turbidity barrier. The turbidity barrier must be located parallel to the stream banks and anchored to the shoreline to maintain freeflow of the stream center. In order to avoid obstruction of stream flows or fish passage, turbidity barriers must not be placed across the entire stream channel.

7. Construction may only occur while the stream area is dry or in a de-watered condition. No work may be performed where the stream channel is wet.

8. All excavated and dredged material must be disposed of in a lawful manner outside of any flood hazard area, riparian zone, open water, freshwater wetland, and adjacent transition area, and in such a way as to not interfere with the positive drainage of the receiving area.

9. The Division has determined that the riparian zone required adjacent to the portions of The Wallkill River and its tributaries associated with The Liberty Loop Trail is **50 feet**. The Division has also determined that the riparian zone required adjacent to the portions of The Wallkill River tributaries associated with The Dagmar Dale Trail is **300 feet**. Please note that **any unapproved clearing of trees or other vegetation in the riparian zone is prohibited.**

10. The authorized activities shall comply with the applicable conditions set forth under N.J.A.C. 7:7A-5.7, 7.10B, and 20.2. Failure to comply with these conditions shall constitute a violation of the Freshwater Wetlands Protection Act (N.J.S.A. 13:9B-1 et. seq.). Any additional un-permitted disturbance of freshwater wetlands, State open waters, or transition areas besides that shown on the approved plans shall be considered a violation of the Freshwater Wetlands Protection Act Rules unless the activity is exempt or a permit is obtained from the Department prior to the start of the disturbance.

11. The Department has determined that the freshwater wetlands affected by this permit authorization are of **Exceptional** resource value and the standard transition area or buffer required adjacent to these wetlands is **300** feet. This general permit includes a transition area waiver, which allows encroachment only in that portion of the transition area, which has been determined by the Department to be necessary to accomplish the regulated activities. Any additional regulated activities conducted within the standard transition area onsite shall require a separate transition area waiver from the Division. Regulated activities within a transition area are defined at N.J.A.C. 7:7A-2.3.

Please refer to the Freshwater Wetlands Protection Act (N.J.S.A. 13:9B-1 et seq.) and implementing Rules (N.J.A.C. 7:7A) for additional information.

12. In order to protect the general game fisheries resource within The Wallkill River and its tributaries, any proposed grading or construction activities within the banks of this watercourse are **prohibited from May 1 through July 31** of each year. In addition, any activity which would introduce sediment into said watercourse or which could cause more than a minimum increase in the natural level of turbidity is also prohibited anytime, but especially during this period. The Department reserves the right to require additional soil conservation measures if it becomes evident that additional soil conservation measures are required to protect State regulated resources, or to suspend all regulated activities on-site should it be determined that the permittee has not taken proper precautions to ensure continuous compliance with this condition.

13. To reduce the risk of harm to Indiana Bat, Northern Long-eared Bat, and Tricolored Bat (proposed federal listing), and to reduce the risk of direct impacts to sensitive habitat, the Permittee shall adhere to a seasonal restriction on the clearing of all woody vegetation from April 1 through November 15 of each calendar year.

14. To minimize the chance of injury to bog turtles and other native reptile and amphibian species that may be present in the vicinity of The Dagmar Dale Trail, the Contractor will implement one of the below measures at The Dagmar Trail sites where construction is proposed within or immediately adjacent to wetlands:

    i. At the start of construction, a qualified herpetologist will survey the proposed work area for bog turtles. The herp monitor must then oversee the immediate installation of a turtle exclusion barrier (e.g., straw bales, heavy duty silt fence, other approved barrier) that completely encompasses the work area; or

    ii. At the start of each construction day, the herp monitor will visually "sweep" work area for turtles immediately prior to the vehicle or equipment entering the area. The herp monitor will carefully check any areas with vegetation or deep muck that could obscure a turtle from view.

    The herp monitor will also survey trails or access roads for turtles ahead of vehicles when moving equipment between the work sites and/or staging areas associated with The Dagmar Dale Trail.

    If a bog turtle is found, the herp monitor and a refuge biologist will determine whether the turtle can simply be moved out of the way (e.g., if found on trail outside of work area), or if work needs to be paused until turtle exclusion measures (see above) can be installed to keep turtles out of the work area (e.g. if found in wetland in close proximity to where construction is occurring). The monitor must have the authority to pause construction activities.

15. To protect habitat for Wood Turtles (State-listed, threatened) within and adjacent to the portions of the Wallkill River associated with the Dagmar Dale Trail, the Permittee shall adhere to the following:

    i. To prevent adverse impacts to hibernating turtles (i.e. in-stream work including stream bank excavation):

        a. No site preparation, disturbance, grading, clearing or construction activity is permitted within the banks of the referenced watercourse between November 1 and April 1 of each calendar year.

b. If a coffer dam or similar structure is proposed to completely enclose the work area, work may occur during this restricted period provided the coffer dam installation is completed prior to November 1 and thereafter completely precludes turtles from accessing the work area to rest or hibernate. This must include appropriate bank-side fencing to preclude terrestrial access to the coffer dam work area. Immediately after installation of the work area enclosure, a qualified herpetologist must thoroughly inspect the enclosed area for wood turtles. Please note the qualified herpetologist is required to obtain a scientific collecting permit from NJDEP, Division of Fish and Wildlife, Endangered and Nongame Species Program (ENSP). Any wood turtles found must immediately be reported to the ENSP and carefully relocated outside of the proposed work area. Once this inspection is complete, authorized activities may commence within the coffer dammed work area.

ii. To prevent adverse impacts to resting, breeding or foraging habitats for wood turtles within the regulated areas (Freshwater Wetlands/Transition Areas/Riparian Zone) associated with the referenced watercourses no activities authorized for The Dagmar Dale Trail may commence from April 1 through May 30 and September 1 through November 15 of the calendar year unless the following measures have been taken:

a. Prior to the commencement of site preparation, disturbance, grading, clearing or construction activity within landscape valued as habitat for threatened or endangered herptile species, the Permittee shall install a temporary fence made of synthetic filtration fabric or geo-textile filtration fabric around the footprint of all proposed activities (temporary and permanent) that is sufficient in height to preclude small wildlife species from entering the proposed work area.

b. Upon installation, a qualified herpetologist with a valid Scientific Collecting Permit issued by the NJDEP DFW-ENSP shall survey the work area. Any wood turtles, bog turtles, and other State-listed species found must be reported to the NJDEP DFW-ENSP, and safely relocated outside of the proposed work area. The qualified herpetologist shall be present during all onsite work (e.g., clearing of vegetation, demolition, excavation, site preparation, etc.) and shall survey the fenced in work area prior to commencement of work each day of activity and throughout each workday to "clear" the project limit of disturbance, temporary workspaces, and staging areas of amphibians and reptiles. Work activity shall cease where any animals are observed until the qualified herpetologist can carefully move the animal to safety beyond the exclusion fence.

c. The exclusion fence must be monitored weekly and maintained in satisfactory working condition until project completion.

iii. The Department reserves the right to suspend all regulated activities onsite should it be determined that the permittee has not taken proper precautions to ensure continuous compliance with this condition.

16. **Material Disposal:** All excavated material and dredge material shall be disposed of in a lawful manner. The material shall be placed outside of any flood hazard area, riparian zone, regulated water, freshwater/coastal wetlands, and adjacent transition area, and in such a way as to not interfere with the positive drainage of the receiving area.

17. Vegetation within the freshwater wetlands, wetlands transition area, and riparian zone onsite shall only be disturbed in the areas specifically shown on the approved drawings and upon completion of

the project, all temporarily disturbed areas shall be replanted with native, non-invasive vegetation appropriate for the hydrologic conditions of the area.

18. The permittee shall take all measures necessary to ensure the authorized activities do not alter or interfere with the natural hydrology of the area.

19. Upon completion of the project, the permittee must incorporate features designed to educate the user about the importance of riparian zones, flood hazard areas, stream corridors, freshwater wetlands, transition areas, and State open waters as per N.J.A.C. 7:7A-7.17 and 7:13-9.3 of the Freshwater Wetlands Protection Act and Flood Hazard Control Act Rules.

20. If the permittee, before or during the work authorized, encounters a possible historic property, as described at N.J.A.C. 7:7A-19.5(l), that is or may be eligible for listing in the New Jersey or National Register, the permittee shall preserve the resource, and immediately notify the Department and proceed as directed.

21. This authorization for a General Permit is valid for a term not to exceed five years from the date of this permit. If the permittee wishes to continue an activity covered by the permit after the expiration date of the permit, the permittee must apply for and obtain a permit extension or a new permit, prior to the permit's expiration. If the term of the authorization exceeds the expiration date of the general permit issued by rule, and the permit upon which the authorization is based is modified by rule to include more stringent standards or conditions, or is not reissued, the applicant must comply with the requirements of the new regulations by applying for a new GP authorization or an Individual permit.

STANDARD CONDITIONS:

1. The issuance of a permit shall in no way expose the State of New Jersey or the Department to liability for the sufficiency or correctness of the design of any construction or structure(s). Neither the State nor the Department shall, in any way, be liable for any loss of life or property that may occur by virtue of the activity or project conducted as authorized under a permit.

2. The issuance of a permit does not convey any property rights or any exclusive privilege.

3. The permittee shall obtain all applicable Federal, State, and local approvals prior to commencement of regulated activities authorized under a permit.

4. A permittee conducting an activity involving soil disturbance, the creation of drainage structures, or changes in natural contours shall obtain any required approvals from the Soil Conservation District or designee having jurisdiction over the site.

5. The permittee shall take all reasonable steps to prevent, minimize, or correct any adverse impact on the environment resulting from activities conducted pursuant to the permit, or from noncompliance with the permit.

6. The permittee shall immediately inform the Department of any unanticipated adverse effects on the environment not described in the application or in the conditions of the permit. The Department may, upon discovery of such unanticipated adverse effects, and upon the failure of the permittee to submit a report thereon, notify the permittee of its intent to suspend the permit.

7. The permittee shall immediately inform the Department by telephone at (877) 927-6337 (WARN DEP hotline) of any noncompliance that may endanger public health, safety, and welfare, or the

environment. The permittee shall inform the Watershed & Land Management by telephone at (609) 777-0454 of any other noncompliance within two working days of the time the permittee becomes aware of the noncompliance, and in writing within five working days of the time the permittee becomes aware of the noncompliance. Such notice shall not, however, serve as a defense to enforcement action if the project is found to be in violation of this chapter. The written notice shall include:

i. A description of the noncompliance and its cause;

ii. The period of noncompliance, including exact dates and times;

iii. If the noncompliance has not been corrected, the anticipated length of time it is expected to continue; and

iv. The steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

8. Any noncompliance with a permit constitutes a violation of this chapter and is grounds for enforcement action, as well as, in the appropriate case, suspension and/or termination of the permit.

9. It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the authorized activity in order to maintain compliance with the conditions of the permit.

10. The permittee shall employ appropriate measures to minimize noise where necessary during construction, as specified in N.J.S.A. 13:1G-1 et seq. and N.J.A.C. 7:29.

11. The issuance of a permit does not relinquish the State's tidelands ownership or claim to any portion of the subject property or adjacent properties.

12. The issuance of a permit does not relinquish public rights to access and use tidal waterways and their shores.

13. The permittee shall allow an authorized representative of the Department, upon the presentation of credentials, to:

i. Enter upon the permittee's premises where a regulated activity, project, or development is located or conducted, or where records must be kept under the conditions of the permit;

ii. Have access to and copy, at reasonable times, any records that must be kept under the conditions of the permit;

iii. Inspect, at reasonable times, any facilities, equipment, practices, or operations regulated or required under the permit. Failure to allow reasonable access under this paragraph shall be considered a violation of this chapter and subject the permittee to enforcement action; and

iv. Sample or monitor at reasonable times, for the purposes of assuring compliance or as otherwise authorized by the Federal Act, by the Freshwater Wetlands Protection Act, or by any rule or order issued pursuant thereto, any substances or parameters at any location.

14. The permittee shall not cause or allow any unreasonable interference with the free flow of a regulated water by placing or dumping any materials, equipment, debris or structures within or

adjacent to the channel while the regulated activity, project, or development is being undertaken. Upon completion of the regulated activity, project, or development, the permittee shall remove and dispose of in a lawful manner all excess materials, debris, equipment, and silt fences and other temporary soil erosion and sediment control devices from all regulated areas.

15. The permittee and its contractors and subcontractors shall comply with all conditions, site plans, and supporting documents approved by the permit.

16. All conditions, site plans, and supporting documents approved by a permit shall remain in full force and effect, so long as the regulated activity, project, or development, or any portion thereof, is in existence, unless the permit is modified pursuant to the rules governing the herein approved permits.

17. The permittee shall perform any mitigation required under the permit in accordance with the rules governing the herein approved permits.

18. If any condition or permit is determined to be legally unenforceable, modifications and additional conditions may be imposed by the Department as necessary to protect public health, safety, and welfare, or the environment.

19. Any permit condition that does not establish a specific timeframe within which the condition must be satisfied (for example, prior to commencement of construction) shall be satisfied within six months of the effective date of the permit.

20. A copy of the permit and all approved site plans and supporting documents shall be maintained at the site at all times and made available to Department representatives or their designated agents immediately upon request.

21. The permittee shall provide monitoring results to the Department at the intervals specified in the permit.

22. A permit shall be transferred to another person only in accordance with the rules governing the herein approved permits.

23. A permit can be modified, suspended, or terminated by the Department for cause.

24. The submittal of a request to modify a permit by the permittee, or a notification of planned changes or anticipated noncompliance, does not stay any condition of a permit.

25. Where the permittee becomes aware that it failed to submit any relevant facts in an application, or submitted incorrect information in an application or in any report to the Department, it shall promptly submit such facts or information.

26. The permittee shall submit email notification to the Bureau of Coastal & Land Use Compliance & Enforcement at CLU_tomsriver@dep.nj.gov at least 3 days prior to commencement of site preparation and/or regulated activities, whichever comes first. The notification shall include proof of completion of all pre-construction conditions, including proof of recording of permits, approved plans and/or conservation easements, if required. The permittee shall allow an authorized Bureau representative on the site to inspect to ensure compliance with this permit.

27. The permittee shall record the permit, including all conditions listed therein, with the Office of the County Clerk (the Registrar of Deeds and Mortgages, if applicable) of each county in which the site

is located. The permit shall be recorded within 30 calendar days of receipt by the permittee, unless the permit authorizes activities within two or more counties, in which case the permit shall be recorded within 90 calendar days of receipt. Upon completion of all recording, a copy of the recorded permit shall be forwarded to Watershed & Land Management through the DEP Online service. The uploaded documents will go directly into the Department's database, and staff will be notified that information has been received. The service can be found at: https://dep.nj.gov/wlm/eservices/lrp-eservices/.

APPROVED PLANS:

The drawings hereby approved consist of 31 sheets prepared by the U.S. Department of Transportation Federal Highway Administration. Office of Federal Lands Highway, entitled:

"WALLKILL RIVER NATIONAL WILDLIFE REFUGE DRAINAGE PROFILES"

"DAGMAR TRAIL SITE #1 STA. 1+08", sheet No. A-K01;

"DAGMAR TRAIL SITE #6 STA. 90+54", sheet No. A-K04;

"WALLKILL RIVER NATIONAL WILDLIFE REFUGE LOCATION MAP LIBERTY LOOP TRAIL & DAGMAR DALE TRAIL", sheet 5 of 89, dated June 12, 2024, unrevised

"WALLKILL RIVER NATIONAL WILDLIFE REFUGE IMPACT MAP", dated December 12, 2024, unrevised, unless otherwise noted

"DAGMAR DALE NATURE TRAIL SITE #1 1+02 TO 1+15", sheet 49 of 89,

"DAGMAR DALE NATURE TRAIL SITE #2 10+60 TO 12+25", sheet 50 of 89,

"DAGMAR DALE NATURE TRAIL SITE #3", sheet 51 of 89, dated December 17, 2024

"DAGMAR DALE NATURE TRAIL SITE #4", sheet 52 of 89, dated December 17, 2024

"DAGMAR DALE NATURE TRAIL SITE #5 80+00 TO 83+90", sheet 53 of 89,

"DAGMAR DALE NATURE TRAIL SITE #6 90+04 TO 90+91", sheet 54 of 89, dated December 17, 2024

"LIBERTY LOOP TRAIL SITE #300 3+00 TO 4+70", sheet 55 of 89

"LIBERTY LOOP SITE #300 4+70 TO 06+00", sheet 56 of 89

"LIBERTY LOOP TRAIL SITE #812 8+12 TO 11+07", sheet 57 of 89

"LIBERTY LOOP TRAIL SITE #812 11+07 TO 13+97", sheet 58 of 89

"LIBERTY LOOP TRAIL SITE #812 13+97 TO 16+24", sheet 59 of 89

"LIBERTY LOOP TRAIL SITE #878 8+78 TO 10+73", sheet 60 of 89

"LIBERTY LOOP TRAIL SITE #878 10+73 TO 12+63", sheet 61 of 89

"LIBERTY LOOP TRAIL SITE #878 12+63 TO 14+53", sheet 62 of 89

"LIBERTY LOOP TRAIL SITE #878 14+53 TO 16+43", sheet 63 of 89

"LIBERTY LOOP TRAIL SITE #878 16+43 TO 17+58", sheet 64 of 89

"LIBERTY LOOP TRAIL SITE #1431 14+31 TO 17+26", sheet 65 of 89, dated December 17, 2024

"LIBERTY LOOP TRAIL SITE #1431 17+26 TO 20+16", sheet 66 of 89

"LIBERTY LOOP TRAIL SITE #1431 20+16 TO 23+06", sheet 67 of 89

"LIBERTY LOOP TRAIL SITE #1431 23+06 TO 25+96", sheet 68 of 89

"LIBERTY LOOP TRAIL SITE #1431 25+96 TO 28+62", sheet 69 of 89

"LIBERTY LOOP TRAIL SITE #1450 14+50 TO 17+07", sheet 70 of 89

"LIBERTY LOOP TRAIL SITE #1450 17+07 TO 20+39", sheet 71 of 89

"LIBERTY LOOP TRAIL SITE #1450 20+39 TO 23+31", sheet 72 of 89

"LIBERTY LOOP TRAIL SITE #1450 23+31 TO 26+23", sheet 73 of 89

"LIBERTY LOOP TRAIL SITE #1450 26+23 TO 29+00", sheet 74 of 89

"FLOOD HAZARD AREA DAGMAR DALE NATURE TRAIL SITE #1", sheet 77 of 89

"FLOOD HAZARD AREA DAGMAR DALE NATURE TRAIL SITE #6", sheet 78 of 89, dated December 17, 2024

APPEAL OF DECISION:

Any person who is aggrieved by this decision may submit an adjudicatory hearing request within 30 calendar days after public notice of the decision is published in the DEP Bulletin (available at https://dep.nj.gov/bulletin/). If a person submits the hearing request after this time, the Department shall deny the request. The hearing request must include a completed copy of the Administrative Hearing Request Checklist (available at https://dep.nj.gov/wlm/forms/). A person requesting an adjudicatory hearing shall submit the original hearing request to: NJDEP Office of Administrative Hearings and Dispute Resolution, Attention: Adjudicatory Hearing Requests, Mail Code 401-07A, P.O. Box 420, 401 East State Street, 7th Floor, Trenton, NJ 08625-0420. Additionally, a copy of the hearing request shall be submitted to the Director of Watershed & Land Management at the address listed on page one of this permit. In addition to your hearing request, you may file a request with the Office of Dispute Resolution

to engage in alternative dispute resolution. Please see www.nj.gov/dep/odr for more information on this process.

If you need clarification on any section of this permit or conditions, please contact Watershed & Land Management's Technical Support Call Center at (609) 777-0454.

Approved By:

_____

Dennis Contois, Supervisor
Watershed & Land Management

c: Municipal Clerk, Vernon Twp
Municipal Construction Official, Vernon Twp

Upper Delaware Soil Conservation District
51 Main St., Suite B
PO Box 198
Blairstown, NJ 07825
908-852-2579
upperdelawarescd-nj.com

January 8, 2025

FHWA
22001 Loudoun County Pkwy, Suite 200, Building E2
Ashburn, VA 20147

Pursuant to the New Jersey Soil Erosion and Sediment Control Act, Chapter 251, P.L. 1975 as amended, the Upper Delaware Soil Conservation District has reviewed this project application and:

☒ Approves the Soil Erosion Control Plan
☐ Approves the Soil Erosion Control Plan with Conditions (see attached)
☐ Rules the Plan incomplete (see attached)
☐ Denies the application without prejudice (see attached)

Name of Project: NWR Trail Repairs — Project # 25109VR

Township: Vernon — Approval Date: 1/8/25

Block(s) 570 Lot(s) 11 — Expiration Date: 7/2028

Plan Date: 12/2024

The District shall be represented at the project pre-construction meeting with the township engineer, excavating contractors, utility representatives, and applicant. If the township engineer does not schedule a pre-construction meeting, it is the responsibility of the owner/applicant to schedule the meeting prior to any land disturbance.

This letter is not an endorsement of this project. Plan approval is strictly for compliance with the Soil Erosion and Sediment Control Act, N.J.S.A. 4:24–39 et. seq., (l. 1975, c. 251, as amended, L. 1979, c. 459). This plan approval is limited to the erosion and sediment controls as specified in this application and accompanying documents. It is not authorization to engage in a proposed land use or other activity that may be governed or regulated by other Township, County, State or Federal government agencies.

Formal written notification at least 48 hours prior to commencing **ANY SOIL DISTURBANCE** on this project is required.

Sylvia Kovacs, Chairwoman

State of New Jersey

PHILIP D. MURPHY
Governor

TAHESHA L. WAY
Lieutenant Governor

DEPARTMENT OF AGRICULTURE
PO Box 330
TRENTON NJ 08625-0330

EDWARD D. WENGRYN
Secretary

January 8, 2024

FHWA
22001 Loudoun County Pkw, Suite 200, Bldg E2
Ashburn

Re: **NWR Trail Repairs**
Chapter 251 Identification Number: 25109VR
SCD Certification Code: FEHB3U5P7C
Acres: 2
Block(s): 570 Lot(s): 11

Dear Applicant:
Your proposed project requires a Stormwater Construction General Permit (5G3) pursuant to N.J.A.C. 7:14 A. As the applicant, you are required to submit applications and payment electronically utilizing the NJDEP Stormwater Construction Activity E-Permitting System.

You must file for this permit prior to starting soil disturbing activities.

In order to access the E-permitting system you must first become a registered user of NJDEP Online at http://www.nj.gov/dep/online. Once registered, the following information is required to complete the E-Permit, Stormwater Construction General Permit Request for Authorization (RFA).

1. The Application/ Project name.

2. The location of the site – Physical Address, NJ State Plane Coordinates, Block(s) and Lot(s).

3. Highlands Area Approval/ Exemption (*if site is located within the Highlands*)

4. Contact information (*address, email, and phone*) for – Fees/ Billing contact, Owner, and Permittee.

5. Chapter 251 Identification Number and SCD Certification Code (***provided above****)

> *These codes are unique to your stormwater RFA and Chapter 251 approval. Enter these codes in the E-permitting system, on the screen titled "SCD Certified Plan". The codes are **case sensitive** and each code may only be used once.

6. Area of land disturbance (***provided above***)

7. The date activity will commence.

8. Identification number of all existing NJPDES permits for the facility.

9. A project description and description of current land use.

10. Certification PIN (*this PIN is generated and emailed to you when registering a NJDEP online account*).

11. A method of payment – checking/ savings account, voucher payment, credit card

If you have any questions regarding this information or any other aspect of the E-Permitting system please contact Daniel Kuti, NJDEP Bureau of Nonpoint Pollution Control at (609) 633-7021 or at PortalComments@dep.state.nj.us

New Jersey Department of Agriculture Soil Erosion and Sediment Control Program

Soil Compaction Mitigation Verification Form

Authority: N.J.S.A. 4:24-39 et seq, and P.L. 2010, Chpt. 113

Instructions. This form is to be used only when your soil erosion and sediment control plan denotes areas of the site that are subject to soil compaction mitigation (testing and/or remediation) in accordance with the Standard for Land Grading, N.J.A.C. 2:90-1.3 (a)2, Chpt. 19 (rev. 2017). You have the option to test subsoil in areas of your site for excessive soil compaction. However, remediation (tilling or ripping 6" deep) is required in these areas if testing determines that subsoils are excessively compacted (see below). This form must be filled out completely and submitted to the local soil conservation district prior to the district performing a Report of Compliance inspection.

If an inspection is being requested during a non-growing season (typically summer and winter), testing and/or remediation work may be postponed (box III below) until the next optimum growing season. A new self-certification form will be required at that time when compaction testing or remediation, and vegetation establishment is done.

Date_____ Project Name_____ SCD # _____

County_____ Municipality_____

Street Address _____Block_____ Lot____

Name of person performing the test (print)_____
(Attach NJPE Certification for Tube[1] or Densitometer Test[2])

Organization/Affiliation with project owner_____

Certification: I hereby certify that the test(s) and / or remediation procedures performed on the subject property were conducted by me or under my supervision and that the information accompanying this form represents the actual work or testing which took place in accordance with the requirements for "Soil Management and Preparation" under the Standard for Land Grading.

Signature _____ Date _____

Place a check ☒in the appropriate category below.

☐ **I. Testing for Presence of Soil Compaction in subsoil.** ☐ **Check here to indicate passing test results.**
Attach copy of plan, plan portion or sketch showing locations where compaction was tested.
Wire test- Insert 15 gage wire (i.e. survey flag) to a 6" depth in subsoil without bending, minimum.
Penetrometer – 6" deep at less than 300 psi, minimum.
For Tube[1] and Densitometer[2] Tests – report direct reading of bulk density in gm/cc, as specified in table 19-1, "Maximum Dry Bulk Densities by soil type, Standard for Land Grading. **Attach certified test results.**

Type of test (circle) Wire Test Penetrometer Tube Bulk Density Test [1] Nuclear Densitometer[2]

☐ **II. Remediation Work Performed.** (performed in lieu of testing or as a result of test failure)
Deep tillage of subsoil within area(s) shown on plan, minimum, of 6" deep, prior to topsoil application. Attach a copy of plan, plan portion or sketch showing locations where remediation was performed.

☐ **III. Non-Growing Season Postponement.**
Testing and/ or remediation has been postponed due to non-growing season conditions. Either testing or remediation will be conducted for this property at the beginning of the next growing season (following spring or fall) at which time this form will be resubmitted.

District Use Only.
Received by_____ Date _____

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[1] This test shall be certified by a New Jersey Licensed Professional Engineer utilizing only undisturbed samples (reconstitution of the sample not permitted) collected utilizing the procedure for Soil Bulk Density Tests as described in the USDA NRCS Soil Quality Test Kit Guide, Section 1-4, July 2001.
[2] This test shall be certified by a New Jersey Licensed Professional Engineer and conducted by a nuclear gauge certified inspector pursuant to ASTM D6938.

ENCLOSURE 7

NEW YORK STATE | Department of Environmental Conservation

KATHY HOCHUL
Governor

AMANDA LEFTON
Commissioner

December 18, 2025

Via Email (Stephan.A.Ryba@usace.army.mil , Martin.P.Wargo@usace.army.mil) and US Mail

Stephan A. Ryba, Chief, Regulatory Branch
New York District
U.S. Army Corps of Engineers
Jacob K. Javits Federal Building
26 Federal Plaza
New York, NY 10278-0090

Martin P. Wargo, Chief, Regulatory Branch
Buffalo District
U.S. Army Corps of Engineers
478 Main Street
Buffalo, NY 14202

Re: **Section 401 Water Quality Certification Decision**
United States Army Corps of Engineers Nationwide Permits

Dear Mr. Ryba and Mr. Wargo,

On June 18, 2025, the United States Army Corps of Engineers (Corps) published a notice in the Federal Register (Vol. 90, No. 116) announcing its proposal to reissue 56 Nationwide Permits issued pursuant to Section 10 of the Rivers and Harbors Act of 1899 and Section 404 of the Clean Water Act (Nationwide Permits or NWPs). Additionally, in a letter dated June 18, 2025, the New York and Buffalo Corps Districts jointly requested the New York State Department of Environmental Conservation's (DEC) Section 401 Water Quality Certification (Water Quality Certification) decision on the proposed Nationwide Permits for actions where DEC is the certifying authority.[1] The deadline for reasonable period of time established for DEC's response to the certification request is December 18, 2025.

This letter provides DEC's decision on the Corps' Water Quality Certification request for activities in New York State only where DEC is the certifying authority. In issuing this decision, DEC has complied with its public notice procedures established pursuant to Clean Water Act Section 401(a)(1). This decision has no effect on activities undertaken in New York State where DEC is not the certifying authority; such activities are subject to the Water Quality Certification decisions of the applicable certifying authorities.

Because Section 401 of the Clean Water Act does not apply to Nationwide Permits solely issued pursuant to Section 10 of the Rivers and Harbors Act of 1899, Water Quality Certification is not required. Accordingly, this response does not apply to the Nationwide Permits listed in Attachment 1 to this letter. Instead, this Water Quality Certification decision applies only to the proposed Nationwide Permits that the Federal Register notice indicated would be issued pursuant to Section 404 of the Clean Water Act and require Section 401 Water Quality Certification. In the event any final Nationwide Permits include substantial changes in the scope of the proposed Nationwide Permit activities or their associated conditions, DEC reserves its rights to revoke or modify this Water Quality Certification decision.

[1] For actions within New York State where DEC is not the certifying authority, separate requests from the Corps for Section 401 Water Quality Certification decisions have been sent to the United States Environmental Protection Agency, the Seneca Nation of Indians, the St. Regis Mohawk Tribe, the New York State Department of Public Service and the New York State Office of Renewable Energy Siting.

DEC denies blanket Water Quality Certification for those Section 404 Nationwide Permits listed in Attachment 2 to this letter and conditionally grants blanket Water Quality Certification for the Section 404 Nationwide Permits listed in Attachment 3 to this letter. Individual Water Quality Certifications will be required for those activities where Water Quality Certification has been denied, or that do not meet the conditions of the blanket Water Quality Certification, where granted. An individual certification request must, at a minimum, follow the requirements outlined in 40 CFR §121.5 of the Clean Water Act §401 Certification Rule, effective November 27, 2023, along with DEC's regulatory requirements in 6 NYCRR § 608.9, 6 NYCRR Part 621, and relevant information identified on DEC's website.

DEC issued its last Water Quality Certification decisions on the Nationwide Permits on October 15, 2021, effective through March 14, 2026.[2] Unless and until the proposed Nationwide Permits are finalized, the Nationwide Permits finalized by the Corps in 2020 and 2021 remain in effect, along with DEC's 2021 Water Quality Certification decisions. There may also be some projects that the Corps provides with continued coverage under the 2020 and 2021 Nationwide Permits after the proposed Nationwide Permits are finalized. Any projects provided with continuing coverage under the 2020 or 2021 Nationwide Permits would also be subject to DEC's 2021 Water Quality Certification decisions. Otherwise, the effective date and expiration date of this Water Quality Certification decision will be concurrent with the effective date and expiration date of any final Nationwide Permits.

We await the Corps' final decision on the proposed Nationwide Permits. In the meantime, if you have any questions, please feel free to contact me at 518-402-2125 or Scott.Sheeley@dec.ny.gov .

Sincerely,

Scott E. Sheeley

Scott E. Sheeley
Chief Permit Administrator

Attachments:
Attachment 1 – Nationwide Permits Not Requiring Water Quality Certification
Attachment 2 – Nationwide Permits Denied Water Quality Certification
Attachment 3 – Nationwide Permits Granted Conditional Blanket Water Quality Certification
Attachment 4 – Water Quality Requirements and Statements of Necessity for DEC Conditions pertaining to Nationwide Permits listed in Attachment 3

[2] The Corps finalized two groups of NWPs, some effective March 15, 2021, through March 14, 2026, and others effective February 25, 2022, through March 14, 2026. DEC's original blanket WQC decision on December 18, 2020, was applied to NWPs effective March 15, 2021, and the updated WQC decision on October 15, 2021, was applied to NWPs effective February 25, 2022. Both blanket WQC decisions were reflected in DEC's October 15, 2021, updated letter.

ATTACHMENT 1

The following Nationwide Permits require no Section 401 Water Quality Certification because they are authorized only under Section 10 of the Rivers and Harbors Act of 1899:

NWP 1. Aids to Navigation
NWP 2. Structures in Artificial Canals
NWP 8. Oil and Gas Structures on the Outer Continental Shelf
NWP 9. Structures in Fleeting and Anchorage Areas
NWP 10. Mooring Buoys
NWP 11. Temporary Recreational Structures
NWP 24. Indian Tribe or State Administered Section 404 Programs
NWP 28. Modifications of Existing Marinas
NWP 35. Maintenance Dredging of Existing Basins
NWP 55. Seaweed Mariculture Activities

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ATTACHMENT 3

The New York State Department of Environmental Conservation (DEC) grants Section 401 blanket Water Quality Certification (Blanket WQC) for activities undertaken pursuant to the Section 404 Nationwide Permits (Nationwide Permits or NWPs) listed below, subject to conditions. Anyone conducting activities authorized by these Nationwide Permits, where DEC is the certifying authority, must meet the applicable Blanket WQC conditions below, or apply for and obtain an individual Water Quality Certification from DEC in accordance with procedures at 40 CFR 121, 6 NYCRR § 608.9, and the New York State Uniform Procedures Act regulations (6 NYCRR Part 621). For more information on the application process, applicants may visit the DEC website at https://dec.ny.gov/regulatory/permits-licenses/waterways-coastlines-wetlands/protection-of-waters-program .

NWP 3. Maintenance
NWP 4. Fish and Wildlife Harvesting, Enhancement, and Attraction Devices and Activities
NWP 5. Scientific Measurement Devices
NWP 6. Survey Activities
NWP 7. Outfall Structures and Associated Intake Structures
NWP 13. Bank Stabilization
NWP 14. Linear Transportation Projects
NWP 15. U.S. Coast Guard Approved Bridges
NWP 18. Minor Discharges
NWP 19. Minor Dredging
NWP 20. Response Operations for Oil or Hazardous Substances
NWP 22. Removal of Vessels
NWP 23. Approved Categorical Exclusions
NWP 25. Structural Discharges
NWP 27. Aquatic Habitat Restoration, Establishment, and Enhancement Activities
NWP 29. Residential Developments
NWP 30. Moist Soil Management for Wildlife
NWP 31. Maintenance of Existing Flood Control Facilities
NWP 32. Completed Enforcement Actions
NWP 33. Temporary Construction, Access, and Dewatering
NWP 34. Cranberry Production Activities
NWP 36. Boat Ramps
NWP 37. Emergency Watershed Protection and Rehabilitation
NWP 39. Commercial and Institutional Developments
NWP 40. Agricultural Activities
NWP 41. Reshaping Existing Drainage Ditches
NWP 42. Recreational Facilities
NWP 43. Stormwater Management Facilities
NWP 45. Repair of Uplands Damaged by Discrete Events
NWP 46. Discharges in Ditches

NWP 48. Commercial Shellfish Mariculture Activities
NWP 51. Land-Based Renewable Energy Generation Facilities
NWP 53. Removal of Low-Head Dams
NWP 57. Electric Utility Line and Telecommunications Activities
NWP 58. Utility Line Activities for Water and Other Substances
NWP 59. Water Reclamation and Reuse Facilities
NWP A. Activities to Improve Passage of Fish and Other Aquatic Organisms

DEC Blanket Water Quality Certification Conditions

The conditions listed below are necessary to ensure that the discharges authorized under the Nationwide Permits (NWPs) listed in this Attachment 3 will comply with state water quality requirements. The conditions are organized as follows:

- Conditions 1 and 2 – Identify DEC state-level jurisdictions that, when applicable, qualify a project for this blanket Water Quality Certification (Blanket WQC). Conditions 3-17 are not applicable to activities qualifying for this Blanket WQC under Conditions 1 or 2.
- Condition 3 – Identifies activities and locations where this Blanket WQC does not apply. Individual Water Quality Certifications are required for projects where this Blanket WQC does not apply
- Conditions 4-17 – Identify thresholds and pollution control requirements that must be observed in carrying out activities authorized under NWPs in Attachment 3 where Conditions 1 and 2 do not apply or they are excluded under condition 3.

Where no NWP is specified in Conditions 3-17, the condition applies to all NWPs for which this Blanket WQC is granted, unless otherwise indicated. Where a specific NWP is identified in the Conditions 3-17, the condition applies to activities authorized under the identified NWP.

In accordance with 40 CFR § 121.7(d)(3), water quality requirements and statements of necessity for each condition in this Attachment 3 are provided in Attachment 4.

1. **DEC General and Individual Permits –** This Blanket WQC applies to any regulated discharges to Waters of the U.S. covered under a NWP listed in Attachment 3 where DEC confirms jurisdiction applicable to an applicant and specific project proposal under a general or individual permit pursuant to ECL Article 15, Title 5 (Protection of Waters), Article 15, Title 27 (Wild, Scenic, and Recreational Rivers), Article 24 (Freshwater Wetlands), Article 25 (Tidal Wetlands), or Article 34 (Coastal Erosion Management). Where such certification is granted, no other conditions contained in Attachment 3 of this Blanket WQC shall apply.

2. **DEC Emergency Authorizations** - This Blanket WQC applies to any regulated discharges to Waters of the U.S. covered under a NWP listed in Attachment 3 where DEC makes a finding of emergency pursuant to New York State Uniform Procedures Act regulations at 6 NYCRR § 621.12. Such a finding may also, but is not required to, include DEC emergency authorizations under ECL Article 15, Title 5 (Protection of Waters), Article 15, Title 27 (Wild, Scenic, and Recreational Rivers), Article 24 (Freshwater Wetlands), Article 25 (Tidal Wetlands), or Article 34 (Coastal Erosion Management). Where such certification is granted, no other conditions contained in Attachment 3 of this Blanket WQC shall apply.

3. **Scope of Blanket Certification –** This Blanket WQC does not authorize the following activities:

(3.a-3.k, Applicable to all NWPs)

a. Culvert rehabilitation projects that involve slip lining, invert paving, or similar treatments.
b. Construction of new bulkheads or vertical walls.
c. Waterward extension of existing bulkheads, except where minimally necessary to reface the bulkhead when in-place replacement is not feasible.
d. Any activity that results in a permanent water level alteration in waterbodies, such as draining or impounding, except for activities authorized by NWP 27.
e. Discharges likely to result in the take or taking of any species listed as endangered or threatened in 6 NYCRR Part 182.5 (a) or (b) or discharges likely to destroy or adversely modify the habitat of such listed species. To be eligible for coverage under this Blanket WQC, applicants must either verify that the activity is outside of the occupied habitat of such species or, if located within the habitat of such species, obtain a determination from the DEC Regional Office that the proposed activity is not likely to result in the take or taking of any species listed as endangered or threatened species listed in 6 NYCRR Part 182. Information on New York State endangered or threatened species may be obtained from the DEC regional offices, the New York Natural Heritage Program in Albany, New York or on the DEC website at https://dec.ny.gov/nature/animals-fish-plants/biodiversity-species-conservation/endangered-species/list .
f. Disturbances or discharges to waters of the United States that support mollusks listed as S-1 or S-2 on the New York State Natural Heritage database, unless DEC staff have determined that the project location does not contain mussels listed as S-1 or S-2 on the Natural Heritage database.
g. Any discharge occurring in a designated Significant Coastal Fish and Wildlife Habitat area pursuant to 19 NYCRR Part 602 (NYCRR, Title 19, Chapter XIII, Waterfront Revitalization of Coastal Areas and Inland Waterways). https://dos.ny.gov/significant-coastal-fish-wildlife-habitats
h. Projects that disturb greater than ¼ acre or 300 linear feet of waters of the United States within mapped Coastal Erosion Hazard Areas, as identified in New York State Environmental Conservation Law Article 34, and its implementing regulations, 6 NYCRR Part 505. https://www.dec.ny.gov/lands/86541.html
i. This Blanket WQC does not authorize activities subject to a license or blanket approval issued by the United States Federal Energy Regulatory Commission (FERC).
j. Maintenance or other activities associated with hydroelectric power generation projects.
k. For projects involving utility generation and transmission projects, this Blanket WQC does not authorize the construction of substation facilities or permanent access roads exceeding ¼ acre of impacts in wetlands or within the Federal Emergency Management Agency mapped 100-year floodplain.

(3.l-3.v, Applicable to the Specific NWPs Identified)

l. NWP 14. Linear Transportation Projects - This Blanket WQC does not authorize the construction of new linear transportation facilities (such as new roads or crossings structures in wetlands) located within a FEMA designated 100-year floodplain.
m. NWP 19. Minor Dredging -This Blanket WQC does not authorize any activities conducted under NWP 19 in tidal wetlands, as defined in Article 25 of New York State Environmental Conservation Law (https://www.dec.ny.gov/lands/4940.html), or in the marine and coastal district as described in Article 13 of New York State Environmental Conservation Law (ECL § 13-0103).
n. NWP 25. Structural Discharges – Except for bridges carrying vehicle traffic, the following restrictions apply to structural discharges:
    i. This Blanket WQC does not authorize structural discharges for any pile-supported structure with a surface area greater than 4,000 square feet.
    ii. This Blanket WQC does not authorize any structural support member with an area footprint greater than 64 square feet.
    iii. This Blanket WQC does not authorize piles or structural support members with spacing that has the effect of fill or that causes the buildup of bottom sediments due to wave action or shoreline drift.
o. NWP 27. Aquatic Habitat Restoration, Establishment, and Enhancement Activities - The following restrictions and conditions apply to aquatic habitat restoration, establishment, and enhancement activities:
    i. This Blanket WQC authorizes only restoration projects conducted with oversight by a federal or state natural resource agency, or a County Soil and Water Conservation District.
    ii. This Blanket WQC does not authorize stream restoration projects over 300 feet in length.
    iii. This Blanket WQC does not authorize filling done for shellfish restoration which results in an alteration of existing substrate and benthic habitat.
    iv. This Blanket WQC does not authorize the conversion of one wetland type to another or the conversion of lotic (flowing water) communities to wetland or lentic (standing water) communities.
p. NWP 29. Residential Developments - This Blanket WQC does not authorize construction of new residential developments in wetlands located within a FEMA-designated 100-year floodplain.
q. NWP 33. Temporary Construction, Access, and Dewatering - This Blanket WQC does not authorize activities that exist on-site for more than 180 days from the date of installation.
r. NWP 39. Commercial and Institutional Developments – This Blanket WQC does not authorize construction of new commercial and institutional developments in wetlands located within a FEMA-designated 100-year floodplain.
s. NWP 40. Agricultural Activities – This Blanket WQC authorizes only buildings necessary for the agricultural productivity of farmland, and does not authorize the following:
    i. This Blanket WQC does not authorize any discharge of dredged or fill material into streams. Alteration of natural stream courses is not authorized by this Blanket WQC.

ii. This Blanket WQC does not authorize non-agricultural buildings on farms such as roadside stands.
iii. This Blanket WQC does not authorize construction of ponds in wetlands.

t. NWP 41. Reshaping Existing Drainage Ditches – This Blanket WQC does not authorize in-stream channel re-shaping of Waters classified as “AA”, “A”, “B”, or “C” under Article 15 of New York State Environmental Conservation Law.
u. NWP 43. Stormwater Management Facilities – This Blanket WQC does not authorize the construction of new stormwater management facilities located within waters of the United States, except for outfall structures and emergency spillways.
v. NWP 48. Commercial Shellfish Mariculture Activities - This Blanket WQC does not authorize the expansion of aquaculture activities into new areas of a project.

4. **Non-contamination of Waters** - All necessary precautions shall be taken to preclude contamination of any waters of the United States by suspended solids, resins, sediments, fuels, solvents, lubricants, epoxy coatings, paints, concrete, leachate, inadvertent returns of drilling muds (“frac-outs”) or any other environmentally deleterious materials associated with the project.

5. **Installation, Rehabilitation, and Replacement of Culverts -** To be covered under this Blanket WQC, all the following criteria must be met for culvert installations, rehabilitations, and replacements:
   a. Culverts shall be designed to pass a storm event with an annual chance of 2% or less (i.e., 50-year storm event or greater) such that the water surface remains below the top of the inlet opening.
   b. All culverts with closed bottoms and culvert pipes must be appropriately embedded. Round culverts must be installed so that at least 20% of the culvert’s vertical height is embedded below the existing stream bed at the outlet end of the culvert.
   c. Width of the structure must be a minimum of 1.25 times (1.25X) width of the Mean High-Water Channel.
   d. The slope of the stream bed within or under the culvert shall remain consistent with the slope of the adjacent stream channel. For slopes greater than 3%, an open bottom culvert must be used.
   e. The culvert must not be located under a roadway that provide sole access to “Critical Facilities”.[3]
   f. This Blanket WQC does authorize the rehabilitation of culverts utilizing Cure in Place Pipe Lining (CIPP) or concrete spray lining for culverts which currently meet Nationwide Permit General Condition and other requirements pertaining to Aquatic Life Movements.

[3] Critical Facilities are defined as facilities designed for bulk storage of chemicals, petrochemicals, hazardous or toxic substances or floatable materials; hospitals, rest homes, correctional facilities, dormitories, patient care facilities; major power generation, transmission or substation facilities, except for hydroelectric facilities; major communications centers, such as civil defense centers; or major emergency service facilities, such as central fire and police stations. [See 6 NYCRR Part 502.4(a)(17)]

6. **Discharges and Disturbances Limits-** The following discharge and disturbance limits apply to this Blanket WQC:
   a. For NWPs 5, 7, 13, 14, 15, 18, 19, 23, 25, 29, 32, 34, 36, 37, 39, 40, 42, 45, 46, 48, 51, 53, 57 and non-maintenance activities under NWP 43, the following discharge limits apply:
      i. Temporary or permanent discharges of dredged or fill material into wetlands and other waters of the United States must not exceed ¼ acre;
      ii. Temporary or permanent impacts (i.e., loss) to stream beds, lake shorelines, and ocean shorelines must not exceed 300 linear feet; and
      iii. The discharge area limit under paragraph i above plus the equivalent stream, lake, or ocean impact area limit under paragraph ii above must not exceed ¼ acre total.
   b. For NWPs 3, 4, 6, 20, 22, 27, 30, 31, 33, 41, A, and maintenance activities under NWP 43, this Blanket WQC authorizes discharges and disturbances up to the limit of the respective Nationwide Permit or regional conditions, whichever is most restrictive.
   c. If a project requiring coverage under two or more Nationwide Permits listed in condition 6.a and 6.b above results in a temporary or permanent discharge or disturbance, the most restrictive threshold applies to the project.

7. **Bulkheads –** Activities involving bulkheads are restricted as follows:
   a. New toe-stone protection may not extend more than 36 inches waterward from the existing bulkhead face.

8. **Dewatering –** Dewatering activities must be conducted in the following manner:
   a. Authorized dewatering is limited to immediate work areas that are within coffer dams or otherwise isolated from the larger waterbody or waters of the United States.
   b. Dewatering must be localized and must not drain extensive areas of a waterbody or reduce the water level such that fish and other aquatic organisms are killed, or their eggs and nests are exposed to desiccation, freezing or depredation in areas outside of the immediate work site.
   c. Cofferdams or diversions shall not be constructed in a manner that causes or exacerbates erosion of the bed or banks of a waterbody.
   d. All dewatering structures must be permanently removed, and disturbed areas must be graded and stabilized immediately following completion of work. Return flows from the dewatering structure shall be as visibly clear as the receiving waterbody.

9. **Horizontal and Directional Drilling** – For projects that involve horizontal or directional drilling, the permittee must prepare and implement a plan that addresses prevention, containment and cleanup of inadvertent drilling fluid returns or “frac-outs”.

10. **Prohibition Period for In-water Work -** In-water work is prohibited in cold water trout fisheries (waterbodies classified under Article 15 of New York State Environmental Conservation Law with a "t" or "ts" designation), beginning October 1 and ending May 31.

    Water classification values can be found on the DEC's Environmental Resource Mapper available on DEC's website at https://gisservices.dec.ny.gov/gis/erm/. Applicants may also contact the Regional Fisheries Manager in the appropriate DEC regional office to determine the classification of the water body and whether the prohibition period applies.

11. **Preventing the Spread of Aquatic Invasive Species -** To prevent the unintentional introduction or spread of invasive species, the permittee must ensure that all construction equipment be cleaned of mud, seeds, vegetation, and other debris before entering any approved construction areas within waters of the United States. When using construction equipment, projects authorized under this Blanket WQC shall take reasonable precautions to prevent the spread of aquatic invasive species as required under the provisions in ECL § 9-1710.

12. **Utility Lines –** The following restrictions and conditions apply to activities involving utility line installation:
    a. Materials resulting from utility line trench excavation that are temporarily sidecast into waters of the United States must be used to backfill the trench or removed within 30 days of deposition.

13. **NWP 14. Linear Transportation Projects –** The following restrictions apply to transportation activities:
    a. Linear transportation activities that cross multiple waterbodies or cross the same waterbody at multiple locations, while viewed as multiple "single and complete" projects for the purposes of the Nationwide Permit program, will be considered by DEC as a single project for all crossings for the entire length of the project in New York State for the purpose of obtaining Water Quality Certification from New York State and determining the disturbance threshold of 300 linear feet or ¼ acre.

14. **NWP 41. Reshaping Existing Drainage Ditches –** The following restrictions and conditions apply to reshaping existing drainage ditches:
    a. Sidecast organic soils may not be stacked deeper than 18 inches or in such a way as to interfere with surface water flow.
    b. Sidecasting of non-organic soils into wetlands is prohibited.

15. **NWP 43 Stormwater Management Facilities -** This Blanket WQC authorizes the maintenance of existing storm water management facilities.

16. **NWP 53. Low-head Dam Removal** – The following restrictions and conditions apply to low-head dam removal projects undertaken pursuant to NWP 53:
    a. This Blanket WQC authorizes only those projects where heavy equipment will be kept out of flowing water. Adequate upland access to adjacent shoreline must be available and must not be associated with other jurisdictional natural resources (e.g., freshwater wetlands, habitat of endangered species, etc.)
    b. The physical composition of accumulated sediments shall be characterized by a grain size analysis of samples taken throughout the site adequate to properly represent all of the accumulated sediments. This Blanket WQC only applies where the physical composition of the accumulated sediment is at least 90% sand and gravel.
    c. This Blanket WQC only applies where at least one of the following criteria is met:
        i. the dam is less than six (6) feet high;
        ii. the dam impounds no more than one million gallons; or
        iii. the dam is less than fifteen (15) feet high and impounds no more than three million gallons

17. **NWPs 57 and 58 Utility Line Activities –** The following restrictions apply to utility line activities undertaken under NWPs 57 and 58:
    a. Materials resulting from utility line trench excavation that are temporarily sidecast into waters of the United States must be used to backfill the trench or removed within 30 days of deposition.
    b. Utility line activities that cross multiple waterbodies or cross the same waterbody at multiple locations, while viewed as multiple “single and complete” projects for the purposes of the Nationwide Permit program, will be considered by the DEC as a single project for all crossings for the entire length of the project in New York State for the purpose of obtaining Water Quality Certification from New York State and determining the disturbance threshold of 300 linear feet or ¼ acre.
    c. Buried utility lines that cross under streams must be placed at a depth to prevent future exposure of the line. A site-specific vertical adjustment potential (VAP) analysis, or similar engineering analysis, must be conducted by a licensed engineer to determine the proper depth for all lines except water lines.

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DEPARTMENT OF THE ARMY
NEW YORK DISTRICT, CORPS OF ENGINEERS
JACOB K. JAVITS FEDERAL BUILDING
26 FEDERAL PLAZA
NEW YORK NEW YORK 10278-0090

Regulatory Division March 18, 2026

SUBJECT: Permit Application Number NAN-2025-00648-MOR
by Federal Highway Administration

Kim Campo-Allen
Federal Highway Administration
22001 Loudon County Parkway
Building E-2, Suite 200
Ashburn, Virginia 20147

Dear Ms. Campo-Allen:

On February 25, 2026, the New York District of the U.S. Army Corps of Engineers received a request for Department of the Army authorization for the discharge of fill material into waters of the United States for the proposed reconstruction of storm-damaged portions of the Winding Waters Trail at the Wallkill River National Wildlife Refuge. The site is located in and adjacent to the Wallkill River, located off State Line Road in the Town of Warwick, Orange County, New York.

The submitted information indicates that the total impacts to waters of the United States would involve the permanent discharge of fill material into a maximum of 0.17 acres of waters and the temporary discharge of fill material into approximately 0.04 acres of waters. Upon completion of the work, all temporarily impacted areas would be restored to pre-construction contours. The work would be accomplished as shown on the following enclosed drawings:

- “Wallkill River National Wildlife Refuge Location Map Liberty Loop Trail & Winding Waters Trail”, prepared by the U.S. Department of Transportation Federal Highway Administration Office of Federal Lands Highway, undated;
- “Wallkill River National Wildlife Refuge Wetland & Stream Bed Impacts Winding Waters Trail Site #3 100+27 to 100+33”, prepared by the U.S. Department of Transportation Federal Highway Administration Office of Federal Lands Highway, undated;
- “Wallkill River National Wildlife Refuge Wetland & Stream Bed Impacts Winding Waters Trail Site #240 201+90 to 204+60”, prepared by the U.S. Department of Transportation Federal Highway Administration Office of Federal Lands Highway, undated; and
- “Wallkill River National Wildlife Refuge Wetland & Stream Bed Impacts Winding Waters Trail Site #324 300+04 to 303+90”, prepared by the U.S. Department of Transportation Federal Highway Administration Office of Federal Lands Highway, undated.

Based on the information submitted to this office, and accomplishment of notification in accordance with the applicable federal requirements, our review of the project indicates that an individual permit is not required. It appears that the activities within the jurisdiction of this office could be accomplished under Department of the Army Nationwide General Permit Number 14. The nationwide permits are prescribed as a Reissuance and Modification of Nationwide Permits in the Federal Register dated January 8, 2026 (91 FR 768). The work may be performed without further authorization from this office provided the activity complies with the permit conditions listed in Section B, No. 14, Section C, any applicable New York District regional conditions, the following special condition, and any applicable regional conditions added by the State of New York, copies enclosed. The 2026 nationwide general permits in the State of New York, including their regional conditions, water quality certifications, and coastal zone management concurrence statements are also available at: https://www.nan.usace.army.mil/Missions/Regulatory/Nationwide-Permits/.

Special Condition

(A) In order to protect the Federally-listed endangered Indiana bat (*Myotis sodalis*), the Federally-listed endangered northern long-eared bat (*Myotis septentrionalis*) and the Federally-proposed endangered tri-colored bat (*Perimyotis subflavus*), the clearing of potential roosting trees shall occur only between November 1 and March 31.

This determination covers only the work described in the submitted material. Any major changes in the project may require additional authorization from the New York District.

Care should be taken so that construction materials, including debris, do not enter any waterway to become drift or pollution hazards. You are to contact the appropriate state and local government officials to ensure that the subject work is performed in compliance with their requirements.

This verification is valid until **March 15, 2031**, unless the nationwide permit is modified, reissued, or revoked. This verification will remain valid until March 15, 2031, as long as the activity complies with the terms of any subsequent modifications of the nationwide permit authorization. If the nationwide permits are suspended, revoked, or modified in such a way that the activity would no longer comply with the terms and conditions of a nationwide permit, and the proposed activity has commenced, or is under contract to commence, the permittee shall have 12 months from the date of such suspension, revocation or modification to complete the activity.

Within 30 days of the completion of the activity authorized by this permit and any mitigation required by this permit, you are to sign and submit the attached compliance certification form to this office.

In order for us to better serve you, please complete our Customer Service Survey located at https://www.nan.usace.army.mil/Missions/Regulatory/Customer-Survey/.

If any questions should arise concerning this matter, please contact the undersigned at Brian.A.Orzel@usace.army.mil.

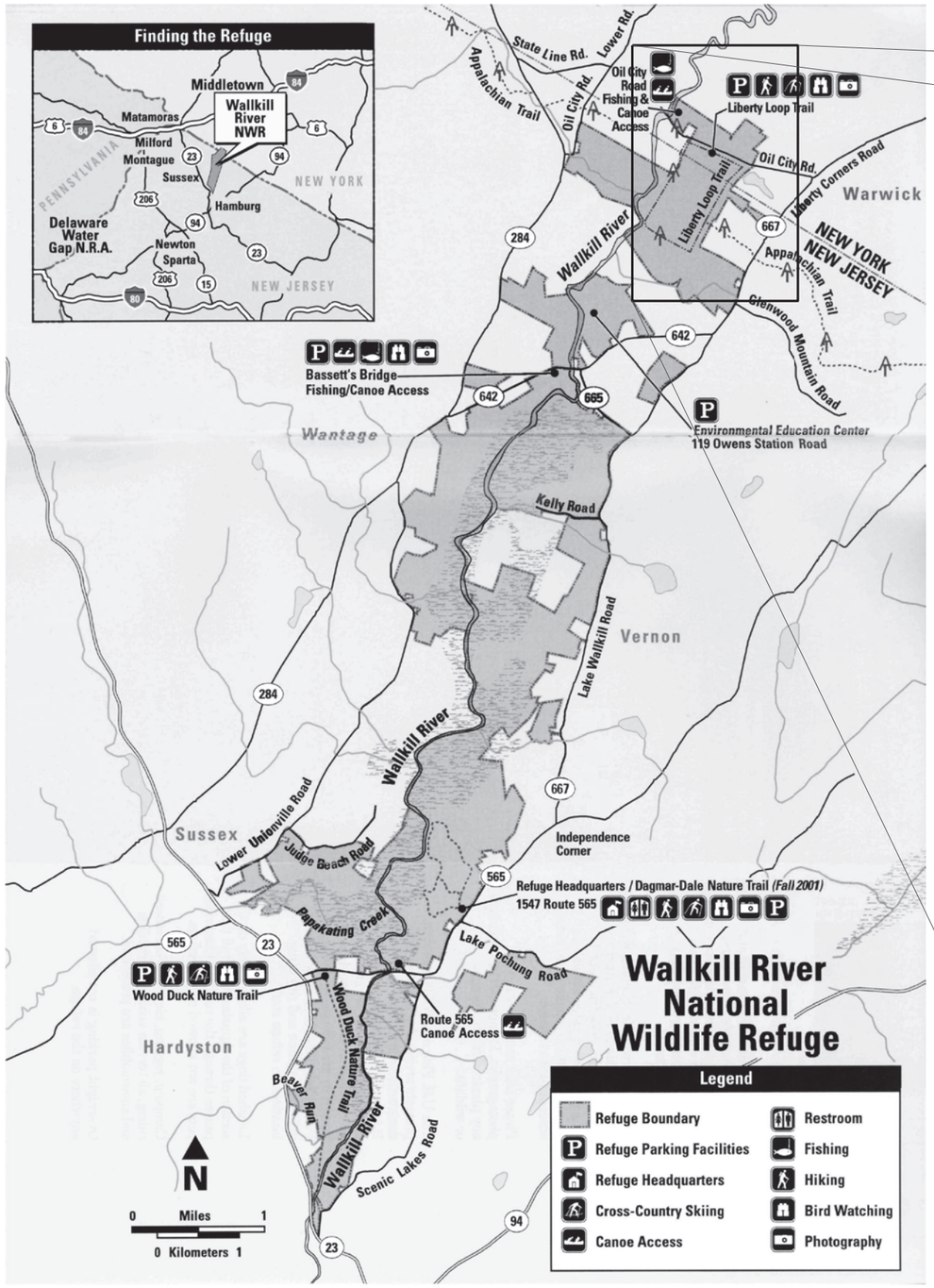
Sincerely,

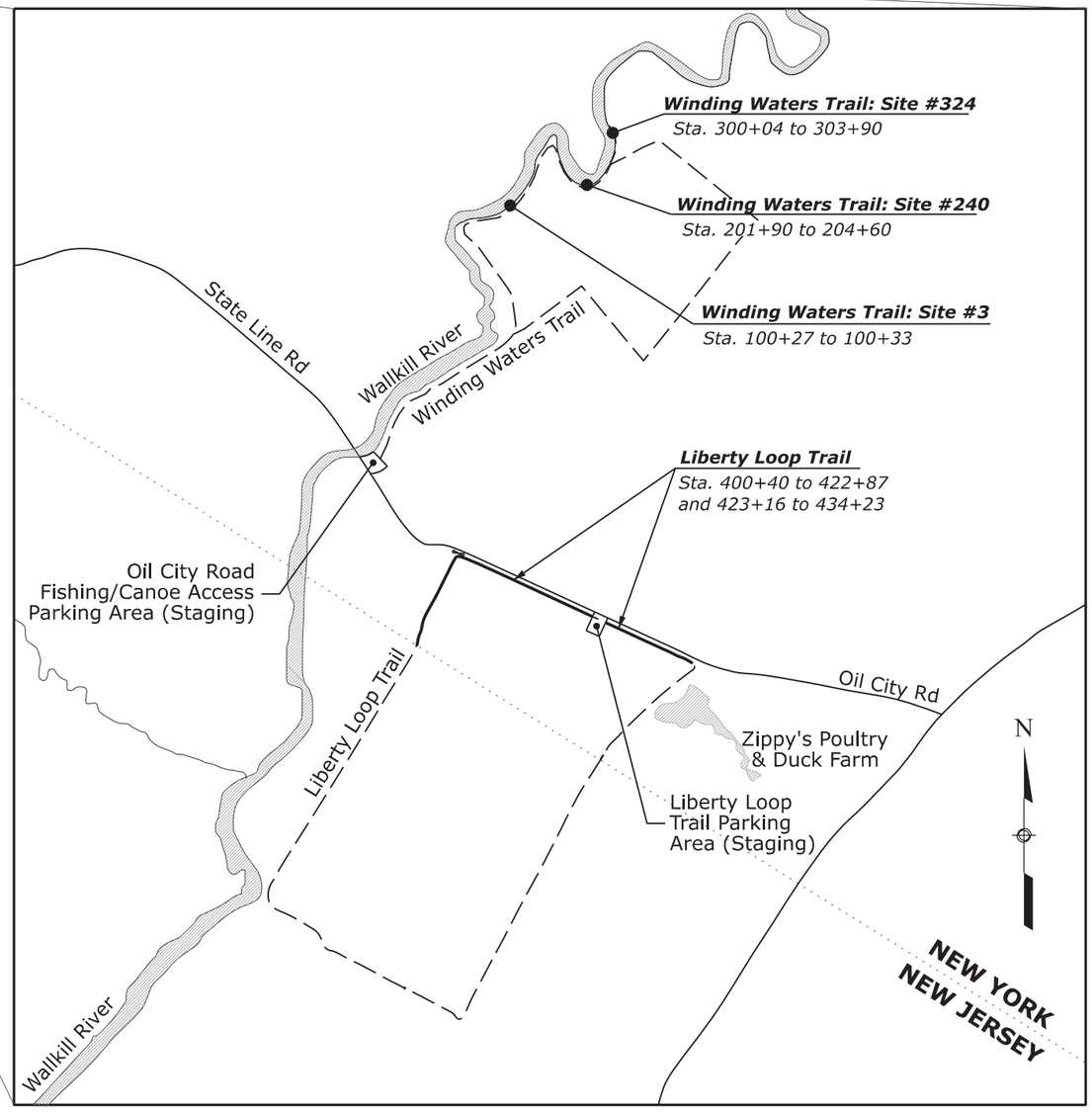
Brian A. Orzel
Project Manager
Metro NY/NJ Branch

Enclosures

Disaster No. NY2019-1-FWS

PROJECT	SHEET NUMBER
NY ERFO FW WARI 2019-1(1)	B-A04





NO.	DATE	BY	REVISIONS

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
OFFICE OF FEDERAL LANDS HIGHWAY

NOT TO SCALE

WALLKILL RIVER NATIONAL WILDLIFE REFUGE

LOCATION MAP

LIBERTY LOOP TRAIL &
WINDING WATERS TRAIL

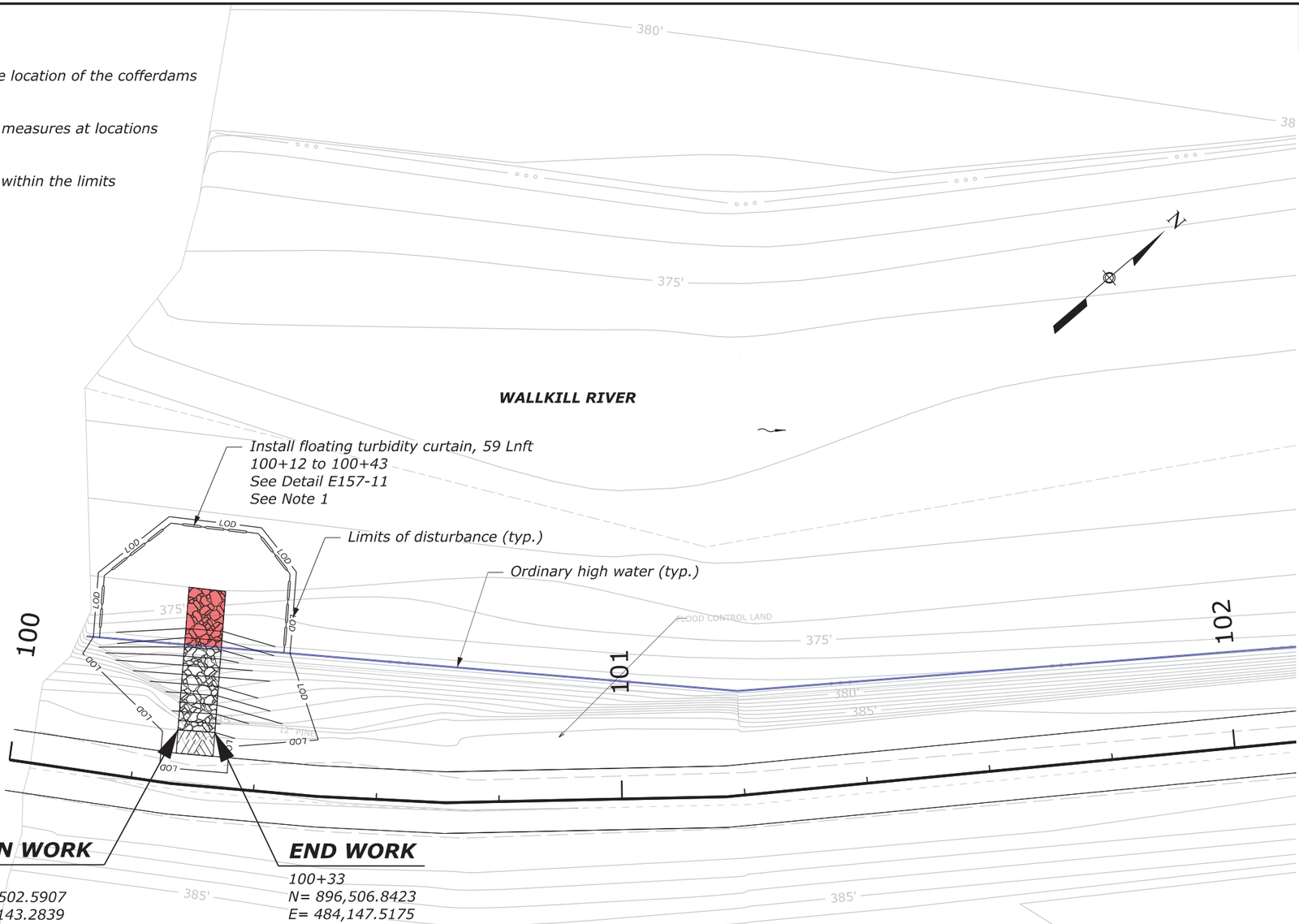
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30 January 2026 11:39 AM

Disaster No. NY2019-1-FWS

PROJECT	SHEET NUMBER
NY ERFO FW WARI 2019-1(1)	B-M10

NOTES:

1. *Submit a plan for approval for the approximate location of the cofferdams and floating turbidity curtain.*
2. *Place temporary erosion and sediment control measures at locations approved by the CO.*
3. *See Plan and Profile sheets for proposed work within the limits of disturbance.*



STREAM BED IMPACTS - SITE #3			
Impact Area	**Area (SQFT)**	**Area (ACRE)**	**Length (LNFT)**
Disturbed area	513	0.012	
Permanent Stream Bed Impacts	56	0.001	4

NO.	DATE	BY	REVISIONS

LEGEND

Disturbed Area

Permanent Stream Bed Impacts

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
OFFICE OF FEDERAL LANDS HIGHWAY

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SCALE IN FEET

WALLKILL RIVER NATIONAL WILDLIFE REFUGE

WETLAND & STREAM BED IMPACTS

WINDING WATERS TRAIL SITE #3

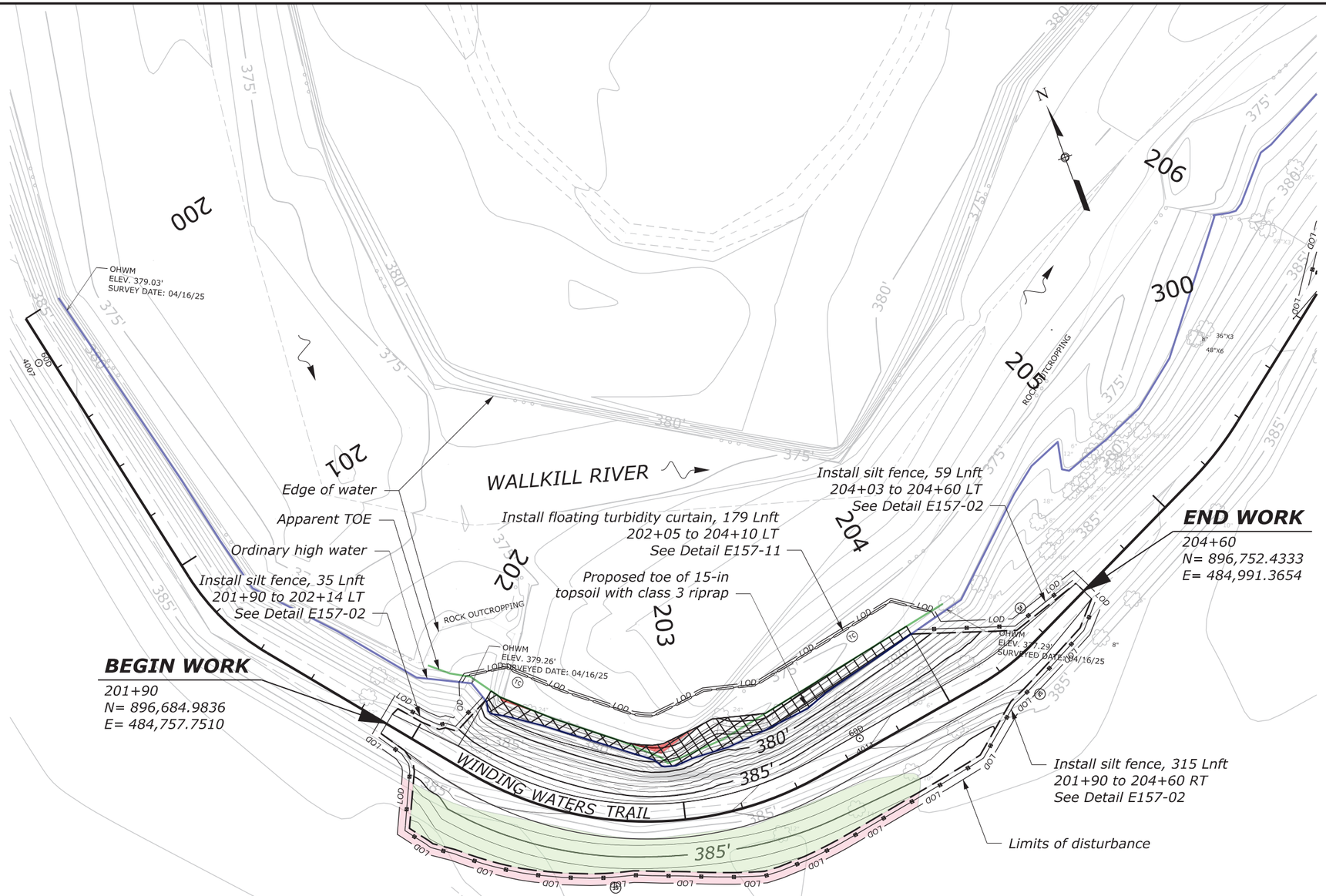
100+27 TO 100+33

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30 January 2026 4:52 PM

Disaster No. NY2019-1-FWS

PROJECT	SHEET NUMBER
NY ERFO FW WARI 2019-1(1)	B-M11



WETLAND AND STREAM BED IMPACTS - SITE #240

Impact Area	Area (SQFT)	Area (ACRE)	Length (LNFT)
Disturbed area	12,786	0.294	
Permanent Wetland Impacts	2,568	0.059	
Temporary Wetland Impacts	815	0.019	
Permanent Stream Bed Impacts	41	0.001	42
Permanent Fill Below OHWM	850	0.020	

NOTE:

See Plan and Profile sheets for proposed work within the limits of disturbance.

NO.	DATE	BY	REVISIONS

LEGEND

- Disturbed Area
- Permanent Wetland Impacts
- Temporary Wetland Impacts
- Permanent Stream Bed Impacts
- Permanent Fill Below OHWM

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
OFFICE OF FEDERAL LANDS HIGHWAY

0 20 40
SCALE IN FEET

WALLKILL RIVER NATIONAL WILDLIFE REFUGE

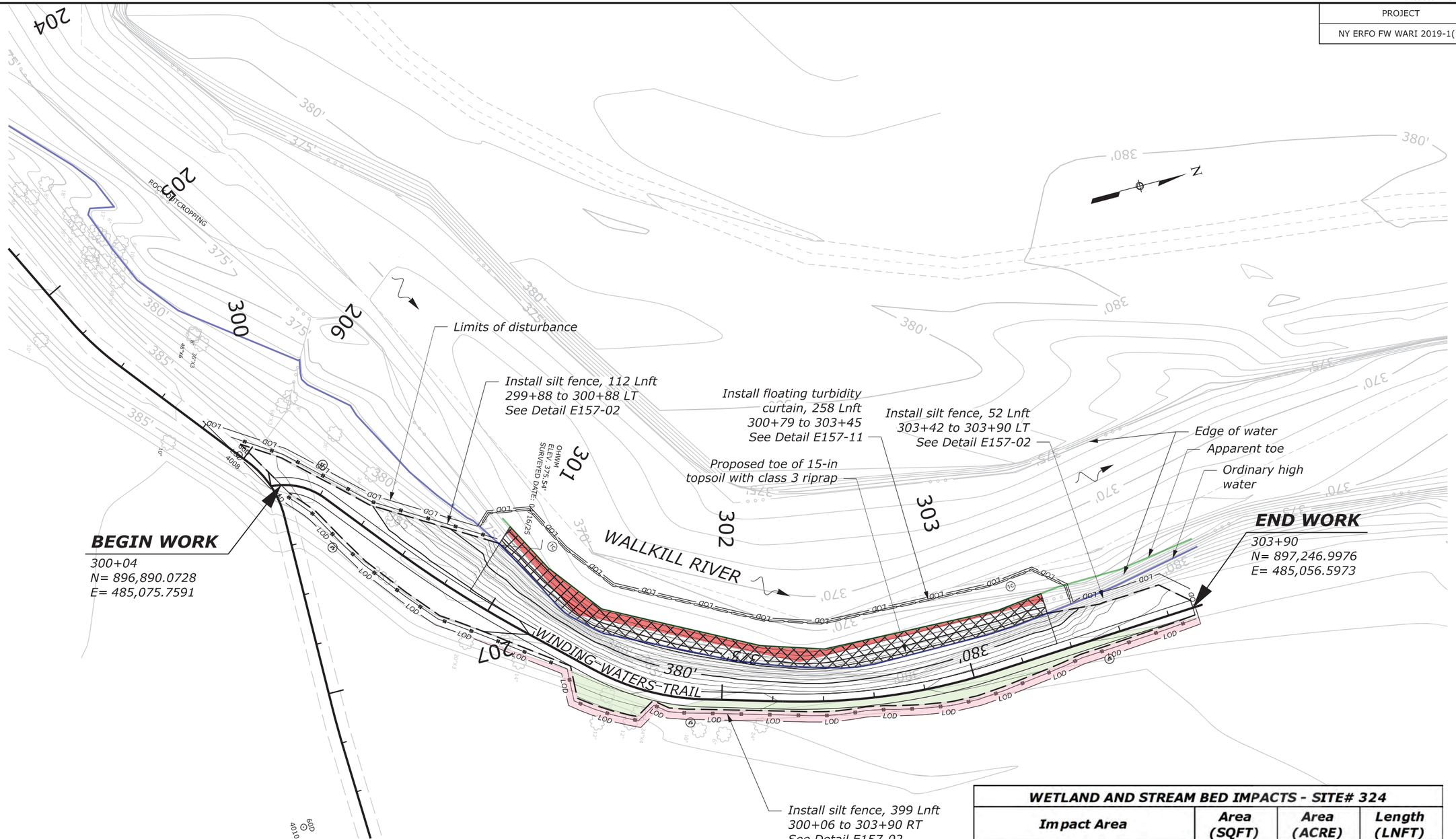
WETLAND & STREAM BED IMPACTS

WINDING WATERS TRAIL SITE #240
201+90 TO 204+60

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30 January 2026 5:08 PM

Disaster No. NY2019-1-FWS

PROJECT	SHEET NUMBER
NY ERFO FW WARI 2019-1(1)	B-M12



NOTE:

See Plan and Profile sheets for proposed work within the limits of disturbance.

WETLAND AND STREAM BED IMPACTS - SITE# 324

Impact Area	Area (SQFT)	Area (ACRE)	Length (LNFT)
Disturbed area	12,723	0.292	
Permanent Wetland Impacts	1,140	0.026	
Temporary Wetland Impacts	1,116	0.026	
Permanent Stream Bed Impacts	726	0.017	230
Permanent Fill Below OHWM	1,947	0.045	

NO.	DATE	BY	REVISIONS

LEGEND

- Disturbed Area
- Permanent Wetland Impacts
- Temporary Wetland Impacts
- Permanent Stream Bed Impacts
- Permanent Fill Below OHWM

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
OFFICE OF FEDERAL LANDS HIGHWAY

0 20 40
SCALE IN FEET

WALLKILL RIVER NATIONAL WILDLIFE REFUGE

WETLAND & STREAM BED IMPACTS

WINDING WATERS TRAIL SITE #324
300+04 TO 303+90

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30 January 2026 5:10 PM

NATIONWIDE GENERAL PERMIT COMPLIANCE CERTIFICATION AND REPORT FORM

Permit File Number: NAN-2025-00648
Permittee: Federal Highway Administration
Location: Town of Warwick, Orange County, New York

Date Permit Letter Issued: March 18, 2026

Within 30 days of the completion of the activity authorized by this nationwide general permit and any mitigation required in the verification letter, please sign this certification and return it to the address at the bottom of this form.

Please note that your permitted activity is subject to a compliance inspection by a U.S. Army Corps of Engineers representative. If you fail to comply with the permit's terms and conditions you are subject to permit suspension, modification or revocation.

I hereby certify that the work authorized by the above referenced nationwide general permit has been completed in accordance with the terms and conditions of said permit, and required mitigation was completed in accordance with the permit conditions.

_____ _____
Signature of Permittee **Date**

FOLD THIS FORM INTO THIRDS, WITH THE BOTTOM THIRD FACING OUTWARD. TAPE IT TOGETHER AND MAIL TO THE ADDRESS BELOW OR EMAIL TO CENAN-R-PERMIT-APP@USACE.ARMY.MIL.

_____
_____
_____

PLACE STAMP HERE

DEPARTMENT OF THE ARMY
NEW YORK DISTRICT CORPS OF ENGINEERS
USACE OPERATIONS/REGULATORY 16-406
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